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JUDGES OF THE HIGH COURT OF ZANZIBAR 2003

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ALPHABETICAL LIST OF CASES REPORTED

Andrea Albert Makoi v. Maria Albert Anthony Makoi 389
Attorney General v. Philemon Ndesamburo 194
Augustino Lyatonga Mrema v. Republic 6
Bulk Oil Tanzania Ltd v. Njake Enterprises Oil Transport Ltd and others 81
Caritas Kigoma v. K G Dewsi Ltd 420
Charles s/o Manoo Kasare and another v. Apolina w/o Manoo Kasare 425
Consolidated Holding Corporation v. Grace Ndeana 191
CRDB [1996] Ltd v. Boniface Chimya 413
CRDB Bank Limited v. Damas Joseph Mallya 165
Dar es Salaam University Students' Organization (Daruso) v. University of Dar es Salaam and another 1
Director of Public Prosecutions v. Jamal Waziri 324
Director of Public Prosecutions v. Peter Kalifumu and Bunga Kalifumu 32
Director of Public Prosecutions v. Prosper Mwalukasa 34
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu 306
Estomy A Baraka and another v. Commissioner for Lands and Human Settlements Development 29
Federation of Mines Associations of Tanzania and others v. Africa Gem Resources (Afgem) and others 294
G K Ishengoma t/a Tanzania Insurance Agency v. National Insurance Corporation 380
Halfa Hemed and Juma Ramadhani v. Republic 59
Iluminatus Mkoka v. Republic 245
Issa Athumani Tojo v. Republic 199
Jaribu Abdallah v. Republic 271
Joseph Mapunda and Hamisi Selemani v. Republic 366
Juma Garage v. Co-operative and Rural Development Bank 429
Juma Swalehe v. Republic 304
Kantibhai M Patel v. Dahyabhai F Mistry 437

Kong Special Administrative Region, Companies Winding Up Number 20 of 1998
Ismail G Lazaro v. Josephine Ngomera Civil Appeal Number 2 of 1986, Mbeya Registry (unreported) *352* (HCT); *347*
Izengo v. Republic [1982] T.L.R. 237; *149*
J S Mutungi v. The University of Dar es Salaam [2001] T.L.R.
James Yoram v. Republic [1951] 18 E.A.C.A. 147; *231*
Jeremiah Shemweta v. Republic [1985] T.L.R. 228; *398*
John D Kerenge v. Joel L. Mabiba, CAT - Civil Appeal Number 54 of 1998 (CA) (unreported); *64*
Joseph Warioba v. Stephen Wasira [1977] T.L.R. ; 6
Keeka v. Damji, (1968) EA 1
Khanna v. Dillon A. 1964 SC 1497
Kihamira Kalunge Kibaya v. United Africa Company, CAT – DSM – Civil Appeal Number 36 of 1987 (unreported)
Kisire v. Republic [1981] T.L.R. 218
Komanya v. Republic [1971] HCD n. 278; *218*
Kulwa Daudi v. Rebeca Stephen [1985] T.L.R. 117
Lausa Alfan Salum and others v. Minister for Lands, Housing and Urban Development and another [1992] T.L.R. 293.
Leonsi Silayo Ngalai v. Honourable Justne Alfred Salkana and Attorney General CAT-Civil Appeal Number 38 of 1996; *194*
Lucas Matafu v. Honourable M M Songambele [1977] LRT 10; *294*
Madeleine Delorie and others v. Claude Joseph Pool Civil Case Number 20 of 1994, Supreme Court of Seychelles (unreported); *347*
Magesa s/o Mjunja v. Republic [1986] T.L.R. 10; *212*
Maona and another v. Republic Criminal Appeal Number 215 of 1992 (unreported); *149*
Marus Kisukuli v. Republic Criminal Appeal Number 146 of 1993 (unreported); 149
Matu s/o Gichuma v. Republic [1951] 18 E.A.C.A. 311; 366
Maziku v. Republic [1992] T.L.R. 227; *149*
Michael Anufrejczk v. Republic [1955] 39 Criminal Appeal R 1; *84*
Minister for labour and another v. Gaspar Sai and others (2003) T.L.R. 50 ; *437*

Mlowo v. Republic [1995] T.L.R. 187; *149*
Moris A. Sasawata Matias Malieko [1980] T.L.R. 158; *347*
Mswahili Mlagala v. Republic [1977] LRT, n. 25; *84*
Mtikila v. Editor, Business Times and another [1993] T.L.R. 60; 294
Mtoba v. Republic (1982) T.L.R. 131; *149*
NAS Hauliers Ltd. v. NIC and another HC – CD – Commercial Civil Case Number 74 of 2000 (unreported); *49*
NBC v. Sadrudin Meghji [1998] T.L.R 503; *251*
Odd Jobs v. Mubia [1970] EA 476; *276*
Parry v. Carson [1963] EA 546
Patman Garments Industries Ltd. v. Tanzania Manufacturers Ltd. [1981] T.L.R. 303
Pollock House Ltd. v. Nairobi Wholesalers Ltd. [1972] EA 172
Ramanlal Trambaklal Bhatt v. Republic [1957] EA 332; *45*
Registered Trustees Social Action Trust Fund and others v. Messrs Happy Sausages Limited and others; *21*
Registrar of Societies and Two others v. Baraza la Wanawake Tanzania and 5 others CAT – Civil Appeal Number 82 of 1999 (unreported)
Republic v. Abdallah Selemani [1983] T.L.R. 215; *294*
Republic v. Charles Kisongedo [1967] HCD 204; *231*
Republic v. Court, 7 C.P. 486; *149*
Republic v. Kakengele Msagikwa [1968] H.C.D. n; *45*
Republic v. Mohammedali Jamal [1948] 15 E.A.C.A. 130; *84*
Republic v. Sabudin Merali and Umedali Merali, Uganda High Court Cr. App. 220 of 1963 (unreported); *84*
Republic v. Tinga Kelela [1974] LR Tn4; *366*
Robert John Mugo v. Adam Mollel Civil Appeal Number 2 of 1990; *320*
Sadiki Athumani v. Republic [1986] T.L.R. 235; *251*
Saidi Kibwana and General Tyre EA Limited v. Rose Jumbe [1993] T.L.R. 175; *276*
Seif Sharrif Hammed v. SMZ [1992] T.L.R. 43; *6*
Silvanus Leopard Ngumwe v. Republic [1981] T.L.R. 66; *231*
Simeon Manyaki v. Institute of Finance Management [1984] T.L.R. 304; *1*
Stephen Masatu Wasira v. Joseph Sinde Warioba [1999] T.L.R. ; *339*

Sylvester Cyprian and 210 others v. University of Dar es Salaam, HC-DSM- *; 1*

Tanganyika Motors Ltd. v. Transcontinental Forwarder Ltd. CAT-Civil apeal Number 44 of 1993 (unreported); *456*

Tarlock Singh Nayar and another v. Sterling General Insurance Company Ltd. [1996] *; 429*

Transport Equipment Ltd. v. Devram P. Valambia [1998] T.L.R. 89; 380

Tuwamoi v. Uganda [1969] EA 84; *251*

Ubungo Garments Limited v. Hassana Nuru Hassana and another [1966] T.L.R. 295; *21*

Venance Kiboko v. Meneja Mkuu, ZSTC High Court (Z) case Number 7 of 1996 (unreported)

Venka Tagiri v. Mindu Religious Endowment Board 76/A.67, 1949 APC 156

William Powell v Birminghman Vinegar Brewery Company Limited [1984] AC; *347*

Woodruff v. Dupont [1964] EA 404; *276*

Zabron Pangamaleza v. Joachim Kiwaraka [1989] T.L.R. 140

Zalkha Mohamed v. Juma Mazige [1970] HDC Number 132

Zuberi Augustino v. Anicet Mugabe, CAT – Civil Appeal Number 10 of 1992 (unreported)

Others Cases Referred To:

Abbabhai v. Gulamnabi A 1964 SC 1341

Australian Hardwoods Pty. Ltd. v. Commissioner for Railways [1961] 1 W.L.R. 425; *64*

Autospin (Oil Seeds) Ltd. v. Beehive Spinning [1955] RPC; *84*

Basheshaer North v. IT Commissioner AIR 1956 SC 149

Bilbee v. Hasse and Company [889] 5 Times LR; *380*

Boddington v. British Transport Police [1998] NLJ Law Reports 515; *160*

Bower v. Jones [1831] 8 Bing 65

Bradburn v. Great Western Railways [1874] LR 10 Ex 1; *347*

Bryant v. Flight [1839] SM and W 114

Buckley v. John Allen and Ford (Oxford) Limited [1967] 2 W.L.R.; *347*

Burns v. Edman [1970] 2 W.L.R. (O B D) 1005; *347*

Cannolly v. Director of Public Prosecutions [1964] 2 All ER 401; *199*

Christie, Owen and Davies t/a Christie and Co. v. Jones (1966) 198 Estate Gazette 1093; *198*

Clarke v. Grant and another [1949] 1 All ER 768; *276*

Coker v. Ajewole 1976(1) ALR Comm 230; *76*

Crocker Horlock Limited v. Lang and Company Limited [1949] 1 All ER 526

Customs and Excise Commissioner v. Cure and Deeley [1961] 3 All ER 641; *380*

Daubert v. Marrel Dow Pharmaceuticals Inc. 509 US 579 (1993); *84*

Davie v. Ednburgh Magistrates [1953] Sc 43; *84*

Daymond v. Plymonth City Council [1975] 3 All ER 134; *160*

Debebham v. Mellon [1880] 6 Appeal Case 24; *380*

Director of Public Prosecutions v. Humphreys [1977] AC 1; *199*

DLF Housing and C v. Sarup A 1971 SC 232

Drew v. Nunn (1879) 4 661; *380*

Ekoba v. Dayaran (1919) 22 BOMLR

Erinford Properties Ltd.. v. Cheshire County Council [1974] 261 at 268

Foley v. Hill (1843–1860) All ER Rep. 16

Furnell v. Whangarei High School Board [1973] AC 660; *251*

Gibson v. Manchester City Council [1979] W.L.R. *; 64*

Gopal Prasad Sinha v. The State of Bihar (1971) SC 45

Hadley v. Baxendale (1854) 9 Exch. 341; *347*

Hay and another v. Hughes [1975] W.L.R. 34 *362*

Hemchand v. Areylal A (1942) PC 64

Herniman v. Jenkins (1838) AC 305

Hicks v. Faulkner (1881) 8 QBD 167

Hunter v. Southern Inc., (1985) II DLR (4th) 641

Hutley v. Hutley (1873) LR 8 QB 112

Hutton v. Warren (1836) 1 M and V 466; *347*

In Re St. Thomas Dock Company (1876) 2 CLD 116

In Re Uruguay Central and Hygueritas Railway Company of Monte Video (1879) 11 CLD 372

In the matter of 'G' a Senior Advocate of the Supreme Court AIR 1954 SC 557
Joy v. Phillips Mills Co. Ltd. [1916] 1 KB 849; *84*
Kanhayalal v. Government of India (1974) A G UC 37
Karsales (Harrow) Ltd. v. Wallis [1956] 2 AC ER 866 CA
Marz v. The Queen 96 C.L.R. 62; *199*
Masud Khan v. State of Litter Pradesh [1974] 1 SCR 793
Mohmet v. Perry and another [1972] 2 All ER 529; *347*
Morgan v. Ashcroft [1938] 1 KB 49; *183*
Moss Steamship Company v. Whinney [1972] AC 254; *21*
National Justice Compania Naviera SA v. Prudential Assurance Co. Ltd. [1993] 2 Lloyds Rep. 68; *84*
Nayler v. Yearsley(1960) 2F and F41; *380*
Newhart Developments Limited v. Cooperative Commercial Bank Limited [1978] 2 All ER 896; *21*
Patel Kilabaiv v. Hargaban 19 B 133
Photo Productions Ltd. v. Securers Transport Ltd. [1980] CA 822.
Pike v. Waldrum (1983) Illoyd's Rep. 431
Polin v. Gray, [1879] 12 ChD 438. CA
Ravinder v. Singh v. State of Haryana AIR [1975] SC 854
Regina v. Hogan [1974] 1 QB 398; 199
Republic v. Collins [1969] 3 All ER 1562; *6*
Republic v. Court 7 C.P 486; *149*
Republic v. Thompson [1893] 2 QB 12; *149*
Republic v. Williams 2 Den CC 474; *149*
Ridge v. Baldwin [1964] AC 40; *251*
Robinson v. Harman 154 ER 363; *276*
Rouxel v. Royal Bank of Canada [1918] 2 WWR 791; *165*
Sambasavam v. Public Prosecutor Federation of Malaya [1970] AC 458
Sealfon v. United States [1948] 332 US 575; *199*
Shar v. Jag 54 A 466
Stevens v. Midland Countries Railway (1854) 10 EX 35
Tellis and others v. Bombay Municipal Corporation [1987] L.R.C. (Const) 351; *251*
The King v. Wilkes [1948] 77 CLR 511; *199*

Thompson v. Oklahoma 487 US (1982) 835
Tribe v. Taylor (1876) CPD 505
United States of America v. Roy Van Wyk US District Court for the District of New Jersey Cr 99-2717 (2000); *84*
Victoria Laundry (Windsor) Ltd.. v. Newman Industries Ltd.. [1949] 2 KB 540
Vitol BV v. Compagnie Europeene des Petroles [1988] 1 Lloyds Rep 514; *276*
Wandswort LBC v. Winder [1985] AC 461; *160*
Warren v. Henlys Limited [1943] 2 All ER 935; *347*
Way v. Latilla [1937] 3 All ER 759; 380
William Powell v. Birmingham Vinegar Brewery Company Limited [1894] AC 8
Wineworths Group Limited v. Comite Interprofessionel du Vin de Champagne, 2. NZLR 327

Kufakulala Kajendaje v. Republic 39
Leonard Jonathan v. Republic 331
Marungu Sisal Estate Limited v. George Nicholaus Efstathiou and two others 21
Mbeya-Rukwa Autoparts and Transport Ltd v. Jestina George Mwakyoma 251
Minister For Labour and Youth Development and another v. Gaspar Swai and others 239
Morris Agunda and others v. Republic 449
Peniel Lotta v. Gabriel Tanaki and others 312
Peter Ng'homango v. Attorney General 456
Republic v. Edward Mongo 45
Republic v. Kerstin Cameron 84
Richard Lubilo and Mohamed Selemani v. Republic 149
Ridas Eliphasi v. Republic 317
Robinson Mwanjisi and others v. Republic 218
Roseleen Kombe as the Administratrix of the Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) v. Attorney General 347
Shija Sweke v. Republic 398
Shinyanga Town Council v. Tanzania Breweries Ltd 160
Stella Masha v. Tanzania Oxygen Limited 64
Sultan Seif Nassor v. Republic 231
Supper Star Forwarders (T) Ltd v. National Insurance Corporation of Tanzania Ltd and another 49
Tanzania Breweries Ltd v. Greenway Company Ltd 267
Tanzania Electric Supply Co Ltd v. Muhimbili Medical Centre High Court of Tanzania 276
Tanzania Harbours Authority v. Mohamed R Mohamed 76
Umoja Garage v. N B C Holding Corporation 339
Wakf and Trust Commissioner (As Administrator of The Estate of The Late Zawadi Bint Said) v. Abbass Fadhili Abbass and another 377
William Loitiame v. Asheri Naftali 320

NOTER-UP

East Africa Cases Referred To:

AG v. Maalim Kadau and others [1997] T.L.R. 69; *251*
Ally Bakari and Pili Bakari v. Republic [1992] T.L.R. 10; *84*
Almas Iddie Mwinyi v. NBC and another CAT – Civil Application Number 68 of 1998 (unreported); *251*
Arusha Municipal Council v. Lyamuya Construction Company Limited [1998] T.L.R. 13; *81*
August Mahyo v. Republic [1993] T.L.R. 117; *84*
British Indian General Insurance Co. Ltd. v. Parmar [1966] EA 172
C D de Souza v. B R Sharma [1953] KLR; *84*
Chavda v. Director of Immigration Services and others [1995] T.L.R. 125.; *29*
Chunibhai Patel and another v. PF Hayes and others [1957] EA 748; *347*
Damodar Jihabhai and Company Limited and another v. Eustace Sisal Estate Limited [1967] EA 153; *276*
Director of Public Prosecutions v. Ally Nur Dirie and another [1988] T.L.R. 252; *21*
Director of Public Prosecutions v. Jafari Mfaume Kawawa [1981] T.L.R. 149; *231*
Elizabeth Shomari v. Republic CAT – Criminal Appeal Number 64 of 1990 (unreported); *84*
Faizen Enterprises Ltd. v. Africarriers Ltd. [1999] T.L.R. 416
Furth India Co-operation Ltd. v. Stanley and Son Ltd. [1967] HCD 168
Gaidon Nelson Mapunda v. Republic [1982] T.L.R. 318; *398*
Gatheru s/o Njagwara v. Republic (1954) 21 E.A.C.A. 384; *84*
Halais Pro – Chemie v. Wella AG [1996] T.L.R. 269; *251*
Hassan Fadhili v. Republic [1994] T.L.R. 89; *84*
Hezekiel Bakari Sanga v. Tanzania Zambia Railway Authority, CAT, Civil Appeal Number 79 of 1998 (unreported); *339*
Hussein Bhanjee v. NIC [1977] LRT n. 26
In the Matter of Peregrine Investment Holdings Ltd. and in the Matter of the Companies Ordinance Chapter 32, decided by the High Court of Hong

Kong Special Administrative Region, Companies Winding Up Number 20 of 1998
Ismail G Lazaro v. Josephine Ngomera Civil Appeal Number 2 of 1986, Mbeya Registry (unreported) *352* (HCT); *347*
Izengo v. Republic [1982] T.L.R. 237; *149*
J S Mutungi v. The University of Dar es Salaam [2001] T.L.R.
James Yoram v. Republic [1951] 18 E.A.C.A. 147; *231*
Jeremiah Shemweta v. Republic [1985] T.L.R. 228; *398*
John D Kerenge v. Joel L. Mabiba, CAT - Civil Appeal Number 54 of 1998 (CA) (unreported); *64*
Joseph Warioba v. Stephen Wasira [1977] T.L.R. ; 6
Keeka v. Damji, (1968) EA 1
Khanna v. Dillon A. 1964 SC 1497
Kihamira Kalunge Kibaya v. United Africa Company, CAT – DSM – Civil Appeal Number 36 of 1987 (unreported)
Kisire v. Republic [1981] T.L.R. 218
Komanya v. Republic [1971] HCD n. 278; *218*
Kulwa Daudi v. Rebeca Stephen [1985] T.L.R. 117
Lausa Alfan Salum and others v. Minister for Lands, Housing and Urban Development and another [1992] T.L.R. 293.
Leonsi Silayo Ngalai v. Honourable Justne Alfred Salkana and Attorney General CAT-Civil Appeal Number 38 of 1996; *194*
Lucas Matafu v. Honourable M M Songambele [1977] LRT 10; *294*
Madeleine Delorie and others v. Claude Joseph Pool Civil Case Number 20 of 1994, Supreme Court of Seychelles (unreported); *347*
Magesa s/o Mjunja v. Republic [1986] T.L.R. 10; *212*
Maona and another v. Republic Criminal Appeal Number 215 of 1992 (unreported); *149*
Marus Kisukuli v. Republic Criminal Appeal Number 146 of 1993 (unreported); 149
Matu s/o Gichuma v. Republic [1951] 18 E.A.C.A. 311; 366
Maziku v. Republic [1992] T.L.R. 227; *149*
Michael Anufrejczk v. Republic [1955] 39 Criminal Appeal R 1; *84*
Minister for labour and another v. Gaspar Sai and others (2003) T.L.R. 50 ; *437*

Mlowo v. Republic [1995] T.L.R. 187; *149*
Moris A. Sasawata Matias Malieko [1980] T.L.R. 158; *347*
Mswahili Mlagala v. Republic [1977] LRT, n. 25; *84*
Mtikila v. Editor, Business Times and another [1993] T.L.R. 60; 294
Mtoba v. Republic (1982) T.L.R. 131; *149*
NAS Hauliers Ltd. v. NIC and another HC – CD – Commercial Civil Case Number 74 of 2000 (unreported); *49*
NBC v. Sadrudin Meghji [1998] T.L.R 503; *251*
Odd Jobs v. Mubia [1970] EA 476; *276*
Parry v. Carson [1963] EA 546
Patman Garments Industries Ltd. v. Tanzania Manufacturers Ltd. [1981] T.L.R. 303
Pollock House Ltd. v. Nairobi Wholesalers Ltd. [1972] EA 172
Ramanlal Trambaklal Bhatt v. Republic [1957] EA 332; *45*
Registered Trustees Social Action Trust Fund and others v. Messrs Happy Sausages Limited and others; *21*
Registrar of Societies and Two others v. Baraza la Wanawake Tanzania and 5 others CAT – Civil Appeal Number 82 of 1999 (unreported)
Republic v. Abdallah Selemani [1983] T.L.R. 215; *294*
Republic v. Charles Kisongedo [1967] HCD 204; *231*
Republic v. Court, 7 C.P. 486; *149*
Republic v. Kakengele Msagikwa [1968] H.C.D. n; *45*
Republic v. Mohammedali Jamal [1948] 15 E.A.C.A. 130; *84*
Republic v. Sabudin Merali and Umedali Merali, Uganda High Court Cr. App. 220 of 1963 (unreported); *84*
Republic v. Tinga Kelele [1974] LR Tn4; *366*
Robert John Mugo v. Adam Mollel Civil Appeal Number 2 of 1990; *320*
Sadiki Athumani v. Republic [1986] T.L.R. 235; *251*
Saidi Kibwana and General Tyre EA Limited v. Rose Jumbe [1993] T.L.R. 175; *276*
Seif Sharrif Hammed v. SMZ [1992] T.L.R. 43; *6*
Silvanus Leopard Ngumwe v. Republic [1981] T.L.R. 66; *231*
Simeon Manyaki v. Institute of Finance Management [1984] T.L.R. 304; *1*
Stephen Masatu Wasira v. Joseph Sinde Warioba [1999] T.L.R. ; *339*

Sylvester Cyprian and 210 others v. University of Dar es Salaam, HC-DSM- *; 1*

Tanganyika Motors Ltd. v. Transcontinental Forwarder Ltd. CAT-Civil apeal Number 44 of 1993 (unreported); *456*

Tarlock Singh Nayar and another v. Sterling General Insurance Company Ltd. [1996] *; 429*

Transport Equipment Ltd. v. Devram P. Valambia [1998] T.L.R. 89; 380

Tuwamoi v. Uganda [1969] EA 84; *251*

Ubungo Garments Limited v. Hassana Nuru Hassana and another [1966] T.L.R. 295; *21*

Venance Kiboko v. Meneja Mkuu, ZSTC High Court (Z) case Number 7 of 1996 (unreported)

Venka Tagiri v. Mindu Religious Endowment Board 76/A.67, 1949 APC 156

William Powell v Birminghman Vinegar Brewery Company Limited [1984] AC; *347*

Woodruff v. Dupont [1964] EA 404; *276*

Zabron Pangamaleza v. Joachim Kiwaraka [1989] T.L.R. 140

Zalkha Mohamed v. Juma Mazige [1970] HDC Number 132

Zuberi Augustino v. Anicet Mugabe, CAT – Civil Appeal Number 10 of 1992 (unreported)

Others Cases Referred To:

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Australian Hardwoods Pty. Ltd. v. Commissioner for Railways [1961] 1 W.L.R. 425; *64*

Autospin (Oil Seeds) Ltd. v. Beehive Spinning [1955] RPC; *84*

Basheshaer North v. IT Commissioner AIR 1956 SC 149

Bilbee v. Hasse and Company [889] 5 Times LR; *380*

Boddington v. British Transport Police [1998] NLJ Law Reports 515; *160*

Bower v. Jones [1831] 8 Bing 65

Bradburn v. Great Western Railways [1874] LR 10 Ex 1; *347*

Bryant v. Flight [1839] SM and W 114

Buckley v. John Allen and Ford (Oxford) Limited [1967] 2 W.L.R.; *347*

Burns v. Edman [1970] 2 W.L.R. (O B D) 1005; *347*

Cannolly v. Director of Public Prosecutions [1964] 2 All ER 401; *199*

Christie, Owen and Davies t/a Christie and Co. v. Jones (1966) 198 Estate Gazette 1093; *198*

Clarke v. Grant and another [1949] 1 All ER 768; *276*

Coker v. Ajewole 1976(1) ALR Comm 230; *76*

Crocker Horlock Limited v. Lang and Company Limited [1949] 1 All ER 526

Customs and Excise Commissioner v. Cure and Deeley [1961] 3 All ER 641; *380*

Daubert v. Marrel Dow Pharmaceuticals Inc. 509 US 579 (1993); *84*

Davie v. Ednburgh Magistrates [1953] Sc 43; *84*

Daymond v. Plymonth City Council [1975] 3 All ER 134; *160*

Debebham v. Mellon [1880] 6 Appeal Case 24; *380*

Director of Public Prosecutions v. Humphreys [1977] AC 1; *199*

DLF Housing and C v. Sarup A 1971 SC 232

Drew v. Nunn (1879) 4 661; *380*

Ekoba v. Dayaran (1919) 22 BOMLR

Erinford Properties Ltd.. v. Cheshire County Council [1974] 261 at 268

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Furnell v. Whangarei High School Board [1973] AC 660; *251*

Gibson v. Manchester City Council [1979] W.L.R. *; 64*

Gopal Prasad Sinha v. The State of Bihar (1971) SC 45

Hadley v. Baxendale (1854) 9 Exch. 341; *347*

Hay and another v. Hughes [1975] W.L.R. 34 *362*

Hemchand v. Areylal A (1942) PC 64

Herniman v. Jenkins (1838) AC 305

Hicks v. Faulkner (1881) 8 QBD 167

Hunter v. Southern Inc., (1985) II DLR (4th) 641

Hutley v. Hutley (1873) LR 8 QB 112

Hutton v. Warren (1836) 1 M and V 466; *347*

In Re St. Thomas Dock Company (1876) 2 CLD 116

In Re Uruguay Central and Hygueritas Railway Company of Monte Video (1879) 11 CLD 372

In the matter of 'G' a Senior Advocate of the Supreme Court AIR 1954 SC 557
Joy v. Phillips Mills Co. Ltd. [1916] 1 KB 849; *84*
Kanhayalal v. Government of India (1974) A G UC 37
Karsales (Harrow) Ltd. v. Wallis [1956] 2 AC ER 866 CA
Marz v. The Queen 96 C.L.R. 62; *199*
Masud Khan v. State of Litter Pradesh [1974] 1 SCR 793
Mohmet v. Perry and another [1972] 2 All ER 529; *347*
Morgan v. Ashcroft [1938] 1 KB 49; *183*
Moss Steamship Company v. Whinney [1972] AC 254; *21*
National Justice Compania Naviera SA v. Prudential Assurance Co. Ltd. [1993] 2 Lloyds Rep. 68; *84*
Nayler v. Yearsley(1960) 2F and F41; *380*
Newhart Developments Limited v. Cooperative Commercial Bank Limited [1978] 2 All ER 896; *21*
Patel Kilabaiv v. Hargaban 19 B 133
Photo Productions Ltd. v. Securers Transport Ltd. [1980] CA 822.
Pike v. Waldrum (1983) Illoyd's Rep. 431
Polin v. Gray, [1879] 12 ChD 438. CA
Ravinder v. Singh v. State of Haryana AIR [1975] SC 854
Regina v. Hogan [1974] 1 QB 398; 199
Republic v. Collins [1969] 3 All ER 1562; *6*
Republic v. Court 7 C.P 486; *149*
Republic v. Thompson [1893] 2 QB 12; *149*
Republic v. Williams 2 Den CC 474; *149*
Ridge v. Baldwin [1964] AC 40; *251*
Robinson v. Harman 154 ER 363; *276*
Rouxel v. Royal Bank of Canada [1918] 2 WWR 791; *165*
Sambasavam v. Public Prosecutor Federation of Malaya [1970] AC 458
Sealfon v. United States [1948] 332 US 575; *199*
Shar v. Jag 54 A 466
Stevens v. Midland Countries Railway (1854) 10 EX 35
Tellis and others v. Bombay Municipal Corporation [1987] L.R.C. (Const) 351; *251*
The King v. Wilkes [1948] 77 CLR 511; *199*

Thompson v. Oklahoma 487 US (1982) 835
Tribe v. Taylor (1876) CPD 505
United States of America v. Roy Van Wyk US District Court for the District of New Jersey Cr 99-2717 (2000); *84*
Victoria Laundry (Windsor) Ltd.. v. Newman Industries Ltd.. [1949] 2 KB 540
Vitol BV v. Compagnie Europeene des Petroles [1988] 1 Lloyds Rep 514; *276*
Wandswort LBC v. Winder [1985] AC 461; *160*
Warren v. Henlys Limited [1943] 2 All ER 935; *347*
Way v. Latilla [1937] 3 All ER 759; 380
William Powell v. Birmingham Vinegar Brewery Company Limited [1894] AC 8
Wineworths Group Limited v. Comite Interprofessionel du Vin de Champagne, 2. NZLR 327

STATUTORY PROVISIONS REFERRED TO

Appellate Jurisdiction Act 1979

s 4 ..... [2003] 1 T.L.R. 1
s 4(3) ..... [2003] 1 T.L.R. 39
s 5 ..... [2003] 1 T.L.R. 194
s 5(1)(c) ..... [2003] 1 T.L.R. 251
s 5(7) ..... [2003] 1 T.L.R. 231

Arms and Ammunition Act 1991

s 3(1) ..... [2003] 1 T.L.R. 59

Basic Rights and Duties Enforcement Act 1994

s 3 ..... [2003] 1 T.L.R. 160
s 4 ..... [2003] 1 T.L.R. 160
s 5 ..... [2003] 1 T.L.R. 294
s 8(2) ..... [2003] 1 T.L.R. 160

Bills of Exchange Ordinance (Chapter 215)

s 69 ..... [2003] 1 T.L.R. 165

Civil Procedure Act 1985

s 291(1) ..... [2003] 1 T.L.R. 84

Civil Procedure Code

s 8 ..... [2003] 1 T.L.R. 21
s 29 ..... [2003] 1 T.L.R. 271
s 93 ..... [2003] 1 T.L.R. 76
s 95 ..... [2003] 1 T.L.R. 251
Order 1, rule 8 ..... [2003] 1 T.L.R. 1
Order 4, rule 1(3) ..... [2003] 1 T.L.R. 6
Order VII, rule 7 ..... [2003] 1 T.L.R. 292
Order VIII A and B ..... [2003] 1 T.L.R. 64
Order VIII, rule 1(2) ..... [2003] 1 T.L.R. 76

Order XIV, rule 2 ..... [2003] 1 T.L.R. 160
Order XIV, rule 5(1) ..... [2003] 1 T.L.R. 165
Order XX, rule 21 ..... [2003] 1 T.L.R. 191

Civil Procedure Decree Chapter 8

s 60 ..... [2003] 1 T.L.R. 81

Committee Act

s 20 (1) ..... [2003] 1 T.L.R. 6
s 21 ..... [2003] 1 T.L.R. 6
s 23 ..... [2003] 1 T.L.R. 6

Constitution of The United Republic of Tanzania

s 12 to 29 ..... [2003] 1 T.L.R. 160
r 12(4) ..... [2003] 1 T.L.R. 1
art 12 to 29 ..... [2003] 1 T.L.R. 294
art 13(6) ..... [2003] 1 T.L.R. 389
art 13(6)(a) ..... [2003] 1 T.L.R. 251
art 14 ..... [2003] 1 T.L.R. 294
art 23 ..... [2003] 1 T.L.R. 331
art 24 ..... [2003] 1 T.L.R. 294
art 27 ..... [2003] 1 T.L.R. 294
art 30(1) ..... [2003] 1 T.L.R. 294
clause 5 ..... [2003] 1 T.L.R. 1

Court of Appeal Rules 1979

r 3(2) ..... [2003] 1 T.L.R. 6
r 3(2)(a) and (b) ..... [2003] 1 T.L.R. 6
r 76(1) ..... [2003] 1 T.L.R. 317
r 76(1)(6) ..... [2003] 1 T.L.R. 317
r 76(6) ..... [2003] 1 T.L.R. 317
r 82 ..... [2003] 1 T.L.R. 251
r 106 ..... [2003] 1 T.L.R. 251

Criminal Procedure Act

s 194(6) ..... [2003] 1 T.L.R. 317
s 279 ..... [2003] 1 T.L.R. 306
s 370 ..... [2003] 1 T.L.R. 306
s 373(1)(b) ..... [2003] 1 T.L.R. 6
s 377 ..... [2003] 1 T.L.R. 306
s 379(a) ..... [2003] 1 T.L.R. 306

Criminal Procedure Code

s 373 (1) ..... [2003] 1 T.L.R. 6

Elections Act

s 114 ..... [2003] 1 T.L.R. 6

English Police and Criminal Evidence Act 1984

s 76 (2) ..... [2003] 1 T.L.R. 149

Evidence Act 1967

s 27, 28 and 29 ..... [2003] 1 T.L.R. 149
s 34B ..... [2003] 1 T.L.R. 84
s 59(1) (a) ..... [2003] 1 T.L.R. 165
s 78 ..... [2003] 1 T.L.R. 245
s 79 ..... [2003] 1 T.L.R. 245

Government Proceedings Act

s 11 ..... [2003] 1 T.L.R. 29

Land Registration Ordinance Chapter 334

s 37 ..... [2003] 1 T.L.R. 251
s.37(1) ..... [2003] 1 T.L.R. 251
s 37(2) ..... [2003] 1 T.L.R. 251

Law of Contract Ordinance Chapter 433

s 7 ..... [2003] 1 T.L.R. 64

s 73 ..... [2003] 1 T.L.R. 276
s 78 ..... [2003] 1 T.L.R. 64

Law of Marriage Act 1971

s 2 ..... [2003] 1 T.L.R. 331
s 9(1) ..... [2003] 1 T.L.R. 331

Local Government (Urban Authorities) Act 1982

Order 39, rule 7(1), (2) ..... [2003] 1 T.L.R. 6
s 97(1) ..... [2003] 1 T.L.R. 81

Magistrates' Courts Act

s 29(a)(i) ..... [2003] 1 T.L.R. 39
s 34(4) ..... [2003] 1 T.L.R. 39
s 45(1) ..... [2003] 1 T.L.R. 32

Minimum Sentences Act 1972

s 5 ..... [2003] 1 T.L.R. 59

Parliamentary Immunities, Powers and Privileges Act 1987

s 20(3) ..... [2003] 1 T.L.R. 6
s 23 ..... [2003] 1 T.L.R. 6

Penal Code

s 6 ..... [2003] 1 T.L.R. 6
s 63B(1) ..... [2003] 1 T.L.R. 6
s 130 ..... [2003] 1 T.L.R. 324
s 130(2) ..... [2003] 1 T.L.R. 324
s 130(2)(a) ..... [2003] 1 T.L.R. 324
s 130(2)(e) ..... [2003] 1 T.L.R. 324
s 131(3) ..... [2003] 1 T.L.R. 324
s 196 ..... [2003] 1 T.L.R. 347
s 265 and 285 ..... [2003] 1 T.L.R. 366

s 285 and 286 ..... [2003] 1 T.L.R. 317
s 384 and 267 ..... [2003] 1 T.L.R. 231
Art 19(2) ..... [2003] 1 T.L.R. 324

Stamp Duty Act 1972

s 40(e) ..... [2003] 1 T.L.R. 276

Tanzania Court of Appeal Rules 1979

r 76 ..... [2003] 1 T.L.R. 317
r 76(2) ..... [2003] 1 T.L.R. 239
r 83 ..... [2003] 1 T.L.R. 239
r 83(1) ..... [2003] 1 T.L.R. 239
r 83(2) ..... [2003] 1 T.L.R. 239
r 92(3) ..... [2003] 1 T.L.R. 239
r 100 ..... [2003] 1 T.L.R. 239

University of Dar es Salaam Act 1970

s 2 ..... [2003] 1 T.L.R. 1
s 3 ..... [2003] 1 T.L.R. 1
s 4 ..... [2003] 1 T.L.R. 1

DIGEST OF CASES REPORTED

ADMINISTRATIVE ACTION

Challenging an administrative action for being unconstitutional – Whether an application under section 4 of the Basic Rights and Duties Enforcement Act 1994 is the only way of challenging such action
Shinyanga Town Council v. Tanzania Breweries Ltd 160

ADVOCATE

Appearance in Court proceedings – Party to an action also appearing as advocate in the same case – Conflict of interest
Marungu Sisal Estate Limited v. George Nicholaus Efstathiou and Two others 21

AFFIDAVIT

Pleading by affidavits – Whether a rejoinder to a Reply to a Counter Affidavit is permissible
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251

AGENCY

Agent acting for Principal – Whether the agent may sue in his own name
Juma Garage v. Co-operative and Rural Development Bank 429

Agent suspended – Agent transacts business partly using facilities of the principal – Whether the agent entitled to the same amount of commission
GK Ishengoma t/a Tanzania Insurance Agency v. National Insurance Corporation Ltd. 380

Agent's right to remuneration – General rule and exceptions to the general rule – Calculation of agent's commission
GK Ishengoma t/a Tanzania Insurance Agency

v. National Insurance Corporation Ltd. 380

Privity of Contract – Privity of contract and agency – Whether by acting for the principal the agent becomes party to the contract
Juma Garage v. Co-operative and Rural Development Bank 429

Privity of Contract – Respondent instructed to act for an insurance corporation – Whether such instruction makes the respondent an agent of the corporation
Juma Garage v. Co-operative and Rural Development Bank 429

Suspension of agent – Agent transacts business during suspension – Whether the agent is entitled to commission
GK Ishengoma t/a Tanzania Insurance Agency v. National Insurance Corporation Ltd. 380

APPEAL

Appeals to the Court of Appeal – Certificate of delay in lodging record of appeal – Effect of certificate of delay where a copy of the letter to the Registrar asking for a copy of the proceedings was not sent to the respondent – Rule 83 of the Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Appeals to the Court of Appeal – Filing the record of appeal - Rule 83(1)the Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Appeals to the Court of Appeal – Notice of Appeal – Filing of the notice of appeal – Notice of Appeal to be filed in the High Court – Rule 76(1) of the Court of Appeal Rules 1979
William Loitiame v. Asheri Naftali 320

Appeals to the Court of Appeal – Notice of Appeal – Need and time to file a notice of appeal – Rule 76 of the Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Appeals to the Court of Appeal – Notice of Appeal – Parties that are to be served with the notice of appeal – Rule 77(1) of the Court of Appeal Rules 1979
Kantibhai M Patel v. Dahyabhai F Mistry 437

Appeals to the Court of Appeal – Notice of Appeal – Whether notice of appeal filed in the sub registry of the Court of Appeal and signed on behalf of Deputy Registrar of the Court of Appeal is valid
William Loitiame v. Asheri Naftali 320

Appeals to the Court of Appeal – Requirement of leave to appeal under the Appellate Jurisdiction Act 1979 – Written law providing for automatic right of appeal – Whether leave to appeal is still a necessary requirement – Section 5(1) of the Appellate Jurisdiction Act 1979 and section 17(5) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360
Attorney General v. Philemon Ndesamburo 194

Appeals to the Court of Appeal – Record of appeal – Certificate of delay that must be contained in the record of appeal – Certificate issued before preparation and delivery of a copy of proceedings to the appellant – Whether proper – Rule 83(1) of the Court of Appeal Rules
Kantibhai M Patel v. Dahyabhai F Mistry 437

Application to amend record of appeal – Application to amend record of appeal made after a preliminary objection has been made against the competence of the appeal – Whether such application may be entertained
Kantibhai M Patel v. Dahyabhai F Mistry 437

Criminal Appeals – Admission of statements of appellants on appeal

without hearing them – Whether proper – Sections 197, 225, 226 and 369 of the Criminal Procedure Act 1985
Robinson Mwanjisi and others v. Republic **218**

Criminal Appeals – Grounds for limiting appeals from interlocutory orders – Appellate Jurisdiction Act 1979, Rules made thereunder and Act Number 17 of 1993
Augustino Lyatonga Mrema v. Republic **6**

Criminal Appeals – Appeal against interlocutory orders – Notice of Appeal by the Director of Public Prosecutions – Meaning of Director of Public Prosecutions – Section 377 of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu **306**

Criminal Appeals – Appeals by the Director of Public Prosecutions – Notice of Appeal filed by the Regional Crime Officer – Whether such appeal is properly before the Court – Sections 279, 370 and 379(a) of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu **306**

Evidence – Evaluation of evidence on appeal – Powers of Appellate Court – Whether Appellate Court may evaluate the evidence afresh
Sultan Seif Nassor v. Republic **231**

Locus standi in appeals – Whether a person who was not involved in original proceedings has capacity to bring appeal – Rule 76(1) of the Court of Appeal Rules 1979
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma **251**

BANKING

Bank pays money to payee by mistake – Basis of recovery of money paid out by mistake
CRDB Bank Limited v. Damas Joseph Mallya **165**

Bank pays money to payee by mistake – Whether bank can exercise the right of set-off – Whether bank can combine a personal account and an account of a company in which defendant is director
CRDB Bank Limited v. Damas Joseph Mallya **165**

Bank pays money to payee by mistake believing a cheque sent for collection has been paid – Whether the bank can subsequently recover from the payee money paid out by mistake
CRDB Bank Limited v. Damas Joseph Mallya **165**

Tracing - Bank pays money to payee by mistake – Whether bank can trace the proceeds to accounts other then the account of defendant
CRDB Bank Limited v. Damas Joseph Mallya **165**

BASIC HUMAN RIGHTS

Basic rights guaranteed protection by the Constitution – Right to be heard – Article 13(6)(a) of the Constitution of Tanzania
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma **251**

Enforcement of basic rights under the Constitution – Procedure for enforcement – Petition for enforcement not accompanied by originating summons – Whether the petition is therefore incompetent – Section 5 of the Basic Rights and Duties Enforcement Act 1994
Federation of Mines Associations of Tanzania and Two others v. Africa Gem Resources (Afgem) and Seven others **294**

Enforcement of basic rights under the Constitution – Acts complained of constituting ordinary crimes and torts that can be prosecuted under ordinary laws in ordinary Courts – Petition under the Basic Rights and Duties Enforcement Act 1994 improper
Federation of Mines Associations of Tanzania and Two others v. Africa Gem Resources (Afgem) and Seven others **294**

Human Rights – Abuse of human rights by Government organs – Right to adequate compensation – Whether holding the Government vicariously liable for acts of its servants will open flood gates of litigation
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

Human rights provisions in the Constitution – Need to construe human rights provisions liberally – Whether the need means that compliance with legal requirements may therefore be disregarded
Federation of Mines Associations of Tanzania and Two others v. Africa Gem Resources (Afgem) and Seven others 294

BILL OF EXCHANGE

Holder for value – Customer allowed to withdraw before proceeds of cheque were cleared – Later it is discovered that the cheque is lost – Banker becomes holder for value
CRDB Bank Limited v. Damas Joseph Mallya 165

CIVIL PRACTICE AND PROCEDURE

Affidavits – Pleading by affidavits – Whether a rejoinder to a Reply to a Counter Affidavit is permissible
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251

Appeal – Right to appeal – Decision made under Order vii, rule 11(c) of the Civil Procedure Code, 1966 – Whether appellable as of right or by leave
Peter Ng'homango v. Attorney General 456

Appeals – Notice of Appeal – Parties that are to be served with the notice of appeal – Section 77(1) of the Court of Appeal Rules 1979
Kantibhai M Patel v. Dahyabhai F Mistry 437

Appeals – Preliminary Objection to an appeal – Application to amend record of appeal made after a preliminary objection has been made against the competence of the appeal – Whether such application may be entertained
Kantibhai M Patel v. Dahyabhai F Mistry 437

Appeals – Record of appeal – Certificate of delay that must be contained in the record of appeal – Certificate issued before preparation and delivery of a copy of proceedings to the appellant – Whether proper – Rule 83(1) of the Court of Appeal Rules
Kantibhai M Patel v. Dahyabhai F Mistry 437

Arbitration – Petition to set aside arbitration award – Petition omits to mention section 15 of the Arbitration Ordinance – Whether the omission is fatal to the petition
Tanzania Breweries Ltd. v. Greenway Company Ltd. 267

Basic human rights – Enforcement of basic rights under the Constitution – Petition for enforcement not accompanied by originating summons – Whether the petition is therefore incompetent – Section 5 of the Basic Rights and Duties Enforcement Act 1994
Federation of Mines Associations of Tanzania and Two others v. Africa Gem Resources (Afgem) and Seven others 294

Costs – Costs of a suit – Award of costs of a suit where no prayer for costs is made in the plaint – Whether award of costs to the successful party is automatic
ULC (Tanzania) Ltd. v. National Insurance Corporation and another 212

Damages – Damages not pleaded – Whether damages not pleaded are awardable – Order vii, rule 7 of the Civil Procedure Code 1966
Consolidated Holding Corporation v. Grace Ndeana 191

Damages – Interest on damages – Whether bank rate applicable - Order xx, rule 21 of the Civil Procedures Code 1966
Consolidated Holding Corporation v. Grace Ndeana **191**

Ex-parte judgement – Application for extension of time to apply to set aside ex-parte judgment and for setting aside the ex-parte judgment – What the Court must consider in the application
Caritas Kigoma v. KG Dewsi Ltd. **420**

Extension of Time – Application for extension of time to file a written statement of defence – Whether extension can be made at any time or is restricted to within 21 days after expiry of the time provided – Section 93 and Order viii, rule 1(2) of the Civil Procedure Code 1966
Tanzania Harbours Authority v. Mohamed R Mohamed **76**

Interest – Interest on damages – Whether bank rate applicable - Order xx, rule 21 of the Civil Procedures Code 1966
Consolidated Holding Corporation v. Grace Ndeana **191**

Jurisdiction – When the issue of jurisdiction may be raised – Whether the issue of jurisdiction may be raised at the stage of appeal
Wakf and Trust Commissioner v. Abbass Fadhili Abbass and another **377**

Limitation of Time – Action for declaratory orders – Limitation period for an action for declaratory orders – Law of Limitation Act 1971, 1st Schedule, Part I, item 24
CRDB (1996) Ltd. v. Boniface Chimya **413**

National Assembly – Parliamentary immunity – Appellant investigated by a Select Committee of National Assembly and granted certificate in respect of the first and third counts – Effect of grant of such certificate on the jurisdiction of the Court to try such counts – Section 373(1) of the Criminal Procedure Code and section 20(3) of the Parliamentary Immunities, Powers and Privileges Act 1987, Number 3 of 1988
Augustino Lyatonga Mrema v. Republic **6**

Originating Summons – Matter preferred in Regional Magistrate's Court by Originating Summons – Whether the Regional Magistrate's Court has jurisdiction to hear a matter preferred by Originating Summons
Wakf and Trust Commissioner (as Administrator of the Estate of the late Zawadi bint Said) v. Abbass Fadhili Abbass and another **377**

Parallel suits between same parties involving the same issue – One filed in the Commercial Division while another is pending in the High Court at Tanga – Subsequent suit struck out – Order IV, rule 1(3) as amended in GN 140 of 1999
Marungu Sisal Estate Limited v. George Nicholaus Efstathiou and Two others **21**

Parties – Party to be sued – Whether a party may be sued in a trade name – Order xxix, rule 10 of the Civil Procedure Code 1966
Juma Garage v. Co-operative and Rural Development Bank **429**

Plaint – Rejection of Plaint – Power to reject an incompetent plaint – Whether rejection of a plaint may give rise to a decree as defined under section 3 of the Civil Procedure Code 1966
Peter Ng'homango v. Attorney General **456**

Plaint – Striking out an incompetent plaint – Power to strike out an incompetent plaint – Whether striking out such plaint amounts to rejection in terms of Order vii, rule 11(c) of the Civil Procedure Code 1966
Peter Ng'homango v. Attorney General **456**

Pleadings – Matter not pleaded – Whether the Court may decide a matter which was not pleaded
Tanzania Electric Supply Co. Ltd. v. Muhimbili Medical Centre **276**

Precedent – Decisions by judges of the same Court – Judges of the same Court not to give conflicting decisions
ULC (Tanzania) Ltd. v. National Insurance Corporation and another 212

Res Judicata – Appellant was not a party to previous suit but had a common interest with parties on one side – The parties in the previous suit were the appellant's mother and sister – Whether plea of res judicata is available
Peniel Lotta v. Gabriel Tanaki and others 312

Res judicata – In the previous case the plaintiff sued the defendant for a declaration that he was not in breach of agreement with the defendant and for an order determining the agreement – In the subsequent suit the same plaintiff sues the same defendant for a declaration that it was the defendant who was in breach of the agreement – Whether the doctrine of res judicata applies – Section 9 of the Civil Procedure Code 1966
Umoja Garage v. NBC Holding Corporation 339

COMPANY LAW

Receivership – Whether directors divested of power to challenge the receivership itself
Marungu Sisal Estate Limited v. George Nicholaus Efstathiou and Two others 21

CONSTITUTIONAL LAW AND PRACTICE

Administrative Action – Resistance to an unconstitutional administrative action – Whether an application under section 4 of the Basic Rights and Duties Enforcement Act 1994 is the only way
Shinyanga Town Council v. Tanzania Breweries Ltd. 160

Enforcement of basic rights under the Constitution – Acts complained of constituting ordinary crimes and torts that can be prosecuted in Ordinary Courts – Whether petition under the Basic Rights and Duties Enforcement Act 1994 is proper
Federation of Mines Associations of Tanzania and Two others v. Africa Gem Resources (Afgem) and Seven others 294

Basic rights guaranteed protection by the Constitution – Right to be heard – Article 13(6)(a) of the Constitution of Tanzania
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251

Separation of powers and functions – Power to grant and revoke rights to land – High Court makes orders granting and revoking rights of occupancy – Whether the High Court is not infringing the doctrine of separation of powers
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251

CONTRACT

Exemption Clause – Insurance contract – Contract containing an exclusionary clause – Whether insurer can take cover under the exclusionary clause
Supper Star Forwarders (T) Ltd. v. National Insurance Corporation of Tanzania Ltd. and another 49

Formation of contract – Acceptance of an offer – Purchase price required to be paid in full – Purchase price paid partly in banker's cheque and partly in irrevocable bank guarantee – Whether acceptance of offer was absolute and whether purchase price was paid in full
Stella Masha v. Tanzania Oxygen Limited 64

Insurance – Contract containing an exclusionary clause – Whether insurer can take cover under the exclusionary clause
Supper Star Forwarders (T) Ltd. v. National Insurance Corporation of Tanzania Ltd. and another 49

Privity of Contract – Privity of contract and agency – Whether by acting for the principal the agent becomes a party to the contract.
Juma Garage v. Co-operative and Rural Development Bank 429

Privity of Contract – Respondent instructed to act for an insurance corporation – Whether such instruction makes the respondent an agent of the corporation
Juma Garage v. Co-operative and Rural Development Bank 429

Tender – Advertisement for Tender – plaintiff submitted her tender and defendant wrote to sell the property to plaintiff – Whether the defendant's letter was an offer to sell
Stella Masha v. Tanzania Oxygen Limited 64

COURT OF APPEAL

Application to amend record of appeal – Application to amend record of appeal made after a preliminary objection has been made against the competence of the appeal – Whether such application may be entertained
Kantibhai M Patel v. Dahyabhai F Mistry 437

Court of Appeal Rules 1979 –

See under: **COURT OF APPEAL RULES**

Jurisdiction – Revisional jurisdiction of the Court of Appeal – How revisional powers arise – Principles underlying exercise of revisional jurisdiction - Appellate Jurisdiction Act 1979
Augustino Lyatonga Mrema v. Republic 6

Leave to Appeal – Requirement of leave to appeal under the Appellate Jurisdiction Act 1979 – Written law providing for automatic right of appeal – Whether leave to appeal is still a necessary requirement – Section 5(1) of the Appellate Jurisdiction Act 1979 and section 17(5) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Chapter 360)

Attorney General v. Philemon Ndesamburo 19

Limitation of Time – Review – Whether the rules of the Court of Appeal prescribe a limitation period for review
Director of Public Prosecutions v. Prosper Mwalukasa 3

Limitation of Time – Whether the Court of Appeal is subject to the Law of Limitation Act 1971 – Whether Rules of the Court prescribe a limitation period for review
Director of Public Prosecutions v. Prosper Mwalukasa 3

Notice of Appeal – Filing of the notice of appeal – Notice of Appeal to be filed in the High Court – Rule 76(1) of the Court of Appeal Rules 1979
William Loitiame v. Asheri Naftali 320

Notice of Appeal – Need and time to file notice of appeal – Rule 76 of the Tanzania Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Notice of Appeal – Parties that are to be served with the notice of appeal – Rule 77(1) of the Court of Appeal Rules 1979
Kantibhai M Patel v. Dahyabhai F Mistry 437

Notice of Appeal – Whether notice of appeal filed in the sub registry of the Court of Appeal and signed on behalf of Deputy Registrar of the Court of Appeal is valid
William Loitiame v. Asheri Naftali 320

Record of appeal – Certificate of delay that must be contained in the record of appeal – Certificate issued before preparation and delivery of a copy of proceedings to the appellant – Whether proper – Rule 83(1) of the Court of Appeal Rules
Kantibhai M Patel v. Dahyabhai F Mistry 437

Record of Appeal – Filing the record of appeal – Rule 83(1) of the

Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

COURT OF APPEAL RULES

Application to amend record of appeal – Application to amend record of appeal made after a preliminary objection has been made against the competence of the appeal – Whether such application may be entertained
Kantibhai M Patel v. Dahyabhai F Mistry 437

Certificate of delay in lodging record of appeal – Effect of certificate of delay where a copy of the letter to the Registrar asking for a copy of the proceedings was not sent to the respondent – Rule 83 of the Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Filing the record of appeal - Rule 83(1) of the Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Limitation of Time – Review – Whether the Court of Appeal Rules prescribe a limitation period for review
Director of Public Prosecutions v. Prosper Mwalukasa 34

Locus standi in appeals – Whether a person who was not involved in original proceedings has capacity to bring an appeal – Rule 76(1) of the Court of Appeal Rules 1979 (CAT)
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251

Notice of Appeal – Filing of the notice of appeal – Notice of Appeal to be filed in the High Court – Rule 76(1) of the Court of Appeal Rules 1979
William Loitiame v. Asheri Naftali 320

Notice of Appeal – Need and time to file a notice of appeal – Rule 76

of the Tanzania Court of Appeal Rules 1979
Minister for Labour and Youth Development and another v. Gaspar Swai and others 239

Notice of Appeal – Parties that are to be served with the notice of appeal – Rule 77(1) of the Court of Appeal Rules 1979
Kantibhai M Patel v. Dahyabhai F Mistry 437

Notice of preliminary objection –Whether omission to cite provision under which the objection is brought is fatal
Mbeya-Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma 251
and
William Loitiame v. Asheri Naftali 320

Record of appeal – Certificate of delay that must be contained in the record of appeal – Certificate issued before preparation and delivery of a copy of proceedings to the appellant – Whether proper – Rule 83(1) of the Court of Appeal Rules
Kantibhai M Patel v. Dahyabhai F Mistry 437

CRIMINAL LAW

Armed Robbery – Use of a toy pistol in committing the offence – Whether the offence committed is armed robbery
Halfa Hemed and Juma Ramadhani v. Republic 59

Attempted rape – Factors constituting the offence
Joseph Mapunda and Hamisi Selemani v. Republic 366

Common intention – Attempted rape – When common intention is established in the offence of attempted rape
Joseph Mapunda and Hamisi Selemani v. Republic 366

Obtaining money by false pretence – Charge alleges obtaining money by falsely claiming to be able to multiply it but complainant parted with the money to purchase a house – Whether the charge has a basis
Juma Swalehe v. Republic 304

Rape – Carnal knowledge of a girl aged 15 years – Victim does not

report offence because the offender promises to marry her – Whether the victim consented to carnal knowledge – Section 130(2)(e) of the Penal Code
Director of Public Prosecutions v. Jamal Waziri **324**

Theft – Doctrine of recent possession – Accused explains how he got possession of the stolen goods – Whether the doctrine may properly apply
Sultan Seif Nassor v. Republic **231**

CRIMINAL PRACTICE AND PROCEDURE

Appeal – Admission of statements of appellants on appeal without hearing them – Whether proper – Sections 197, 225, 226 and 369 of the Criminal Procedure Act 1985
Robinson Mwanjisi and others v. Republic **218**

Appeal – Appeals by the Director of Public Prosecutions – Notice of Appeal filed by the Regional Crimes Officer – Whether such appeal is properly before the Court – Sections 279, 370 and 379(a) of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu **306**

Appeal – Evaluation of evidence on appeal – Powers of Appellate Court – Whether appellate Court may evaluate the evidence afresh
Sultan Seif Nassor v. Republic **231**

Appeal – Notice of Appeal by the Director of Public Prosecutions – Meaning of Director of Public Prosecutions – Section 377 of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu **306**

Charges – Charge of stealing by servant – Sections 265 and 271 of the Penal Code Chapter16
Shija Sweke v. Republic **398**

Charges – Charge of stealing of property followed by a charge of being in possession of property unlawfully acquired – Charge of

being in possession of property unlawfully acquired relating to property acquired by using proceeds of the theft – Whether the charge is proper
Shija Sweke v. Republic **398**

Charges – Charge preferred under repealed section of the law – Repealed section re-enacted in identical words in the current statute – Defect is a curable
Joseph Mapunda and Hamisi Selemani v. Republic **366**

Competent witness – Investigator as a witness – Whether an investigator is competent to testify
Robinson Mwanjisi and others v. Republic **218**

Corroboration – Corroboration in sexual offences – Whether corroboration is necessary in sexual offences – Section 127 of the Evidence Act as amended by section 27 of the Sexual Offences (Special Provisions) Act 1998
Joseph Mapunda and Hamisi Selemani v. Republic **366**

Defence – Defence of alibi - Need to give notice of defence of alibi – Section 194 (b) of the Criminal Procedure Act 1985
Ridas Eliphasi v. Republic **317**

Exhibits – Custody of exhibits – Need to know in whose custody exhibits were kept
Iluminatus Mkoka v. Republic **245**

Extended jurisdiction – Appeals in the High Court transferred to Court of Resident Magistrate with extended jurisdiction – Appeals to be registered afresh in the Court of Resident Magistrate – Section 45(1) of the Magistrates' Courts Act 1984 as amended by Act Number 2 of 1996
Director of Public Prosecutions v. Peter Kalifumu and Bunga Kalifumu **32**

Hearing a case after expiry of 60 days – Whether lawful – Section 225(4) of the Criminal Procedure Act 1985
Robinson Mwanjisi and others v. Republic **218**

Issue estoppel – Whether the doctrine of issue estoppel is applicable to criminal trials in Tanzania – Section 2(2) of the Judicature and Application of Laws Ordinance Chapter 358
Issa Athumani Tojo v. Republic **199**

Limitation of Time – Whether the Court of Appeal is subject to the Law of Limitation Act 1971 – Whether Rules of the Court prescribe a limitation period for review
Director of Public Prosecutions v. Prosper Mwalukasa **34**

Mis-directions and non-directions – Effect thereof
Robinson Mwanjisi and others v. Republic **218**

No case to answer – Circumstances in which a submission of no case to answer may be upheld
Republic v. Edward Mongo **45**

Review – Application for review – Delay in lodging application – Grounds for delay – Whether laxity and incompetence of advocate is an excuse
Director of Public Prosecutions v. Prosper Mwalukasa **34**

Review – Application for review – Preliminary objection to review – Application out of time and circumstances relied upon not disclosed
Director of Public Prosecutions v. Prosper Mwalukasa **34**

Review – Application for review before the Court of Appeal – Period of limitation for such application
Director of Public Prosecutions v. Prosper Mwalukasa **34**

Revision – Power of revision to rectify errors – Section 4(3) of the Appellate Jurisdiction Act 1979 as amended by the Appellate Jurisdiction (Amendment) Act 1993

Director of Public Prosecutions v. Peter Kalifumu and Bunga Kalifumu **32**

Right of the accused to be heard – Summons returned unserved – Court proceeds to hear the appeal in the absence of the accused/respondents – Whether proceedings were irregular – Section 34(4) of the Magistrates' Courts Act 1984
Kufakulaia Kajendaje v. Republic **39**

Sentencing – Compensation order – A compensation order must be precise and must show the law under which it is made
Shija Sweke v. Republic **399**

Sentencing – Enhancement of sentence – Sentence enhanced in the absence of the accused/respondents – Whether proceedings rendered a nullity – Section 29(a)(i) of the Magistrates' Courts Act 1984
Kufakulaia Kajendaje v. Republic **39**

Sentencing – Sentencing powers on appeal – Whether Appellate Court may interfere with sentence of a lower Court
Sultan Seif Nassor v. Republic **231**

Trial – Dispensing with presence of accused – When a statement of accused person should be read out
Robinson Mwanjisi and others v. Republic **218**

Trial – Trial within a trial – When a trial within a trial may be conducted
Robinson Mwanjisi and others v. Republic **218**

CUSTOMARY LAW

Inheritance – Customary Law of Inheritance – Government Notice 436 of 1960
Andrea Albert Makoi v. Maria Albert Anthony Makoi **389**

Inheritance – Whether clan land may be bequeathed to female heirs

Andrea Albert Makoi v. Maria Albert Anthony Makoi 389

Marriage – Contracting marriage – appellant forcefully grabbed complainant and took her to his house and had carnal knowledge of her – Whether a customary law marriage was thereby contracted – Sections 2 and 9(1) of the Law of Marriage Act 1971

Leonard Jonathan v. Republic 331

Marriage under customary law – Whether a customary law marriage may be contracted without the consent of the bride – Sections 2 and 9 (1) of the Law of Marriage Act 1971
Leonard Jonathan v. Republic 331

Wills – Will witnessed by six witnesses – Whether the will is valid
Andrea Albert Makoi v. Maria Albert Anthony Makoi 389

DAMAGES

Assessment of damages in tort – Assessment of damages awardable to dependants – Working life of the deceased husband and widow's chances of remarriage as factors in assessing damages
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 348

Damages not pleaded – Whether damages not pleaded are awardable – Order vii, rule 7 of the Civil Procedure Code 1966
Consolidated Holding Corporation v. Grace Ndeana 191

Interest – Interest on damages – Whether bank rate applicable - Order xx, rule 21 of the Civil Procedures Code 1966
Consolidated Holding Corporation v. Grace Ndeana 192

ESTOPPEL

Issue estoppel – Whether the doctrine of issue estoppel is applicable

to criminal trials in Tanzania – Section 2(2) of the Judicature and Application of Laws Ordinance Chapter 358
Issa Athumani Tojo v. Republic 199

EVIDENCE

Advertisement for tender not attached to pleadings and not tendered in evidence – Whether Trial Court may rely on it
Stella Masha v. Tanzania Oxygen Limited 64

Burden of proof – Weaknesses of defence case – Effect of weaknesses of defence case on the burden of proof – Weaknesses of defence case not a basis for conviction
Republic v. Kerstin Cameron 84

Character evidence – Character evidence prejudicial to the character of the deceased – Whether the evidence is admissible when the death or its cause is in issue
Republic v. Kerstin Cameron 84

Circumstantial evidence – Circumstances under which conviction can be sustained by circumstantial evidence – Principles applicable in grounding a conviction on circumstantial evidence .....
Republic v. Kerstin Cameron 84

Confession – Admissibility of confessions – Confession contained in a statement involuntarily made – Whether admissible – Sections 27, 28 and 29 of the Evidence Act 1967
Richard Lubilo and Mohamed Selemani v. Republic 149

Confession – Retracted confession – Admissibility of retracted confession – Trial within trial not held – Whether confession admissible
Morris Agunda and Two others v. Republic 449

Confession – Retracted confession – Trial Court relying on retracted confession – Whether conviction is sustainable
Morris Agunda and Two others v. Republic 449

Confession – Voluntariness of confession – Confession made at gun point and after considerable and unexplained lapse of time – Whether confession voluntary and admissible
Morris Agunda and Two others v. Republic **449**

Corroboration – Corroboration in sexual offences – Whether corroboration is necessary in sexual offences – Section 127 of the Evidence Act
Joseph Mapunda and Hamisi Selemani v. Republic **366**

Evaluation of Evidence – Evaluation of evidence on appeal – Powers of Appellate Court – Whether Appellate Court may evaluate the evidence afresh
Sultan Seif Nassor v. Republic **231**

Expert evidence – Standards of accuracy and objectivity required – Role an expert should assume
Republic v. Kerstin Cameron **84**

Expert evidence – Utility of expert evidence
Republic v. Kerstin Cameron **84**

Expert evidence – When expert evidence may be contradicted by levy witnesses
Republic v. Kerstin Cameron **84**

Identification of offender – Offender not named by witnesses when the first opportunity presented itself – Offender named after sometime – Credibility of witnesses
Jaribu Abdallah v. Republic **271**

Proof – Failure to examine copy with the original – Effect of such failure – Section 79 of the Evidence Act 1967
Iluminatus Mkoka v. Republic **245**

Proof – Proof of person who made microfilms and person who kept custody or control of the same – Section 78 of the Evidence Act 1967
Iluminatus Mkoka v. Republic **245**

Statement said to be a confession – Statement never put in evidence – Statement repudiated – Whether Court can act on it
Jaribu Abdallah v. Republic **271**

Witness – Competent witness – Investigator as a witness – Whether an investigator is competent to testify
Robinson Mwanjisi and others v. Republic **218**

FAMILY LAW

Marriage – Contracting marriage – appellant forcefully grabbed complainant and took her to his house and had carnal knowledge of her – Whether a customary law marriage was thereby contracted – Sections 2 and 9(1) of the Law of Marriage Act 1971
Leonard Jonathan v. Republic **331**

Marriage under customary law – Whether a customary law marriage may be contracted without the consent of the bride – Sections 2 and 9 (1) of the Law of Marriage Act 1971
Leonard Jonathan v. Republic **331**

Matrimonial Property – Contribution to the acquisition of matrimonial property – Whether contribution by the wife must be direct and monetary
Charles s/o Manoo Kasare and another v. Apolina w/o Manoo Kasare **425**

Matrimonial Property – Division of matrimonial properties – Property acquired through proceeds from the businesses of both spouses – Whether the wife has a right to such property
Charles s/o Manoo Kasare and another v. Apolina w/o Manoo Kasare **425**

Matrimonial property – Division of matrimonial properties – Proportion of the property that the wife may be entitled to
Charles s/o Manoo Kasare and another v. Apolina w/o Manoo Kasare **425**

GOVERNMENT LIABILITY

Suits against the government – Application for temporary injunction – Whether an order of temporary injunction may be issued against the government – Section 11 of the Government Proceedings Act 1967

Estomy A. Baraka and another v. Commissioner for Lands and Human Settlements Development 29

Vicarious liability of the Government – Unauthorised wrongful killing of the deceased by police officers – Whether the Government is vicariously liable – Section 3(4) of the Government Proceedings Act 1967

Roseleen Kombe as The Administratrix of The Estate of the Late Lieutenant General Imran Hussein Kombe (Deceased) 347

INSURANCE

Consequential loss –Whether loss of business falls under consequential loss

Supper Star Forwarders (T) Ltd. v. National Insurance Corporation of Tanzania Ltd. and another 49

Contract of insurance – Breach of contract of insurance – Period of blameworthiness on the part of the insurer

Supper Star Forwarders (T) Ltd. v. National Insurance Corporation of Tanzania Ltd. and another 49

JURISDICTION

Court of Appeal – Revisional jurisdiction – How revisional powers arise – Principles underlying exercise of revisional jurisdiction – Appellate Jurisdiction Act 1979

Augustino Lyatonga Mrema v. Republic 6

Issue of jurisdiction – When the issue of jurisdiction may be raised – Whether the issue of jurisdiction may be raised at the stage of appeal

Wakf and Trust Commissioner v. Abbass Fadhili Abbass and another 377

Parliamentary immunity – Appellant investigated by a Select Committee of the National Assembly and granted certificate in respect of the first and third counts – Effect of grant of such certificate on the jurisdiction of the Court to try such counts – Section 373(1) of the Criminal Procedure Act and section 20(3) of the Parliamentary Immunities, Powers and Privileges Act 1987, Number 3 of 1988

Augustino Lyatonga Mrema v. Republic 6

LANDLORD AND TENANT

Lease – Notice to terminate lease – Receipt of rent due after issue of notice to terminate lease – Whether receipt of rent by the lessor after notice of termination is issued operates as waiver of the notice

Tanzania Electric Supply Co. Ltd. v. Muhimbili Medical Centre 276

Period of rent payable – Lease states amount of rent payable per square metre but does not state whether per month or per annum – Determination of period of rent

Tanzania Electric Supply Co. Ltd. v. Muhimbili Medical Centre 276

LIMITATION OF TIME

Court of Appeal – Whether the Court of Appeal is subject to the Law of Limitation Act 1971 – Whether Rules of the Court of Appeal prescribe a limitation period for review

Director of Public Prosecutions v. Prosper Mwalukasa 34

Declaratory Orders – Action for declaratory orders – Limitation period for an action for declaratory orders – Law of Limitation Act 1971, 1st Schedule, Part I, item 24

CRDB (1996) Ltd. v. Boniface Chimya 413

Written Statement of Defence – Extension of time to file a written statement of defence – Whether extension can be made at any time or it must be within 21 days after expiry of the time provided – Section 93 and Order viii, rule 1(2) of the Civil Procedure Code, 1966
Tanzania Harbours Authority v. Mohamed R Mohamed 76

Review – Criminal proceedings – Application for review before the Court of Appeal – Period of limitation for such application
Director of Public Prosecutions v. Prosper Mwalukasa 34

Tort – Trespass to goods – Action for the tort of trespass to goods – Point in time when the tort becomes actionable
CRDB (1996) Ltd. v. Boniface Chimya 413

Tort of conversion – Running of time against an action for conversion – Point when time starts to run
CRDB (1996) Ltd. v. Boniface Chimya 413

LITIGATION

Floodgates of Litigation – Right to adequate compensation for abuse of human rights by government organs – Whether holding the government vicariously liable for acts of its servants will open floodgates of litigation
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

LOCAL GOVERNMENT

Suits against local government authorities – Statutory requirement of one month's notice before suing an urban authority – Effect of non-compliance with the requirement – Section 97(1) of the Local Government (Urban Authorities) Act 1982
Bulk Oil Tanzania Ltd. v. Njake Enterprises Oil Transport Ltd. and Two others 81

NATURAL JUSTICE

Right to be heard - A party to be directly affected by an appeal but was not a party to the proceedings at the trial – That party has a right to be heard and must be served notice of appeal
Kantibhai M Patel v. Dahyabhai F Mistry 437

Right to be heard – Right of the accused to be heard – Summons returned unserved and Court proceeds to hear the appeal in the absence of the accused – Whether the proceedings were regular – Section 34(4) of the Magistrates' Courts Act 1984
Kufakulala Kajendaje v. Republic 39

Right to be heard – Right to land revoked without a hearing – Decision reached without regard to natural justice
Attorney General v. Philemon Ndesamburo 194

Sentencing – Enhancement of sentence – Sentence enhanced in the absence of the accused – Whether the proceedings are rendered a nullity – Section 29(a)(i) of the Magistrates' Courts Act 1984
Kufakulala Kajendaje v. Republic 39

PARLIAMENT

Parliamentary immunity – Immunity of members of Parliament from prosecution – Investigated member of Parliament granted a certificate by a Select Committee of the National Assembly – Whether such member of Parliament is immune from prosecution in respect of counts on which a certificate has been granted – Parliamentary Powers and Privileges Act 1988, Number 3 of 1988
Augustino Lyatonga Mrema v. Republic 6

PRECEDENT

Decisions by judges of the same Court – Judges of the same Court not to give conflicting decisions
ULC (Tanzania) Ltd. v. National Insurance Corporation and another 212

STAMP DUTY

Obligation to pay stamp duty – Lessor pays stamp duty on a lease instead of the lessee – Whether the lessor may recover from the lessee the amount paid as stamp duty
Tanzania Electric Supply Co. Ltd. v. Muhimbili Medical Centre 276

STATUTE

Interpretation of Statute – Cross references to sections in the same statute – The Criminal Procedure Act 1985 – Meaning of the word "section" in section 377 of the Criminal Procedure Act 1985
Director of Public Prosecutions v. Thomas Mollel *alias* Askofu 306

Interpretation of Statute – Whether a toy pistol is an "arm" within the meaning of the Arms and Ammunition Act 1991 – Rule of purposive construction
Halfa Hemed and Juma Ramadhani v. Republic 59

STUDENTS' UNION

Competence to institute legal proceedings – Students' Organization not registered as a society institutes legal proceedings on behalf of students – Whether the action is competent
Dar es Salaam University Students' Organization (Daruso) v. University of Dar es Salaam and another 1

TORT

Damages – Assessment of damages – Assessment of damages awardable to dependants – Working life of the deceased husband and widow's chances of remarriage as factors in assessing damages
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

Relief – Grant of relief sought – Written Statement of Defence is only evasive with general denials – Whether Court should grant the relief sought without further proof by the plaintiff
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

Trespass to goods – Action for the tort of trespass to goods – Point in time when the tort becomes actionable
CRDB (1996) Ltd. v. Boniface Chimya 413

Tort of Conversion – Factors constituting the tort of conversion
CRDB (1996) Ltd. v. Boniface Chimya 413

VICARIOUS LIABILITY

Vicarious liability – Whether master alone can be sued without joining the tort feasor
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

Vicarious liability – Vicarious liability for murder – Unauthorised wrongful killing of the deceased by police officers – Whether criminal liability may be attributed to the master
Roseleen Kombe as The Administratrix of The Estate of The Late Lieutenant General Imran Hussein Kombe (Deceased) 347

WILLS

Customary Law Wills – Will witnessed by six witnesses – Whether the will is valid
Andrea Albert Makoi v. Maria Albert Anthony Makoi 389

DAR ES SALAAM UNIVERSITY STUDENTS' ORGANIZATION (DARUSO) v. UNIVERSITY OF DAR ES SALAAM AND ANOTHER

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kyando, J.)

MISCELLANEOUS CIVIL CAUSE No. 96 OF 2000

Students' Union – Competence to institute legal proceedings – Students' Organization not registered as a society institutes legal proceedings on behalf of students – Whether the action is competent.

The applicant, an organization of the students' of the University of Dar es Salaam, filed this application for leave to apply for judicial review of the decision of the University to suspend a number of students. The application is filed on behalf of the students. The second respondent raised a preliminary objection against the application arguing that the applicant had no capacity to institute the proceedings on behalf of the students.

Held: (i) Although the applicant is referred to in the definition section of the University of Dar es Salaam Act 1970, neither in the Act nor in the by-laws made there under is the applicant created or established; the provisions merely recognize its existence without any indication of its objectives or its powers and functions;

(ii) The applicant is only an interest group to cater for the interests of the students within the internal organization of the University; it has no capacity to represent students in Court proceedings;

(iii) If the applicant's constitution says it is a body corporate capable of suing and being sued, this must be in respect of acts of its own, not in respect of acts of its members; a body corporate does not, upon incorporation, automatically assume the resonsiblity of representing its members in Court unless the establishing legislation specifically says so.

Application struck out

Cases referred to:

(1) *Simeon Manyaki v. Institute of Finance Management* [1984] T.L.R. 304

(2) *Sylvester Cyprian and 210 others v. University of Dar es Salaam*, HC-DSM-Miscellaneous Civil Application Number 68 of 1994 (unreported)

Statutory provisions referred to:

(1) University of Dar es Salaam Act 1970, Act Number 12 of 1970, sections 2, 3 and 4

(2) Constitution of the United Republic of Tanzania, Order 1, rule 8

(3) Civil Procedure Code 1966, Order 1, rule 8

Mr Maleta, for the Applicant

Mr Chidowu, for the second Respondent

RULING

(Delivered 8 March 2001)

Kyando J: The Dar es Salaam University Students' Organization (Daruso), the applicant, has filed in this Court an application for leave to apply for the orders of *certiorari* and prohibition respecting a decision by the University of Dar es Salaam, the first respondent, to suspend a number of students from the said University.

In the application the applicant says it has initiated these proceedings on behalf of the students but the Attorney General, who is the second respondent, has raised a point by way of a preliminary objection whereby he challenges the capacity of the applicant to represent the students in the proceedings. Counsel have filed written submissions on the point.

In his submissions on the point Mr Maleta for the applicant states that Daruso has capacity to represent the students in legal proceedings because:

(1) It is a creature of statute in terms of section 2 of the University of Dar es Salaam Act 1970;

(2) By the University of Dar es Salaam Students by–laws membership of Daruso is compulsory for all the Students' of the University of Dar es Salaam;

(3) By rule 12(4) of the said by–laws, the existence of Daruso is recognized by being given two seats on the Disciplinary Committee of the first respondent;

(4) The Constitution of Daruso empowers it to sue and to be sued; and

(5) Under Clause 5 of the said Constitution, Daruso "must protect the interests of its members".

In his submissions Mr Chidowu, learned State Attorney for the respondents contends that Daruso has not been registered as a society to be capable of representing its members in legal proceedings. He submits further that the provisions in the University of Dar es Salaam Act 1970, the by-laws and Constitution of Daruso recognizing Daruso as a Students' Organization only recognize it as a representative of students within the domestic domain of the University of Dar es Salaam. He says the arrangements to recognize Daruso in the provisions of the Act and the other instruments referred to by Mr Maleta in his submissions are only meant to enable or facilitate Daruso to represent students within the internal administrative or organization structures of the University; they are not, he contends further, meant to be for the purpose of Daruso representing students in proceedings such as the present ones. He submits that for the purposes of proceedings such as these Daruso has no capacity to represent the students, except, perhaps, with leave of the Court under Order 1, rule 8 of the Civil Procedure Code 1966.

None of the learned counsel has cited authorities which are directly on the point, i.e. whether or not Daruso has capacity to represent its members, the student of the University of Dar es Salaam, in Court

proceedings. My own research on it has not yielded any satisfactory results. All I have been able to come up with is the fact that in all previous cases it is the individual students themselves who brought proceedings in this Court and not by being represented by their students organization (See, for example, *Simeon Manyaki v. IFM* (1) and *Sylvester Cyprian and others v. University of Dar es Salaam* (2). The point then appears to be one of first impression.

Upon carefully considering the submissions of both learned counsel, I tend to agree with those of Mr Chidowu. The reference to the Students' Organization in section 2 of the University of Dar es Salaam Act referred to by Mr Maleta is only by way of a definition. Section 2 itself is in fact a definition section of the Act and "the Students organization" in it is defined thus:

> "The Student Organization" means an organization approved by the Chancellor as being an organization representative of the students of the University.

There are then provisions in the Act and by-laws made under it for representation from the students' organization on the University Senate, the Council and as Mr Maleta submits, on the Disciplinary Committee. Do these provisions of the University Act and the by-laws create or establish Daruso as Maleta submits? I am not, most respectfully, of that view. These provisions, as Mr Maleta himself seems to realize, merely recognize the existence of Daruso. They are very dissimilar to provisions such as those in sections 3-4 which establish the University of Dar es Salaam and provide for the objects for establishing it and its functions.

In so far as Daruso is concerned it is not even specified in the University Act where it is to represent the students nor are its functions stated. The conclusion one is made to draw then is that Daruso is only an interest group or organization formed for the purpose of catering for the interests of students within the University only as Mr Chidowu rightly submits. It does not have capacity to represent

students in Court proceedings such as the present ones. If its Constitution, which has not been produced for scrutiny by the Court, says it is a body corporate, capable of suing and of being sued in its own corporate name as Mr Maleta contends, then this must be in respect of acts of its own and not in relation to the acts of its members. A body corporate does not, upon its incorporation, automatically assume the responsibility of representing its members in Court proceedings; this legislation establishing it has to specifically say so.

In the present case therefore I have, as I hereby do and as hinted above, to accept Mr Chidowu's submissions and hold that Daruso, the applicant, has no capacity to represent its members, the students of the University of Dar es Salaam, in these proceedings. His (Mr Chidowu's) point that it should perhaps obtain leave, under Order 1 rule 8 of the Civil Procedure Code cannot be wholly accepted also because the one who can obtain leave to file a representative suit under the provisions of that rule must first himself have capacity to sue. Daruso, in order to come within the ambit of Order 1, rule 8 of the Civil Procedure Code will have to show that it has capacity to sue in the first place.

For the moment, all I can say is that the individual Students who were affected by the suspensions complained of should, if it is their desire to do so, themselves initiate the proceedings which have now been initiated by Daruso in this Court. This has been, as shown above, lodged in the past. The present application, having been lodged by an organization without the capacity to lodge it, as already held herein, is incompetent. The preliminary objection raised by Mr Chidowu therefore is upheld and the application is struck out – for incompetence.

AUGUSTINO LYATONGA MREMA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Lubuva and Lugakingira JJA)

CRIMINAL APPEAL No. 61 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Msumi, J.K., dated 5 May 1999 in Miscellaneous Criminal Cause No. 10 of 1999)

Criminal Practice and Procedure – Appeals – Grounds for limiting appeals from interlocutory orders – Appellate Jurisdiction Act 1979, Rules made thereunder and Act Number 17 of 1993.

Civil Practice and Procedure – National Assembly – Parliamentary immunity – Appellant investigated by a Select Committee of National Assembly and granted certificate in respect of the first and third counts – Effect of grant of such certificate on the jurisdiction of the Court to try such counts – Section 373(1) of the Criminal Procedure Code and section 20(3) of the Parliamentary Immunities, Powers and Privileges Act 1987, Number 3 of 1988.

Parliament – Parliamentary immunity – Immunity of members of Parliament from prosecution – Investigated Member of Parliament granted a certificate by a Select Committee of the National Assembly – Whether such Member of Parliament is immune from prosecution in respect of counts on which a certificate has been granted – Parliamentary Powers and Privileges Act 1988, Number 3 of 1988.

Court of Appeal – Jurisdiction – Revisional jurisdiction of the Court of Appeal – How revisional powers arise – Principles underlying exercise of revisional jurisdiction –Appellate Jurisdiction Act 1979.

The appellant was charged on nine counts, including the first and third counts alleging that he presented false documents to a Parliamentary Select Committee contrary to section 23 of the Parliamentary Immunities, Powers and Privileges Act Number 3 of 1988. In August 1996 Parliament set up a Select Committee to investigate into the appellant's allegations regarding bribery of TZS. 900 million. On 9 September 1996, the appellant testified before the Committee before which he produced the alleged

documents. Subsequently, a certificate was granted to the appellant by the Committee under the provisions of section 20(1) of Act Number 3 of 1988. This certificate was tendered before the Trial Court, and the defence submitted that on the basis of the certificate, the proceedings respecting the first and third counts be stayed and the appellant discharged as required by section 20(3) of Act Number 3 of 1988. The trial magistrate overruled the submission. On appeal to the High Court the appellant unsuccessfully contended, *inter alia,* that the Trial Court had no jurisdiction to try the first and third counts on account of the provisions of section 20(3); the High Court dismissed the appeal. The appellant then appealed to the Court of Appeal, challenging the jurisdiction of the Trial Court to try counts 1 and 3. The Republic raised a preliminary objection to the effect that the appeal was incompetent and premature as it was against an interlocutory order.

Held: (i) The Court of Appeal has no jurisdiction to entertain appeals by accused persons from interlocutory orders; the Court, being a creature of statute, can only exercise powers conferred upon it by statute and has no inherent powers to assume jurisdiction;

(ii) The fact that an accused person could not appeal against an interlocutory order does not mean that he could not turn to the revisional jurisdiction of the Court; it is therefore not correct to say that there is a lacuna in the law. Secondly, the Court can also give directions under rule 3(2) of the Court of Appeal Rules 1979 in matters of procedure;

(iii) The Court's powers of revision under section 4 of the Appellate Jurisdiction Act 1979 arise in two ways: firstly, under subsection (2) thereof, conferring powers of revision for the purpose of and incidental to the hearing and determination of any appeal and, secondly, under subsection (3) which confers the power, authority and jurisdiction to call for and examine the record of any proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings before the High Court;

(iv) The power of revision under section 4(3) of the Appellate Jurisdiction Act 1979 is not dependent upon the existence of any appeal and makes no distinction between civil and criminal proceedings, or between interlocutory and concluded proceedings; it applies to "any proceedings before the High Court";

(v) As a party to proceedings in the High Court may invoke the revisional jurisdiction of the Court of Appeal in matters which are not appealable with or without leave, the appellant in the instant case could seek revision as he had no right of appeal up to the conclusion of the trial;

(vi) On the basis of the record of proceedings before the Court, the record revealed incorrectness, illegality or impropriety in the finding and order of the High Court.

(vii) The effect of section 20(1) of Act Number 3 of 1988 is that once a certificate is granted to a witness under that provision, an irrefutable presumption arises that the witness fully and faithfully answered the questions put to him to the best of his knowledge and belief, and once that certificate is produced before any Court of law such Court has to stay any proceedings, civil or criminal, against a witness for any act or thing done by him in his testimony to the Assembly or Committee; there is no discretion in this matter as the provisions of the law are mandatory in terms, overriding sections 21 and 23 of the Act;

(viii) The learned trial magistrate was gravely in error when he refused to stay the proceedings in counts 1 and 3 upon production of the Committee's certificate, and the subsequent proceedings were conducted without jurisdiction, and were null and void;

(ix) The High Court erred in holding that the issue of jurisdiction was raised in Miscellaneous Criminal Application Number 37 of 1997 and determined.

High Court decision set aside; trial of counts one and three quashed

Cases referred to:

(1) *Seif Sharrif Hammed v. SMZ* [1992] T.L.R. 43

(2) *Joseph Warioba v. Stephen Wasira* [1977] T.L.R. 272

(3) *Republic v. Collins* [1969] 3 All ER 1562

(4) *Halais Pro – Chemie v. Wella AG* [1996] T.L.R. 269

Statutory provisions referred to:

(1) Power and Priviledges Act Number 3 of 1988

(2) Penal Code section 63B(1)

(3) Criminal Procedure Act sections 373 (1) (b)

(4) Criminal Application Number 37 of 1997

(5) Parliamentary Immunities, Powers and Privileges Act Number 3 of 1988.

(6) Appellate Jurisdiction Act Number 15 of 1979, section 6

(7) Court of Appeal Rules, rule 3(2)(a)

(8) Criminal Application Number 37 of 1997

(9) Prevention of Corruption Act by Act Number 20 of 1990

(10) Legislative Council (Powers and Privileges) Ordinance Chapter 359

Mr Nyange, for Appellant

Mr Kaduri, for Respondent

RULING

(Dated 8 March 2001)

Lugakingira, J.A.: This case came before the Court by way of appeal but for reasons which will shortly appear, we decided to proceed by way of revision. The designations "Appeal" and 'appellant' are retained in order to avoid confusion.

The appellant, Augustino Lyatonga Mrema, was charged before the Court of the Resident Magistrate at Kisutu in Dar es Salaam on nine counts under various penal laws. At the conclusion of the case for the prosecution, the trial Principal Resident Magistrate ruled that the appellant had a case to answer on the first and third counts, which allege presenting false documents to a Parliamentary Select Committee contrary to section 23 of the Parliamentary Immunities, Powers and Privileges Act Number 3 of 1988, and on the ninth count, which alleges raising discontent and ill will contrary to section 63B(1) of the Penal Code. In this ruling we are concerned with the first and third counts. To paraphrase them, the first count alleges that on 9 September 1996 the appellant presented to a Parliamentary Select

Committee a false letter purporting to originate from the Chief Secretary to the President directing the distribution of TZS. 900 million in bribe money to some high ranking persons in Government and the ruling Chama Cha Mapinduzi (CCM); and the third count alleges that on the same occasion the appellant presented to the Committee another false letter purporting to originate from the CCM and addressed to the President requesting for TZS. 300 million to be used for the purpose of eliminating the appellant politically.

A preliminary hearing was held at the commencement of the trial and three matters were listed as undisputed. It was agreed that in August 1996 Parliament set up a Select Committee to investigate into the appellant's allegations regarding bribery of TZS. 900 Million , it was also agreed that on 9 September 1996, the committee summoned the appellant to testify on those allegations; it was finally agreed that in the course of testifying the appellant presented the letters aforesaid.Those letters were tendered as Exhibits P1 and P2 in the course of the trial. Subsequent thereto a certificate granted to the appellant by the Committee pursuant to the provisions of section 20(1) of Act Number 3 of 1988, was also tendered as Exhibit D2. At that juncture the defence submitted that the proceedings respecting the first and third counts be stayed and the appellant be discharged as required by section 20(3) of Act Number 3 of 1988. The learned trial magistrate overruled the submission and pressed on with the trial. The submission was renewed in the arguments for no-case to answer but it was again rejected by the magistrate who observed that it was within his power to reverse himself.

The appellant then appealed to the High Court contending, among other things, that the Trial Court had no jurisdiction to try the first and third counts on account of the provisions of section 20(3). And in what was listed as the fifth ground of appeal, the High Court was asked to examine section 20(3) of Act Number 3 of 1988 to satisfy itself with the correctness or otherwise of the interpretation given to the statute and hence the legality or propriety of counts 1 and 3. In other words, the High Court was being asked, in case it did not go

along with the appeal, to revise the decision of the trial magistrate. To that and the petition of appeal cited section 373(1)(b) of the Criminal Procedure Act. The High Court (Msumi, J.K.) dismissed the appeal and did not consider the alternative of revision, citing two reasons. First, that the appeal raised matters which had previously been raised and adequately dealt with by the same Court in Miscellaneous Criminal Application Number 37 of 1997. Second, that the law did not provide for appeals by accused persons from interlocutory orders. From that decision the present appeal was brought through learned counsel Mr Nyange who also appeared for the appellant before the High Court and partly in the Trial Court.

Mr Nyange filed a five-point Memorandum of Appeal but we think it is all summarized in the fifth ground which states:

> The jurisdiction of the Court of the Resident Magistrate to try the appellant in respect of count numbers 1 and 3 of the charge sheet is subject to and has been taken away by the Parliamentary Immunities, Powers and Privileges Act Number 3 of 1988.

The respondent (Republic) lodged a preliminary objection to the appeal through Principal State Attorney Mr Kaduri to the effect that the appeal was incompetent and premature, it being an appeal against an interlocutory order. At the hearing Mr Kaduri elaborated on the objection and pointed out that the jurisdiction of this Court to entertain appeals in criminal proceedings derives from section 6 of the Appellate Jurisdiction Act Number 15 of 1979. He pointed out that subsection (1) of the same permits an accused person to appeal against conviction and sentences only. Citing the decision of the Court in *Seif Shariff Hamad v. SMZ* (1), he argued that section 6 deliberately denies accused persons the right to appeal from interlocutory orders in order to prevent the protraction of proceedings.

On his part, Mr Nyange, albeit reluctantly, conceded the limitations of section 6 so far as appeals by accused persons were concerned. He was of the view, however, that this was a lacuna in the statute and invited the Court to remedy the deficiency by supplying an amendment.

He alluded to *Joseph Warioba v. Stephen Wassira* (2) for a precedent. He buttressed his argument by citing rule 3(2)(a) and (b) of the Court of Appeal Rules which empower the Court to make orders for the purpose of dealing with any matter for which provision is not made in the rules or any other written law or for better meeting the ends of justice. He said there was a problem in this case, the problem of interpreting section 20 of Act Number 3 of 1988 and charged that there had been a glaring disregard of that provision. There must be exceptions to *Hamad's* case, he contended, and the instant case was such an exception. Perhaps sensing that the argument for reading words into section 6 might not find favour, Mr Nyange alternatively invited the Court to invoke its revisional powers under Act Number 15 of 1979 as amended by Act Number 17 of 1993. He submitted that the decision of the High Court was erroneous for implying that the issue of jurisdiction was dealt with in Miscellaneous, Criminal Application Number 37 of 1997 when in fact jurisdiction never featured in that application. He said this was a proper case for the Court to exercise its powers of revision and vindicate the appellant's rights under the country's laws and Constitution rather than wait until he is sent to prison.

In a brief rejoinder, Mr Kaduri submitted that rule 3(2) applied where neither the rules nor any other written law made provision for the matter in controversy but Act Number 15 of 1979 made provision for appeals. However, Mr Kaduri did not respond to the invitation for revision.

We begin by restating that the Court has no jurisdiction to entertain appeals by accused persons from interlocutory orders. *Hamad's case* cited to us and the decisions of the erstwhile Court of Appeal for Eastern Africa cited therein, put this beyond conjecture. This Court is a creature of statute and can only exercise the powers conferred upon it by its creator. It has no inherent powers to assume jurisdiction and even if it were desirable that the Court acquired them, they cannot be called into existence by assuming them: cf *R v. Collins* (3) In *Hamad's Case,* too, the Court went further to suggest reasons for

the state of the law but it seems necessary to restate them. The Court said:

> The reasons for prohibiting a party other than the Director of Public Prosecutions from appealing against interlocutory orders are not far to seek. The criminal proceedings would undoubtedly be very protracted as an accused person would be attracted to appeal against every order.

This is a telling indictment on this very proceeding. It was commenced on 25 June 1997; it has been to the High Court twice and this Court twice, and it is yet to be concluded in the Trial Court, almost four years hence.

Mr Nyange spent considerable time trying to seek assistance from rule 3(2), but we are unable to see the relevance of that rule, either. It reads:

> (2) Where it is necessary to make an order for the purpose of:
>
> (*a*) dealing with any matter for which no provision is made by these rules or any other written law;
>
> (*b*) better meeting the ends of justice; or
>
> (*c*) preventing an abuse of the process of the Court,
>
> the Court may, on application or on its own motion, give directions *as to the procedure* to be adopted or make any other order which it considers necessary. [emphasis supplied]

First of all, we agree with the learned Principal State Attorney that the rule is not applicable in the case because provision for appeals is made in section 6. We would go further and say that as the law stands today, the fact that an accused person cannot appeal in interlocutory matters does not mean that he has no other remedy. He may now turn to the revisional jurisdiction vested in the Court by Act Number 17 of 1993. It is therefore not correct to say that there is a lacuna in the statute. Secondly, as per the words emphasized in that behalf, the Court can give directions under rule 3(2) in matters of procedure but not substantive law. On the other hand, the concluding clause,

"or make any other order which it considers necessary," being general, has to be construed *ejusdem generis* with "procedure". We think, therefore, rule 3(2), being procedural, does not purport to authorize the Court to read into section 6, a substantive provision, words which are not there.

The decision in *Joseph Warioba* (2), in which the Court read words into section 114 of the Elections Act Number 1 of 1985, stands on a different footing and was not inspired by rule 3(2). That was an appeal against the refusal by the High Court to certify a corrupt practice to the Director of Elections after finding that the respondent had committed a corrupt act during an election campaign. The High Court took that position because section 114 to require certification of corrupt practices was deliberate or was through inadvertence. The Court traced the history of electoral corrupt practices and noted that the offence was originally contained in various provisions of Act Number 13 of 1985, including section 114. It was removed therefrom by Act Number 13 of 1990 and was transferred into the Prevention of Corruption Act by Act Number 20 of 1990. It was finally restored into Act Number 1 of 1985 by Act Number 6 of 1992 except in section 114. The Court turned to the objects and reasons and made it manifestly clear that the intention of Parliament was to re-introduce corrupt practices into Act Number 1 of 1985. Thus by adopting historical and purposive approaches to construction the Court reached the view that the omission to restore corrupt practices into section 114 was inadvertent.

It therefore proceeded to read into the section the words "corrupt or" immediately before the word "illegal" wherever it occurred. The Court emphasized, however, that it was not amending the section but reading into it the words which Parliament had originally used but which were inadvertently left out when it was decided to restore corrupt practices into Act Number 1 of 1985. In the case before us, there is no question of any inadvertent omission in section 6. It is complete and deliberate in intendment. We therefore uphold Mr Kaduri's preliminary objection and strike out the appeal. We think, however,

there is merit in the invitation to revise the decision of the High Court and proceed to do so.

The Court's powers of revision under section 4 of Act Number 15 of 79 arise in two ways. First, under subsection (2) thereof, the Court is conferred with powers of revision for the purpose of and incidental to the hearing and determination of any appeal. That is to say, revision under this subsection may be resorted to as a device in the disposal of an appeal. Second, the powers arise under subsection (3), and this reads:

> (3) Without prejudice to subsection (2), the Court shall have the power, authority and jurisdictions to call for and examine the record of any proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings of the High Court.

Certain features characterize this subsection. First of all, the power granted thereby is not dependent upon the existence of any appeal; it is a power additional to the power conferred under subsection (2). Secondly, subsection (3) makes no distinction between civil and criminal proceedings or between interlocutory and concluded proceedings. It applies to "any proceedings before the High Court". In the exercise of the powers under the subsection, the Court has evolved certain propositions which it is desired for recapitulation. These proposions have largely been articulated upon in the context of civil proceedings but we think they can be applied in criminal proceedings as well. They are summarized in *Halais Pro-Chemie v. Wella AG* (4) in these terms:

> (i) The Court may, on its own motion and at any time, invoke its revisional jurisdiction in respect of proceedings in the High Court;
>
> (ii) Except under exceptional circumstances, a party in proceedings in the High Court cannot invoke the revisional jurisdiction of the Court as an alternative to the appellate jurisdiction of the Court;

(iii) A party to proceedings in the High Court may invoke the revisional jurisdiction of the Court in matters which are not appelable with or without leave;

(iv) A party to proceedings in the High Court may invoke the revisional jurisdiction of the Court where the appellate process has been blocked by judicial process.

The list is by no means exhaustive but new situations may suggest additional rules. Meanwhile, the instant case can be placed under the third rule. The appellant has no immediate right of appeal, he can appeal only at the conclusion of the trial. The problem of this case, however, is not the sort of problem that can be postponed to an unknown date when the right of appeal would accrue.

It is a problem of a misconception of the law which goes to the root of the trial- the power and jurisdiction of the Trial Court and the constitutionality of any sanctions that may flow from a conviction. We think it must have been in contemplation of such and similar situations that Parliament in its wisdom vested the Court with the discretion to intervene at any stage. The case of *Seif Shariff Hamad* (1) came well before the amendment of Act Number 17 of 1993. We have had the opportunity to examine the record of proceedings in the High Court, it being with us already, and the question is whether the record reveals any incorrectness, illegality or impropriety of any finding, order or any other decision made thereon. We think it does. In order to appreciate this answer, it becomes necessary to turn to section 20 of Act Number 3 of 1988, to the decision of the trial magistrate thereon and to the decision of the High Court on first appeal.

20(1) Every witness before the [National] Assembly or an authorized committee who shall answer fully and faithfully any questions put to him by the Assembly or such committee to its satisfaction shall be entitled to receive a certificate stating that such witness was upon his examination so required to answer and did answer any such questions.

(2) Every certificate under subsection (1) shall, in the case of a witness before the Assembly, be under the hand of the Speaker, and in the case of a witness before a committee, be under the hand of the chairman thereof.

(3) On production of such certificate to any Court of law, such Court shall stay any proceedings, civil or criminal, against such witness for any act or thing done by him before the time and revealed by the evidence of such witness, and may, in its discretion, award to such witness the expenses to which he may have been put.

These provisions were first introduced into our law *vide* Act Number 3 of 1983 which was enacted by Parliament in January of that year. There was no similar or equivalent provision in the erstwhile Legislative Council (Powers and Privileges) Ordinance Chapter 359. The purpose of the provision is to bar civil and criminal proceedings against witnesses who are issued with certificates after testifying before the National Assembly or a committee thereof on account of answering the questions put to them fully and faithfully. We have seen that the appellant was issued with such a certificate after testifying before the Select Committee. We have also seen that the certificate was produced at the trial as Exhibit D2. When the trial magistrate was then asked to stay the proceedings in counts one and three in accordance with subsection (3), he refused to do so and couched his reasons in these terms:

> It can be seen that after enacting section 20 in Act Number 3 of 1988 Parliament continued to enact other provisions creating offences such as section 21 for giving false evidence to the Committee or section 23 for presenting among other things fabricated or falsified documents with intent to deceive.
>
> That is why I am saying that Parliament did not enact section 20(3) of Act Number 3 of 1988 to defeat its own course (*sic*) or oust the jurisdiction of the Court or absolve any witness to any of its Committees of any criminal charges preferred against him under the laws of our country. I therefore refrain from staying these proceedings against the first Accused and acquitting him as urged by his counsel. I accordingly so order.

We think, with respect, this is unfortunately wrong. The effect of section 20 is, in our view, two–fold. First, once a certificate is granted to a witness under subsection (1), an irrebuttable pre-sumption arises that the witness fully and faithfully answered the questions put to him. In other words, a certificate would not be issued to a witness who has not answered the questions fully and faithfully. This is not to say that the witness spoke the truth or gave correct answers; to answer fully and faithfully means simply to answer to the best of one's knowledge and belief. The witness' knowledge might be faulty and his belief might be erroneous, but so long as he answers fully and faithfully, he is entitled to receive the certificate. The second effect derives from the production of the certificate before any Court of law.

The moment that takes place, such Court has to stay any proceedings, civil or criminal, against a witness for any act or thing done by him in his testimony to the Assembly or committee. The only matter for inquiry is whether the act or thing is revealed by his testimony; if it is, the Court has to stay the proceedings. There is no discretion in this matter as the provisions of subsection (3) are mandatory in terms. So long as the witness was issued with a certificate and the certificate is produced in Court, he is immune from further process. Such privileges are granted to Parliament and to those who are called upon to assist in its business in order to enable the House to discharge its functions with least difficulty. The existence of the offence sections, i.e. sections 21 and 23, does not take away the immunity accruing under subsection (3). The Assembly or committee is not expected to grant certificates to every witness who appears before them; certificates are grantable to those witnesses only who answer questions fully and faithfully. Sections 21 and 23 are intended to take care of those witnesses who are not granted certificates.

Before leaving this matter we desire to make further observations in relation to Act Number 3 of 1988 although they are not necessary for this ruling. According to section 9(1), it is prohibited for any member or officer or person employed to take or transcribe minutes

of evidence before the Assembly or committee to give evidence elsewhere respecting the contents of such minutes of evidence, or of the contents of any document laid before the Assembly or committee, "without the special leave of the Assembly first had and obtained." section 19(1) is to the same effect. Special leave may be granted by the Speaker or the Clerk of the Assembly where the Assembly is on recess or adjournment. To us, "special leave" implies the availability of tangible evidence of leave being granted. The grant cannot be informal or general. We reach this view on account of the importance placed on that leave by vesting the power of granting it in the National Assembly. This leave, therefore, cannot be presumed either by the witness – to – be or by the Court, least of all in a criminal matter where the liberty of an individual is at stake. In view of these provisions, it is surprising that three members of the Select Committee, PW2 Idd Simba, PW13 Wilson Masilingi and PW29 Arcado Ntagazwa, as well as two officers of the Committee, PW20 Esther Nyagawa and PW28 Paulo Masami, were permitted to give evidence and to refer to the contents of the minutes of evidence and the documents laid before the Committee, without the slightest indication that they had obtained special or any leave to do so.

> We think, with respect, the evidence of these witnesses was, in the absence of special leave, inadmissible and its reception was a fundamental irregularity in the trial even if the question of a certificate had not arisen. It is still more confounding, going by the record before us, that even though the provisions of sections 9 and 19 were drawn to the attention of the learned trial magistrate, not only did he not record that fact, but he proceeded to receive the evidence as if those provisions did not exist or matter. Generally, we cannot pretend to be happy with the magistrate's style in the conduct of the trial.

These remarks aside, we are satisfied that the trial magistrate was gravely in error when he refused to stay the proceedings in counts one and three upon the production of the committee's certificate. The subsequent proceedings were conducted without jurisdiction

and were null and void. Coming now to the High Court, we note that when the question of jurisdiction was raised, Msumi, J.K. refused to look into it but stated:

> ... I am satisfied that the matters which are the substance of this appeal were previously raised and adequately dealt with by this Court.

That view was erroneous. The issue of jurisdiction was not raised in Miscellaneous Criminal Application Number 37 of 1997 which came before Nsekela, J. In that application the appellant was complaining about perceived bias on the part of the trial Magistrate. He cited the magistrate's refusal to stay the trial and send the record to the High Court when it was called for, his refusal to withdraw from the trial when it was submitted that the appellant had no confidence in him, and his refusal to record and rule on a submission that the trial had been prejudiced by some newspaper reports. Those were the only aspects of Miscellaneous Criminal Application Number 37 of 1997, an application for revision, and the prayer was for a trial *de novo* before the same or another magistrate or an order compelling the magistrate to discharge the appellant on account of the prejudicial press reports. We think had the learned Jaji Kiongozi directed himself correctly on the subject of that application, he would have realized that jurisdiction was not covered therein. And as demonstrated by us, he would no doubt have held that the trial of counts one and three was a nullity and would have put an end to it pursuant to the High Court's revisional powers under section 373(1)(b) of the Criminal Procedure Act.

Accordingly, we set aside the decision of the High Court and substitute therefore an order quashing the trial of counts one and three and discharging the appellant therefrom. The trial can proceed on the remaining ninth count.

MARUNGU SISAL ESTATE LIMITED *v.* GEORGE NICHOLAUS EFSTATHIOU AND TWO OTHERS

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Nsekela, J.)

COMMERCIAL CASE No. 27 OF 2000

Company Law – Receivership – Whether directors divested of power to challenge the receivership itself.

Civil Practice and Procedure – Parallel suits between same parties involving the same issue – One filed in the Commercial Division while another is pending in the High Court at Tanga – Subsequent suit struck out – Order 4, rule 1(3) as amended in GN 140 of 1999.

Advocates – Appearance in Court proceedings – Party to an action also appearing as advocate in the same case – Conflict of interest.

CRDB appointed A and B as receivers of the plaintiff company. In a suit filed in the High Court at Tanga, the directors, suing in the name of the company, challenged the powers of CRDB to appoint A and B as receivers.The receivers, A and B, sued, in the name of the company, the directors of the company in the Commercial Division of the High Court at Dar es Salaam; A and B also appeared as advocates in the case. The main issue in both cases revolved around the validity of the appointment of the receivers. In the Commercial Division, one of the directors applied for the suit in the Commercial Division to be stayed pending the determination of the Tanga case. The application was purportedly made under section 8 of the Civil Procedure Code. It was the contention of the plaintiff that the powers of directors come to be in abeyance during receivership of a company and, therefore, the suit filed in Tanga was incompetent.

Held: (i) *Obiter:* the directors retained the power to challenge the receivership itself on behalf of the company and so the Tanga suit was competent;

(ii) The application failed to be determined under Order 4, rule 1(3) of the Civil Procedure Code as amended in GN 140 of 1999. Both cases were commercial matters, both revolved around the same issue, the parties in both cases were the same or litigating under the same title, and as the Tanga case was prior in time, the suit in the Commercial Division must be struck out;

(iii) For the avoidance of conflict of interest A and B should not have appeared as advocates in the suit filed in the Commercial Division.

Order accordingly

Cases referred to:

(1) *Moss Steamship Company v. Whinney* [1972] A.C. 254

(2) *Newhart Developments Limited v. Cooperative Commercial Bank Limited* [1978] 2 All ER 896

(3) *Ubungo Garments Limited v. Hassana Nuru Hassana and another* [1966] T.L.R. 295

(4) *Registered Trustees Social Action Trust Fund and others v. Messrs Happy Sausages Limited and others* [2003] T.L.R.

(5) *Director of Public Prosecutions v. Ally Nur Dirie and another* [1988] T.L.R. 252

Statutory provisions referred to

(1) Civil Procedure Code 1966, section 8

(2) Civil Procedure Code Order IV, rule 4, Order IV, rule 1(3)

Mr M Ngalo for the plaintiff

Mr Msuya briefed by *Dr Lamwai*, for the Defendant

RULING

(Delivered 16 March 2001)

Nsekela, J.: This is an application by the first defendant, George Nicholaus Efstathiou, in Commercial Case Number 27 of 2000

purportedly made under section 8 of the Civil Procedure Code 1966 (CPC) seeking, *inter alia*, the following Order namely that:

(a) This Honourable Court may be pleased to order that the above mentioned suit be stayed pending the hearing and final determination of Civil Case Number 7 of 2000 now pending before the High Court of Tanzania, Tanga District Registry at Tanga.

The plaintiff in Commercial Case Number 27 of 2000 is Marungu Sisal Estates Limited - In Receivership. The Receiver/Managers are Colman Mark Ngalo and Michael JT Ngalo who are incidentally acting as learned advocates for Marungu Sisal Estates Limited, the plaintiff Company. The supporting affidavit is sworn by the first defendant, the applicant herein and it reads in part as follows:

2. Further that the CRDB Bank purported to appoint a Receiver and Manager for Marungu Sisal Estate Ltd of which I am the Managing Director and Mr Michael Ngalo forcefully entered into the Company premises and took over the Company.

3. Further, that consequent upon Mr Ngalo forcefully taking over the company purportedly under powers given by an Instrument of Appointment executed by the CRDB, Marungu Sisal Estates Ltd filed a suit in the High Court of Tanzania at Tanga in May 2000 and it was registered as Civil Case Number 39 of 2000. Copies of the pleadings and order are annexed hereto as Annexture "A1" collectively and I crave leave to refer to them as part of this affidavit.

4. Further, that after the filing of the said suit. Mr Ngalo, tried to sell some of the property of the Estate, and the Company obtained an order of interim injunction to restrain him from doing so. I verily believe that the present suit has been brought as a reaction to this order.

5. Further, that in Civil Case Number 39 of 2000 Marungu Sisal Estates Ltd is questioning the right of the Bank to put it under Receivership and is denying that it has ever taken a loan from the Bank nor has it provided security for any such loan.

6. Further, that the present suit arises out of the Receivership, and I thus state that the two suits are between the same parties and parties claiming under the same title, and it relates to the same subject matter. I state that the main issues in both is whether there was this loan and if yes, whether the CRDB was a secured creditor and had power to appoint a Receiver and Manager without an order of the Court.

7. Further, that the suit filed in the Commercial Division of the High Court of Tanzania at Dar es Salaam pre-empts the suit filed earlier, and thus it is law that it be stayed pending the outcome of Civil Case Number 39 of 2000.

The plaintiff/respondent filed a counter-affidavit on the 23 August 2000 sworn by Michael J.T. Ngalo. For the sake of completeness, I reproduce below the relevant paragraphs of the said affidavit:

1. That my partners Michael JT Ngalo and myself are joint/Receiver/ Managers of the applicant above mentioned.

2. That the applicant is also the plaintiff in Commercial Case Number 27 of 2000 which is pending before this Honourable Court.

3. That there is no suit which is to my knowledge between the parties in the present suit.

4. That I am aware that a Civil Case has been filed in the High Court at Tanga Registry (HCC Number 7 of 2000) in which the plaintiff is Marungu Sisal Estates Limited and the defendants are CRDB and CM Ngalo and MJT Ngalo as Receiver Managers of Marungu Sisal Estates Limited.

5. That the cause of action if any in the Tanga case is entirely different from the cause of action in the present suit and as already deponed, the parties are different.

Perhaps I should correct what appears to be an obvious mistake in this counter affidavit. The plaintiff in Commercial Case Number 27 of 2000 herein is not the applicant. The applicant is the first defendant. The plaintiff, whom the learned advocates are representing, is Marungu

Sisal Estates Ltd – In Receivership. According to the learned advocates for the respondent/plaintiff, the respondent was put under receivership with effect from 5 January 2000 and Civil Case Number 7 of 2000 was filed in the High Court at Tanga in May 2000. It is the contention of the learned advocates that the applicants directors' powers were already in abeyance or they had become *functus officio*. To bolster their argument the case of *Moss Steamshim Company v. Whinney* (1) at page 263 was cited where Lord Atkinson stated thus:

> This appointment of a receiver and manager over the assets and business of a company does not dissolve or annihilate the company, any more than the taking possession by the mortgagee of the fee of land let to tenants annihilates the mortgagor. Both continue to exit: but it entirely supersedes the company in the conduct of its business, deprives it all power to enter into contracts in relation to that business, or to sell, pledge, or otherwise dispose of the property put into possession, or under the control of the receiver and manager. Its powers in these respects are entirely in abeyance.

The learned advocates added:

> ... It is thus humbly submitted that from the aforesaid, this suit brought by the plaintiff company, whose directors' powers were already put on abeyance or had become *functus officio. The Tanga suit is therefore incompetent for being brought by a person whose powers to act for the company have been suspended. Consequently the company does not have locus standi to sue in its name as it appears in the plaint in the Tanga case*".[emphasis supplied]

I must admit that these are powerful submissions and would have made my job far more easier if this point was raised before the High Court, Tanga, but out of respect to the learned advocates for the respondent, I shall not duck out the issue, but I should hasten to point out that what follows is purely *obiter dictum*. It is not necessary for my decision in this application. It is trite law that a receiver and manager appointed under a valid instrument supplants the board of directors but the company's powers and the directors' authority are only in abeyance in respect of assets within the scope of the charge.

There must be a valid receivership to supersede the company's internal structures through which it conducts its business. The internal structures are not destroyed. In the case of *Newhart Developments Ltd v. Co-operative Commercial Bank Ltd.* (2) it was held that the appointment of a receiver does not divest the directors of their power to institute proceedings in the company's name provided they do not interfere with the Receivers work of realizing the charged assets, though of course, directors may take proceedings to challenge the validity of the Receivers' appointment. It will be apparent from paragraphs 2, 3 and 6 of the supporting affidavit, that the applicant is challenging the validity of the appointment of Messrs Colman Mark Ngalo and Michael Joachim Tumaini Ngalo as Receivers/Managers of the respondent/plaintiff.

There is no dispute that the applicant is the Managing Director of the respondent/plaintiff company. I am of the settled view that the applicant is entitled to institute a suit in the company's name questioning the legality of the appointment of the Receivers/Managers. Admittedly, this might bring confusion in proceedings but it is my considered view that this is one of those residual roles that the directors of the company can play, and it is an important one since if it turns out that the appointment of the Receivers/Managers was indeed illegal, then they could possibly be trespassers. (See: **The Law Relating to Receivers, Managers and Administrators,** (2 ed) by Hubert Picarda pages 87-89; *Ubungo Garments Limited v. Hassana Nuru Hassan and another* (3)).

I now turn to the crux of the application. The application was made under section 8 of the Civil Procedure Code praying that Commercial Case Number 27 of 2000 be stayed pending the final determination of Civil Case Number 7 of 2000 at Tanga High Court. I think the correct provision of the law is Order IV, rule 1(3) of the Civil Procedure Code as amended by Government Notice Number 140 of 1999. It provides as follows:

> No suit shall be instituted in the Commercial Division of the High Court concerning a commercial matter which is pending before another Court or tribunal of competent jurisdiction or which falls within the competency of a lower Court. [emphasis supplied]

Commercial Case Number 27 of 2000 was filed in this Court on the 6 July 2000 by the respondent in this application and plaintiff in the main suit. The applicant herein is the first defendant in the main suit. As discussed above he is the Managing Director of the plaintiff company which is alleged to be under receivership.

As narrated above, the Receivers/Managers are Messrs Colman Mark Ngalo and Michael Joachim Tumaini Ngalo. Technically, the said Receivers/Managers are not the plaintiffs in Commercial Case Number 27 of 2000 in this Court, but I cannot imagine how they can avoid being witnesses during the trial, if it comes to that. As of now, apart from their role as Receivers/Managers they are also the advocates for the plaintiff, a very awkward and embarrassing situation on their part. I have in mind here the recent Ruling of the Court of Appeal in *Registered Trustees Social Action Trust Fund and others v. Happy Sausages Ltd and others* (4) where the Court said:

> ... we are resolutely of the view that there is sound logic in requiring an advocate who is a party to litigation not to appear in his capacity as advocate but as a litigant. The reason is simple, namely to avoid conflict of interest.

The learned advocates for the plaintiff are well aware of this decision since they were involved in similar circumstances. The point I am trying to make is that the Receivers/Managers are deeply involved in this suit as plaintiff though their names do not appear as such. It is agreed that the Tanga suit was filed in May, 2000 hence earlier in time. The roles have changed. This time the second defendant is the Receiver/Manager, Marungu Sisal Estates Limited and we know who they are. The plaintiff is Marungu Sisal Estate Ltd. Apart from the details in the two Civil Cases, the dispute revolves around the validity of the appointment of the Receivers/Manager of Marungu Sisal Estate Ltd. The next question is are these two suits Commercial matters? In terms of section 2 of the High Court Registries (Amendment) Rules 1999 Government Notice Number 141 of 1999. "Commercial

Case" means a Civil Case involving a matter considered to be of commercial significance, including, but not limited to:

> (VII) The winding up or bankruptcy of a commercial or business organization or person.

It cannot be seriously disputed that putting the applicant under receivership squarely falls under item (VII) above. The two suits are definitely, commercial matters. Lastly, is there a commercial matter which is pending before another Court of competent jurisdiction? As regards the meaning of "pending" I have sought assistance from **Black's Law Dictionary** (6 ed) "Pending" means:

> begun, but not yet settled; during; before the conclusion of; prior to the completion of; unsettled; undetermined; in the process of settlement or adjustment. Awaiting an occurrence or conclusion of an action, period of continuance or indeterminacy. Thus an action or suit is "pending" from its inception until the rendition of final judgment.

See also: *Director of Public Prosecutions v. Ally Nur Dirie and another* (5).

Again it is not in dispute that the commercial matter filed in the High Court, Tanga has begun but not yet completed. No final judgment, going by the pleadings, has been rendered so far. It is therefore "pending" in the High Court, Tanga. Order IV, rule 1(4) of the Civil Procedure Code as amended should not escape our attention. It provides as follows:-

> It shall not be mandatory for a commercial case to be instituted in the Commercial Division of the High Court.

It is apparent from Order IV, rule 1(3) and (4) that this Division does not have exclusive jurisdiction to hear and determine commercial cases of commercial significance. These are salutary provisions aimed at avoiding possible parallel suits going on the same subject matter. This will engender disrespect for the law. It will not be a healthy situation and should be emphatically frowned upon.

In the result, I have no option but to comply with the mandatory requirement of Order IV, rule 1(3) of the Civil Procedure Code as amended and do hereby strike out with costs Commercial Case Number 27 of 2000. It is accordingly ordered.

ESTOMY A. BARAKA AND ANOTHER *v.* COMMISSIONER FOR LANDS AND HUMAN SETTLEMENTS DEVELOPMENT

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Kyando, J.)

CIVIL CASE No. 410 OF 2000

Government Proceedings – Suits against the government – Application for temporary injunction – Whether an order of temporary injunction may be issued against the Government – Section 11 of the Government Proceedings Act 1967.

In a suit claiming their right to land the plaintiffs filed an application for temporary injunction to restrain the defendant from entering or effecting developments upon the said land pending determination of the suit.

Held: (i) There are clear provisions of law prohibiting injunctions, both permanent and temporary, against the Government.

(ii) Although an order of temporary injunction may be awarded against the Government in proceedings for prerogative orders, the same cannot be awarded in an ordinary suit like this one.

Application dismissed

Case referred to:

(1) *Chavda v. Director of Immigration Services and others* [1995] T.L.R. 125

Statutory provisions referred to:

(1) Government Proceedings Act 1967, section 11

(2) Civil Procedure Code 1966

Mr Kishahili for the plaintiffs

Mr Malaba for the Defendant

RULING

(Dated 27 March 2001)

Kyando, J.: The applicants are plaintiffs in a suit they have instituted in Court. They claim both in the suit and in this application that they bought pieces of land at Tegeta Village, Dar es Salaam on which they established shambas and on which they now live. They say this was since way back in around 1985. They say in about 1989 the first respondent/defendant decided to survey the area comprising their said pieces of land or shambas and that upon doing so he allocated the surveyed plots to people other than the applicants/plaintiffs. They say they themselves were neither allocated the surveyed plots of land nor paid compensation for deprivation of their lands. They complained that the new allocatees of the lands, together with officials of first respondent, now harass them and the allocatees threaten to enter into occupation of the pieces of land. They pray in this application, therefore, that by an order of temporary injunction the first respondent, its agents, servants and/or workmen be restrained from developing the surveyed plots, "in application farms at plots Numbers 377, 378 – 385, 57-62, 386-397 and 401- 407 Tegeta Block "E" and from making any harassment pending the hearing of the main suit".

The application is by Chamber Summons supported by the affidavit. In response, the respondents/defendants have raised a point by way

of a preliminary objection to the application. The point is that no order of injunction can be made against the Government, its departments or officers and they rely on section 11 of the Government Proceedings Act 1967 and the Civil Procedure Code 1966, as amended by GN 376 of 1968 in making of point. Counsel have filed written submissions on the point. The provisions of the law set out herein above do indeed prohibit the making of injunctions, be they interlocutory or permanent, against the Government, its departments or officers. In his submissions Mr Kishauli only insists that I exercise the usual discretion of this Court and grant the injunction he seeks for his clients. He does not show how I can possibly circumvent the clear provision, of the law relied on by Mr Malaba in his objection if I have to do so. The only efforts worth mentioning he makes in his reference to the case of *Chavda v. Director of Immigration Services and others* (1) in which Samatta, J.K. (as he then was), in a passage reproduced by Mr Kishahili in his submissions, said:

> The High Court has powers to grant an interlocutory injunction before hearing an application for leave to apply for prerogative orders.

But, as Mr Kishahili himself will no doubt realize, the above passage is of no assistance to his cause. This is because the holding of the learned JK (as he then was) was in proceedings for prerogative orders, in which the High Court, undoubtedly, has powers to make orders for interlocutory injunction against the Government, and not in an ordinary action. The present proceedings are proceedings in an ordinary civil suit or action and the powers of this Court to grant temporary injunction against the Government, its departments or officers have been specifically statutorily curtailed in such proceedings. There is no room, in my respectful view, for maneuvers therefore in order to accommodate the pleas of Mr Kishahili on behalf of the plaintiffs in this case.

The plaintiff's application, for a temporary injunction therefore has to be, and it is hereby, dismissed. Order accordingly.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* PETER KALIFUMU AND BUNGA KALIFUMU

COURT OF APPEAL OF TANZANIA AT MBEYA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 86 OF 2000

(From the decision of the High Court of Tanzania, Mbeya, Wambura, PRM Exercising Extended Jurisdiction)

Criminal Practice and Procedure – Revision – Power of revision to rectify errors – Section 4(3) of the Appellate Jurisdiction Act 1979 as amended by the Appellate Jurisdiction (Amendment) Act 1993.

Criminal Practice and Procedure – Extended jurisdiction – Appeals in the High Court transferred to Court of Resident Magistrate with extended jurisdiction – Appeals to be registered afresh in the Court of Resident Magistrate – Section 45(1) of the Magistrates' Courts Act 1984 as amended by Act Number 2 of 1996.

The Director of Public Prosecutions was dissatisfied with the decision of the Principal Resident Magistrate exercising extended jurisdiction in an appeal emanating from the District Court, Mpanda. The file of the appeal from the District Court was titled "In the High Court of Tanzania at Mbeya" but was heard by the Principal Resident Magistrate. The Director of Public Prosecutions withdrew the appeal without any objection but the Court, exercised its powers of revision to rectify the procedure adopted.

Held: (i) The appeal should have been transferred to the Court of Resident Magistrate to be heard by a Resident Magistrate upon whom extended jurisdiction had been conferred and where it should have been registered afresh;

(ii) As the Principal Resident Magistrate heard the appeal in the wrong forum, the proceedings were a nullity.

Proceedings quashed

Mr Mbago for the Appellant

Mr Mkumbe for the Respondent

RULING

(Dated 30 March 2001)

Ramadhani, J.A.: The Director of Public Prosecutions filed an appeal against the decision of the Principal Resident Magistrate (Extended Jurisdiction) in an appeal from the judgment of the District Magistrate of Mpanda District.

The Director of Public Prosecutions later withdrew the appeal when the matter had already been caused listed. So, when the matter came up for hearing Mr Mbago, learned Principal State Attorney, told the Court that the Director of Public Prosecutions was withdrawing its appeal. Mr Mkumbe, learned advocate for the respondent, raised no objection.

However, the attention of this Court was caught by an irregularity which appears to be common among Resident Magistrates with Extended Jurisdiction. So, we decided to invoke our power of revision to rectify the error.

Subsection (3) of section 4 of the Appellate Jurisdiction Act 1979, as amended by Act Number 17 of 1993, provides as follows:

> Without prejudice to subsection (2), the Court shall have the power, authority and jurisdiction to call for and examine the record of proceedings before the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings of the High Court.
>
> So, we agreed to the withdrawal of the appeal by the Director of Public Prosecutions and by using section 4(3) of the Act we assured revisional jurisdiction.

The file of the appeal from the District Magistrate, is titled: "In the High Court of Tanzania at Mbeya" but it was handled by SAN Wambura PRM (Extended Jurisdiction). Now, that was wrong. The appeal was properly filed in the High Court but as a PRM (Extended Jurisdiction)

was going to deal with it, then it should have been transferred to the Court of the Resident Magistrate.

Subsection (2) of section 45 of the Magistrates' Courts Act 1984, (Act Number 2 of 1984), as amended by Act Number 2 of 1996, provides:

> instituted in the High Court be transferred to and be heard by a Resident Magistrate upon whom extended jurisdiction has been conferred by section 45(1).

Now, for the avoidance of doubt the phrase "may direct" in the subsection refers to the discretion of the High Court itself to deal with an appeal or to let it be dealt with by a Resident Magistrate with extended jurisdiction. Once the High Court has exercised its discretion and has decided that the appeal is to be dealt with by such a Resident Magistrate, then the appeal must be transferred to the Court of the Resident Magistrate and be titled as such.

In this case Wambura, PRM (Extended Jurisdiction) had the jurisdiction to deal with the appeal but in the Court of the Resident Magistrate and not in the High Court. Since she dealt with it in a wrong forum, the proceedings were nullity.

We, therefore, nullify and quash the entire proceedings and the decision purportedly by the High Court.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* PROSPER MWALUKASA

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 6 OF 2000

(Review from the Judgment of the Court of Appeal of Tanzania at Dar es Salaam (Ramadhani, Lubuva, and Lugakingira, JJ.A.), dated 12 May 2000, in Criminal Appeal No. 52 of 1999)

Criminal Practice and Procedure – Review – Application for review before Court of Appeal – Period of limitation for such application.

Criminal Practice and Procedure - Review – Application for review – Delay in lodging application – Grounds for delay – Whether laxity and incompetence of advocate is an excuse for delay.

Criminal Practice and Procedure – Review – Application for review – Preliminary objection to review – Application out of time and circumstances relied upon not disclosed.

Criminal Practice and Procedure – Limitation – Whether the Court is subject to the Law of Limitation Act 1971 – Whether rules of the Court prescribe a limitation period for review.

The Director of Public Prosecutions filed an application for review of a decision of the Court 100 days after it was delivered. The respondent filed a notice of preliminary objection asking the Court to strike out that application on grounds: (1) that the application was out of time; and (2) that circumstances relied upon for review were not disclosed. The applicant stated from the bar that there was the delay because the judgment of the Court was delivered in Dar es Salaam, and that the Attorney General's Chambers in Mbeya became aware of it only a few days before filing the application.

Held: (i) The Court was not persuaded by the applicant's explanation for the delay as it was only made from the bar, and did not state when the applicant became aware of the judgment;

(ii) The Attorney General's Chambers is an entity with limbs spread over the whole country and the Headquarters in Dar es Salaam was aware of the judgement of the Court; what the applicant disclosed, therefore, was incompetence on the part of the Chambers in disseminating vital information; and an error of an advocate and laxity cannot provide a sufficient excuse for extension of time;

(iii) This Court is not subject to the Law of Limitation Act 1971, and the Rules of the Court are silent on the period of limitation for review; to fill the lacuna, the Court in this case ruled, by analogy, that the period of limitation for applications for review was to be sixty days;

(iv) A Notice of Motion to move the Court to review its decision must disclose the circumstances relied upon; in this case the Notice of Motion does not disclose any such circumstances.

(v) This was just a second bite at the appeal and not an application for review.

Application struck out

Cases referred to:

(1) *Halais Pro–Chemie v. Welle AG* [1996] T.L.R. 269

(2) *Transport Equipment Ltd v. Devram P Valambia* [1998] T.L.R. 89

Statutory provision referred to:

(1) Tanzania Court of Appeal Rules 1979

Mr Mbago Principal State Attorney, and *Mr Mulokozi,* Senior State Attorney, for the Applicant

Dr Lamwai and *Mr Mwakolo,* for the Respondent

RULING

(Dated 30 March 2001)

Ramadhani, J.A.: The Director of Public Prosecutions filed an application for review of our decision of 12 May 2000. The respondent has filed a notice of preliminary objection asking this Court to strike out that application on two grounds. Dr Lamwai and Mr Mwakolo, learned advocates, appeared for the respondent while Mr JL Mbago, learned Principal State Attorney, and Mr JTN Mulokozi, learned Senior State Attorney, represented the Applicant/Republic.

Dr Lamwai has argued that the application for review is out of time. He conceded that the Tanzania Court of Appeal Rules 1979 are silent as to limitation of time for review and that there is no other provision on the matter. However, he submitted that the inherent power of this Court to review its own decision cannot be without limitation of time. Dr Lamwai submitted further that a sixty-day period of limitation is reasonable time.

Mr Mulokozi reiterated what Dr Lamwai said regarding absence of limitation. He then argued that even with a sixty days period of limitation as suggested by Dr Lamwai, this application is late by only thirty days which can be accounted for. The learned senior state attorney explained that as the judgment was delivered in Dar es Salaam, the Attorney-General's Chambers in Mbeya became aware of it a few days before the filing of this application. That he contended is excusable as it provides reasonable cause for extension of time if that was necessary.

We are not persuaded by the argument of Mr Mulokozi. For one thing, he was stating that from the bar. He should have filed an affidavit to that effect. Apart from that there are two other things: One, he has not said exactly when they became aware of the judgment. But two, and crucially important, the Attorney-Generals' Chambers is one entity with limbs spread over the whole country and it should be taken as such. Thus the portion of the Chambers in Mbeya cannot plead ignorance when the headquarters in Dar es Salaam was fully and totally informed.

So, what Mr Mulokozi was disclosing to us was incompetence on the part of the Chambers in disseminating vital information. This Court has held on umpteen times that an error of an advocate cannot constitute sufficient cause to extend time.

We dare say, in the same vein, that laxity cannot provide excuse for being late.

In *Halais Pro-Chemie v. Welle AG* (1), at page 273, this Court by analogy adopted the sixty days period of limitation provided by the Law of Limitation Act 1971, for applications for revision to apply to such applications to this Court. This Court was well aware, in *Halais*, that it is not subjected to the Law of Limitation Act 1971. Nevertheless, this Court was of the considered opinion that it is crucially important to fill the *lacunae* in the Tanzania Court of Appeal Rules 1979, and hence provide for limitation in applications for revisions. We are of equally considered opinion that we should provide a period of limitation for applications for review by this Court. By analogy, and as suggested by Dr Lamwai, we adopt the sixty-day period.

The inherent power of this Court to review its own decisions cannot be without prescription of time.

After so ruling we are satisfied that about a hundred days elapsed from the time we delivered our judgment to the time this application was filed. Now, the forty days beyond the sixty-day period of limitation is obviously inordinate delay. So this application is time barred.

The issue of limitation alone is sufficient to dispose of this matter. However, the second ground advanced by Dr Lamwai for striking out the application for review is equally important. Application Number 18 of 1993, when declaring the inherent power of review by this Court, the full bench prescribed three instances: One, if there is a manifest error on the face of the record. Two, if a party has been wrongly deprived of opportunity to be heard. Three, if a decision of the Court was obtained by fraud.

This Court has already said, and we reiterate it here, that a Notice of Motion moving this Court to review its decision must disclose the circumstance or circumstances relied upon. Of course, in another occasion this Court acknowledged that the categories for review are not closed. However, the Court went further to observe that a case has to be made to extend the categories. In this application the notice of motion has neither disclosed the category for review nor has it made out a case for a new one.

We agree with Dr Lamwai that the applicant wants an appeal from the previous appeal. For example, the applicant contends in the Notice of Motion that since this Court ordered the respondent to reimburse the Diocese of Mbeya TZS. 5 million advanced to buy the Toyota Coaster Mini-bus, TZG 7061, then the Court should order reimbursement for all property that "share the same status and standing in the case as m/v TZG 7061".

But we were loud and clear in our judgment that:

> We must say that apart from the Toyota Coaster Mini-bus, TZG 7061 there is no iota of evidence, on the record to show that church money was used to acquire those other items of property. Nagging suspicion of that, yes, there is. But even in the case of that vehicle, it is only TZS. 5 million that came from the church's coffers.

After saying so, we wonder what are those other items of property which have "the same status and standing in the case as m/v TZG 7061".

We are of the opinion that this is just a second bite at the appeal and not an application for review as provided by *Transport Equipment Limited v. Devram P Valambhia* (2).

For the reasons given above, the preliminary objection is sustained. The application for review is struck out.

KUFAKULALA KAJENDAJE v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 95 OF 2000

(From the conviction and sentence of the High Court of Tanzania at Mbeya, Mchome, J. dated 5 April 1994, in Criminal Appeal No. 5 of 1994)

Criminal Practice and Procedure – Right of the accused to be heard – Summons returned unserved – Court proceeds to hear the appeal in the absence of the accused/respondents – Whether proceedings were irregular – Section 34(4) of the Magistrates' Courts Act 1984.

Criminal Practice and Procedure – Sentencing – Enhancement of sentence – Sentence enhanced in the absence of the accused/respondents – Whether proceedings rendered a nullity – Section 29(a)(i) of the Magistrates' Courts Act 1984.

The appellant and one Sofia Mwanangumila were convicted of cattle theft contrary to sections 265 and 285 of the Penal Code and sentenced to 5 years imprisonment by the Primary Court. They successfully appealed to the District Court and the Director of Public Prosecutions appealed further to the High Court. The High Court heard the appeal in the absence of the respondents (i.e. the appellant and Sofia Mwanangumila) who were not served because they had escaped after their acquittal on appeal to the District Court. The High Court allowed the appeal and the order of acquittal by the District Court was set aside. At the same time, the sentence was enhanced to eight years' imprisonment against each of the respondents. The appellant appealed to this Court arguing, firstly, that there was no sufficient evidence to sustain the appellant's conviction, secondly, a wrong procedure was adopted by the High Court in hearing the appeal and enhancing the sentence in the absence of the appellant.

Held: (i) The fact that the summons were returned unserved, with that endorsement by the Village Chairman, was sufficient warning signal to the judge that the provisions of the law had not been complied with, and to proceed with the hearing of the appeal and to enhance the sentence as was done in this case, fatally affected the proceedings;

(ii) The proceedings before the High Court were a nullity for failure to comply with the mandatory provisions of section 29(a)(i) of the Magistrates' Courts Act 1984.

Statutory provisions referred to:

(1) Penal Code sections 265 and 285

(2) Magistrates' Courts Act 1984, section 34(4) and section 29(a) (i) of the Act.

(3) Appellate Jurisdiction Act 1979, section 4(3) and Criminal Appeal Number 5 of 1994

Appeal allowed

Mr Mkumbe, for the Appellant

Mr Mulokozi, for the Respondent

RULING

(Dated 2 April 2001)

Lubuva, J.A.: This is a third appeal. It arises from Igurusi Primary Court Criminal Case Number 161 of 1993, where, the appellant and one Sofia Mwanangumila, who has not appealed, were charged with and convicted of cattle theft contrary to sections 265 and 285 of the Penal Code. They were sentenced to a term of five years imprisonment. They successfully appealed to the District Court. The Director of Public Prosecutions was aggrieved, hence, the appeal to the High Court.

At the High Court, the appellant, Kufakulala Kajendaje and the other, Sofia Mwanangumila, were respectively referred to as the first and second respondents. The High Court (Mchome, J.) heard the appeal in the absence of the respondents who were not served. The Summons were returned with the endorsement that the respondents had escaped after their acquittal on appeal to the District Court. On the basis of the endorsement on the summons, the learned judge was satisfied that it was proper to proceed with the hearing of the appeal in the absence of the respondents because the respondents had escaped after their successful appeal in the District Court. So, upon hearing the State Attorney on behalf of the Director of Public Prosecutions, the appeal was allowed and the order of acquittal was set aside. The sentence was enhanced to eight years imprisonment against each of the respondents.

In this appeal, the appellant is represented by Mr Mkumbe, learned advocate, while the Respondent/Republic, is represented by Mr Mulokozi, learned Senior State Attorney. Mr Mkumbe had filed a four – point Memorandum of Appeal. However, when the appeal was called on for hearing, he opted to argue two points and abandoned the rest of the grounds. These are, first, that there was no sufficient evidence to sustain the appellant's conviction. Secondly, that a wrong procedure

was followed when the judge proceeded to hear the appeal in the absence of the appellant and enhance the sentence.

Regarding the absence of the appellant when the appeal was heard, he said it was a gross irregularity on the part of the learned judge. In the first place, he said the provisions of section 34(4) of the Magistrates' Courts Act 1984 [hereinafter to be referred to as the Act] are very clear. Under the provisions of this section, the Court is required to order notices to be published in the newspaper three times before proceeding with the hearing of the appeal if the appellant could not be served, he stressed. Secondly, he also submitted that the judge fell into another grave error in enhancing the sentence to eight years imprisonment without giving the appellant an opportunity of being heard. This, he said is a mandatory requirement under section 29(a)(i) of the Act. In the circumstance, he submitted, the proceedings were a nullity.

Responding to this submission, Mr Mulokozi, learned Senior State Attorney, conceded that it was wrong for the learned judge in not complying with the mandatory provisions of section 29(a)(i) of the Act. He said failure to give the appellant an opportunity of being heard before the enhancement of sentence rendered the proceedings a nullity.

We are in full agreement with the learned advocate and the Senior State Attorney. The provisions of section 29(a)(i) of the Act are unambiguously clear. They provide to the effect that no conviction or conviction and sentence shall be substituted for an order of the District Court substituting an acquittal for a conviction and no sentence shall be enhanced unless the accused or convicted person, as the case may be, shall have first been given an opportunity of being heard. The learned judge took the view that as the Summons were returned unserved the appellant had escaped after the acquittal. Therefore he found it proper to proceed with the hearing of the appeal and enhance the sentence. This was clearly wrong. The fact that the Summons were returned unserved with the endorsement by the Village Chairman was, with respect, sufficient warning signal, as it were, to the judge

that the provisions of the law still had not been complied. To proceed with the hearing of the appeal and enhancing the sentence as was done in this case, fatally affected the proceedings. Even granted that the appellant had escaped as the judge held, it is inconceivable that, that was taken as justification for non-compliance with the mandatory requirement of section 29(a)(i) of the Act.

On this ground, and as both Mr Mkumbe and Mr Mulokozi, learned Attorneys are agreed, we are satisfied that the proceedings before the High Court were a nullity as a result of not complying with the mandatory provisions of section 29(a)(i) of the Magistrates' Courts Act 1984.

As the proceedings were a nullity, this ground alone is sufficient to dispose of this appeal. However, we could go further. Even if we were minded to accept that the proceedings were proper, we do not think that the evidence was sufficient to sustain the conviction. Mr Mkumbe was firmly of the view that the 26 head of cattle found at the kraal of the appellant were not conclusively identified by PW1 and PW2. He said PW1 merely gave a description of a general nature. In support of the conviction, Mr Mulokozi strongly urged that the cattle bore the characteristic Sangu cut marks in one of the ears. He also said that after the 26 head of cattle left had different distinctive Sukuma marks imprinted on one of the legs.

Mr Mulokozi's submission is not supported by the evidence on record. The evidence of PW1 is contradicted by the evidence Order 5129 PC Benedict (PW4), another prosecution witness. At the trial in the Primary Court, in cross examination, he said.

> Mlalamikaji aliweza kuwatambua ng'ombe kwa alama mbalimbali, ng'ombe walioachwa kwa mshitakiwa first accused hawana tofauti na ng'ombe wa malalalmikaji na chapa ni ya kisukuma na mlalamikaji aliweza kuzitambua ng'ombe hizo kwa chapa na kwa rangi.

Another witness, Francis S/O Genelamenda (Su2) village Chairman, also stated:

Ng'ombe hao waliweza kuondoka nao askari walikuwa na alama mkato katikati ya masikio upande wa kulia ulibakia na ngozi katikati. Na upande wa kushoto ngozi ilitolewa katikati yote, na ng'ombe waliokuwa wamebakia walikuwa ng'ombe ambazo zina alama hiyo hiyo.

Clearly, this evidence by the investigating officer materially contradicts the evidence of PW1 and PW2. It shows that the 18 head of cattle, the subject of the charge, did not bear the marks as described by the complainant (PW1) and PW2. On the contrary, this evidence shows that all the cattle left at the kraal of the appellant and the 18 taken from the kraal, had the same "Sukuma" marks of identification. These, are serious discrepancies in a criminal charge. In the circumstances, we agree with Mr Mkumbe that the prosecution can hardly be said to have proved the case beyond all reasonable doubt that the cattle found with the appellant belonged to PW1.

For these reasons, we allow the appeal, quash the conviction and set aside the sentence. As the appellant is out on bail, we make no order as to his release.

With regard to Sofia Mwanangunila, we are aware that he did not appeal. The appeal against him by the Director of Public Prosecutions was consolidated and dealt with together with that of the appellant. In the High Court, the appeal against him suffered the same irregularities as the appellant. As Sofia Mwanangumila did not appeal, in order for us to rectify the irregularity, we shall invoke the court's power of revision under section 4(3) of the Appellate Jurisdiction Act 1979, *suo motu*. Accordingly, proceedings and judgment in High Court (PC) Criminal Appeal Number 5 of 1994 in respect of Sofia Mwanangumila are revised by setting aside the decision of 5 April 1994, quash the conviction and sentence against him. He is to be released from the custody forthwith unless otherwise lawfully held. It is so ordered.

REPUBLIC v. EDWARD MONGO

HIGH COURT OF TANZANIA
AT TABORA
(Mwita, J.)

CRIMINAL SESSIONS CASE No. 103 OF 1991

Criminal Practice and Procedure – No case to answer – Circumstances in which a submission of no case to answer may be upheld.

The accused was charged with murder contrary to section 196 of the Penal Code. The prosecution called three witnesses and none of them proved the cause of the death of the deceased. After closure of the prosecution case, counsel for the accused declined to call any witnesses and made a submission of no case to answer.

Held: (i) A submission of no case to answer may properly be upheld when there is no evidence to prove an essential element in the offence charged.

Order accordingly

Cases referred to:

(1) *Ramanlal Trambaklal Bhatt v. R* [1957] EA 332

(2) *Republic v. Kakengele Msagikwa* [1968] HCD n. 43

Statutory provisions referred to:

(1) Penal Code section 196

(2) Criminal Procedure Act section 299

Mr Kaunda for the Accused

JUDGMENT

(Dated 4 April 2001)

Mwita, J.: Edward s/o Mongo faces a charge of murder contrary to section 196 of the Penal Code. It is the prosecution's case that Edward

s/o Mongo on or about the 8 July 1990 at Sakasaka Village, Meatu District, did murder one Julis SK Rajabu.

At the close of the prosecution case, the defence counsel, Mr Kaunda, invited the Court to make a Ruling as to whether or not the evidence led by the prosecution discloses a case for the accused to answer.

Before discussing that, a brief background to the state of the record of proceedings is essential in order to shed light on the peculiar nature of the record before me.

The preliminary hearing took place, way back in 1991 before my brother, Korosso, J. All the prosecution evidence (three witnesses) was led before my brother Mchome, J. in June, 1997. When the matter came up for hearing before me on 2 April 2001 I sat with two of the assessors who had sat with my brother Mchome, J. in June 1997. The third assessor is said to be dead. I duly informed the accused of his right in terms of section 299 of the Criminal Procedure Act 1985. Mr Kaunda, advocate for the accused, declined to have the witnesses who testified before my brother re-summoned and re-heard. The prosecution closed its case because the other witness it was intended to call could not be traced. That said, I will now consider the issue as to whether the evidence on record discloses a case for the accused to answer.

A submission of no case to answer may properly be upheld when there has been no evidence to prove an essential element in the offence charged, or where the evidence adduced by the prosecution has been so discredited as a result of cross–examination or is so manifestly unreliable that no reasonable tribunal (if compelled to do so) would at that stage convict.

In *Ramanlal Trambakial Bhatt v. Republic* (1), Sir Newham Worley P at page 335 said:

> It may not be easy to define what is meant by a *prime facie* case but at least it must mean one on which a reasonable tribunal, properly directing its mind to the law and evidence, could convict if no explanation is offered by the defence.

The decision in *Bhatt's case* was applied in *Republic v. Kakengele Msangikwa* (2) where it was held that a *prima facie* case at least must be one on which a reasonable tribunal could convict if no evidence is offered by the defence.

In the instant case PW1 testified to the effect that the accused and deceased were vying for the favours of one Helena. PW1 and the said Helena were staying in the same house but in different rooms.

On the night of 7 July 1990 the deceased was with Helena in her room. At about midnight the accused came to the room occupied by PW1 and enquired as to who was with Helena in her room. On being informed by PW1 that Helena was with the deceased, the accused went to knock at Helena's door. Then PW1 heard voices and commotion in Helena's room as of people fighting. At the same time Helena was crying "nakufa" soon thereafter Helena moved her children to the room occupied by PW1, Helena later returned to her room.

By then there was no commotion in Helena's room. After sometime the accused went to the door of the room occupied by PW1 and said that should anyone raise an alarm, he, the accused, would kill her. Next morning the deceased's dead body was found in the river close to the house occupied by Helena and PW1.

PW1, Assistant Inspector of Police, Justin Shoo testified to the effect that on 8 July 1990 he was informed that a person had been thrown into a river and had drowned. PW3 went to the area where the dead body had been seen. It was the deceased's dead body and was lying in shallow water. The dead body showed signs of injuries. On questioning Helena, she admitted that the deceased was in her room on the night of 7 July 1990 and that the accused and deceased fought and accused killed the deceased and then carried the dead body to the river where it was found. On inspecting Helena's room PW3 found it cleaned and all evidence destroyed. However, PW3

was able to find in the said room the deceased's beret, small radio cassette and socks. These were tendered as Exhibits. However, the record is silent as to whether or not such articles were admitted in evidence.

What PW3 alleges to have been told by Helena is clearly hearsay evidence, and hence inadmissible. Helena could not be traced to testify.

In the circumstances of this case proof of the cause of death is an essential element in the offence charged. On record there is a document which appears to be a post-mortem examination. The document appears to have been signed on behalf of the Medical Officer, Maswa. There is nothing on the face of the said document to indicate that my brothers Korosso, J. and Mchome, J. had seen it. There is nothing on record to indicate that such a document was tendered and admitted as an Exhibit.

In the absence of proof of the cause of death it cannot be said that the prosecution have established a *prima facie* case. Hence the evidence led by the prosecution has not disclosed a case for the accused to answer.

The accused is to be released unless otherwise lawfully detained.

Editorial note: The Court does not record that it acquits the accused, although that was the intention.

SUPPER STAR FORWARDERS (T) LTD v. NATIONAL INSURANCE CORPORATION OF TANZANIA LTD AND ANOTHER

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kalegeya, J.)

COMMERCIAL CASE No. 82 OF 2000

Insurance – Consequential loss –Whether loss of business falls under consequential loss.

Contract – Contract of insurance – contract containing an exclusionary clause – Whether insurer can take cover under the exclusionary clause.

Insurance – Contract of insurance – Breach of contract of insurance – Period of blameworthiness on part of insurer.

The plaintiff comprehensively insured 9 vehicles with the defendant corporation. All the insured vehicles were involved in accidents and the plaintiff duly informed the defendant. Although the defendant admitted liability to pay the indemnification amount, it did not pay the plaintiff hence the case in which the plaintiff, in addition to the indemnification sum admitted by the defendant, also claimed to be paid TZS. 229 872 446 being loss of business income and payment of interest on the indemnity sum of 30% per annum, and other ancillary relief. The defendant argued that loss of business income was "consequential loss" which it would not pay because it was covered under the exclusionary clause in the contract.

Held: (i) Loss of business income by the plaintiff is consequential loss;

(ii) Although loss of business income is consequential loss, yet the defendant cannot seek cover under the exclusionary clause to avoid liability;

(iii) Since the plaintiff is complaining over the defendant's failure to pay the sums endorsed on the forms and since the date of endorsement of those forms is July 2000 the blameworthiness period started to run from July 2000;

(iv) Although the plaintiff suffered loss of income from the dates when the insured vehicles were involved in accidents, nevertheless the period of defendant's blameworthiness commenced in July 2000 when it failed to honour endorsements made on the discharge vouchers in accordance with the claims lodged by the plaintiff.

Judgment for plaintiff

Case referred to:

(1) *NAS Hauliers Ltd v. NIC and another* HC – CD – Commercial Civil Case No. 74 of 2000 (unreported)

Statutory provisions referred to :

(1) Public Corporations Act 1992

(2) Insurance Act Number 18 of 1996

Mr Matunda, for the plaintiff

Mr Msemwa, for the Defendants

JUDGMENT

(Dated 4 April 2001)

Kalegeya, J.: On 2 January2001 judgment on admission in the sum of TZS. 197 883 922 was entered in favour of the plaintiff, a private limited liability company incorporated under the Laws of Tanzania and trading in among others transportation business. The first defendant is a public corporation carrying on insurance business and with which plaintiff had comprehensively insured its motor vehicles Registrarion Numbers TZJ 9799, TZJ 9801, TZJ 1505, TZG 8560, TZE 2074, TZE 7756, TZK 4464 and TZK 1071. The second defendant is an autonomous organ of the Government established under the Public Corporations Act 1992 as amended by Act 16 of 1993 and whose functions include supervising monitoring and enforcing restructuring procedures and agreements in relation to Specified Public Corporations including first defendant, joined in this case as a necessary party.

Among others the following facts are not disputed. Between 199[illegible] and 1997 the plaintiff's above enumerated vehicles got into accident[illegible] and a report was made to the insurers, first defendant. The insure[illegible] admitted the loss suffered vide Exhibit P1 discharge vouchers bu[illegible] did not go ahead and pay the indemnification sum admitted, promptin[illegible] the plaintiff to file a suit in Court. It is not surprising therefore tha[illegible] they (defendant) didn't put up much fight on the Principal sum claime[illegible] hence judgment on admission.

The indemnification amount (TZS. 197 883 922) put aside th[illegible] plaintiff fronted other claims as follows:

(a) ...

(b) That the defendants be ordered to pay the plaintiff a further sum of TZS. 229 872 446 being loss of income suffered by the plaintiff as per paragraphs 4 and 10 herein above.

(c) That the defendants be ordered to pay interest on (a) and (b) above at the commercial rate of 30% per annum from the date of instituting the suit to the date of judgment.

(d) That the defendants be ordered to pay interest on the decretal sum at the court's rate of 12% per annum from the date of judgment to the date the decree is satisfied in full.

(e) That the defendants be condemned to pay the costs of this suit.

(f) Any other relief(s) this Honorable Court may deem fit and just to grant.

These form the centre of contest for which trial was held. Each party called one witness. Issues upon which the Court has to decide are:

1. Whether the plaintiff suffered any loss of income?
2. If the answer is in the affirmative whether the loss is computable at the commercial rate of 30% p.a?
3. To what reliefs are parties entitled?

Mr Matunda Advocate appeared for plaintiff as Mr Msemwa, Advocate, did for defendants.

Arguments launched by parties through their sole witnesses and submissions are simple and straight forward. The plaintiff argues that the insurers (first defendant) having delayed in paying the indemnities, in order to keep its fleet of about 50 trucks and business a float. Its (plaintiff) secured a Bank loan with which it bought seven replacement vehicles and that this loan attracted interest which it puts at an average rate of 30% p.a. It argues that this interest which it was charged and paid should be taken as loss of business hence recoverable due to defendant's failure to abide by the terms of the contract. It tendered discharge Vouchers as Exhibit P1 and NBC circulars showing changes in lending interest rates over years as Exhibit P2.

On the other hand, the defendants insist that they didn't delay as such but, that the plaintiff refused the first offers made and also refused to produce the replaced spare parts apart from their failure to inform them (defendants) of their intention to purchase the replacement vehicles. On the latter they argue that they had three options – replace the vehicles and take scrap; pay cash or repair the vehicles. On loss of profit, they charge that this is not recoverable as it is "consequential loss" prescribed under the Insurance contract.

In answer to defendants' final submission the plaintiff urges that loss of business does not fall under "consequential loss" which incompasses "loss that is directly as a result of the accident" for example "loss or damage to cargo, medical expenses for injured driver, and cited *NAS Hauliers Ltd v. NIC and another* (1) in support thereof.

The plaintiff further impresses that if anything the defendants should have effected the payments within 6 months of signing of the discharge vouchers, which is a reasonable time regard being had to the provisions of the Insurance Act Number 18 of 1996.

I will start by stating that apart from the plaintiff and the quantum claimed, both as principal sum and damages, this case and the one

cited (*NAS Hauliers Ltd v. NIC and another*) by plaintiff's Counsel are the same. Issues are the same and so are arguments. In the premises, where it deserves, I will quote from the judgment of the stated case.

To start with let us tackle the alleged procurement of the loan facility. On the evidence adduced by plaintiff the assertion of having taken a Bank Loan to replace the vehicles accidented clearly stands out unproved. He who alleges must prove. We would have expected production of documents to show the issuance of the facility by the Bank. There is none save Exhibit P2 a bundle of documents from NBC showing revised interest rates, among others, on loan and overdrafts for the years 1995, 1996, 2000 and 2001, which show a rate ranging between 40% and 19%. If indeed there existed any loan facility between the two and in relation to the said vehicles could plaintiff have omitted tendering the relevant documents? Neither is the mere fact that they bought some vehicles in 1998 (TZK 4638, TZK 4660, TK 4646, TZK 4648, TZK 4650 and TZK 4654) sufficient proof of the assertion. I am convinced that no loss was sustained by plaintiff based on loan interest as no procurement of any loan facility has been proved.

The above holding notwithstanding however, I am convinced that an insured as is the plaintiff in this case suffers loss of business from the time his insured vehicle is accidented until he is paid due indemnification. As I stated in *NAS case.*

> That in insuring the vehicle, the insured was guiding itself against possible loss needs no brain mugging. It follows on heels that business principles would enjoin an insurer (first defendant in this case) to effect an indemnity as soon as practicable to put the insured almost in the same shoes as it was before accident. Of course "as soon as practical" would depend on facts of a particular case. Obviously including the time taken to investigate the matter but cannot encompass inaction due to negligence, recklessness or even intentional. Paying indemnity five years after ocurrence of an accident and lodging of claim by insured by whatever stretch of reasoning cannot be said to have been done within the meaning of "as soon as practicable". And it would defeat both common sense and when the insured is indemnified the said insured would not be suffering any loss, Why? In between had

the accident not occurred business would have expectedly been going on. On this our brain would unjustifiable be tasked because the existence of loss need no magical revelation.

The first defendant in that case is the same first defendant in present case, and while 5 years had lapsed in *NAS case*, in here, the period is 4 years. The reason behind my conclusion on the existence of loss is that accidents deprive the insured the vehicles with which he carries on business and therefore a blockage on his income, which income would flow again once indemnity is paid. In this case I hold that indeed the plaintiff suffered loss from the time the vehicle got in an accident. The question is whether the defendants can be held to blame for the loss or part thereof and for which the plaintiff is entitled to payment as claimed.

And this brings us to the defendants argument that even if loss did exist it is "consequential loss" excluded under the contract's exclusionary clause. My answer to this can aptly be effected again by reproducing what I stated in *NAS case*.

> **The Black's Law Dictionary** (6 ed) at page 306, defines consequential loss as losses not directly caused by damage but rather arising from results of such damages.

The loss of business by the plaintiff as explained above is not arising from results of the damage caused to their vehicle but rather it arises from the defendant's in-actions in handling the claim. The plaintiffs are complaining over the manner in which their claim was handled. The defendants cannot escape liability by taking cover under that exclusionary clause because if it is so established their negligence or even recklessness, under no stretch of imagination can it be said to flow from the damage caused to the insured's vehicle.

The above brings us to the question of who is to blame (among the parties) for the inordinate delay. By any standards a five years period within which to consider a motor vehicle insurance claim and even then reaching a settlement after nuzzling in Court is beyond ordinary comprehension unless objectively explained.

Cleary the consequential loss clause cannot absolve defendants from liability.

That settled who is to blame for the delay? As observed already, an insured expects his indemnity from the insurer to be paid as soon as practicable. Now if the latter dilly dallies, common sense would dictate that he should make good the loss of business that may be suffered by the plaintiff. Of course, the same common sense would dictate that there should be a period of blamelessness. The period for blameworthness cannot be the whole period between the occurrence of the accident and when indemnity is paid. Why? After accident there are basic steps to be taken and procedures to be passed through before the assessed indemnity is paid. The Insurers, for example, are supposed to investigate and satisfy themselves that indeed the accidents occurred as alleged and in the manner and circumstances that fall within the cover policy that the indemnity claimed is real or otherwise. This is important because it is known the world over that some insureds have defrauded or attempted to defraud insurers by feigning accidents on insured objects including human lives. Time taken to investigate obviously is outside the time of blameworthiness but this of course would depend on facts of a particular case.

As I stated in *NAS* case, an insurer cannot be allowed to sit on an indemnity claim to infinity under whatever disguise. The situation cannot be allowed because that:

> Would be strangulation of the whole philosophy behind insuring one's risks; a blow to insurance business as any one aware of this would not venture wasting resources in payment of premiums which would have no guaranteed return in any eventuality, and indeed travesty of justice to those who have already ventured into the insurance contracts. That would tantamount to decreeing that insurers are licenced to pocket customers premiums but are not obligated to pay indemnities which accrue.

Of course, the Insurance Act Number 18 of 1996, tries to attach some responsibility to the Insurers section 109 thereof, provides as follows:

Every insurer shall pay the claims within *sixty days of admission of liability if the insurer is unable* to settle the claim within that claim shall be settled [emphasis supplied]

In my view however, the said Act does not cater for irresponsible or uncaring Insurers. The Act attaches on insurer the duty to pay only after liability is admitted (an agonising period to the Insureds is the period starting from the date of accident up to such admission of liability, if any). The Act should have specified the period after which the Insurer has to act pursuant to the lodging of an Accident Report by an Insured. Nevertheless the presence of such *lacunae* in the law does not bar the Court from standing in defence of the otherwise defenceless Insured and apportion liability in terms of losses sustained as and when supported by facts of a particular case.

In the case before us, discharge vouchers, Exhibit P1 indicate each accidented vehicle; the date of accident and the indemnity sum claimed. These show that all the accidents took place between 19 December 1996 and 21 February 1997 save one involving motor vehicle Registration Number TZF 7756 which took place on 6 May 1997, we are not told how long it took the defendants to investigate.

Nevertheless, I would expect that in a situation where an insurer finds himself required to pay indemnity for 8 vehicles (whose insured value is in the range of TZS. 480 Million) belonging to a single insured allegedly accidented within a span of 2 months (the ninth vehicle was accidented in May 1997) much caution and care would be needed and exercised in the conduct of the investigation. Now, if it weren't for a further factor which I will shortly hereafter discuss, in a situation like this, and basing on scanty revelation made by parties on the issues I would have given the defendant an allowance of about 12 months as a blameless period; for the 8 vehicles up to 21 February1998, and up to 6 May 1998 for the ninth vehicle. However, by its own pleading, the plaintiff has switched over the period to the year 2000 as demonstrated by the following excerpts from the plaint:

4. That the plaintiff's claim against the first defendant is for payment of TZS. 197 883 922 being the amount agreed to be paid to the plaintiff by first defendant in respect of plaintiff's motor vehicles.Further that the plaintiff also claims a sum of TZS. 29 872 446 being special damages suffered by the plaintiff on account of the defendant's refusal to pay the plaintiff the agreed indemnity.

5. ...

6. ...

7. ...

8. That immediately after the occurrence of each accident the plaintiff notified the first defendant of the said accidents and duly lodged the insurance claims for indemnification. Further that the first defendant investigated the respective claims and having satisfied itself that the plaintiff was entitled to indemnification, the first defendant admitted its liability to indemnify the plaintiff and accordingly issued to the plaintiff the discharge vouchers in respect of every motor vehicle offering to pay the plaintiff the amount contained thereon. Further that the plaintiff accepted the first defendant's offer by endorsing and returning the said vouchers to the first defendant. Annexed hereto collectively marked annexture "HK-1" are copies of the discharge vouchers issued by the first defendant to the plaintiff clearly acknowledging the first defendant's liability to indemnify the plaintiff and the plaintiff craves leave of the Honourable Court to adopt them as forming part of this plaint.

9. That wrongfully and in breach of the policy and its statutory obligation under section 109 of the Insurance Act 1996 the first defendant has deliberately refused to indemnify the plaintiff by paying the sum agreed on in the discharge vouchers or any part thereof despite its explicit acknowledgement of liability.

10. That as a direct consequence of the first defendant's breach of contract and statutory duty the plaintiff has suffered loss of income

from the non-use of these monies. Further that the plaintiff accordingly claims a sum of TZS. 229 872 446 as loss of income which the plaintiff would have realized had it been paid its monies and used it for economic purposes, which is calculated as interest accruing on the principal sum which the first defendant agreed to pay in respect of every motor vehicle at the commercial interest rate of 30% per annum from the date of every accident to the date of the institution of the suit.

From the above it is clear that the basis of the claims is Exhibit P1 the discharge vouchers. The plaintiff is simply complaining over the first defendant's failure to pay the sums endorsed on those forms. This is clearly put in the first sentence of paragraph 4; the whole of paragraphs 8 and 9 of the plaint. It is again repeated in the first sentence to paragraph 10. In my view, the TZS. 229 872 446 claimed as special damages in the last sentence of paragraph 4 relates to the nucleus of the complaint – refusal to honour what was endorsed on the discharge vouchers and this dates from July 2000. In my considered opinion, the inclusion in paragraph 10 of a statement that it should commence at the time of accident makes no difference. Nowhere in the Plaint apart from the above stated, is the plaintiff complaining over the time taken from dates of accident up to the endorsement of the Discharge Forms. A party is bound by his pleadings and in this case, I am satisfied that the act complained of and for whose claims were launched commenced in July 2000. The blameworthiness period therefore starts from that month of July 2000. plaintiff is entitled to payment which would make good the loss sustained from that period onwards.

The question is how should that loss be computed. The 30% rate was projected on the basis of bank rates on lending. It was given as an average of ruling rates between 1995 and 2001. This sum (principal sum) is not a loan. However, again what I stated in *NAS's case* holds true here. On similar issue I stated.

The plaintiff had asked for 30% but that was pegged on an argument concerning an alleged credit facility which argument I have brushed aside however. I have already held that plaintiff suffered loss of business as a result of non payment of the indemnity in time. In my considered opinion the following should be the yard-stick. The indemnity payable stands in an equal position of any principal sum claimed in any suit. Unless otherwise indicated which is not the case here generally in business dealings an award on a principal sum also attracts an interest thereon.

HALFA HEMED AND JUMA RAMADHANI v. REPUBLIC

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Samatta, CJ, Makame and Ramadhani, JJ.A.)

CRIMINAL APPEAL No. 55 OF 1996

(From the Judgment of the Resident Magistrate's Court of Dar es Salaam, Extended Jurisdiction, Kajeri, PRM (Ext. Jur.), dated 15 November 1996, in Criminal Appeal No. 31 of 1996)

Criminal Practice and Procedure – Charges – Charge of armed robbery – Use of a toy pistol in committing the offence – Whether the offence committed is armed robbery.

Statutory interpretation – Whether a toy pistol is an "arm" within the meaning of Arms and Ammunition Act 1991 – Rule of purposive construction.

The appellants' appeal to the High Court against their conviction for armed robbery and a sentence of imprisonment for thirty years was dismissed. They appealed to the Court of Appeal. The instrument they used in the commission of the offence was a toy pistol, and one of the questions before the Court was whether the offence committed was armed robbery within the meaning of section 5 of the Minimum Sentences Act 1972, as amended by Act Number 10 of 1989.

Held: (i) The rule of purposive construction is applicable: any artifice giving the impression that it is a firearm imparts the same fear in a victim irrespective of whether it is in fact not a firearm.

Appeals dismissed

Statutory provisions referred to:

(1) Minimum Sentences Act 1972

(2) Arms and Ammunition Act 1991 (Act Number 2 of 1991), section 3(1)

Mr Mlipano, for the Respondent

JUDGMENT

(Dated 5 April 2001)

Ramadhani, J.A.: On 8 February 1994 a group of about 4 people went to the house of Said Salim Mohamed (PW3) masquerading as employees of a trade union popularly known by its acronym of OTTU. This group found at home the wife of PW3, Nasra Said (PW2) and two domestic servants, Peter Kika (PW1) and Abbas Wandi (PW4). After some inquiring they departed saying that they were going to return on another day. They did so on 10 February, disclosing their true colours. Once they were inside the house one of them drew out a 'pistol' and by brandishing it they were able to take away with them a number of items of property.

PWs 1, 2 and 3 identified the first appellant not only as one of the bandits they saw on both occasions but also as the one who drew out the 'pistol'. The three prosecution witness did not identify the second appellant who was arrested as a result of being identified by one of the accused person as being the driver of the get-away vehicle. The second appellant himself admitted that much to ASP Sheka (PW7) and also in his caution statement to Exhibit D1. The prosecution produced that statement to impeach his credibility at the trial.

The Trial Court convicted both of them and sentenced each of them to a term of imprisonment of thirty years. They appealed to the High Court against both conviction and sentence without success and in fact corporal punishment was added on top of the imprisonment terms. This is their second appeal. For the appellant it is against the sentence alone but for the second appellant it is against both the conviction and sentence. Both appellants appeared in person while Mr Mlipano, learned State Attorney, represented the Respondent/ Republic.

The second appellant pointed out that at the trial he retracted his confession (Exhibit D1) because, he said, it was obtained under torture. We agree with Mr Mlipano that there is overwhelming evidence to support the confession. On the fateful day the second appellant reported for work and drove the gate-away vehicle as usual. However, he parked it at the premises of his employer, PW6, earlier than the normal time because, according to him, the vehicle was defective. He then vanished into thin air until his arrest on 27 February 1994. However, the owner, PW6, said that he was in Arusha on the day of the robbery and that upon his return he found his vehicle in a perfectly good working condition.

Even assuming that the vehicle was defective, we ask, how could the second appellant have known whether or not it had been repaired while he was not reporting for duty? The answer is obvious that he could not. So, the inescapable conclusion is that he had absconded in a desperate move to conceal his identification with the robbery. Thus both his conduct and his lies corroborated the confession he wants to retract. We, therefore cannot fault his conviction.

Both appellants argued that since what they possessed was a toy pistol and not a firearm, they should not have been punished for armed robbery but for robbery with violence which carries a minimum sentence of imprisonment for 15 years.

Mr Mlipano, on the other hand, argued that the victims of the robbery did not and could not have known that what the appellants

possessed was a toy pistol. To the learned State Attorney, the crux of the matter is the perception of the victims: they were confronted by people who were armed. Therefore, he argued, the sentence of thirty years imprisonment is the appropriate dessert for them.

Section 5 of the Minimum Sentences Act 1972, (hereinafter referred to as the Act) as amended by Act Number 10 of 1989, provides for two different minimum punishments: fifteen years imprisonment for robbery with violence and thirty years for armed robbery. Unfortunately, the Act does not define armed robbery. Of course, the plain meaning of that phrase is robbery with the aid of arms. But what are arms? That term, again, is not defined by the Act.

So we have to resort to the Arms and Ammunition Act 1991 (Act Number 2 of 1991) which defines "arms" in section 3(1) to include:

(a) every firearm of any description;

(b) every air gun and every other kind of gun from which any shot bullet or other missile can be discharged;

(c) .;

(d) every gun, pistol or other propelling or releasing instrument or mechanism from or by which any shell, catridge, bomb, grenade, or projectile, containing any gas or chemical, could be discharged.

We have no doubts in our minds that a toy pistol does not fall under any of the items of definition set out above. Therefore, a toy pistol cannot be said to be an "arm" under the Arms and Ammunition Act 1991 and therefore, any person bearing a toy pistol cannot be said to be "armed".

What we have said above is according to the plain meaning rule of statutory construction. But there are more cannons of construction than the plain meaning rule. We are aware, for example, of the common sense construction rule, that is, a Court has to come up with a construction that would give effect to the legislative intention. What Parliament intended constitutes the legal meaning of a provision of a statute,

which may or may not correspond to the grammatical or the literal meaning of an enactment (**Halsbury's Laws of England,** (4 ed) Col. 44(1) paragraph 1372).

We have no doubt that Parliament intended that a person who robs another by supplementing his muscles with a weapon thereby totally subjugating the victim, should be more heavily punished than a person who merely flexes his muscles and gives a victim an opportunity to put up a fight. So, we would agree with Mr Mlipano that the deciding factor is the perception of the victim.

Our holding above is fortified by the rule of purposive construction, that is, the potency of a defined term overrides the literal meaning of a definition. In this case the inherent power of a firearm is the instillation of paralyzing dread in a victim. Thus any artifice giving the impression that it is a firearm imparts the same fear on a victim irrespective of whether or not, in reality, that device is covered by the literal meaning of the definition of a firearm.

The first appellant was asked by the Court and answered that they took the toy pistol to assist them to accomplish their intention of robbing the victims. Thus they used the toy pistol in the same way they would have used a real pistol: to cow the victims. We asked Mr Mlipano if it would have made any difference if the appellants had a real pistol but, unknown to the victims, it was unloaded or defective. The learned State Attorney answered that the appellants would still be liable to thirty years imprisonment. We think so, too. The effect of the unloaded or defective pistol on the mind of a victim who is unaware of that fact remains the same; a sense of utter helplessness. If a toy pistol is substituted for an unloaded or defective real pistol the analogy is complete. The effect is the same. So, the appellants are liable to thirty years imprisonment each.

The first appellant also complained against the addition of corporal punishment to the imprisonment term by the first appellate Court. However, that ground of appeal was dropped at the time of hearing.

For the reasons given above the appeals are dismissed in their entirety.

STELLA MASHA *v.* TANZANIA OXYGEN LIMITED

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Nsekela, J.)

COMMERCIAL CASE No. 61 OF 2000

Contract – Tender – Advertisement for Tender – plaintiff submitted her tender and defendant wrote to sell the property to plaintiff – Whether the defendant's letter was an offer to sell.

Contract – Formation of contract – Acceptance of an offer – Purchase price required to be paid in full – Purchase price paid partly in banker's cheque and partly in irrevocable bank guarantee – Whether acceptance of offer was absolute and whether purchase price was paid in full.

Evidence –Advertisement for tender not attached to pleadings or tendered in evidence – Whether Trial Court may rely on it.

In May 1999 the defendant advertised a tender for sale of its residential houses including the suit premises. The tender was re-advertised. The plaintiff and her husband submitted their bid for the purchase of the suit premises. The defendant, in response to the plaintiff's bid replied in writing that the defendant had "decided to sell the property to the plaintiff at the market value of TZS. 55 million. The amount should be paid in full by 31 August 1999 failure of which this award will stand withdrawn". The plaintiff and her husband effected payment partly by a banker's cheque for TZS. 17 500 000 and partly in an irrevocable bank guarantee for TZS. 37 500 000. The Bank issuing the guarantee wanted the defendant company to surrender the title deed to the suit premises as security for the loan which the Bank was extending to the plaintiff's husband. The defendant refused to surrender the title deed and informed the husband

accordingly. The defendant further contended that the contractual purchase price was not tendered in full when the plaintiff purported to pay the balance by an irrevocable bank guarantee.

Held: (i) On a proper construction the defendant was offering to sell to the plaintiff the residential property on Plot 1202 Msasani Peninsular, on the terms and conditions stipulated therein in the defendant's letter;

(ii) The plaintiff and her husband did not accept the defendant's offer as it is understood under the basic law of contract; an acceptance, in order to constitute an agreement, must in every respect meet and correspond with the terms and conditions of the offer;

(iii) On a balance of probabilities, the balance of TZS. 37 500 000 was not paid on 10 September 1999 through the irrevocable bank guarantee; the plaintiff and her husband are in breach of their obligations to the defendant and cannot therefore succeed;

(iv) Since the advertisement for tender was not annexed to either the plaint or the Written Statement of Defence and, in addition, it was not produced in Court as an Exhibit, in cannot be relied upon in evidence.

Order accordingly

Cases referred to:

(1) *Gibson v. Manchester City Council,* [1979] 1 W.L.R. 294

(2) *John D Kerenge v. Joel L. Mabiba,* CAT - Civil Appeal Number 54 of 1998 (CA) (unreported).

(3) *Coker v. Ajewole* 1976(1) ALR Comm 230

(4) *Australian Hardwoods Pty. Ltd v. Commissioner for Railways* [1961] 1 W.L.R. 425

Statutory provision referred to:

(1) Civil Procedure Code 1966, Order VIIIA and B

Mr Kamugisha, for the plaintiff

Mr Mbamba, for the Defendant

JUDGMENT

(Dated 5 April 2001)

Nsekela, J.: The plaintiff in Commercial Case Number 61 of 2000 is Stella Masha (PW1), the wife of Lawrence Masha (PW2), an advocate of the High Court of Tanzania. At some point he was an employee of the defendant company. This suit is basically for specific performance of an alleged sale of a residential house situate on plot number 1202 Msasani Peninsular belonging to the defendant. It is alleged in the Plaint that the defendant sometime in May 1999 advertised a tender in newspapers for the sale of six residential houses including the suit premises. Unfortunately the said advertisement was not tendered in evidence and consequently, I am unaware of its contents. It is also alleged that the tender was re-advertised and the plaintiff and PW2 submitted their bid for the purchase of the suit premises. The Plaint goes on to allege that the plaintiff and PW2 were the successful bidders and they effected payment of the purchase price by means of a bankers cheque for TZS. 17 500 000 and by what was termed as an "irrevocable bank guarantee" in the sum of TZS. 37 500 000 hence completing the purchase price of TZS. 55 million. On its part, the defendant company filed Written Statement of Defence on the 6 November 2000 and the disputants, having failed to reach an amicable settlement through mediation under Order VIIIA and B of the Civil Procedure Code 1966 as amended, the following issues were framed and recorded on the 22 December 2000. These were:

(a) Whether or not there was a concluded contract between the plaintiff and the defendant for the purchase by the plaintiff of the defendant's premises on Plot Number 1202 Msasani Peninsular;

(b) What were the terms and conditions of the said agreement, if any;

(c) Did the defendant breach any of the terms and conditions of the said agreement?

(d) To what reliefs are the parties entitled to.

The trial commenced on the 27 February 2001. Mr Kamugisha, learned advocate, represented the plaintiff and Mr Mbamba, learned advocate, represented the defendant company. PW1 was Stella Masha, the plaintiff. She testified that she submitted a bid for the purchase of the suit premises, a residential house on Plot Number 1202 Msasani Peninsular; that she was successful in her bid and the defendant company wrote a letter to that effect, Exhibit P1. I shall revert to this letter in the course of this judgment. She added that the purchase price of TZS. 55 000 000 was not paid on the 31 August 1999 but on the 9 September 1999 since the defendant company had previously agreed to extend the time within which to pay the same (See: Exhibit P2). The purchase price was then paid by means of a bankers cheque for TZS. 17 500 000 (Exhibit P3) and by means of a "irrevocable bank guarantee" in the sum of TZS. 37 500 000 (Exhibit P4). As far as she was concerned, that was the end of the matter on their side. Her contractual obligations had been fulfilled on the 9 September 1999, but to her dismay, the defendant company has refused to date to deliver vacant possession of the suit premises. On the 6 March 2000 PW1 stated that she received a letter, Exhibit P5 to the effect that the contractual purchase price of the suit premises had not been paid. When cross-examined by Mr Mbamba, PW1 insisted that full payment of the contractual amount of TZS. 55 million had been honoured by the "bankers cheque and irrevocable bank guarantee" but admitted that she did not discuss with the defendant the conditions as regards the title deed in Exhibit P4. PW2 was one Lawrence Masha, the husband of PW1, the plaintiff, whom he described in his evidence as a "co-purchaser." PW2 testified that he was formerly an employee of the defendant company and took part in advertising tenders for the purchase of the suit premises. The defendant company informed them that they were successful in their bid and they were to pay the purchase price of TZS. 55 000 000 which was to be paid by the 31 August 1999.

The deadline for this payment was then extended to 10 September 1999. On the 9 September 1999, he added, a bankers cheque in the sum of TZS. 17 500 000 was paid together with an "irrevocable bank

guarantee" upon presentation by the defendant of title deeds to the Kenya Commercial Bank Tanzania Limited. This evidence corroborates that of PW1 except for the element of title deeds to be surrendered to the Kenya Commercial Bank (T) Limited. PW2 testified further that he had prepared a draft sale agreement and forwarded it to the defendant company for review but it was not signed despite repeated demands. This marked the close of the plaintiff's case.

The defendant company called one witness, DW1 Abdulrahman Mohamed Khatib, Acting General Manager, of the defendant, Tanzania Oxygen Limited. He testified that the plaintiff and PW2 had submitted a bid to purchase the suit premises at Plot Number 1202 Msasani Peninsular at a purchase price of TZS. 55 million to be paid by 31 August 1999 which was extended to 10 September 1999. He added that on the 10 September 99 the plaintiff and PW2 brought a bankers cheque for TZS. 17 500 000 and a letter from Kenya Commercial Bank guaranteeing the payment of TZS. 37 500 000. The letter from Kenya Commercial Bank wanted the defendant company to surrender the title deeds to the suit premises as security for the loan the said bank was extending to PW2. The defendant company did not surrender the title deed and PW2 was informed accordingly. According to DW1 the plaintiff and PW2 had only paid TZS. 17 500 000 and not the full contractual purchase price of the suit premises.

When cross-examined by Mr Kamugisha, DW1 stated that the defendant company wanted to be paid in full whether by cash, bankers cheque or by whatever means to that effect. Exhibit P4 was rejected by the defendant company and that this information was communicated to PW2. He added that Exhibit D2 was not returned to Kenya Commercial Bank including TZS. 17 500 000 that had been paid by bankers cheque. This then is the summary of the evidence by the three witnesses.

The learned advocates for the parties at my request, submitted written submissions and I shall make reference to their rival contentions in the course of answering the issues that were framed. The first issue was in the following terms:

> Whether or not there was a concluded contract between the plaintiff and the defendant for the purchase by the plaintiff of the defendants premises on plot number 1202 Msasani Peninsular.

What is crystal clear from the pleadings of the parties, the oral testimony of the witnesses and the Exhibits tendered in Court, is that there was no formal sale agreement signed between the disputants hereto. The main question to be considered and determined however is whether or not in the correspondence that was exchanged between the plaintiff and the defendant company there can be found a legally enforceable agreement for the sale by the defendant to the plaintiff and PW2 Lawrence Masha of the suit premises on Plot Number 1202 Msasani Peninsular. In answering the first issue the second one, namely -

> What were the terms and conditions of the said agreement, if any;

will inevitably be inextricably involved and hence the two issues will be considered together. To answer the first two issues, I shall closely follow what has been often called "the conventional approach" very lucidly explained by Lord Diplock in the case of *Gibson v. Manchester City Council* (1). His Lordship stated thus at page 297:

> My Lords, there may be certain types of contract though I think they are exceptional which do not fit easily into the normal analysis of a contract as being constituted by offer and acceptance; but a contract alleged to have been made by an exchange of correspondence between the parties in which the successive communications other than the first are in reply to one another, is not one of these. I can see no reason in the instant case for departing from the conventional approach of looking at the handful of documents relied upon as constituting the contract sued upon and seeing whether upon their true construction there is to be found in them a contractual offer by the corporation to sell the house to Mr Gibson and an acceptance of that offer by Mr Gibson.

A convenient starting point is Exhibit P1, a letter dated 9 August 1999 from the defendant company to the plaintiff Stella Masha and PW2 Lawrence Masha. It reads as follows:

Re: Award of Tender for Purchase of TOL Limited Residential property on Plot Number 1202 Msasani Peninsular, Dar es Salaam

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Please refer to your bid for the purchase of TOL Limited residential property located on plot number 1202 Msasani Peninsular, Dar es Salaam.

We are pleased to inform you that it has been decided to sell the property to you on condition that you match the market value of the property which is TZS. 55 000 000 (say TZS. Fifty-five million only).

The amount should be paid in full by 31 August 1999 failure of which this award will stand withdrawn [emphasis supplied]

Exhibit P2 dated 6 September 1999 extended the date for the payment of the purchase price to 10 September 1999 and all the three witnesses PW1; PW2 and DW1 have testified to that effect. It was also in evidence that prior to this the defendant company had on two occasions advertised tenders in the newspapers for the sale of its properties including the suit premises.

In the written submissions, Mr Kamugisha, learned advocate for the plaintiff has submitted as under, and I quote:

> My Lord it is our humble submission that the defendant's advertisement of the tender was an invitation to treat addressed to the whole world asking for the intending buyers to come forward and contract with the defendant for the purchase of the premises in question pursuant to the advertisement, the plaintiff sent in her tender, or offer, which the defendant accepted. Thus, it is our submission my Lord that the contract between the plaintiff and the defendant was concluded on the basis of the plaintiff's tender or offer on the one hand and the defendant's acceptance of it on the other.

On his part, Mr Mbamba, learned advocate for the defendant had this to say:

> My Lord at the risk of repeating the facts, the defendant invited the public to submit tenders for the purchase of the disputed premises whereby the plaintiff and her co-purchaser offered to buy the premises. The defendant, by his letter dated 9 August 1999 addressed to the plaintiff and co-purchaser, accepted the offer on condition that the plaintiff and co-purchaser match the market value of TZS. 55 million.

Admittedly, PW1; PW2 and DW1 have all testified that the defendant did advertise in the newspapers the sale of its properties including the suit premises. As I have had occasion to point out before, there is no documentary evidence which has been tendered to that effect. In a suit of this nature, such evidence is crucial. I would venture to say that the advertisement in the newspapers perhaps contained the terms and conditions to be fulfilled by the would be purchasers. Since the so called advertisement was neither annexed to the Plaint nor Written Statement of Defence and in addition it was not produced as an Exhibit, such evidence cannot be relied upon: (See: *John D Kerenge v. Joel L Mabiba* (2).

The first document before me is Exhibit PI which I have quoted *in extenso* earlier on. The opening phrase in paragraph 2 of this Exhibit reads as under:

> We are pleased to inform you that it has been decided to sell the property to you.

It is my considered view that on a proper construction of Exhibit P1 the defendant was offering to sell to the plaintiff and PW2 Lawrence Masha the residential property on plot 1202 Msasani Peninsular on the terms and conditions stipulated therein. These conditions were:

(a) the purchase price was TZS. 55 million to be paid in full;

(b) the cut-off date for payment of the purchase price was 31 August 1999;

(c) the offer would lapse if the purchase price was not paid in time.

As we have noted before, in terms of Exhibit P2, the period for the payment of the purchase price was extended to 10 September 1999. What was the response of the plaintiff and her husband PW2 on receipt

of Exhibits P1 and P2. The evidence on record shows that they wrote a letter to the defendant, Exhibit P6. It is a critical letter worth quoting. It was addressed to the Acting General Manager of the defendant, one AM Khatibu, DW1. It is dated 29 October 1999. It reads in part as follows:

> **Re: Plot 1202 Msasani Peninsular**
>
> Kindly refer to your letters dated 9 August 1999 whereby you offered to sell the above referred property to me for TZS. 55 million as well as your subsequent letter dated 6 September whereby you extended the period of payment to 10 September, 1999.
>
> You will recall that on the 9 of September my Bank, Kenya Commercial Bank Tanzania Limited, presented to you and you accepted a Bankers payment of TZS. 17 500 000 along with an Irrevocable Bank Guarantee of 37 500 000. You will also recall further that you presented the said Bankers payment for clearance and the said payment was cleared on the 19 September 1999. Despite repeated requests that the sale transaction be concluded, you have either failed or neglected to conclude this transaction despite various costs being suffered by myself and my *fulfillment* of my obligations in this transaction.
>
> I am hereby writing to once again request that you liase with my Bank so that this issue is finalized *as per the terms of the guarantee which you have accepted"*. [emphasis supplied]

Exhibit P7 was a reminder to the defendant of Exhibit P6. It will be recalled that Exhibit PI was the offer to sell the suit premises to the plaintiff and PW2. The question is was Exhibit P6 an acceptance by the plaintiff and PW2 of the offer as contained in Exhibit PI? It is my settled view that the answer must be in the negative. Firstly, the purchase price was to be paid in full by the 10 September 1999. Exhibit P6 was written on the 29 October 1999, well over a month after the offer had been made. Secondly, it contained conditions not reflected in the defendant's offer. There was reference in this letter to Kenya Commercial Bank Tanzania Limited presenting to

the defendant on the 9 September 1999 a banker's cheque for TZS. 17 500 000 and an irrevocable bank guarantee of TZS. 37 500 000. There was no prior arrangement between the defendant company and the plaintiff and PW2 that the Kenya Commercial Bank would be the agent of the plaintiff and PW2 in effecting the purchase price to the defendant. This arrangement was certainly not contained in Exhibit PI. This is not all. Payment of the purchase price was to be in full. The plaintiff and PW2 had only paid TZS. 17 500 000 as evidenced by Exhibit P3 which is an acknowledgement from the defendant that the defendant had received TZS. 17 500 000 from Stella Masha and Lawrence Masha being part payment for purchase of the suit premises. It is obvious by now that Exhibit PI did not envisage part payment but full payment by the stipulated deadline of 10 September 1999. I think I have sufficiently shown that the plaintiff and PW2 did not accept the defendant's offer as it is understood under the basic law of contract. Indeed section 7 of the Law of Contract Ordinance Chapter 433 provides as follows:

> 7 *In order to convert a proposal into a promise the acceptance must:*
>
> (a) be absolute and unqualified;
>
> (b) be expressed in some usual and reasonable manner, unless the proposal prescribes the manner in which it is to be accepted. If the proposal prescribes the manner in which it is to be accepted and acceptance is not made in such manner, the proposer may, within a reasonable time after acceptance is communicated to him, insist that his proposal shall be accepted in the prescribed manner and not otherwise, but if he fails to do so he accepts the acceptance.

The learned advocate for the plaintiff and PW2 made spirited submissions apparently with deep conviction that the plaintiff and PW2 made full payment of the purchase price of TZS. 55 million on the 9 September 1999 through:

(a) A Bankers cheque in the sum of TZS. 17 500 000 issued by Kenya Commercial Bank in favour of the defendant; and.

(b) An irrevocable Bank Guarantee in the amount of TZS. 37 500 000 also issued by the Kenya Commercial Bank.

The evidence on the record, Exhibit P3 shows that TZS. 17 500 000 was received from the plaintiff and PW2 and not from Kenya Commercial Bank (T) Limited. I have discussed this matter already. The defendant does not dispute at all that this amount of money was actually received. The defendant however has submitted that on the 10 September 1999 the plaintiff and PW2 did not effect full payment in terms of the offer, Exhibit Pl. There was a balance of TZS. 37 500 000 to be paid. The plaintiff and PW2 have submitted that the said amount was paid on 9 September 1999 as well, through Exhibit P4 which contained PW2's bankers "irrevocable bank guarantee". This is an ingenious argument but I am not persuaded by it.

The defendant was not a party to Exhibit P4. This so called "Bank Guarantee" was in my view unsolicited information to the defendant as to the financing arrangements of PW2. That explains why the defendant did not surrender the title deed to the suit premises to the Bank. The defendant had nothing to do with PW2's financial acrobatics as to where he would get financial assistance to fund the purchase of the suit premises. I am not surprised that there was no official from the Kenya Commercial Bank to testify that the Bank paid to the defendant TZS. 37 500 000 on 9 September 1999. Why was this crucial piece of evidence not forthcoming? He who alleges must prove! I am satisfied on a balance of probabilities that the balance of TZS. 37 500 000 was not paid on the 10 September 1999. A bank guarantee is defined as under in the **Oxford Dictionary of Business** (2 ed):

> An undertaking given by a bank to settle a debt should the debtor fail to do so. A bank guarantee can be used as a security for a loan but the banks themselves will require good cover in cash or counter-indemnity before they issue a guarantee (See also: section 78 Law of Contact Ordinance Chapter 433).

Surely the plaintiff and PW2 cannot seriously argue that Exhibit P4 was full payment as contemplated by Exhibit Pl. In Sanjiva **Rows Contract Act and Law Relating to Tenders** etc. Volume 1 (9 ed) the learned editors at page 728 state thus:

> An acceptance, in order to constitute an agreement, must, in every respect, meet and correspond with the offer, neither falling short of nor going beyond the terms proposed, but exactly meeting them at all points and closing with them just as they stand. In the absence of such an acceptance subsequent words, acts or conduct of the parties cannot create a contract.

The acceptance, in order to consummate an agreement, must in every respect meet and correspond with the terms and conditions of the offer. It has been said that an acceptance must be a "mirror image" of the offer. The plaintiff's and PW'2 letter, Exhibit P6 did not mirror the defendant's Exhibit P1 as modified by Exhibit P2.

The last issue to be considered and determined is the relief, if any, to which the parties are entitled. The learned advocate for the plaintiff submitted that the Court should order specific performance of the contract. To state the obvious, specific performance is a discretionary remedy which compels a party in breach to perform its contractual obligations. This of necessity means that there must be a concluded contract between the disputants. Again I think it is trite law that specific performance will only be granted if monetary compensation will not be adequate. In the instant case what is at stake is a residential property which cannot possibly be replicated and therefore monetary compensation will be inadequate. However, in the case of *Coker v. Ajewole* (3) at page 235, Idebje, J.S.C. stated:

> It is settled law that a person seeking to enforce a contract must show that all the conditions precedent have been fulfilled and that he has either performed or is ready and willing to perform all the terms which ought to have been performed by him. Accordingly, generally a plaintiff in an action for specific performance of an agreement cannot succeed if there is failure on his part to discharge his obligations under the said agreement. (See also: *Australian Hardwoods Pty. Ltd v. Commissioner for Railways.* (4).

From what I have stated before in this judgment, it is abundantly clear that the plaintiff and PW2 are in breach of their obligations to the defendant and cannot therefore succeed in obtaining the relief of specific performance. In the premises, the suit is hereby dismissed in its entirety with costs. It is accordingly ordered.

TANZANIA HARBOURS AUTHORITY *v.* MOHAMED R MOHAMED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Ramadhani and Lubuva, JJ.A.)

CIVIL APPEAL No. 80 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Bubeshi, J. dated 23 June 1999, in Civil Case No. 7 of 1999)

Civil Practice and Procedure – Applications – Application for extension of time to file a written statement of defence – Whether extension can be made at any time or is restricted to within 21 days after expiry of the time provided – Section 93 and Order VIII, rule 1(2) of the Civil Procedure Code 1966.

After the respondent had filed his plaint the appellant was ordered to file a Written Statement of Defence by 25 March 1997. The appellant delayed to file the Written Statement of Defence by 98 days. On the day it filed the Written Statement of Defence the appellant applied for an extension of time to file the Written Statement of Defence to the date it was filed. The respondent successfully raised a preliminary objection to that application and the Written Statement of Defence was struck out. The appellant appealed against that decision of the High Court and argued that Order VIII, rule 1(2) of the Civil Procedure Code 1966, which restricts the application for extension of time to within 21 days, is against the provisions of section 93 of the same Code.

Held: (i) While section 93 of the Civil Procedure Code 1966, imposes no restriction whatsoever in the court's discretion in extending time, the proviso to Order XIII, rule1(2) imposes limitation on the discretion of the Court to extend the time within which the defendant can file a Written Statement of Defence and requires an application to extend time must be made within 21 days of the expiry of the time set for the lodging of the Written Statement of Defence;

(ii) This Court has said in a number of decision that time would be extended if there is an illegality to be rectified; however, this Court has not said that time must be extended in every situation;

(iii) In this case the defence has been grossly negligent and surely cannot be heard now to claim that there is a point of law at stake;

(iv) This Court is duty-bound to see that Rules of Court are observed strictly and cannot aid any party who deliberately commits lapses because to do so, as in the present case, would defeat the whole reasoning behind amending the Civil Procedure Rules in 1994.

Appeal dismissed

Statutory provisions referred to:

(1) Civil Procedure Code 1966, Order VII, rule 1(2), Order XIII, rule 1(2)

(2) Civil Procedure Code section 93

Mr Mnzava, for the Appellant

Mr Magesa, for the Respondent

JUDGMENT

(Dated 6 April 2001)

Ramadhani, J.A.: The respondent filed a plaint on or about 13 February 1997 and the appellant was ordered to file a Written Statement of Defence (WSD) by 25 March 1997. That was not done and instead the Written Statement of Defence was filed on 2 July 1997, that is, after 98 days. On the same day of lodging the Written Statement of

Defence, the appellant applied for an extension of time to file the Written Statement of Defence to the date it was filed. The respondent raised a preliminary objection to that application and sought the Written Statement of Defence to be struck out. That preliminary objection was upheld by Bubeshi, J. and the Written Statement of Defence was struck out.

The learned judge said:

> What the defendant ought to have done was to ask for extension of time before filing their Written Statement of Defence. There is no legal provision which allows the Court to grant extension of time retrospectively for filing a Written Statement of Defence. The application is hereby refused and done so with costs.

The appellant has come with this appeal. Before this Court Mr Mnzava, learned counsel represented the appellant and Mr Magesa, learned advocate, appeared for the respondent. Mr Mnzava had four grounds of appeal. First, he said that the learned judge erred in holding that extension of time cannot be done retrospectively. The learned advocate argued that extension of time is always retrospective. Secondly, Mr Mnzava relied on section 93 of the Civil Procedure Code 1966 which provides for extension of time at any time. He submitted that Order VIII, rule 1(2) restricts the application for extension of time to be within 21 days and that this is against the provisions of section 93. Thirdly, the learned advocate contended that there is ample authority of this Court that if there is a point of law involved in a litigation then the Court would extend time and that it would not allow an illegality to persist. Lastly, Mr Mnzava submitted that the respondent is not going to be prejudiced in any way if time is going to be extended for filing the Written Statement of Defence.

In reply Mr Magesa supported the learned judge that there is no provision allowing retrospective extension of time for a Written Statement of Defence. The learned advocate pointed out that because of delays in the transaction of cases an amendment to the Civil Procedure Rules was done by GN 422/94 restricting the extension of time to

file a Written Statement of Defence to within 21 days of the expiry of the time. Mr Magesa submitted that if section 93 of the Civil Procedure Code is going to be enforced without the limitation of 21 days then Order VIII, rule 1(2) is rendered superfluous. He pointed out that this is the first case after that amendment of the rules. Mr Magesa submitted further that retrospective extension of time for filing Written Statement of Defence is only available if an application is made within 21 days of the expiry of the given time. The learned advocate argued that the authorities cited by his learned friend regarding merits of a case as a consideration of extending time are irrelevant. He pointed out that the appellant was grossly negligent in the handling of this matter.

With due respect to the learned judge we think that in most cases extension of time is retrospective. Maybe she meant that the law does not provide for the extension of time retrospectively after the expiry of 21 days as Mr Magesa submitted. Be that as it may, the question before us is whether extension can be made at any time as provided by section 93 or is restricted to within 21 days after the expiry of the provided time under Order VIII, rule 1(2).

Section 93 of the Civil Procedure Code provides:

> Where any period is fixed or granted by the Court for the doing of any act prescribed or allowed by this Code the Court may, in its discretion, from time to time, enlarge such period, even though the period originally fixed or granted may have expired.

Admittedly, and as submitted by Mr Mnzava, that section imposes no restriction whatsoever in the court's discretion in extending time. However, the proviso to Order VIII, rule 1(2) prescribes as follows:

> Provided that the Court may, within twenty-one days of expiration of the prescribed period, grant an extension of time for presentation of the Written Statement of Defence on application by the defendant.

Here the limitation is imposed on the discretion of the Court to extend the time within which the defendant can file a Written Statement

of Defence. The application must be made within 21 days of the expiry of the time set for the lodging of the Written Statement of Defence. Before the amendment, that proviso read as follows:

> Provided that the Court may extend the period for the presentation of the Written Statement of Defence on application by the defendant or on receipt of a notice in writing of the plaintiff's consent to such extension.

Two things are glaring to the eye in the new proviso: one, an application has to be within 21 days of the expiry of the time for filing the Written Statement of Defence; and two, the consent of the plaintiff to an extension of time is dispensed with. Now, this is not without significance and we agree with Mr Magesa that this Court cannot ignore the new proviso. The appellant was late for about 187 days after the time given by the Court for filing the Written Statement of Defence. This, to say the least, is inordinate delay.

Admittedly, this Court has said in a number of decisions that time would be extended if there is an illegality to be rectified. However, this Court has not said that time must be extended in every situation. Each situation has to be looked at on its own merits. In this case the defence has been grossly negligent and surely cannot be heard now to claim that there is a point or law at stake. Besides the point of law given by Mr Mnzava is that the suit is time barred. The lower Court can deal with that matter *suo motu*.

The reason given by Mr Mnzava to explain the delay is that the Tanzania Legal Corporation was waiting for some records from the appellant before drafting the Written Statement of Defence. But if that was so, and if they were mindful of this proviso, they ought to have applied for an extension of time much earlier even before the expiry of the period within which a Written Statement of Defence was to be filed. But the appellant just did not bother so much so that the lower Court had this to say on 14 May 1997:

> Tanzania Harbours were served on 24 February 1997. They have never filed their Written Statement of Defence to-date nor is there any appearance.

This Court is duty-bound to see that Rules of Court are observed strictly and cannot aid any party who deliberately commits such lapses. To do so, in the present case, would defeat the whole reasoning behind amending the Civil Procedure Rules in 1994.

We do not think that it is necessary to go into the other issues raised by the appellant. What we have said above is enough to determine the appeal which we hereby dismiss with costs.

BULK OIL TANZANIA LTD v. NJAKE ENTERPRISES OIL TRANSPORT LTD AND TWO OTHERS

HIGH COURT OF TANZANIA
AT MOSHI
(Munuo, J.)

MISCELLANEOUS CIVIL APPLICATION No. 107 OF 2000
(C/I CIVIL CASE No. 42 OF 2000 U/C)

Local government – Suits against local government authorities – Statutory requirement of one month's notice before suing an urban authority – Effect of non-compliance with the requirement – Section 97(1) of the Local Government (Urban Authorities) Act 1982.

This was an application for temporary injunction pending determination of a main suit against the three respondents. A preliminary objection was raised by the third respondent, Moshi Municipal Council, contending that both the application and the main suit were incompetent for non-compliance with section 97(1) of the Local Government (Urban Authorities) Act 1982, which requires a one month's notice to be served on an urban authority before instituting a suit against it.

Held: As the main statutory suit was filed without complying with the requirement of notice to the third respondent, an urban local government authority, the suit is incompetent and the application is not sustainable.

Application dismissed

Cases referred to:

(1) *Arusha Municipal Council v. Lyamuya Construction Company Limited* [1998] T.L.R. 13

Statutory provisions referred to:

(1) Local Government (Urban Authorities) Act 1982, Act Number 8 of 1982, section 97(1)

(2) Civil Procedure Decree Chapter 4

Mr Mrema and *Mr Ng'maryo,* for the Applicants

Mr Gandi, for the first Respondent

Mr El-Maamry, for the second Respondent

Professor Msanga, for the third Respondent.

RULING

(Dated 4 May 2001)

Munuo, J.: The applicant brought this application under Order 39, rule 7(1)(2) seeking an injunction against the respondents notably restraining the first and second defendants from interfering with plot number 82 of Block V Moshi Industrial Area till the finalization of Civil Case Number 42 of 2000, the main suit pending before the Court.

The applicants were represented by Mr Mrema and Mr Ng'maryo, learned advocates. The third respondent was represented by Mr Gandi while Mr El Maamry represented the second respondent. The third respondent, Moshi Municipal Council was represented by Professor Msanga. The parties submitted in writing while the Principal Officers of the parties deponed affidavit and counter affidavits supporting or opposing the application.

Professor Msanga raised a preliminary objection stating that the main suit and application are incompetent for non-compliance with the statutory provision of section 97 of the Local Government Act Number 8 of 1982 section 97 states:

> 97(1) No suit shall be commenced against an urban authority until one month at least after written notice to commence the suit has been served upon the authority by the intending plaintiff or his agent.

That the plaintiff must comply with the above provision was reiterated in the case of *Arusha Municipal Council v. Lyamuya Construction Company Limited* (1) wherein the Court of Appeal made the following observations on non-compliance with statutory provision:

> The question that arises is what are legal consequences of such non-compliance. A similar situation was considered in the case of *Mackley Manambi and others v. Sheikh Ahmed Haidri* [1957] EA 770. That case turned on the provision of section 60 of the Civil Procedure Decree Chapter 4 (now Chapter 8) of Zanzibar which stated:
>
> > No suit shall be instituted against the Zanzibar Government, or against a public officer in respect of any Act purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered to, or left at the office of the Chief Secretary to the Zanzibar Government, or the District Commissioner of the District , stating the cause of action, the name description and place of residence of the plaintiff and the relief which he claims; and the plaint shall contain a statement that such notice has been so delivered.

There was a suit filed in the magistrate's Court without compliance with the provision of section 60. The defendant's objection in the suit was overruled by the trial Magistrate. In a successful appeal to the Zanzibar High Court, Windham, C.J. as he then was, stated, *inter alia*, at page 782.

> I must hold that the learned trial Magistrate erred in overruling the appellant's objection, raised at the outset of the hearing, that section 60 of the Civil

Procedure Decree applied and that by reason of the respondent's admitted non-compliance with it, the action was not maintainable. The appeal is allowed with costs, the ruling of the learned magistrate is set aside, and I hold that by reason of the non-compliance the suit was wrongly instituted and is not maintainable and must be dismissed with costs.

In this case the applicant filed or produced no notice served on the third respondent, Moshi Municipal Council in compliance with section 97 of Act Number 8 of 1982. Mr Mrema and Mr Ng'maryo stated nothing on compliance with section 97 of Act Number 8 of 1982 in their submission, which means section 97 was not complied with before filing the suit and the application therefrom.

Under the circumstances the preliminary objection raised by Professor Msanga on the non-compliance with section 97 of Act 8 of 1982 has merit and it is accordingly upheld.

In view of the above the application is not sustainable because the main suit is incompetent for non-compliance with section 97 of Act 8 of 1982, a month's notice not having been served on the third respondent before instituting the suit. For that reason the application is dismissed with costs.

REPUBLIC *v.* KERSTIN CAMERON

HIGH COURT OF TANZANIA
AT ARUSHA
(Rutakangwa, J.)

CRIMINAL SESSION CASE No. 51 OF 2000

Evidence – Expert evidence – When expert evidence may be contradicted by levy witnesses.

Evidence – Expert evidence – Standards of accuracy and objectivity required – Role an expert should assume.

Evidence – Burden of proof – Weaknesses of defence case – Effect of weaknesses of defence case on the burden of proof – Weaknesses of defence case not a basis for conviction.

Evidence – Circumstantial evidence – Circumstances under which conviction can be sustained by circumstantial evidence – Principles applicable in grounding a conviction on circumstantial evidence.

Evidence – Expert evidence – Utility of expert evidence.

Evidence – Character evidence – Character evidence prejudicial to the character of the deceased – Whether the evidence is admissible when the death or its cause is in issue.

The accused was charged with murder contrary to section 196 of the Penal Code. It was alleged that she shot her husband in their bedroom. The main line of defence was that the deceased committed suicide. The prosecution called 15 witnesses including a ballistic expert. The prosecution case was mainly based on circumstantial evidence.

Held: (i) The accused can only be convicted of an offence on the basis of the strength of the prosecution case and not on the basis of the weakness of the defence case;

(ii) When an accused is charged with an offence his or her guilt is not established or proved if the explanation he or she offers is one which is reasonable and might possibly be true even if the Court is not convinced that it is in fact true;

(iii) To ground a conviction on circumstantial evidence, the following principles apply:

(a) that evidence must be incapable of more than one interpretation;

(b) the facts from which an inference of guilt or adverse to the accused is sought to be drawn, must be proved beyond reasonable doubt and must clearly be connected with the facts from which the inference is to be drawn or inferred;

(c) in murder cases, evidence should be cogent and compelling as to convince a jury, judge or Court that upon no rational hypothesis other than murder can the facts be accounted for;

(iv) More weight ought to be given or attached to the evidence given of peoples' acts than their alleged words which are easily mistaken or misinterpreted;

(v) The duty of an expert is to furnish the Court with the necessary scientific criteria for testing the accuracy of their conclusions so as to enable the Court to form its own independent judgment by the application of these criteria to the facts proven in evidence;

(vi) Since the evidence of an expert is likely to carry more weight than that of an ordinary witness, higher standards of accuracy and objectivity are requried from him. An expert should provide independent assistance to the Court by way of objective unbiased opinion in relation to matters within his expertise and should never assume the role of an advocate;

(vii) When facts in question upon which an expert testified are dependent upon ordinary human powers at perception, an expert may be contradicted by levy witnesses;

(viii) Special skill is not confined to knowledge acquired academically but includes also skill acquired by practical experience;

(ix) There is no rule of law which bars the reception of the evidence prejudicial to the character of the deceased when his death or its cause is in issue.

Accused acquitted

Cases referred to:

(1) *August Mahyo v. Republic* [1993] T.L.R. 117

(2) *Elizabeth Shomari v. Republic* CAT Criminal Appeal Number 64 of 1990 (unreported)

(3) *R v. Sabudin Merali and Umedali Merali,* Uganda High Court Criminal Appeal Number 220 of 1963 (unreported)

(4) *Hassan Fadhili v. Republic* [1994] T.L.R. 89

(5) *Ally Bakari and Pili Bakari v. Republic* [1992] T.L.R. 10

(6) *Michael Anufrejczk v. Republic* (1955) 39 Criminal Appeal R. 1

(7) *Mswahili Mlagala v. Republic* [1977] LRT n. 25

(8) *Davie v. Edinburgh Magistrates* [1953] Sc. 43

(9) *Daubert v. Marrel Dow Pharmaceuticals Inc.* 509 US 579 (1993)

(10) *United States of America v. Roy Van Wyk* US District Court for the District of New Jersey, Cr 99-2717, (2000)

(11) *Gatheru s/o Njagwara v. Republic* (1954) 21 E.A.C.A. 384

(12) *CD de Souza v. B.R. Sharma* [1953] K.L.R.

(13) *Autospin (Oil Seeds) Ltd. v. Beehive Spinning* [1955] RPC 683

(14) *National Justice Compania Naviera SA v. Prudential Assurance Co. Ltd* [1993] 2 Lloyds Rep. 68

(15) *Joy v. Phillips Mills Co.* Ltd [1916] 1 K.B. 849

Statutory provisions referred to:

(1) Evidence Act section 34B

(2) Criminal Procedure Act 1985 section 291(1)

Mrs. Sumari and *Mr Maisara* for the Republic

Messrs Mawalla, Bomani, Mirambo and *Mawalla Jr.* for the accused

JUDGMENT

(Dated 11 May 2001)

Rutakangwa, J.: The accused Kerstin w/o Clifton Cameron, stands charged with the offence of murder contrary to section 196 of the Penal Code Chapter 16, Volume 1 of the Laws of Tanzania. The indictment is to the effect that on or about the 4 July 1998 at Njiro area within the Municipality (District) and Region of Arusha she murdered one Clifton Donald Cameron. She did deny the charge at the commencement of trial.

To prove the case against the accused, the prosecution led by Mrs A Sumari, learned Principal State Attorney assisted by Mr Y Masara, learned State Attorney, called fifteen (15) witnesses. Of these witnesses one was a ballistic expert and another was a forensic science expert. The prosecution also relied on statements tendered in evidence under section 34B of the Evidence Act 1967 (the Evidence Act) and section 291(1) of the Criminal Procedure Act. 1985 (the Civil Procedure Act 1985) of people who could not testify either because they are dead, or their current whereabouts are unknown and/or their attendance could not be procured without undue delay. A number of Exhibits, both documentary and real objects were also tendered in evidence. The defence being led by learned Senior Counsel Mr J Mawalla and Mr M Bomani and assisted by learned Counsel Mr W. Mirambo and Mr N Mawalla, did call six witnesses, one of whom was the Accused and another was a forensic science expert, to prove the innocence of the Accused. The defence contention has all along been that the deceased committed suicide.

I must confess outright that the facts upon which the prosecution case is based do not admit of easy abridgement. However, leaving the details aside at this juncture the prosecution case can be conveniently summarized as follows. Clifton Donald (Don) Cameron (or Cliff or the deceased hereinafter) was the second child born to PW12 Donald "Don" Ross Cameron and PW13 Lynette Margaret Cameron of Drurry, New Zealand. He was born in or about 1958. He was the elder brother of PW14 Lachlin D. Cameron. Cliff was described by his family and some of his friends to have been an honest, adventurous and hard working man, who enjoyed his recreation time and as such drank regularly but moderately, especially a whisky, owned and loved guns and was an independent spirit. He also had a strong aversion to people who committed suicide.

True to these dispositions of his, Cliff decided in the late 1980s to leave his father, mother, relations and motherland to travel abroad. He first went to the United States of America (the US) where he

trained and qualified as a pilot. On obtaining his flying licence he found his way into Arusha, Tanzania.

During the course of his stay in Tanzania he set up his own business. These were an air charter company known as Fleet Air Ltd, a farm, known as Longati Farm Ltd and a gold mining company, Black Label Mining Company. Fleet Air was based in Arusha, the 2100-acre farm was in Maasailand (Simanjiro district) and the mining company was based in Geita District, Mwanza region. He also had a wide circle of friends and acquaintances both in the business and social communities. These included Mr and Mrs. Danny McCallum, PW9 Beresford John Bale of Snake Park, PW6 Francesco Pierre Ninna, PW7 Dr Allan Joyce, DW3 Evans Hill, DW4 Ekko Costerhuis and DW5 Gary Hoops. But the most important was Kerstin d/o Gerald Loessen who had just divorced her first husband Raoul Ramoni.

After the collapse of his first marriage, Cliff began to cohabit with Kerstin who is the accused in this case. During the course of this cohabitation they begot their first child (a son) together and named him Tell, in December 1993. They eventually got married in June, 1994. But this marriage did not have the full blessings of Cliff's parents. PW12 had specifically advised both of them against the said marriage. This was because PW12 had found out on one occasion that when Kerstin "got upset she really went over the top". Following their marriage they were blessed with a second son, Lachlin, in March, 1997.

It is said that marriage is not a perpetual honeymoon. Mr and Mrs Cliff Cameron's marriage proved to be no exception to this conventional wisdom. Their marriage was described by PW12, PW14 and PW9 to have been a very "bumpy" or an "unhappy" one. Even PW14 who had never been to Tanzania and seen Cliff and Kerstin together testified that he could "see this on videos sent" to them in New Zealand.

As stated above one of the very close friends to the Cliff Cameron was the family of Mr and Mrs Dan McCallum.

The wife of Dan McCallum is the 49 year old PW8 Joanna McCallum. These were very intimate families. The deceased would spend a lot of his time at the McCallum's home. In the process Cliff and PW8 Joanna, "luckily" (as PW8 put it unequivocally), struck an amorous relationship. This began towards the end of 1996. People got wind of this relationship and began to accuse Cliff and PW8 of being intimate. The rumour mill fast spread it until it-reached both Danny McCallum and Kerstin. When asked by both her husband and the accused, PW8 dismissed the rumour and, as she admitted in her evidence, she did actually lie to both of them, who believed her until Cliff died.

In January 1998 because of a quarrel over this relationship, Cliff deserted his wife and children and went to live alone at Ngaramtoni, Arumeru. Though voluntarily separated Cliff would intermittently visit his family and even spend nights there enjoying his full conjugal rights with Kerstin. All the same the relationship with PW8 continued to bloom and the two even planned to marry. In February1998 PW8 left Arusha for England. In June 1998 Cliff left Arusha for Austria on a business trip. Of the four or so days Cliff spent in Europe three were spent in England (sixth to ninth) with PW8. Upon his return, Cliff told PW9 that:

> Should McCallum divorce his wife he should marry her.
>
> This was a week or so before his death.

It was the prosecution case that the financial position of Cliff's businesses was not that rosy. Although he was full of optimism about the future of his businesses (per PW12 and PW14) before his death he was facing cash flow problems. This forced him to borrow money from his family and friends. The known ones were his father PW12 (USD 230 000 but interest free), his father-in-law (USD 204 000), DW5 Gary Hoops (USD150 000 at a rate of interest of 10% which by the time of his death had accumulated to USD 250 000), PW9 (amount unspecified), and one Robothem from whom he had wet leased a Cessna 206 aircraft for his air charter company (amount unspecified).

When pressure on his cash flow mounted (per PW12) he had to make arrangements with his father to negotiate a loan of USD 500 000 for him in New Zealand. He also requested his father to guarantee the loan. This was in June 1998. PW12 testified that he was successful but by the time Cliff met his death the money was yet be sent to him. Neither is it evident if he (Cliff) had been informed of this. Cliff had to urgently look for this long term loan as his 1998 farm harvest was going to be poor and he had committed himself to buying an aircraft for USD 80 000.

According to the prosecution the 4 July 1998 was a normal day for Cliff. At about 5:00pm he had radio-called PW9 informing him that he would be joining him at Snake Park, a few kilometers out of Arusha town, to watch a rugby match which was due to start at 6:30pm. According to PW9, Cliff was "in a jovial mood" when the two talked over the radio call, because South Africa was playing England. All the same Cliff never joined him for unknown reasons. Instead he ended up at the Mezza Lunna, at about the same time, where his wife (accused) was putting up an art gallery which was due for opening. Cliff was pleased with the accomplishment of his wife and they ended up having drinks together. Thereafter he left for the Outpost Bar where he was later joined by the accused and had drinks.

The accused subsequently left with Tell for home. Later that night the deceased, who was still out of the Outpost, decided to go to the accused's home to have supper. He arrived there at about 9:00pm with a full bottle of whisky. The two had supper together and while consuming the whisky they discussed various issues. Then the accused was the first to go to the bedroom to bed down. The deceased followed her later. While the two were alone and together in the bedroom, Cliff met his death from a gunshot wound. It was around mid-night.

Following the death of Cliff in her house, the Accused drove to the Discovery Club in search of friends to help her. The club is in the area where PW1 number E 6627 Police Constable Moses, PW3 number C9992 Corporal Mohamed and Corporal Richard were on patrol duties. They saw the accused fly past them driving like the proverbial bat. The

car then braked abruptly at and drew up outside the Club. The accused jumped out of it quickly and entered the Club. All this perturbed the three police officers. Out of curiosity they decided to go at the Club and find out what was wrong.

The officers found the accused with one white man who was subsequently identified as one David Schaefer, outside the Club. The two were talking in English. As the good officers could not make out what the accused was telling Schaefer in English, they decided to ask the latter, who appeared to be conversant with Kiswahili, what had befell the lady (the accused). The only thing he told them was that "there was a big problem" at her home. He never elaborated. According to these officers the accused was in a state of shock but not in panic. When Schaefer was pressed by the officers to tell them the nature of that "big problem" he could not divulge it. Instead he beseeched them to accompany them to the home of the accused at Njiro to "see" for the themselves. As the good shepherds we read about in the Holy Bible did on the day of the Nativity, the three officers abandoned their duties and hastened to Njiro to "see for themselves".

On arrival at the accused's house the gate was closed. They tooted the horn of the car. The gate was then opened by the watchman who was identified as John Robert. The car entered the premises. None of them entered the house. The officers first made a general inspection of the premises from outside. While so inspecting, through a bedroom window, they saw a white man with only an underwear on, lying across a bed but at the bottom of it. The head of that man was directed toward the eastern wall of the bedroom. His both hands were lying on his chest, but was clutching a pistol in his left hand while blood was coming out on his head. They quickly opined that the man was dead. They decided to formally report the matter and have the CID take over. PW1 left with Mr D Schaefer for the Arusha central police station. They reported the matter to the Inspector-on-Duty, Ngoromera. PW10 number 8881 PC. Tumaini took down the statement of D Schaefer which was tendered in evidence as Exhibit P12 under section 34B the Evidence Act 1967 because the current whereabout of Schaefer,

who was only visiting the country then temporarily, are unknown. Thereafter a squad of police officers and investigators were dispatched to the scene.

These officers included PW2 Staff Sergeant Fulgence who has specialized in crime scene photographing, PW4 Assistant Inspector of Police Peter Hiiti, Inspector Ngoromero and Detective Staff Sergeant Mathias. By the time the officers arrived at the scene, the doctor of the deceased's family, PW7 Dr Allan Joyoe as well as the deceased's friends, PW6 Ninna and DW Ekko were there already. Indeed, PW7 Dr Allan had already certified Cliff to be dead.

The police officers were led to the bedroom where the body of Cliff was. Among the people who went in with them was PW7. PW2 s/sgt. Fulgence began photographing the scene, including the deceased lying on the bed gripping the pistol and in other instances without the pistol in his hand. PW2 took many photographs of the scene but only 13 came out well and these were tendered in evidence as Exhibit Pl collectively, but numbered 1 to 13 for ease of reference and proper identification. During the course of photographing the pistol was taken from the hand of the deceased twice by PW4 Assistant Inspector Hiiti.

According to PW4 when he checked the pistol, which he tendered in evidence as Exhibit P2, he found it in "a safety position". He then inspected its magazine in which he found eight (8) live bullets. In the same bedroom was recovered one spent cartridge which was later satisfactorily proved by the ballistic expert (PW11) to have been fired from the pistol, Exhibit P2. The same was tendered in evidence as Exhibit P3. While the process of photographing was going on, PW2 had to wrap up the head of the deceased to cover a fresh wound on his head so as to avoid soiling his trousers with blood. As a result pictures numbers 5, 6, 7, 8 and 9 of Exhibit Pl. (or Exhibits P l 5, 6, 7, 8 and 9) were taken while the head of the deceased was so covered. After the photographing, PW1, PW3, and PW6, among others, were called into the room to remove the body to the police land rover outside and take it to Mount Meru Government Hospital. The body

was wrapped in the bed linen it was lying on, which together with the blanket and mattress were taken by the police. Before leaving the scene the accused gave the fire arm licence (number 697790) in respect of Exhibit P2 which was in the name of the deceased to the police officers and this was tendered in evidence as Exhibit P4. The officers also gave blanket permission for the room to be cleaned up as they had completed their work therein. The cleaning was done that night, before the children woke up, by the late Maria Joseph with the help of other ladies. The bedroom was washed clear of all the blood therein.

At the hospital a postmortem examination was performed on the body of the deceased. This was carried out on the morning of 5 July 1998 by PW5 Dr Wasia Hussein Mosha of that hospital in the presence of PW7 and Detective section Sgt. Mathias PW5 opined that the cause of death was suicide by gunshot. PW5 detected only one wound on the head of deceased which was on the frontal and parietal junction. A need then arose to suture the said wound as it was still bleeding. There were no stitches at the hospital. The body was then taken to the hospital of PW7 (Trinity Medical Diagnostic Clinic Arusha) where he personally did the job. After the suturing, the body was taken by DW4 Ekko for washing and preservation in a cold facility before being flown to New Zealand for burial.

At 7:30am (local time) Kerstin rang PW14 Lachlin in New Zealand and imparted to him the terrible and sad news. She also requested PW14 to go and inform Cliff's parents. This was about 5:20pm in New Zealand. PW14 quickly drove to his parents' home to break the bad tidings. Then PW12 Don Cameron called the Accused to inquire on the circumstances leading to Cliff's death. He got her and she talked to him and PW13 Lynette (although briefly) as well. She also talked again with PW14 they detected inconsistencies in the accused's versions given to them separately. The following day Cliff's sister got PW7 over the phone. He told her that Cliff had shot himself through the palate. The family could not stomach this. It was anathema to them because "that was uncharacteristic of Cliff"

as he was "not a candidate for suicide." They decided to have a second opinion. As second autopsy was organized by them in Nairobi through Dr Luffner who was known to their accountant, Mr Sommervile. Dr Luffner made arrangements with Professor Aggrey Nyong'o, a pathologist at the Nairobi Hospital to conduct a visual post mortem examination, which he did. He then advised them to have a thorough and full investigation carried out soonest in New Zealand. The body of Cliff arrived in New Zealand (on 10 July 1998). It was taken straight to Walikato Hospital.

It is the prosecution case that a third, but thorough autopsy was conducted at the said hospital by one Dr David Bruton, a specialist pathologist on 11 July 1998. The same was carried out with the consent of Kerstin. The said Dr Bruton advised them that he found the body of Cliff with two gunshot wounds on the head. One of the wounds was on the forehead which he opined was the entry wound and another was on the occipital area which he opined was the exist wound. Dr Bruton never testified. His statement made on 20 April 2000 and witnessed by Detective Craig P Johnson of New Zealand Police, Hamilton, was tendered in evidence as Exhibit P15 under section 291 of the Criminal Procedure Act 1985. Some coloured photographs, 12 in all, were taken at the time of this autopsy. These were tendered in evidence as Exhibit P16 collectively but marked A-L for easy reference. Two X-ray films of the skull were also tendered as Exhibit P17 collectively. Cliff was buried on 14 July1998. Among those who attended the funeral apart from his wife and family members, were the accused's parents and PW8 who had flown to New Zealand from England on the express permission of the Accused. The Accused left New Zealand for Arusha on 15 July 1998 while PW8 left for England on 17 July 1998 about the same time when PW12 and PW14 left New Zealand for Arusha. Sommerville also came to Arusha.

The purpose of the Tanzania visit by PW12 and PW14 and the accountant was to go through all the books and documents appertaining to Cliff's entire businesses in order to assess their financial standing. They also intended to "assist Kerstin and the children make decisions

for future". They also visited the scene of the incident at least twice. The second visit was made on 12 August 1998. On this latter date they were in the company of one Peter Ward. Mr Ward is a retired New Zealand Police inspector. He had been hired by Mr Stuart Morgan, himself a private investigator in New Zealand. Mr Morgan had been hired by Cameron family to investigate the circumstances leading to the death of Cliff in view of the inconsistencies from Tanzania on how he had died.

On both visits they detected a bullet hole on the eastern stall of the bedroom. They also detected "blood spatter" on the western wall. By that time the Accused had already vacated the house. On 12 August 1998 pictures of the bedroom were taken showing the hole and blood on the walls, using a video camera and an ordinary camera. These were never produced at trial.

In January 2000, Mr Morgan requested Mr Hayden Baldwin, a retired master sergeant of Illinois State Police in the US and a forensic science expert specializing in crime scene, to examine the death of Cliff. PW15 Baldwin is now a self employed consulting and instructor in Chicago in this field. In so examining this death, PW15 was sent by private investigators from New Zealand documents and photographs in relation to the scene of the incident, an autopsy report, Exhibit P1, 8 and 13 and Exhibit P16, videos, sketches, diagrams and police reports. After scrutinizing them all, he reached an opinion that the deceased was shot by another person while he was seated on the western side of the bed and was then moved to the position depicted in Exhibit P1, 13, the pistol placed in his hand in order to simulate a suicide. Of all the articles he allegedly used in his forensic investigations PW15 only identified Exhibits P1, 18 and 13 and Exhibit P16. The rest were not produced let alone being tendered in evidence.

On 13 March 2000 PW11 Assistant Inspector of Police Enos Msangwale received Exhibit P2, P3, P4 and eight live bullets which were found in Exhibit P2 on 5 July 1998. He test fired three of the 8 bullets. On subjecting the three spent cartridges as well as Exhibit P3 to both visual and laboratory tests he was satisfied that they were

identical. He tendered the three test-fired cartridges as Exhibit P8 collectively and the five bullets as Exhibit P7 collectively. He also photographed Exhibit P2 (the pistol) and Exhibit P8 and mounted the photographs in a folder which he tendered in evidence as Exhibit P9. PW11 also photographed Exhibit P2 showing the positions of the firing hammer when it is both in a cocked and decocked position. Of more significance in this case is the scanned picture of the deceased Cliff with the pistol in his left hand. All these pictures were mounted in another folder which was tendered in evidence as Exhibit P10.

On 4 April 2000 PW11 visited the scene of the incident. He was in the company of police investigators who were "re-investigating" the case on the instructions of the Director of Criminal Investigations. On this day PW2 is alleged to have taken more photographs at the scene in the presence of PW11. The accused was also present. The prosecution case (through PW11 only) is that the accused showed them where their bed was located in the room on 5 July 98 where the deceased was seated on the bed before the fatal shot and where the deceased fell on the bed after the fatal shot. From the directions and instructions of the accused he "reconstructed" the scene. He drew sketch plans which he subsequently mounted in another folder and he tendered in evidence as Exhibit P6. These sketches are showing.

(a) the bedroom where the death took place,

(b) how Cliff was seen lying on the bed after his death,

(c) how Cliff could have been seated on the bed prior to the gunshot wound through his head.

(d) how the majority of the people ought to sit on a bed prior to gunshot in such positions on their own head, and

(e) how a deceased should be found lying on a bed as a result of self shooting while seated on the edge of a bed.

It was the conclusion of PW11 that being guided the "posture Cliff was found lying on the bed, it could have been practically difficult for anyone to get seated, his legs stretched on the bed and then make

a self-shooting on his forehead." To him it was easier for such person to sit on the edge of a bed, his legs leaning on the floor and then make a self-shooting through the forehead with the left hand holding the barrel of the pistol and the thumb of the right hand pressing the trigger. He therefore concluded that the "deceased, who could not have retained control of Exhibit P2 in his hand as he struggled against death was seated on the edge of the bed "facing in antitheses to the wall while he was shot to death". He tendered his report on the examinations of the pistol, bullets and spent cartridges and inspection of the bedroom, in evidence as Exhibit P11. The opinions of PW11 and PW15 led to the arrest of the Accused who, admittedly, was alone with Cliff when the death occurred and her indictment for murder.

The defence is radically different. According to the defence the deceased came to Tanzania in the late 1980s. His first employment was with M/S Tanzania Game Trackers Safaris Ltd based in Arusha. By then DW3 Evans Arnold Hill was the company's General Manager and Director. The deceased was employed as a pilot. Both DW3 and Cliff shared one house together with two other senior company officials. During their stay together DW 3 noted that Cliff Exhibited impulsive tendencies and displayed the characteristics of a "split personality". He so characterized him because Cliff, when sober, was a kind, generous and helpful person but when drunk he became violent, aggressive and hot tempered. His impulsive disposition led him easily to fight his own guests even when they were dining at home or other invitees while at parties and or even smash and break his own properties such telephones, tea cups, etc. at his home and office. He also used to fire aimlessly at animals objects and/or in the air. He would even shoot at electric cables. Though not using the phrase "split personality" DW 3 has been born out on this by DW2 Regina Luena (Cliff's Secretary for 10 months at fleet Air) DW4 Ekko (Cliff's friend and business creditor) and DW5 Gary Frederick Hoors. DW 5 was not a mere friend. He was an intimate family friend. He is a farmer in Simanjiro District and both Cliff and himself exchanged visits to each others

homes regularly. Moreover, both Cliff and Kerstin were bestman and bridesmaid at the wedding of DW61.

On one of those occasions when DW 5 spent a night at Cliff's house he witnessed one such bizarre behaviour. They had their dinner. The Accused left them and went to bed. Then Cliff after drinking heavily became "suddenly angry over nothing." He then collected everything breakable in the dining and living rooms which he could lay his hands on. These included a TV set, Video recorder, an expensive Sony System, original works of art, paintings, bronze sculptors of animals, dinnerware sets, glasses, chairs, etc. and broke them. He then took the broken pieces outside and piled them together. He poured fuel on the pile, lit a fire and then went to bed leaving them burning. On 22 June 1998, DW3 and his wife were woken up by the barking of the dogs outside. He opened a window to find out what was happening. He was greeted by a voice speaking in a New Zealand accent thus:

> Excuse me but Mr McCallum and Mr Cliff Cameron, send you their compliments and ask if they could borrow a bottle of whisky.

It was about 1 am. He sent them away without the whisky. However, fifteen minutes later rifle shots were heard with bullets passing close to DW3's house. In all five bullets were fired emanating from the deceased's house who by then was a neighbour of DW3 at Ngaramtoni. These were not isolated incidents. Not less than seven more such incidents of eccentric behaviour and violent conduct when drunk, on the part of Cliff have been cited by the defence. It was the defence case that Cliff was heavily overburdened with debts. Apart from the earlier mentioned ones by 4 July 1998 Cliff's farm was indebted to DW3 Ekko's seed company, Pop Viend, over TZS. 1 million in farming credit facilities ever extended by TZS. 40 million by DW4.

It was, therefore, the defence case that towards the end of his life Cliff had become, due to the pressures of life, a frustrated and totally dejected personality who had "reached a stage of despair and general inability to cope with life."

In answering the murder change against her, the Accused testified that she first met Cliff in 1990 when her first marriage was breaking down. After co-habiting together from 1991 they finally got married in 1995. By then she was in possession of a commercial flying pilot licence. She had so qualified in the US with this licence she flew commercially for Fleet Air but was not involved in the handling of its affairs. In 1998 she got a severe back problem and was operated on. This put her out of the flying business for quite sometime.

The accused further maintained in her evidence that Fleet Air was doing well during the early years of its inception but towards 1998 the business became smaller. This, she said, was due to loss of customers who went to other companies, loss of plane capacity and Cliff became more interested in the farming business. The loss of plane capacity came about following the sale, by Cliff, or one of three twin-engine aircrafts they had, in order to generate money for the farm and the crashing and burning of a smaller plane in Tunduru.

In 1998 a second twin engine craft which was owned by an American, with whom Cliff had co-shared the company, left. As a result by July 1998, Fleet Air had one twin-engine craft, two 206 single-engine air crafts under wet lease and a small cessna 182 (4-seater) which belonged to the father of the Accused. One of the last customers was Robin Hart Safaris. According to DW3 who was its Managing Director and Board, member from 1993 to 1999 when he retired, it was one of the largest hunting companies in the country. From July, 1996 to March 1997 Robin Hart Safaris paid Fleet Air USD187 517, while it paid USD. 307, 087 for the period of July, 1997 to March 1998 when they used exclusively Fleet Air, for chartering fleet air crafts. However, in February, 1998 the Board of Directors of Robin Hart Safaris decided to cut off this business relationship because of safety reasons. This came to pass as on one occasion one of Robin Harts clients smelt alcohol on Cliff's breath while she was flying aeroplanes and it was becoming obvious to them that Fleet Air was not having sufficient resources to maintain its crafts and he explained

why. So, the Accused further testified, by the time Cliff died neither Fleet Air nor the farms were doing well.

After their separation, the accused who is a keen artist and enjoys painting decided to start an art gallery in Arusha town. She leased a room at the Mezza Luna and the Gallery was due for inauguration on Monday 6 July 1998. The opening was to be graced by her father, an artist from Namibia and David Schaefer, himself a sculptor in wildlife and bronzes who was to have Exhibited his own pieces.

On 4 July 1998 the Accused spent the day at Mezza Luna preparing for the said inauguration. During the course of the day she called Fleet Air Offices inquiring on the arrangements of collecting her father from Nairobi the following day. The call was received by DW2 Regina who put her through to the deceased. The deceased assured her that he would personally fly to Nairobi in the morning to pick up the Accused's father. He then informed her that he would briefly call at Mezza Luna later to have a look before going to meet some people with whom he had an appointment.

Cliff arrived at Mezza Luna with Schaefer at around 6:00pm. He inspected the gallery and was pleased. He offered them a whisky "to celebrate" after which he left for the Outpost where he said he was going to meet his guests. He left with Tell, leaving the Accused and Schaefer behind. He however requested the Accused to meet him at the Outpost, later. The Accused and Schaefer jointed Cliff later there. At the Outpost they found Cliff at the bar with a glass full of whisky. The guests had reportedly not yet arrived. The deceased offered them another drink. The Accused declined the offer as both Tell and herself were tired and wanted to get home soonest. The deceased, Cliff had no objection. So she left with Tell for home were she found John Robert and their housemaid Maria Joseph. Then the Accused was very specific that all the while Cliff was in a jovial mood.

At about 8:30pm Cliff called the Accused. He informed her that his guests were yet to arrive and he was not going to wait any longer.

He promised her to be at her home in no time. Before the Accused left the Outpost Cliff had told her that after meeting his guests he would have preferred to have something to eat at her home if that suited her. The Accused had had no objection.

Cliff arrived at the home of the Accused at around 9:00pm with his full bottle of whisky. He spent some time with the children while the Accused was busy in the kitchen. The deceased then took the children to bed. They then had supper together and thereafter settled on the dining table for a drink together. The Accused had two singles of whisky while Cliff was consuming the whisky continuously with water. The Accused did not drink much. She dreaded a headache the following day when she had a lot of work to do. All the same they discussed amicably many issues and in fact Cliff helped her on the accounts she was preparing for her father. At one stage Cliff suggested to her that the next day after the arrival of her father they should fly out to the farm to have a nice family day together.

The accused responded by telling Cliff that that would have suited her father and the children but due to her heavy schedule she would not be able to join them. Cliff then talked about buying a boat and keeping it at Mwanza where in future he would take his children for fishing. Cliff kept saying that there was never going to be a divorce between them but they only needed time to sort things out. During the course of their conversation they also talked about the mounting big telephone bills which were necessitated by calls to PW8 in England. Cliff assured her that those were purely business calls for PW8 Joanna was working on plans to obtain a loan for him as the plans of his father (PW12) in New Zealand had fallen through.

At one time during the discussions she looked at her watch. It was about midnight. She told Cliff that she had to retire for the night. She proceeded to the bedroom leaving Cliff at the dining table. She at first went to the bathroom which was adjoining the bedroom. She brushed her teeth, removed her contact lenses and put on her glasses, went to the bedroom, undressed and went to bed. Cliff joined her in the bedroom some ten minutes thereafter.

The deceased used to keep his rifle at the Accused's house for their protection. However, a few weeks back he had taken that rifle for hunting and had left Exhibit P2 instead, particularly after he had shot and injured Mr McCallum's finger. During the course of that evening, the Accused testified, Cliff had asked her if the pistol was in the cupboard where he had left it. The Accused had assured him that it was safely there as she had not touched it.

When Cliff entered the bedroom, he asked the Accused: "is that thing in its safe place?" The Accused knew he was referring to the pistol (Exhibit P2). She assured him that it was. Cliff then went into the bathroom and returned shortly later to the bedroom. He undressed and joined the Accused on the bed. He then demanded sex. She refused because she was tired. The Accused was emphatic that although they had separated they had been having sex together wherever Cliff slept at her home and that this relationship resumed as early as February 1998. (It should be recalled that this was the month PW8 left for England). When Cliff was denied sex he jumped out of bed and said:

> But I don't know what I am doing here anyway.

The accused told him:

> Well I don't know what you are doing here either because I didn't specifically ask you to come here tonight.

Cliff felt annoyed. He jumped on the bed and sat on top of her. He lifted up his fist as if to strike her. He then told her that she was still his wife and had every right to be there. She never resisted but assured him that if he did hit her, she certainly would not hide the bruises from her father. At that, Cliff recoiled. He got off the bed. The Accused testified that Cliff used to hit her in the past especially when drank but would always never recall anything the following day pleading drunkenness as an excuse.

When Cliff got off the bed, the Accused rolled over onto her stomach with her head on the pillow and her hands over her head. She began to cry because the evening had been a harmonious one.

She had expected Cliff to pick up his clothes and leave as he was used to do in the past. Then she herd Cliff cry out "No, no, no".

This was followed by the sentence.

Tell my father I have tried.

Almost immediately a gun went off. She lifted herself up from the pillow asking him why he was shooting in the house contrary to his earlier promise after he had shot through the window in the living room. When she turned around, however, she found him lying across the bottom of the bed. She stared at him and saw blood dripping to the back of his head and then on to floor under the bed. She went off the side of the bed and went across the room. As she could not see properly she tried to get her glasses from under the bed where she always kept them on going to bed. Not knowing what to do she got dressed. Intuitively she decided to look for help. Cliff was lying on his back his eyes wide open gripping a pistol by the barrel in his left hand and there seemed to be no life in them (at this point in her testimony, the Accused began to weep bitterly). She then rushed out of the room. But on recalling that she would be coming back with people she decided to put underwear on him by pulling it up his legs as he was stark naked. She then rushed outside and reached for the car. She called John Robert and told him that Cliff had got a gun accident and that she was going to the police. She instructed him not to move from the door. She then left.

At first she wanted to tell Ekko. She drove to their home which is opposite Mezza Luna. Their car was there. She hooted the horn of her car. Unfortunately, there was no response as nobody came out. She then recalled that David Schaefer had told her that evening that he would be going to the Discovery Club. She then decided to go to that club. Fortunately, Schaefer was there. She told him that Cliff had shot himself and unconsciously she said that she wanted Ekko. This was heard by one Heklen Angelides. The Accused and Schaefer went outside. As she was telling Schaefer what had happened

PW1 and PW3 reached them and they all drove to her home. Hellen also went to inform Ekko.

On reaching the house she showed Ekko, Schaefer and the officers, the bedroom. The two entered the bedroom. She never accompanied them. Then Schaefer left with one of the policemen for the police station. She then called PW6 Ninna to inform what had taken place. PW6 rushed to her home. Later DW 4 Ekko and PW6 Ninna went to tell and collect PW7 Dr Allan. PW7 also went to the Accused's house. PW7 went into the bedroom to see the body and thereafter tried to calm the Accused down. Then the police investigators arrived.

The accused testified that she thought it her personal obligation to inform Cliff's relatives personally. She could not do so while she was in a state of shock and while crying. She did ring PW14 at 7:30hrs (local time here) after she had fully composed herself and was able to speak. She broke the news and requested him to inform her in-laws. She spoke later to them and they agreed that the body be flown to New Zealand for burial. On arrival in New Zealand she readily consented to another autopsy being carried out before Cliff was buried. The Accused unequivocally denied having murdered her husband and re-arranging the scene to simulate a suicide.

This is a murder case. The burden is on the prosecution to prove beyond reasonable doubt that the Accused murdered Clifton Donald Cameron. It is not upon her to prove her innocence or even that Cliff committed suicide. It is the law of our land that in cases of this nature the accused can only be convicted of the offence on the basis of the strength of the prosecution case and not on the basis of the weakness of the defence case. Even suspicions, however ingenous or strong can never be a basis of a criminal conviction or a substitute for proof beyond reasonable doubt. This is equally true even where an accused person is proved to have told lies either in Court or prior to that in connection with the facts in issue. This is because there are many circumstances which can lead an accused to tell lies even when she/he is innocent. When an accused, therefore, is charged

with an offence his/her guilt is not established or proved if the explanation he/she offers is one which is reasonable and might possibly be true even if the Court is not convinced that it is in fact true. This is a universally accepted principle of law which needs no authority to prop it up.

Of course it has been submitted by the Republic in this case that "false", incredible or contradictory statements given by way of explanation, of disproved, became of substractive inculpatory character. Citing *August Mahyo v. Republic* (1). I entirely agree with this submission. Nevertheless I am also aware that the important fact to glean from this holding is that the Court never held that they become proof of guilt beyond reasonable doubt. They only tend to implicate or incriminate him/her or subject him or her to suspicion and may cause cases needing corroboration be successfully used as such. That is why the same Court of Appeal rightly held in *Elizabeth Shomari v. Republic* (2) that:

> Even if for the sake of argument the appellant had told lies, that alone could not be a basis of a conviction

In this case, therefore, the prosecution has to prove to the required standard not only that Cliff is dead, but also that he was killed by the Accused and the killing was done with malice aforethought. It is not disputed here that the death of Cliff was not a natural one. It was a violent one. The cause of death is not disputed. It was due to a gunshot wound through his head, although as aptly pointed out by the gentlemen assessors, no single witness testified to have witnessed the shooting, not even the Accused who was with him in the room. On this basis and on the totality of the evidence before me, if I reject the explanation of the Accused and ruling out an accident, I will not hesitate to hold that Cliff was murdered. Who then killed Cliff? The evidence on record does not give me many options. It points unerringly to only two individuals. Cliff was killed either by Cliff himself or by the Accused.

Although there is no direct evidence going to incriminate the Accused with alleged murder, the Republic has urged me to hold that it was the Accused who killed Cliff with malice aforethought.

It has relied on circumstantial evidence. Admittedly, the entire prosecution is predicated on such evidence and as it was once accurately observed by Sir Udo Udoma, C. J. in *Republic v. Sabudin Merali and Umedali Merali*, (3).

> ... it is no derogation to say that it was so, for it has been said that circumstantial evidence is very often the best evidence. It is evidence of surrounding circumstances which by undersigned coincidence is capable of providing a proposition with the accuracy of mathematics.

Expressing identical sentiments over a century before in 1850, Henry D Thoroeau, the American transcendentalist best known for his antimaterialist philosophy had this to say:

> Some circumstantial evidence is very strong as when you find a trout in the milk.

These dicta are as true in this third millennium as they were in the second millennium and command the allegiance and respect of us all.

All the same, as aptly submitted by counsel for the defence, to ground a conviction on circumstantial evidence:

(a) that evidence must be incapable of more than one interpretation: *Hassan Fadhil v. Republic* (4):

(b) in a case where the evidence against the accused is wholly or exclusively circumstantial the facts from which an inferences of guilt or adverse to the Accused sought to be drawn must be proved beyond reasonable doubt and must clearly be connected with the facts from which the inference is to be drawn or inferred: *Ally Bakari and Pili Bakari v. Republic* (5) and

(c) that evidence should be cogent and compelling as to convince a jury, judge or Court that upon no rational hypothesis other than murder

can the facts be accounted for: *Michael Anufrejczk v. Republic* (6) and *Mswahili Mulagala v. Republic* (7).

I shall inevitably be guided by these now legendary principles of law in this case which is exclusively based on circumstancial evidence.

The Republic has urged me to reject outright the defence story and find her guilty of the murder of Cliff on the basis of these actual and/or presumed facts which to it when taken together will constitute cogent and compelling circumstancial evidence incapable of other rational hypothesis than that of murder. These, counsel for the Republic have enumerated to be:

(a) The accused's contradictory and discredited versions of events surrounding Cliff's death;

(b) The "I don't know syndrome" allegedly Exhibited by the Accused in her evidence;

(c) The bruised eye;

(d) The position of the body of the deceased on the bed;

(e) That the body had two wounds on the head;

(f) The decocked pistol in the left hand of the deceased,

(g) The presence and absence of blood spatter on more parts only of the deceased body.

(h) The absence of gunpowder residue on the deceased's right hand

(i) The lack of injuries on the palms and fingers of the left hand and

(j) The continued gripping of the pistol after the fatal shot.

The law as already shown above, demands of the prosecution to prove beyond reasonable doubts each and every fact above. The prosecution also bears the undeletable burden of proving to that standard that each of these facts even if proved either singly or cumulatively or conjunctively leads or lead to no reasonable hypothesis other than the guilt of the accused. Has the prosecution discharged this burden? I shall provide an answer to this question on each and every fact

relied on separately, although not necessarily in the same order as presented above.

However, before attempting to prove these answers, it will be eminently proper and indeed obligatory on my part to first highlight on the real condition of the scene of the incident as found by the first eye witnesses for the prosecution on 5 July 1998. As rightly commented by PW11 Msangawale, "the fatal scene was indoors", that is, it was a bedroom. These witnesses as already shown herein were PW1 PC Moses, PW2 S/sgt Fulgence, PW3 cpl. Mohamed, PW4 Asst. Inspector Hiiti, PW6 Ninna and PW7 Dr Allan Joyce. They were all of one accord on these undisputed facts which have an overriding importance in the determination of the accuracies and/or truthfulness of the opinions of the two experts called by the prosecution and eventual decision on the ultimate issue. When these witnesses entered the fatal room on the night of 5 July 1998 they perceived these facts:

(a) the body of Cliff was lying across the bed at the bottom, with only one wound which was visible externally on the forehead or crown as they put it but technically on the frontal and parietal junction of the head from which blood and brain tissues were issuing;

(b) there was blood issuing or oozing out of the mouth and nose of the deceased;

(c) there was no blood or any other part of the deceased's body;

(d) there was only one pool of blood on the bed under the head of the deceased, which had come out of the said wound;

(e) there was only one pool of blood on the floor directly under the bed where the head of the deceased lay which had come from the pool of blood referred to in (d) above and

(f) there were a few spots of blood on the eastern wall of the bedroom above the bed near where the head was situate and/on other walls of the room.

The evidence of DW4 Ekko is similarly to that effect.

These facts then lead me to this unavoidable question: How many gunshot wounds did Cliff have which were visible externally as his body left Tanzania for burial in New Zealand via Nairobi, Kenya? This question becomes singularly distinctive because of the naked fact, that the two prosecution experts advanced their theories and rested their opinions and/or conclusions on the untested assumed facts that Cliff had two wounds on his head, an entry wound on the forehead and an exit wound on the occipital area. I will not be prepared to buy their theories unless and until I am convinced beyond reasonable doubt, but not beyond any shadows of doubt, that that was the case.

This germane question was waved aside by both sides in this case without the slightest explanation. I can understand why the prosecution did so because trying to provide an answer to this question would have been tantamount to a technical suicide, laying bare the fallacies upon which its circumstancial evidence is based. But what baffled me is why it brought the evidence which has made this question irresistible. By bringing the evidence and ignoring it with the contempt it does not deserve was like a tailor who tries to get a cloth to mend a hole in the sleeve of a coat by snipping a piece out of the back and hoping no one will notice.

However, I cannot fathom or conceive of any plausible excuse as to why the defence counsel never thought it wise and prudent to explore it to its logical conclusion when it was obvious from the evidence of the prosecution. Anyway that was their prerogative I am not equally privileged. The law casts a duty on me to leave no stone unturned provided its existence is brought out plainly by the evidence. After all, we are constantly reminded that in life the stone which the builders reject often turn out to be the cornerstone of the building. I am not sure if this is always sufficiently remembered. But it would have been priceless for the defence counsel to have realized early enough that it was through such ingenuity that Portia thwarted Shylock's heinous ambitions.

From the beginning it was not only assumed but also believed that Cliff committed suicide by shooting himself through the mouth. This belief was allegedly prompted by what seemed to be a fact that Cliff had only one externally visible wound. Even after the Republic had eventually settled for the contrary view and believed that Cliff was actually murdered by the accused, it nevertheless led evidence to resurrect this belief in the trial of Kerstin. This evidence came from PW1, PW2, PW3, PW4, PW5, PW6, PW7 and PW9. An array of witnesses; these are witnesses who actually not only saw but also handled the body of Cliff at various stages from the fatal room up to the Kilimanjaro International AirPort (KIA) from where the body of Cliff had only one external wound be it a gunshot one or otherwise. This visible (external) wound was located on the frontal and parietal junction of the head. PW2 wrapped this wound in the presence of PW4 among others. PW5 Dr Mosha who performed the first post mortem examination was very emphatic that he examined the entire body of Cliff and indeed turned it over to ascertain the number of wounds it had but found only one wound, as above described.

PW5 went further to confess that basing on this fact and the information he had obtained earlier from the police officer in attendance Detective Staff Sgt Mathias (who was also at the scene of the incident the night before) and the morgue attendant that the deceased had shot himself through the mouth, he concluded that death was suicide by a gunshot wound and the only visible wound on the head was the exit wound. PW5 was honest enough to admit that he never opened the mouth and in so failing he was negligent. But his explanation was that he saw no need to do so because that would have involved incising the jaws. I think this omission, in view of the prevailing uncontested belief that it was a suicide through the mouth, was not recklessly culpable. But that is beside the point. PW5 was shown picture number E of Exhibit P16 (Exhibit P16 E) which was taken in New Zealand at the time of the third autopsy showing what is believed to be a wound but not visible at all as it is bandaged. He was categorical that he never saw that wound on the body of Cliff

on 5 July 1998. He was accordingly very firm that Cliff committed suicide. A very obvious unfortunate feature on all the pictures forming Exhibit P16 is that there is no single picture showing an open or clear unbandaged wound on the occipital region of Cliff''s head as the ones shown in the pictures forming Exhibit Pl.

PW7 Dr Allan, as already shown stitched the wound on the forehead. He too was unequivocal that that was the only externally visible wound on Cliff. PW9 climbed aboard and rode along with PW12, PW13 and PW14 on their incessant claims that Cliff could not have committed suicide. He too never believed that bizarre story. Fortunately he has the golden chance to clear this mystery before the body of Cliff was finally flown to New Zealand. Apparently he never utilized it. He escorted the body to Nairobi where it was embalmed. He testified that when the body was at KIA he had the chance of seeing it. His clear evidence is to the effect that he saw one stitched wound "just on top of the forehead" and/or "high on the forehead" as he personally put it.

It the light of the above, it goes without saying, therefore, that the body of Cliff, left Tanzania with only one gunshot wound which was visible externally. That was the wound which was on the frontal any parietal junction of his head. The evidence of the prosecution has satisfied beyond shadow of doubt now that the much talked about second wound on the occipital region as shown Exhibit P. 16 E was not there as definitely it could have been seen by all these witnesses as it has not been claimed that it was as small as a puncture.

Even if I am forced to pursue this issue to its logical conclusion I would further hold that no cogent evidence was brought by the prosecution to prove beyond reasonable doubt the existence of this second occipital wound. No single witness came from Nairobi or New Zealand to testify that he or she actually saw with his/her own eyes, this wound. PW12, PW13 and PW14 only testified that they learnt through Dr Bruton that Cliff had two wounds, an entry and an exit wound. It is common ground that the body was received in New Zealand

by undertakers Grihim Funeral Services, Auckland Airport and taken straight to facilities at Tuakau on 10 July 1998. The following day it was taken to Waikato Hospital for the third autopsy. PW14 was at the airport to receive the body. He never testified on the number of wounds he saw on the body of his brother.

Neither he nor his parents witnessed this third autopsy. They all saw the body before burial, even PW8 who was described by PW12 to have been crying profusely. But none of them testified to having seen this second wound, let alone the undisputed wound on the forehead. None of the undertakers came to testify that when they received the body at the Auckland airport they saw the wound on the occipital region of Cliff's head. So the existence of this occipital wound begs more questions than it answers. However, what is of importance here is the irrefutable evidence of eye witnesses from the prosecution side that Cliff had only one externally visible gunshot wound on his body when the body left Tanzania, if any, in trying to connect the accused with to death of Cliff.

Dr Bruton was engaged specifically to conduct the third autopsy to find out the real cause of Cliff's death. He was to confirm whether or not Cliff had shot himself through the palate as was claimed then in Tanzania. The question is: did he disprove this allegation? I am afraid to say that from the evidence on record, it is clear that he did not. The only evidence we have is his side remark made in 2000 to Mr Morgan as is contained is his statement (Exhibit P15) to this effect:

> In March 2000 I was asked by Mr Stuart Morgan of Auckland to advise as to whether there was a bullet wound in the mouth.
>
> I wrote to him on 7 April 2000, advising as follows:
>
> I have examined my notes and report and I do not specifically mention the hard palate. I do clearly recall, however, that I did look and there was no evidence of a gun shot wound delivered through the mouth. I have been unable to discover the Xrays taken at the time of the postmortem.

This remark definitely invites more questions then it attempts to solve. If he was engaged to contradict the suicide theory through the mouth would he have been so casual, if not negligent, in the discharge of his duties as to fail to mention specifically in his notes and report that he checked the palate and found no entry wound if he had done so? I believe he wouldn't. There is undisputed evidence that blood was coming out of Cliff's mouth and nose. His report is silent on the quantity of blood he found in the mouth if he opened it and its source. Am I supposed now to rely on his memory? Should I trust his bare assertion that he only recalls that there was no gun wound in the mouth when the same has not been subjected to the purifying process of cross examination and it is not even based on a cursory reading of the x-ray? It would be risk taking on my part to do so, particularly having regard to the already established fact that Cliff had only one visible wound on his body when the body left Tanzania. I am also puzzled on where the X-rays which were allegedly taken on 11 July 1998 were when they reached PW13 on 9 June 2000. In view of this state of uncertainty, I hold that Dr Bruton has not convinced me that he did check the mouth of Cliff to rule out the suggestion that Cliff shot himself through the palate. It was the duty of the prosecution to disprove this and not for the Accused to prove it.

In the light of the above findings I am forced to hold that the apparent wound on the occipital area of Cliff's head allegedly observed by Dr Bruton and very much relied on by PW11 and PW15 in their investigations and conclusions now assumes a diminished significance or becomes totally irrelevant in trying to connect the Accused with the murder of Cliff.

The "I don't know syndrome" and "the inconsistent versions of events" of the Accused, if so do they detract from the cogency, plausibility and/or truthfulness of her evidence? Did the Accused make the alleged inconsistent statements on how Cliff died? In trying to answer these questions I will be guided by the now salutary general rule of law that witnesses should be weighed and not counted. The rule further

says that more weight ought to be given or attached to the evidence given of people' acts than their alleged words which are easily mistaken or misinterpreted. Misinterpretation can occur either innocently or deliberately as when a witness has his or her own interests to serve in the case or is naturally biased against the opposite party. Deliberate misinterpretation ought to be frowned upon as it is indeeding a lurking perjury which destroys totally the credibility of the witness.

In trying to impress upon me to find the Accused a liar, Counsel for the Republic have thus submitted:

> It is obvious that when witnesses want to prevaricate or lie they would always say I don't know. The accused seems to remember only those things which tend to be in her favour. As part of the 'I don't know syndrome' even the eye bruise she says she does not know where it happened. Whenever it comes to any fact which could tend to implicate her she would simply say 'I don't know'. She would only recall details which tend to exonerate her. There could never be a better instance of lies. To this end we pray to the Honourable Court that this scenario be, viewed within the ambits of the rule laid in the case of *August Mahyo v. Republic.*

I have quoted them in full. Have they made out their case? This is a very unfortunate and definitely unsatisfactory way of urging a Court of law and justice to condemn a witness let alone an accused in a criminal case where he/she has no duty of proving his/her innocence on the ground of prevaricating or lying. Which instance of lying, even a fleeting one, have they made out against the Accused? None. I should state forthwith that this submission is as porous as of course it is self-defeating. If a witness responds to a question with an "I don't know" or "I don't recall or remember" answer it will be straining credulity to the limit to hold that he or she is lying or is prevaricating. It would be monstrous for a Court worth the name to so hold. This is because the truthfulness or falsity of the answer should be gauged in the context within which it is given. One has to look at the nature of the question which drew such a response before deciding on whether or not it deserved that response. A person may give and indeed we

all give such responses without in any way wishing to suppress the truth consciously or unconsciously.

Counsel for the Republic have sought to rely on only one instance of the "bruised eye" which they have termed a "scenario". What a jaundiced outlook: Anyway, has this "scenario' not been reasonably explained by the accused? I believe she has satisfactorily done so. I will elaborate.

There is no dispute that the accused had a bruised eye on 5 July 1998. She does not dispute to have told PW9 that she might have fallen at the Discovery Club. PW14 testified that when he met the Accused upon her arrival in New Zealand he noticed the bruised eye. When he asked her what had happened she is said to have told him that she had ran into something while looking for her glasses. The Accused did not attempt to deny having told so PW14. If the accused was trying to "contrive to tell a lie" as Counsel for the Republic eloquently capitalized on it, couldn't she have only denied to have told them so? What was easier for her to do? To say "I never said so" or to say" "I might as well have told them so"? I think the former was much easier, although she knew that the Republic had the duty to prove what it was alleging. From this the Republic is drawing an inference that there had occurred a minor scuffle "in which the Accused received a bump to the eye and in the volatility of the situation the Accused pulled the pistol on the deceased and deliberately shot him". This argument is superficially attractive because it has omitted to consider two proved facts. What the Republic has failed to appreciate is whether the gigantic Cliff could have stood idly by, let the accused, a weakling in comparison, get hold of the pistol from wherever it might have been and let her shoot him at close range while he was gripping the pistol as the experts it has called have testified. The Republic might have found it a very convenient theory to rescue itself out of the predicament it has placed itself in, but as is always said convenience and justice are often not on speaking terms. After all, if that was the case, the deceased could have been found with

two shot wounds what was in fact not the case. What was the explanation of the Accused all the same?

With transparent honesty, the Accused was very definite that the bruised eye was an insignificant problem to her in the face of the unbearable traumatic situation she had suddenly found herself in. She further said:

> I know I knocked my head when looking for my glasses. It is possible that's where I got a bruised eye ... I did stumble at the Discovery Club. It could have been there that I bruised my eye, but as I have said that was not important to me ... my husband had just died and I cared little for the bruises. I am not lying. If my husband could have hit me my entire eye could have sored. He hit me rarely but when he did you could see it. I did not physically fight with my husband that night ...

The accused further explained that she could have bruised her eye when she bumped her head on the car when they were leaving the Discovery Club, but as it was not bleeding, it was of little importance to her. All this speaks for her honesty. No one but the most callous can fail to understand her and sympathise with her for failing to be certain on the exact time or place her eye got bruised, particularly when it was a superficial bruise that is not bleeding. I accept her very probable, if not totally, convincing explanation. Even if I had not believed her on this I would have hesitated to count this seemingly trifling discrepancy against her, for as it was lucidly stated by T. Fuller "The breast plate of innocence is not always scandal free".

I shall have to dwell a little longer on the theme of "I don't know syndrome" if only in order to quench the thirst of Counsel for the Republic. While summing up to the gentlemen assessors I did put this question: who among the prosecution witnesses was never a victim of this syndrome, and if I may extend it further the "who told you so"? Or "I can't answer that" or "I can't recall or remember" syndrome? I directed the gentlemen assessors that the record shows no exception and that is true. If then, I have to use this "syndrome" as a yardstick for determining the veracity of witnesses, who will

pass this test? And in a case of this nature where the law indisputably tilts in the favor of the accused person who stands to gain from the rigorous application of it, if not the accused? Well they have called the tune, they must be prepared to dance in response. This standard should now be applied equally to the prosecution witnesses. It is good for Counsel to remember this adage of respectable antiquity: *the measure you give is the measure you will get.*

As already shown in this judgement, Counsel for the Republic has not been kind or beneficent enough to highlight me on one of the 'I don't know" answer which the Accused gave which I could have used to draw adverse inferences against her. I should not be counted as boasting to have been a bit industrious when I say what follows. I had the opportunity to scan the entire evidence of DW 1 Kerstin which covers about eighty (80) pages (handwritten). I found out only eighteen (18) answers which fall within this "syndrome". But what is more significant is that subjective evaluation of the same leaves every fair-minded person convinced that considering the context in which they were given the most reasonable inference to be drawn is that she was not lying or prevaricating. She was asked, for example, of the identity of the people Cliff was to meet at the Outpost. She replied that she did not know who they were. I did ask her if she recalled the volume of the whisky Cliff took to her home (if/it was one litre or three-quarters of a litre, etc) and she replied that she did not know. At one stage she was asked if she knew what took place in the bedroom when the police officers were there; her response was the same. She was very clear in her evidence and that was also the evidence of PW7, that she never entered the room with the police. Can any reasonable and impartial Court condemn her of lying or prevarication on the basis of these innocent and true answers? My undisguised answer to this question is in the negative. Other answers she gave were similarly innocuous.

Many prosecution witnesses gave such answers. One of them was PW2 S/Sgt. Fulgence. When asked if there were curtains in the bedroom, his reply was that he did not recall if there were any. This

was in spite of the fact that he was the only officer who was photographing the fatal room. All the same I was not invited by the learned Counsel for the Republic to hold that he was contriving to tell a lie. He was asked if the pistol (Exhibit P2 in the deceased's hand was cocked or decocked. His reply was:

> I do not know if the pistol was decocked or not

Should I then hold him a liar because of this answer? I shall be the last person to do so. PW2 was testifying on a fact which was not particularly within his own personal knowledge for there is no evidence to indicate that he was so told by PW4 Asistant Inspector Hiiti. That answer was proper. PW4 himself gave the "I don't know" answers about nine (9) times in his short evidence covering only 15 pages.

Nonetheless the same cannot be said of PW13 Lynette. She testified while under cross-examination that she had been married to PW12 for the past 46 years, and that she had been faithful throughout to her husband. When asked if she knew before Cliff's death that he had an extramarital relationship her reply was, understandably, that she 'did not know" that. But when asked if she was surprised when she became aware of it, she demurred and then replied:

> I don't know if I was surprised when I heard of this

Who can believe her on this? The fact whether she was surprised or not was within her personal knowledge. No sane, objective and intelligent person can call this prevarication. It was a downright lie. This was a graphic demonstration of a witness attempting to seek refuge behind this "syndrome" to conceal the truth although the question was an innocent one. The inescapable inference from this answer is that PW13 should not be taken for granted as an honest and truthful witness. If she could lie on such an innocuous issue why should she not lie on graver issues? If I may borrow the very instructive dictum of Counsel for the Republic in their final submission and use it as mine I would leave PW13 at this juncture saying that "It is always easier to tell the truth than to contrive to tell a lie."

PW4 Hiiti as already alluded to gave similar answers about nine times. Some of these answers definitely exposed him as a liar and/or a very unreliable witness. He also tended to expose his ignorance on weapons. It is an undisputed fact that he was the witness who prided himself of having been one of the two police officers incharge of the investigations at the scene of the incident on 5 July 98. He is the only person who handled Exhibit P2 at that time, took it to their armoury where he registered it and eventually handed it to the RCO (Regional Crimes Officer) later in the day. When under examination in chief he was asked to tell the Court the serial number of Exhibit P2 His answer was that he could not remember the number. When he was asked by Counsel for the defence to point out the firing hammer on Exhibit P2 his answer which sent seismic shock in the Court was:

> I do not know where the hammer of this pistol is

Yet, this is the very witness who had the audacity of telling the Court that when he handled the pistol at the scene that night it was in a "safety position". How could he determine that it was in that position when he did not know where to locate the hammer on it whose position is the indicator that the pistol is decocked or not? He never provided an answer to this vital question.

When PW4 was asked as the one in charge at the scene, if fingerprints at the scene were taken he replied that he did not know. But within the same breath he belied himself by asserting that:

> What I am sure of is that no fingerprints were taken on that day of anybody or on anything at the scene

After confidently asserting in his evidence that in a homicide case there are known procedures which require fingerprints of suspected persons and on firearms to be taken immediately he said.

> If fingers of suspects were examined for seats from the fired firearm that I cannot tell

These are definitely not doubtful pieces of evidence but very discrediting ones. But Counsel for the Republic are pretending to be unconscious of this. I think that every objective person will agree with me if I say that there is more than a modicum of truth in the saying that "He who praises the rain it has rained on him". Did the Accused give any inconsistent versions of the event?

This is the contention of the Republic. In support of this the Republic is relying on what is alleged to have been stated by the accused to PW8, PW12, PW13 and PW14 and David Schaefer.

> Before the accused is held accountable for these alleged inconsistent statements the Republic has to prove that she actually made them. She has unequivocally denied to have done so in her evidence. Was the Accused misquoted by these witnesses? Were these witnesses truthful in their assertions against the Accused or have they contrived this evidence? After properly evaluating their evidence in its entirety I am persuaded to believe that they might have been untruthful because they started with a wrong major premise. Their major premise was that Cliff was not a candidate for suicide. Therefore he could not have committed suicide. In so believing they compromised their objectivity. They then began to look for "facts" to support this hypothesis. This they found in the alleged inconsistencies of Kerstin's version to each one of them individually.

PW14 testified that when the accused telephoned to inform him of Cliff's death on the first occasion she told him that she was having a shower when she heard a gun shot and when she went in the bedroom she found Cliff on the bed. On the second occasion she is alleged to have belied herself when she told him:

> I was lying on the bed, my face down and Clifton asked me where the gun was and I replied "up in the cupboard" I then heard Clifton saying "Tell my father I tried" and then the shot went off

To the prosecution, the Accused had lied. Of course if this was the case, the two versions are mutually inconsistent. But did she make these statements? PW14 has proved himself to be an utterly unreliable and inconsistent witness who at times contradicted himself.

PW14 testified to the effect that the Accused told him that there has been "a terrible shooting accident" He asked her two times if Cliff was okay but on both occasions the Accused kept quite. On the third time when he asked if Cliff was dead she began to cry and then gave the first version alluded to above. However PW14 belied himself while answering a question from one of the gentlemen assessors on this, PW14 testified that when he asked the Accused on the third time if Cliff was dead PW14 testified that Kerstin replied "yes" However, when I put the same question to him he replied that Kerstin never said "yes" but she only began to cry.

PW14 admitted in his evidence that he made his first statement to the Tanzania Police on 14 March 2001 (after the trial had started). The same was shown him, and he accepted it. He also admitted that in the said statement he recorded that after Kerstin had told him that there had been a gun accident she immediately told him that Cliff had shot himself. This was in crying contradiction to what he said in his testimony (only seven days later). When asked to account for this he could not. If PW14 himself gave such inconsistent statements on what Kerstin had said to him how can he be believed on his assertion that Kerstin made inconsistent statements to him on Cliff's death? What are those inconsistent statements? I think he was imagining them and in the process he ended up confusing and discrediting himself.

The overall credibility of PW14 was further watered down by the impossibility of some crucial facts he testified on and his lack of being candid. There is no doubt that they had resolved that Kerstin had lied to them as early as 5 July 1998. That was why they ordered more autopsies to be conducted. That Dr David Bruton had reported to them that Cliff had not died of a gunshot wound administered through the palate before they came to Tanzania, is plain from 'their evidence. It goes without saying therefore, that by the time they came to Tanzania in mid-July 1998, going by their evidence they had with them "concrete evidence" disproving the suicide theory being then held strongly in Tanzania. That's why even Peter Ward was with them. However, when PW14 was asked on cross-examination

that after visiting the fatal room and spotting blood spatter on the western wall why they never thought it prudent to involve the local Police his reply was:

> At that juncture we saw nothing suspicious which could have justified our involving of the local police officers.

Again he was definitely lying here. That PW14 could have been lying in his evidence is further demonstrated by his claims that when they visited the fatal room in July 1998 and on 12 August 1998 they found blood spatter on the western wall. This was plain poppy-cocky as there was no such blood on 5 July 1998 and if there was blood on that wall then, the same could not have survived the cleaning exercise done on the very night of 5 July 1998. For all these reasons I have found it impossible to believe PW14 on his assertions that the Accused made inconsistent versions to him. I uphold the accused's denial to the effect that she never made inconsistent statements to PW14.

It is also the contention of counsel for the Republic that the Accused told PW13 Lynette that she did not know what had happened as she heard the gun shot and she got up to go mad at Cliff for shooting when the children were asleep only to find him lying across the bed. I find no discernible discrepancy in this. Here we have rather a difference of precision than of substance. It was a shortened version of the entire episode. Even PW13 admitted in her evidence that the telephone conversation with Kerstin on that day was very brief as most of the conversation was with PW12. Whatever the case I believe nothing good could be said of the Accused by PW13 who unequivocally stated and believed that Cliff was very unhappy with the Accused as his children were not always happy and were not having the upbringing that Cliff had as a child. On top of that she had unreservedly stated that when Cliff and Kerstin separated she made it clear to her son that she was on his side. So PW13 apart from exposing herself as a liar as already shown, she could not be said to have been a dispassionate witness on the whole. She might have been anxious to have the Accused take the rap for Cliff's death who she believed could never commit suicide.

PW12 was either a liar or had misinterpreted what Kerstin had told him. Either way, he rendered himself an unreliable witness. He testified that Kerstin told him that after leaving her house following Cliff's death, she went to look for Schaefer at Mezza Luna where she found him and the policemen on patrol. This definitely was not the case. Credible evidence on record is to the effect that she first went to Ekko's house and then to Discovery Club. If PW12 was not lying here to increase the litany of the alleged inconsistencies, then he never heard properly or he has a very poor memory, which cannot be trusted. How true then it is that more weight should be given to acts of men than to words allegedly said by them as these are easily mistaken and/or misinterpreted.

PW12's credibility has also been tainted either by his own inconsistencies or mendacity. In his evidence he first testified that when they came to Tanzania, after Cliff's death, he never discussed with anybody about Cliff's death except the Accused only. Shortly thereafter he contradicted himself when he testified that on arrival in Tanzania they made an appointment with PW7 Dr Allan as they had the pathologists report with them and wanted to discuss it with him. They actually went to see him and it was at this stage when they met the wife of PW7 at their home and she confided in him (PW12) that Cliff was a very good man and he never shot himself. Apart from the naked fact that PW14's evidence is totally silent on this visit, the undisputed evidence on record is to the effect that PW12 was lying because by then the wife of PW7 was not in Tanzania but in Europe.

PW8 Joanna is on record saying that while in New Zealand, Kerstin told her that she was lying on her stomach when Cliff came out of the bathroom and asked her where the pistol was and she (Accused) had told him that it was in the cupboard where he had left it. She further testified that the Accused told her that both the doctor and the police report said that Cliff's palate was damaged and then she said what sounded unusual to her.

This was that the Accused said "... but I did not shoot him" and never finished the sentence. This was the evidence of PW8 who testified, unabashedly, that she was a great friend of the accused but was "lucky" to have a love affair with her husband, whom she deeply loved and very much wanted to marry but she has "lost that chance". She further testified that she was not only upset and shocked by the death of Cliff but the death was the "most devastating to her". I do not believe that a person of that character who is a living model of infidelity, emotionally disturbed by the alchemy of infatuation can be an objective and/or impartial witness particularly when it comes to the issue of the cause of death of the one she deludes herself to have loved most. Her perception of things must be warped. She may also be trying to endear herself to the family of Cliff for some other motives unknown to us. Twice in her evidence she confessed to have lied to her husband and the Accused. How can we trust her today?

Counsel for the Republic have urged me to accept her evidence as she "was a freshingly forthright and contrite witness" who directly answered questions as to her affairs with Cliff. If that were held to be true, then we will agree with Shakespeare when he said:

> "There is no art to find the mind's construction in the face":
>
> Macbeth, Act I Scene IV, Line II.

But I will not be swayed by these heady superlatives heaped on PW8. She does not deserve them. PW8 has now confessed to her infidelity not because she is "forthright and contrite" but because she could not have avoided admitting it when it is already public knowledge short of exposing herself to the inevitable charge of perjury if she had denied it. Why did she have to be contrite after the death of Cliff? She remained in New Zealand for two days after Kerstin's departure. If she heard from Kerstin all that she testified to on 15 March 2001 what prevented her form disclosing it to Cliff's parents then or the police in her statement she gave on 2 March 2000? She never did so because Kerstin never told her so. She is trying to add insult to injury. She has concocted it to victimize Kerstin whom

she views as the person who stood in her way in her ambitions to marry Cliff although she was, without shame, giving counsel to Kerstin on family issues. If counsel for the Republic think that PW8 Joanna is "a freshingly forthright and contrite witness" now, then I invite them to contemplate with an open mind what we were told some 500 years back to the effect that:

> The devil can cite Scripture for his purpose. An evil soul, producing holy witness, is like a villain with a smiling cheek. A goodly apple rotten at the heart.
>
> O what a goodly outside falsehood hath!
>
> The Merchant of Venice, Act I, Scene. 3, Line 99.

So let that be said of PW8 Mrs Joanna Mc Callum, here. Though pretending to be a holier than thou outlook she remains at heart an incorrigible liar who concocted this calumny against Kerstin.

Of course the Republic has another card up its sleeve. This was the statement David Schaefer allegedly made to PW10 on the night of 5 July 1998. I have used the word 'allegedly" advisedly because the statement is containing untrue allegation. It is recorded therein that Schaefer reported to PW10 that the Accused had informed him when she followed him at Discovery Club that she had a quarrel with Cliff at her home and that Cliff had threatened to kill her with a pistol and therefore she had left to look for help. Schaefer is also alleged therein to have told PW10 that he had then left with her to her home to reconcile them only to find out that Cliff had already committed suicide. All this is sheer baloney and smacks of a fabrication done definitely by an unintelligent person. How could Schaefer have known that Cliff had committed suicide when going by the same statement, the Accused had left him alive? How does one reconcile this version of Schaefer with the one he gave to PW1 and PW3? If that was what actually Schaefer was told by the Accused why did he tell these police officers a totally different story? Why did he find it difficult to tell them that the Accused had been threatened by her husband with a pistol, and instead he impressed upon them that there

was a "big problem" at her home and beseeched them to accompany them to Njiro to see for themselves? It will be tripping over one's logic to imagine, leave alone to believe, that Schaefer could have entreated them to abandon their duties to go to Njiro to see for themselves the threats of Cliff which were no longer there as the victim of the alleged threats was already with them. For these obvious reasons I reject and dismiss Schaefer's alleged statement in its entirety.

In the light of the above I hold that the Accused never made any inconsistent statements to any one in connection with the events relating to the death of Cliff. In some instances she was misinterpreted either deliberately or unwittingly. In others the alleged statements have been contrived to serve the interests of those alleging them.

Having disposed of these crucial issues it is incumbent upon me to tackle the remaining ones, which are basically dependent on the testimony of the expert witnesses. This will necessitate me then first, to dispose of the belated prayer of Counsel for the Republic to reject and dismiss the entire evidence of the defence forensic expert Mr Gregory Love, who testified as DW6, because to them he does not qualify as such expert. This request, belated as it was, has greatly exercised my mind. However, after going over the law on expert evidence, his CV and his entire evidence and recalling vividly how well he stood by, to the most searching and the longest cross-examination in the trial, I have decided to reject this prayer. DW6 is a competent and professional forensic expert. His analysis of the issues showed great perception, objectivity and candour on his part. I do not blush to admit that we were lucky to have him as a witness in this case, otherwise we could have been misled by the warped opinions of the expert called by the prosecution, as I will show later in this judgment. It will be blinking to reality to rule in favour of the Republic, because DW6's performance was beyond all superlatives.

The law on expert opinion evidence in this country is very clear. It is spelt out in section 47 of the Evidence Act (TEA) which provides as follows:

47(1) when the Court has to form an opinion upon a point of foreign law, or of science or art, or as to identity of handwriting or finger or other impressions, opinions upon that point of persons possessing special knowledge, skill, experience or training in such foreign law, science or art or questions as to identity of handwriting or finger or other impressions are relevant facts.

(2) Such persons are called experts.

In this case the experts were to give opinions on blood spatter and ballistics. In ordinary parlance blood spatter is the splashing, dropping, spreading and/or flying through the air of blood from an animal, and for the purpose of this case from a gunshot wound.

The duty of an expert is to furnish the Court with the necessary scientific criteria for testing the accuracy of their conclusions so as to enable the Court to form its own independent judgement by the application of these criteria to the facts proven in evidence: see *Davie v. Edinburgh Magisrates* (8), *Daubert v. Marrel Dow Phamaceuticals Inc.* (9) and *United States of America v. Roy Van WYK* (10).

It is now well established in our jurisprudence that it is not necessary that the expertise should have been acquired professionally. Special skill is not confined to knowledge acquired academically but includes also skill acquired by practical experience: see *Gatheru s/o Njagwara v. Republic* (11). For these reasons, it is settled law that it is the function of the Court only to determine whether or not a witness has undergone such a course of special studies or experience as to render him an expert in a particular subject.

In the present case, PW15 is a retired police sergeant of the Illinois State Police, US now consulting as a forensic expert and instructor. He holds a Bachelor of Science degree in Criminal Justice Management with emphasis on Crime Scene. He is also a graduate of the FBI National Academy and is certified as a Senior Crime Scene Analyst recognized by International Association for Identification. His day-to-day duties are to examine documents that are sent to

him for review by his clients. That is all one can gather from his evidence. For his part DW6 Love holds a Bachelor of Science degree in Psychology, a Master of Science degree in Applied Information Analysis and has a Diploma in Advanced Applied Forensic Science. Experiencewise he has an impressive record. He has served in both the Australian Army and Royal Australian Airforce (1963–1973) wherein he got his initial studies in blood spatter.

He was a consultant to the South East Asian Institute of Strategic Affairs (SEAISA) (1974 – 1990). From 1991-1994 he was a consultant to the ICRC and UN agencies as WEP, UNICEF and UNDP on matters pertaining to aviation operation and accident investigation. From 1994 to date he is self employed as a consultant Crime Intelligence Analyst and Forensic Examiner based in Nairobi, Kenya. He is also a member of the American College of Forensic Examiners.

DW6 has investigated about 30 murder or murder related cases, when he was with the SEAISA. He has served in Vietnam with the UN Peace Keeping operations and has visited crime scenes in that Chapter of a forensic expert in Vietnam, Thailand, Cambodia, Laos, Indonesia, Singapore, Papua New Guinea, Burma, Somalia, South Sudan and Kenya. He has also investigated on blood spatter where it was associated with death or injury and has testified on blood spatter on several occasions. He is also a qualified photograph interpreter. He, therefore, has a fund of knowledge, skills and experience in blood spatter. All this was stated in his evidence and not disputed at all. That is why I am accepting him as an invaluable expert in this field. Fortunately, even the gentlemen assessors found him to be so and found PW15 to be unhelpful in this trial.

It is now trite law that although the Court is not bound to accept the opinion of the expert if it finds good reasons for so doing, it is also accepted that rejecting such expert opinion without assigning reasons might well be unjudicial, see, *CD de Souza v. BR Sharma* (12), *A fortiori,* since the evidence of an expert is likely to carry more weight than that of an ordinary witness, higher standards of accuracy and objectivity are required of him and "should provide

independent assistance to the Court by way of objective unbiased opinion in relation to matters within his expertise" and "should never assume the role of an advocate": See *Autospin (Oil Seeds) Ltd v. Beehive Spinning* (13), and *National Justice Compania Naviera Sa v. Prud Ential Assurance Co. Ltd* (14). Equally settled in our law is that bare opinions of experts unsupported by reasons may as well be unconvincing. That is why it is now agreed that when the facts in question upon which an expert testified are dependent upon ordinary human powers of perception an expert may be contradicted by lay witnesses. Furthermore, where in a case a judge having heard expert evidence, considers it to be evenly balanced he has to decide on the basis of the burden of proof. All these principles of law will guide me and be followed in my evaluation of the evidence of the experts who testified in this case.

The gentlemen assessors have advised me to find PW. 15 not as competent on blood spatter issues as he purported to be and Counsel for the Republic would have me to believe. They based this opinion on the naked fact that he gave false and misleading interpretations on blood spatter found on the deceased's body and even assumed the existence of blood pool from the photographs he relied on even when lay witnesses who were at the scene never saw much blood.

I am in full agreement with the gentlemen assessors because there is plenty of cogent evidence on record to bear them out on this.

Counsel for the Republic had invited me to reject the evidence of DW6 because he partly said that blood spatter is not nowadays considered as an exact science and that he alleged that blood spatter can travel to a distance of 3 meters. The fact that DW6 said as by the way that blood spatter is not regarded these days as an exact science does not necessarily detract from his proven expertise on blood spatter analysis. One ought to have seen him articulately answering from his finger tips well researched questions from Counsel for the Republic in order to appreciate that he knows his stuff. Indeed if those answers had been given in his evidence in chief I would

have held that he had rehearsed them. But that was not the case. Counsel for the Republic were admittedly well prepared for the cross examination and he too responded with excelling competence, wisdom and wit. If one metaphor may be allowed here I would say that a "balloon cannot be larger than the gas that is pumped into it", or as Peter Drucker aptly observed: "No book will ever make a wise man out of a donkey or a genius out of an incompetent". DW6 knows how to interpret both blood spatter and photographs and in this particular case he has proved to be head and shoulder over PW15.

Did DW6 fail to account for his opinion for which he is being condemned as an amateur expert? My considered answer is in the negative. This is how he rationalized it:

> There are three types of blood spatter, namely, high velocity, medium velocity and low velocity. The longest distance the high velocity blood spatter may go will depend on the size of the droplet. There is micro spatter, the diameter of the blood droplet being less that 0.5 mm. There is macro spatter whose diameter is greater than 0.5 mm According to the formula for momentum which is mass *v.* velocity, the distance will depend on the resolution of that formula. Generally speaking, back spatter which contains all those drops, in experiments have shown that it can travel between 20 cm up to 2 metres. However, we can occasionally get what we call a flyer and this is a clot of blood which may also contain some blood tissues or even a bone. Because of its increased mass, it may travel further, but that is an exception rather than the rule. The very high velocity spatter is very much like an aerosol spray.

Back spatter "is the ejection of blood and tissue from a gunshot wound of entrance." See **Gunshot Wounds: Practical Aspects of Firearms, Ballistics and Forensic Techniques"** by Vincent JM Di Malio, (2 ed) (1999) at page 119, 120.

Counsel for the Republic then sought to contradict him with the findings recorded in Di Maio's book, at page 120 which show that the maximum distance was 60 cms while on average the majority of stains were between 0 and 40 cms. To this DW6 correctly responded

that the experiments mentioned in the book were carried out on calves and not human beings, and that the text further shows that the distance would be greater in humans. Also when confronted with the statistics shown in the book of Professor Herber L, McDonna, Blood Stain Patterns (which was not made available to the Court), and quotation from a pamphlet titled Bloodstain Pattern Interpretation, wherein it is shown that on entrance wounds blood travels horizontally three to four feet, he replied:

> My distances are very approximate . This is a scientific method in so far as it allows a certain amount of error.

On top of that these two texts do not speak of "flyers" which were specifically mentioned by DW6. Whatever the case may be, all this goes to lend credence to the observations of FD Roosevelt to the effect that: "There are as many opinions as there are experts"

Hence the distance of the law that the Court is not bound to accept the opinion of experts on every fact and that the opinion should be based on proven facts and reliable principles and known methods. This then leads me to the next issue of the position of the deceased's body on the bed.

The Positon of the Body on the Bed

It is the contention of the prosecution that the deceased before his death was seated on the western edge of the bed facing the western wall. He was then shot in cold blood by the Accused, fell on his back on the bed and then the Accused moved him to the position portrayed in Exhibit P1. 13. The defence has challenged this hypothesis claiming that it is based on unproven facts. After dispassionately scanning the entire evidence I am satisfied that the defence has a valid argument here. This hypothesis is based on the postulated facts of PW11 and PW15 to the shooting and that there were two pools of blood on the bed suggesting two positions where the body rested after death. However, there is no cogent evidence to support the first proposition, and no scintilla of evidence to support the second one.

Neither PW11 nor PW15 was at the scene on 5 July 1998, as indeed nobody witnessed the shooting. While PW11 visited the scene or fatal room on 4 April 2000, PW15 never visited the scene at all. PW11 based his postulation on the information allegedly obtained from the accused on 4 April 2000.

The Accused has resolutely denied having told PW11 that Cliff was seated on the bed prior to the shooting. Who was telling the truth then? Has the prosecution proved that which it is alleging beyond reasonable doubt? I am led to believe that it has not. Why?

In his evidence PW.11 was very unequivocal that when the Accused was telling him so, he was not alone but was with other police interrogators. He named them to be Inspector Peter Mkunda, Inspector Peter Hiiti and Staff Sgt. Fulgence who was taking photographs. Fortunately both Hiiti and Fulgence testified as already shown. The evidence of these two police exposed PW11 as a liar. Both testified that their role in the investigation of this case ended on 5 July 1998. PW2 went further and unequivocally testified that after the work of photographing the scene on the night of 5 July 1998 he: "never conducted any other investigative works either at the scene or later". And he said so twice while under examination-in-chief.

In view of the unconditional denial of the Accused that she never told PW11 that Cliff was seated on the bed or showed him where he was seated before the fatal shot and the evidence of PW2 and PW4 discrediting PW11 as shown above, I hold that the postulation that the deceased was seated on the bed has not been proved at all.

The prosecution has also used this sitting position on the edge of the bed and the alleged subsequent relocation of the body theory to explain the absence of blood on the lower part of Cliff's body. This theory has not been proved. The absence of such blood cannot be taken to establish that the deceased was shot at (by the Accused) while seated on the western edge of the bed while leaning forward as postulated by PW15.

Was the Pistol in the Deceased's Hand Decocked?

This was one of the major assault weapons in the prosecuton's armoury. PW4 of all the eight prosecution witnesses who were at the scene, was the only witness who testified that Exhibit P2 was decocked or as he put it was in "a safety position". He never told the Court at what stage he found this out. PW15 also testified that when he enlarged Exhibit P1, 13, the pistol in the deceased's hand "appeared to be decocked". On the undisputed evidence of PW2, I am holding it as a fact that the first photograph to be taken at the scene of the incident on 5 July 1998 was Exhibit P13. Basing on the evidence of PW2, PW4 and PW15 the prosecution has put up an apparently convincing case that as a dead person could not decock Exhibit P2 then the only person who could have done so was the Accused. It has urged me to draw an adverse inference against the Accused, therefore, as the pistol could not have been decocked as Counsel have put it by the "ghost of Julius Ceasar."

The evidence relied upon by the prosecution on this issue is, unfortunately, not watertight. Where it is not patently contradictory, it is of doubtful utility.

I have already shown in this judgement that PW4 was a witness who proved incompetent to testify on gun issues and obviously unreliable on other related issues. PW4 admitted to have no expertise in guns. When he was asked to tell the Court what he did with the pistol when he took it from the hand of the deceased he fumbled and gave conflicting versions. This is what he said:

> After removing the pistol from the body of the deceased, *the first thing I did was to remove the magazine and I inspected the safety catch of the pistol. The first thing I did was to check the safety catch of the pistol and when* I found out it was safe ... then I proceeded to remove the magazine from the pistol.[emphasis supplied]

If he was not lying then I will be justified in holding that he could not recall what he did with Exhibit P2 and as such he could not be relied upon on his assertion on the physical condition of the pistol.

When PW4 was requested to point out the "safety catch" on Exhibit P2, he indicated the firing hammer. The clear fact is that Exhibit P2 has no safety catch but a decocking lever. How can he then be believed on his assertion that the pistol was decocked because the safety catch was safe? This is the witness who confessed that he did not know where the firing hammer on Exhibit P2 was. While under re-examination he Exhibited his incompetence when he asserted that he was certain of Exhibit P2 having been fired because the wound on Cliff "had not been caused by a panga" Ridicule as this answer was he further ridiculed himself by asserting: "If I had not seen the wound on the deceased, I would have reached a conclusion that it had not been fired." Unbelievable, to hear that from an Assistant Inspector of Police.

Although PW4, going by his evidence, believed the pistol was decocked and for that matter he knew it could not have been decocked by the deceased, one wonders then why they initially settled for a suicide theory. In answer to a question put to him on cross examination, he readily conceded that in the situation presented by this case, an inquest could have been conducted. Does one conduct an inquest in a clear case of homicide and if the pistol was in a decocked position why did he not reveal this fact to the other witnesses gathered at the scene? For as far as it is known even PW2 was not aware of this fact. In view of all this it would be risking even to assume that PW4 found Exhibit P2 in a decocked position.

Of course there is also the evidence of PW15 alluded to earlier. This evidence had been challenged by DW6. DW6 was of the opinion that one cannot tell from photograph Exhibit P1. 13 the position of the hammer so as to determine whether or not the pistol was decocked. He has found support on this from PW11.

PW11 testified that he did scan the photograph of the deceased holding the pistol in his left hand. His finding was that it showed no clear position or location of the firing hammer either by the naked eye or through a magnifying glass. This tells it all, and bears out the opinion of the gentlemen assessors.

When this aspect of PW11's evidence was put to PW15 he readily surrendered and said that there were two conflicting opinions on the same point from the same side. Indeed there are as many opinions as there are experts under the sun. It goes without saying, therefore, that the prosecution has abysmally failed to prove that Exhibit P2 was decocked when it was found in the hand of the deceased.

Even if I had held it was found decocked I would have proceeded to hold that, contrary to the view held by the prosecution, the Accused was not the only person who had the opportunity of doing so. The night watchman who rushed to wake up Maria Joseph after the Accused had left and rushed back to the house could have done so out of curiosity. This John Robert although listed and summoned by the Prosecution as its potential witness never testified at all. The undisputed evidence on record is to the effect that the bedroom door was open while the door of the house was not locked. There is evidence that even PW7 not only entered the bedroom alone before the arrival of PW4 and his team but also handled the body of Cliff before testifying him dead. Counsel for the Republic never directed their suspicions against these two. The "ghosts of Julius Caesar" were, therefore, many.

The Blood Spatter

Through PW15 the prosecution sought to establish that blood spatter patterns were observed on the deceased's right shoulder and left hand on Exhibit P18 and that there were no blood spatter patterns on the right hand nor on any other part of Cliff's body. Of course the blood spatter on the right shoulder is more clearly visible to the naked eye on Exhibit P19. From these observations, PW15 made the following conclusions:

(a) that the blood pattern on the left hand indicated that it was on the weapon or close to it when the fatal wound occurred and the right hand was not in the area.

(b) that the blood spatter on the shoulder could only have been there through either of one of these two methods:

(i) the deceased could have moved his head to his right after he was in his final position with blood on his should coming from his nose and mouth, or

(ii) the deceased's arms could have been pulled up and down thereby causing the right shoulder to touch the nose.

PW15, quite correctly and logically, ruled out method (i) above and settled for method (ii) and the prosecution, swallowed his theory bait, hook and line, and

(c) that the absence of blood patters on the rest of the body would suggest that that was not the original position where the deceased was seated.

The fallacies bedeviling these theories become self-evident when one considers the disproved fact that the deceased was seated on the edge of the bed before meeting his death, the fact that the left hand could have been on the pistol even if the deceased had shot himself and the fact that a cursory looking at Exhibit P18 and 9 among others, clearly proves that the Accused had no hand in the blood spatter on the right shoulder being there. That's why DW6 rejected the same outright.

DW6 was of the emphatic opinion that pictures being pictorial representations of a scene or event have their own limitations as evidence. To him they are of great use, as indicators and memory aids to investigators while important details contained in them do not take in the weight of evidence unless corroborated by other means. His response to PW15's explanation on how the blood spatter could have got there was that it was totally erroneous to draw those conclusions by merely looking at the photographs. DW6 reasoned that if the shoulder had come into contact with the blood on the face, the blood pattern displayed on the shoulder would have been a smear or a blood transfer and not a blood drop with gravity run off. He described gravity run off to be a phenomenon of separated blood plasma or a whole blood or cerebrospinal fluid draining off the central drop due to gravity.

He defined run off to mean liquid moving in the direction dictated by gravity from the main body of the drop. He found the run off from the blood drop on the shoulder to be in the same direction as the blood run off from the mouth and nose of the deceased. This is indeed obvious to the naked eye of any unbiased observer, not necessarily being blood spatter expert. He accordingly ruled out the possibility of the deceased's arms and shoulder having been moved from the position shown in the photographs. This reasoned argument is paralysingly compelling and I accept it.

I have accepted the evidence of DW6 because it also accords with the facts on the ground. When PW4 and his team arrived at the scene, they never observed the blood spatter pattern on the deceased's shoulder. That blood definitely dropped there afterwards, when the Accused had not a ghost of a chance to touch the body, leave alone pulling up and down the arms. Secondly, as the photographs themselves show distinctly, they were taken after PW2 had wrapped the deceased's head. It is obvious that the head was definitely lifted up in the process. There is no evidence to negate this. It ought to have been in that process that blood spatter got to be on the right shoulder. Had PW15 been objective enough, could he have failed to detect this? At any rate he ought to have been honest enough to tell the Court that since Exhibit Pl.8 was taken after the scene has been changed or disturbed, no adverse inference should be drawn against the Accused because she had nothing to do with this particular blood spatter. In concealing this fact and I have no other way of putting it more benevolently, may, be hoping the Court will not notice it, he definitely undermined his impartiality as an expert witness.

Contrary to the bold conclusion of PW15 that there is blood spatter on the left hand of the deceased, DW6 was of the view that there is no such blood spatter visible from the picture of the left hand. This appears to be the correct view because PW15 never observed the same on Exhibit P1, 13. Even the first witness who actually saw the body and handled it never saw such blood spatter on the left hand of the deceased. All the same DW6 was frank enough to testify

that on Exhibit P1, 8 there were small marks visible around the web of the left hand but one cannot say for certain what these marks are without laboratory analysis and that the latter could not be done with a photograph without the original marking itself. The problem with PW15 was that he was making bare assertions but not supporting them with facts and/or reasons in most cases.

Regardless of the merits or demerits of the view of DW 6 on the issue and whether they are blood spatter or not the bottom line is when did that blood get to the left hand of Cliff in order to be part and parcel of the circumstantial evidence? The prosecution never answered the question. Exhibit P1. 13 and P18 were not taken simultaneously. Exhibit P1. 8 was definitely taken after, the scene had been changed. In view of this plain fact, the presence of blood spatter on the left hand becomes of little evidential significance, if at all, in the case.

That the objectivity of PW15 was totally compromised and his professional competence damningly tainted was eloquently brought to light by his total failure to interpret properly or correctly the pictures taken at the scene of the incident, or by his attempt to distort them to the prejudice of the Accused.

PW15 testified that he used pictures number 1, 8 and 13 (i.e Exhibit P1, 1, 8, 13) among others to investigate the course of death of Cliff. He mentioned the other items he relied on to be Exhibit P 16 police reports, an autopsy report, videos, sketches and diagrams, out of these objects the only ones tendered in evidence were Exhibit P1, 1, 8, 13 and Exhibit P16. If by the autopsy report he had in mind Exhibit P. 15, the same was not even shown to him. I will therefore rest my determination on the weight to be accorded to PW15's conclusions on the proven or undisputed facts contained in the evidence actually before me.

PW15 did examine picture number13 or Exhibit P1.13. He testified that he observed what appeared to be a pool of blood near the right hip of the deceased on the bed. From this he concluded that the

deceased fell after being shot. It is the contention of the prosecution that after the deceased had fallen on this position the Accused moved him and positioned him on the bed as depicted in picture number 13. I have found this proposition as startling as it is preposterous. This is because there is not even a scintilla of direct evidence to support it. PW15 was adamant that he concluded that that spot near the hip was blood because red colour appears as black on black and white photographs.

The conclusion of PW15 was rebuffed by DW6 for three good reasons. These were that:

(a) there is no corroborative evidence to suggest that the mark on the blanket is in fact blood.

(b) Many colours present themselves as black on a black and white photograph plus black itself and

(c) As the head contains a finite amount of blood, if that was the first position of contact there would have been more blood there than indicated by the size of the unidentified mark.

DW6 further reasoned that if the deceased was moved from that alleged first point of contact to the second position, then there ought to have been blood markings between the two points, which is not the case.

There is not even a shadow of reply to this evidence. On the contrary it finds overwhelming cogent support from the prosecution witnesses. All the witnesses who were at the scene of the incident, as already shown, never saw this imagined pool of blood on the bed near the right hip of the deceased nor the trail of blood from that first position to the second final position. For these reasons I have found myself in concurrence with DW6 that since the quantity of blood and cerebrospinal fluid is much greater at the final position as shown in Exhibit P1. 13 appear to the unruffled, then the body was not moved at all. This is a very convincing explanation and not a conjectural one.

The Republic had contended as already shown that the absence of blood on any other part of the deceased's body was indicative of the fact that the deceased had been seated on the bed prior to the fatal shooting. This assumption has already been disproved. However, the likelihood that the deceased could have been lying on the bed was not explored at all by either side and/or ruled out. The prosecution side had the duty to rule out this probability. All the same the defence (DW6) attempted to show that there are people who shoot themselves with handguns through the head while lying and still remain gripping the weapon. This was not rebutted. If that was the case here then the said absence of blood could be explained through this phenomenon as well as the fact that the deceased never fell on the Accused's legs as she too was lying (but curled) on the same bed. At any rate even assuming without deciding here that the deceased was seated, DW6 offered a plausible explanation on how the deceased could have shot himself without harming his wife. Even PW11 was equivocal on this. In response to a question put to him under cross examination on whether or not the deceased was seated or lying on the bed, contrary to his earlier bold assertions that he was seated, he said: "I don't know". This is because he could have so many options. To sit, to stand or to lie depending on the situation.

To me this is not only a doubtful piece of evidence but a very discrediting one. This is because he had confidently maintained all through prior to that that the deceased was seated on the bed as he had been so told by the Accused. Indeed a good lie can sometimes have all the graces of artistry, but only the truth can have the ring of sincerity.

Absence of Gun Powder Residue/Injuries

PW15 also examined all the pictures forming Exhibit P16. He particularly examined photograph A (which is similar to photograph H) "for gunpowder pattern or injuries on the deceased right hand" He found none. It must be recalled that according to the defence, the deceased shot himself by pulling the trigger with his right thumb while the left hand was gripping the barrel of the Pistol. PW15 testified that he, however,

observed a dark colouring at the tips of the fingers and thumb of the said hand. This colouring is visible to the naked eye. PW15 opined that that was not gunshot powder pattern, but a pooling of the blood. According to PW15 this phenomenon "occurs in the extremities and is typically for fingers or toes several hours, after death."

Basing on this conclusion of PW15, it is the contention of Counsel for the Republic that the absence of gunshot powder patterns on the right hand should lead to an only irresistible conclusion that Cliff never shot himself but was shot by the Accused. On the face of it, it appears to be a very formidable argument. It looks so because it has been misleadingly presented as I shall show shortly. It is assuming that the Accused has the duty to prove some facts.

All the same time the conclusion of PW15 has been challenged by DW6. To DW6 the colouring is not post mortem lividity or *livo mort's* which occurs soon after death due to the obvious blood pressure over a period of two to eight hours in only certain parts of the body. To DW6 blood will drain to the lowest point of that part and cause discolouration which is reddish purple and is commonly found in the back or chest of the trunk of a body which has been lying on its back or front immediately after death and left undisturbed for hours. He was very emphatic that lividity normally does not place in the limbs or digits. From his experience and that of many experts, he opined that judging from the density and distribution of the colouring, the colouring on the tips of the fingers and thumb on the photographs is gunshot powder residue.

Here we have two conflicting opinions. If personal preferences were permitted in works of this nature, I would not have hesitated to accept the version of DW6. This is because he gave a well reasoned opinion and not a bare conclusion. I will refrain from judging on who is right or who is wrong here. The best I can say is that the opinion of the experts on this issue appear to be balanced but I am not prepared to give the benefit to anyone. This will remain an open academic issue. Maybe an apposite opportunity will present itself in the future which will necessitate us to make a definitive decision

on it. This is all because this issue shall be conclusively determined without the aid of expert opinion but purely on the basis of the requirement of the law. It is the contention of the Republic that the defence conclusion is flawed. It is arguing that the gunpowder residue could not have remained on the fingers of the deceased after the body had been washed twice (in Arusha and Nairobi) before embalmment. The submission concludes thus:

> If so, wouldn't the residual pattern wash away? Would it remain even after a week when the said photograph was taken? Again Mr Baldwin's evidence is to be preferred.

The question which this submission inevitably invites is whether this Court should prefer PW15 to DW6 simply because the body showed no gunshot powder residue after a week even assuming that this was the case. What about if the same was there initially but as suggested by the prosecution it was washed away in the washing and embalming process? I would have readily acceded to the prosecution's submission if the photographs were taken at Arusha at the scene of the incident or at the hospital before any washing of the body was done. This is a classic demonstration of where perfunctory performance of one's duties sometimes leads to disastrous consequences. The prosecution cannot be allowed to benefit from the inefficiencies of its investigators. It is not the duty of the Accused to prove that there were gunshot powder residue on the right hand of the deceased. It was the duty of the prosecution to prove beyond reasonable doubt that right from 5 July 1998 that the said hand had no such residue. The prosecution failed totally to discharge this burden of proof. Had it done so then the burden would have shifted to the Accused to show that there were some residue.

All the same DW6 already had advanced an apparently plausible explanation to answer the submission of learned counsel for the Republic. His evidence which was not contradicted was to the effect that he believed the colouring to be gunshot power residue because it is only soot which is easily washed away. But heavy particles of the residue being barium, lead stiphonate and antimony along with

nitrites which are burnt residue if cellulose are often embedded in the skin pores and at times cannot be fully visible without the application of solvent chemicals as the one used in embalmment, and that it is normal for embedded gunshot residue to remain and become visible after embalmment.

There is no dispute that there were no injuries on the palm and/or fingers of the left hand which was found gripping the pistol by the barrel. The defence has given an explanation why this was so. DW6 testified that this was because the hand was either over the foresight blade or below it, and in that case the hand moved back with the slide. To defy this explanation counsel for the prosecution, on cross-examination, requested DW6 to grasp the barrel of Exhibit P2 as the deceased would have done if he shot himself. He did so and demonstrated to our satisfaction (myself and the assessors) that there was still a gap in the ejection chamber even to allow the ejection of a spent cartridge or casing. DW6 further testified that the slide of the pistol actually moves from the bridge position to the rear position and that any movement over 1.95 mms would allow the ejection of the cartridge as that is the length of the 9mm cartridge. Indeed even the prosecution expert had testified that the gripping would only have made it difficult for the casing to be ejected but not impossible. The explanation of DW6 appears to be convincing and in the absence of evidence to prove that he was wrong, I accept it. Therefore the absence of injuries and the ejection of the empty cartridge have been adequately explained by the defence.

It was strenuously argued by PW11 that the deceased could not have killed himself and at the same time remain grasping the pistol in his hand. The Republic is contending that the "gun on the deceased's hand" was in fact planted and was not originally there. It has also relied on the report or statement of Dr Bruton in which he does not mention that there was a "cadaveric spasm when the gunshot entered the deceased" thereby causing a death grip. This argument is totally lacking in cogency That the cadaveric spasm was not mentioned does not prove beyond reasonable doubt that the deceased never

experienced it. I would have been easily tempted to believe so if the Republic had specifically brought evidence to prove so or Dr Bruton had specifically mentioned so. Omission to state has many causes: negligence inadvertence, concealment etc. That Dr Bruton might have forgotten to mention it is hardly surprising at all. If he forgot to indicate in his notes and report of the autopsy he performed on 11 July 1998 the fact whether or not he opened the mouth of Cliff to check if palate was damaged, which was a hotly contested issue and when he was specifically engaged to do that, can any one be surprised if he not only never mentioned the cadaveric spasm in his report, but may be never considered it at all? My considered answer to this question is in the negative.

The Republic is also contending that "taking the body stature of the deceased, a casing could not have been ejected if a grip was maintained". I have already disposed of this issue. However, for the purpose of satisfying Counsel for the prosecution, I will elaborate further. I did direct the gentlemen assessors that we never saw the deceased who was said to be strongly built. But we saw DW6. He definitely is not a sixfooter as Cliff was said to have been, but he is undoubtedly well built and stout. Yet his grip around the barrel of Exhibit P.2 left a gap along the ejection chamber wide enough to allow the ejection of a cartridge.

While under examination in Chief PW11 strenuously argued that while a person is in the process of dying he is struggling against death and for that reason he "cannot continuously hold to the gun". To him the gun must fall out of his hands. Nevertheless his adamancy waned progressively while under cross-examination. At one point he said.

> Yes, I said that if Cameron committed suicide he could not have been found holding the gun in his hand. I would not agree with you if you say my hypothesis is wrong. For the majority of the people this is not always the case. For the minority of the people it depends on the circumstances of each case. Yes the minority can be found with handguns after committing suicide.

This latter admission is completely devastating as far as the prosecution's contention is concerned. No *iota* of evidence was led by the prosecution excepting the deceased Cliff from this minority. Of course evidence was also led to show statistics of people who have committed suicide with handguns and found with the weapon in their hands. In view of the concession by PW11 that this actually happens, I see no compelling reason to go through Mr Dr Malo's figures, which, all the same were accepted by PW11. That was why on the last question on cross examination he conceded as follows:

> If I had been at the scene of crime on 5 July 1998 I could have been in a position to answer if it is was an accident, a suicide or a homicide.

This piece of evidence tells it all. It is eminently evident from the evidence of PW11 that not only does he now believe that the deceased could have shot himself and still remain clutching or gripping the gun in his hand but also up to this day inspite of all the investigations and re-investigations he is not yet certain on whether Cliff was killed by Cliff or was killed by Kerstin Cliffton Cameron. All said, I concur with the evidence of the Defence as supported by PW11 that the act of the deceased found gripping or clutching the pistol is not consistent only with the same having been planted on him but does happen quite commonly and is also consistent with suicides.

It goes without saying, therefore, that the prosecution has absolutely failed to prove either at all or to the required standards all of the facts it has been relying on to establish the charge of murder against the accused, exclusively on circumstancial evidence. DW5 Hoops was categorical in his evidence on the attitude of Cliff towards life in general. For the sake of clarity and the avoidance of any mistake I will reproduce the relevant portion of his evidence here. He said:

> He (Cliff) became so serious and depressed in the last six or eight months before his death. Cliff did on several occasions express to me that the pressures on him were becoming intolerable and at times he said that he felt like blowing his fucking brains out. This type of conversation continued until the last two weeks before his death.

Indeed it continued until his last evening here on earth. This is evident from the evidence of DW2 Regina. According to Regina on 4 July 1998 at about 6:00pm while at Fleet Air offices the deceased had asked her if she knew what he felt like doing that day when she sighed and said nothing he quickly added: "I feel like blowing my fucking brains out".

He shortly took leave of her and she never saw him again alive. In their very stimulating long submission Counsel for the Republic have urged me to find both Kerstin and DW2 Regina as liars, but DW5 Hoops was not touched at all. I accepted the evidence of DW5 as well as that of DW3, among others, on the dispositions and past habits of Cliff, unreservedly, to be true. This is because I know of no rule of law which bars the reception of evidence prejudicial to the character of the deceased when his death or its cause is in issue; see *Joy v. Phillips Mills Co. Ltd.* (15). DW2 was attacked because she is said to have lied for her employer, Cliff, in the past and so she should have been lying for her present employer, Kerstin. I saw DW2 in the witness box. She was a firm, confident witness who was unshaken by the most rigorous cross-examination mounted by Mrs Sumari. Unlike the white lies or *splendide mendax* she gave to Cliff's creditors on Cliff's instructions that he was not in the office while he was actually inside (and at times hiding himself in the adjoining bathroom), there is no evidence to suggest that she was instructed by Kerstin or anybody on her behalf on what to testify on in this case. DW2 testified truthfully on what she witnessed during her entire 10-month stay with Cliff. I take her to have been a very reliable honest and truthful witness and accept her entire evidence as true. Some of the creditors of Cliff she mentioned who Cliff was running away from were coming from: Bytrade, Balton Tanzania, Modern Refrigeration and Mr Raymond.

The accused Kerstin gave her evidence and stood up well for cross examination, with commendable composure and transparent honesty as already herein indicated. That she broke down and wept at one point while testifying, was not an indication of a guilty conscience

nor were they feigned tears to draw sympathy. She was genuinely touched by the death of her husband whom she then recalled lying on the bed apparently staring at her but dead. I am convinced that she told the Court the truth and I believe her.

On the totality of the evidence on record, I am forced to believe that Cliff might have resigned himself to the philosophy of: "He that dies pays all debts". The Tempest, Act II, Scene 1, L 66 and decided to take his own life. After all, events have an embarrassing way of deflating even not only the most charismatic of politicians but also other stoic personalities of Cliff's type. History is replete with instructive examples. The great probability that Cliff might have taken his own life was not eliminated by the prosecution at all. On the contrary, it was nurtured to almost full maturity by the prosecution itself. The Republic brought not less than seven witnesses to develop and sustain the probability that Cliff took his own life. At this juncture it is no longer of concern whether he shot himself through the mouth or the forehead, although the greatest probability, from the evidence available, is that it was through the mouth or palate.

All said and done I join the gentlemen assessors in their unanimous opinion and hold without any hesitation that the prosecution has failed to prove its case against the Accused beyond reasonable doubts.

I accordingly find the Accused Kerstin w/o Cliff Cameron not guilty as charged of the murder of her husband Clifton Don Cameron or of any other kindred offence, and I hereby acquit her.

RICHARD LUBILO AND MOHAMED SELEMANI v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 10 OF 1995

(From the decision of the High Court of Tanzania at Tabora, Katiti, J. dated 13 December 1994 in Criminal Appeal No. 251 of 1991)

Evidence – Confession – Admissibility of confessions – Confession contained in a statement involuntarily made – Whether admissible – Sections 27, 28 and 29 of the Evidence Act 1967.

The appellants and several others were charged with 35 counts of armed robbery before the District Court of Igunga. The appellants were convicted of eight counts and sentenced to 30 years imprisonment with corporal punishment. They both appealed to the High Court where the convictions and sentences were sustained in four counts. They further appealed. The only evidence upon which the convictions were based was a statement which both the Courts below treated as a confession which was repudiated and retracted by the appellants during the trial.

Held: (i) In order for a confession to be admitted in evidence it must be voluntarily made, as provided under sections 27and 28 of the Evidence Act 1967;

(ii) It is incorrect to say that involuntary confessions are admissible, under section 29 of the Evidence Act 1967, when they are true.

Appeal allowed.

Cases referred to:

(1) *Izengo v. Republic* [1982] T.L.R. 237

(2) *Maona and another v. Republic* Criminal Appeal Number 215 of 1992 (unreported)

(3) *Marus Kisukuli v. Republic* Criminal Appeal Number 146 of 1993 (unreported)

(4) *Maziku v. Republic* [1992] T.L.R. 227

(5) *Mlowo v. Republic* [1995] T.L.R. 187.

(6) *Mtoba v. Republic* [1982] T.L.R. 131

(7) *Republic v. Williams* 2 Den C.C 474

(8) *Republic v. Court,* 7 C.P. 486

(9) *Republic v. Thompson* [1893] 2 QB12

(10) *Tuwamoi v. Uganda* [1969] EA 84

Statutory provisions referred to:

(1) Evidence Act 1967, sections 29, 28,27

(2) Indian Evidence Act 1872, section 24

JUDGMENT

(Dated 17 May 2001)

Lugakingira, J.: The appellants, Richard Lubilo and Mohamed Seleman, were charged in the District Court of Igunga along with several other suspects on 35 counts of armed robbery. The robberies took place in a riotous operation at Ikombandulu mining village, Igunga District , on the night of 26 April 1990. The appellants were convicted on eight counts and awarded concurrent terms of 30 years' imprisonment with corporal punishment. They both appealed to the High Court where the convictions and sentences were sustained in four counts and they further appealed. Richard Lubilo died after lodging a Notice of Appeal but before filing a Memorandum therefore, whereupon the appeal abated on his side. When we heard the side of the remaining appellant, Mohamed Seleman, we allowed the appeal, quashed the conviction and sentence and ordered his release from custody. We reserved our reasons which we now give.

The case was not complex. There was no evidence of identification but it is said that the night of the robberies was dark and that the

atmosphere was terrorizing on account of incessant bursts of gunfire. Additionally, the appellant was not found with any incriminating article but it seems he was arrested on mere suspicion. The only evidence upon which he was convicted at the trial and the conviction upheld on first appeal was a scanty statement in which he associated himself in planning of the operation. This statement, which both Courts below treated as a confession, was taken down by PW10, a ward secretary who is also supposed to be a justice of the peace. However, the statement was not cautioned and the prosecutor was not aware of its existence until PW10 was giving evidence. The appellant was not represented at the trial but he retracted and repudiated the statement alleging torture by the *sungusungu* vigilantes. The allegation was ignored by the trial magistrate who proceeded to base the convictions on the statement. On appeal to the High Court, Katiti, J. observed that apart from the absence of a caution, the statement was most likely prompted by torture from the *sungusungu*. He nevertheless similarly acted on the statement citing for authority section 29 of the Evidence Act 1967 and the decision in *Tuwamoi's case* (1). We think the learned judge misdirected himself in both respects and we proceed to demonstrate this.

First, as regards section 29, the learned judge had this to say:

> ... section 27, it seems to me, is qualified by section 29 ... that notwithstanding promise or threats held out against the accused, the resultant confession should not be rejected unless the Court is of opinion that the inducement or threats was of such a nature, and made in such circumstances, as to lead the said accused person to confess untruthfully. I have closely examined the recorded statements ... and .... I remain to conclude, as did the trial magistrate, that the recorded statement ... contained nothing but the truth.

The learned judge is saying that, unlike section 27, section 29 permits admission in evidence of involuntary statements of confession so long as they are true. The truth he has in mind is the correctness of the account in the statement rather than the truth of the accused person's self-incrimination. That this is so, and as further confirmation of his view that section 29 permits the admission of involuntary

statements, it is sufficient to refer to *Mtoba v. Republic* (2), where he said:

> ... section 29 of the Evidence Act 1967, has introduced a new dimension in the admissibility of confessions. That is, in addition to the test of voluntariness, the test whether or not the inducement or torture was likely to affect the truth of the confession has been introduced, so that, if despite torture or undue influence, the truth content of the confession is not affected, mere allegations of torture will not render the confession automatically inadmissible. But as the provisions under section 29 apply procedurally, for the admissibility of such confession two tests must be carried out, first the Court has to satisfy itself that the confession was voluntary in which case admissibility of the same causes no problem, secondly, if there are allegations of torture, the same Court has to be satisfied that despite or notwithstanding the torture, the truth of the confession was not affected.

We think, with respect, this cannot be a correct construction of section 29 and the problem, as we see it, is to read into the provision what is not there. It seems necessary to set out the provision for ease of reference:

> 29. No confession which is tendered in evidence shall be rejected on the ground that a promise or threat has been held out to the person confessing unless the Court is of the opinion that the inducement was made in such circumstances and was of such a nature as was likely to cause an untrue admission of guilt to be made.

To begin with, the law of this country is that in order for a confession to be admitted in evidence, it must be voluntary. The law places the onus on the prosecution to prove affirmatively the voluntariness of any confession sought to be put in evidence. That is a rule of procedure which emerges from the totality of sections 27 and 28 of the Evidence Act as well as decided cases over the years. Except in the limited context of evidence obtained in consequence of inadmissible confessions, there is no exception or qualification to the rule. Section 29 does not qualify section 27 but it is complementary to it. What the section does is to salvage otherwise voluntary confessions which would be

lost if every promise or threat were taken at face value and to exclude those confessions which are in fact the product of promises and threats. Nowhere in the section is the word involuntary used and nowhere does the expression "true confession" occur, and this is because the section is concerned with voluntary confession as opposed to confessions where the confessing persons might have been induced to make an untrue admission of guilt i.e., to incriminate himself falsely.

Therefore, the question to be considered in relation to section 29 is two-fold: It is whether the accused person was induced by such promise or threat to make the confession. If the answer to both limbs of the question is in the affirmative, the confession is inadmissible. But if, on the other hand, the Court is of the opinion that the promises and threats were not of such a nature and were not offered in such circumstances as to operate on the mind of the accused, the confession is admissible. Such a confession, not being the product of the threats and promises, is a species of voluntary confessions. The question whether or not the threats and promises have operated on the mind of the accused is a subjective one and the Court will have to decide each case on its peculiar facts. Some threats and promises may by their nature make no impression on some people. Should such people go ahead and confess, they will be taken to do so out of their own free will and their confessions will be admissible. Similarly, where the threats and promises are remote in point of time to the confession so as to have had no influence on the mind of the accused, section 30 provides that such a confession is relevant and admissible. But take the example given in Wigmore paragraph 322, of a threat of instant hanging by a mob unless a confession is forthcoming; that may conceivably make the contingencies of a confession, any confession, more desirable than the certain consequence of silence.

Section 29 is by no means an innovation by our Evidence Act but its substance has existed and does exist in equivalent provisions in some other jurisdictions. The underlying principle in all those provisions is that there is a danger where threats or promises are

used for the accused to incriminate himself falsely. In *Republic v. Court* (3) Littledale, J. said:

> The object of the rule relating to the exclusion of confessions is to exclude all confessions which may have been procured by the prisoner being led to suppose that it will be better for him to admit himself to be guilty of the offence which he really never committed.

This passage is cited in **Basu** (1942: 407) in illustration of comments on section 24 of the Indian Evidence Act 1872, which although differently worded, has the same objective as our section 29. In general the position of the confessing person which causes disrust is that of being compelled to choose between two alternatives, one of which involves a confession of guilt irrespective of its truth or falsity.

It is also opportune at this juncture to emphasize that there is a distinction between the truths or correctness of a confession, which Katiti, J. had in mind, and the truth of self-incrimination by the accused. Section 29 is not concerned with the former, and makes no mention of it, but it is concerned with the latter. A confession may therefore be true, that is, a correct account of what took place, but it may be false in the aspect of self-incrimination by the accused. Where there is likelihood of an untrue admission of guilt being made, the confession has to be excluded even if it be true in all other respects. We wish to illustrate this proposition with the position in England. In *Republic v. Thompson* (4), it is thus said, citing Pollock, CB in Republic *v. Williams* (5):

> ... the true ground of the exclusion is not that there is any presumption of law that a confession not free and voluntary is false, but that it would not be safe to receive a statement made under any influence or fear.

In the same *William's case,* Campbell, C.J. said:

> I doubt whether the rule excluding confessions made in consequence of an inducement held out proceeds from the presumption that the confession is untrue; but rather that it would be dangerous to receive such evidence, and that for the due administration of justice it is better that it should be withdrawn from the consideration of jury.

Finally, in the discussion on section 76(2) of the English Police and Criminal Evidence Act 1984, another equivalent of our section 29, **Halsbury's Laws of England,** (4 ed), Volume11, paragraph 1124, states:

> If, in any proceedings where the prosecution proposes to give in evidence a confession made by an accused, it is represented to the Court that the confession was or may have been obtained (1) by oppression of the person who made it; or (2) in consequence of anything said or done which was likely, in the circumstances existing at the time, to render unreliable any confession which might be made by him in consequence thereof, the Court may not allow the confession to be given in evidence against him, except in so far as the prosecution proves to the Court beyond reasonable doubt that the confession, notwithstanding that it may be true [emphasis supplied], was not so obtained.

In the light of these observations, with which we agree, and our own appreciation of the position, it is incorrect to say that involuntary confessions are admissible under section 29 when they are true. Until the prosecution have established that the accused was unlikely to make an untrue admission of guilt, the truth of the statement matters for nothing.

There are in fact decisions of the High Court and this Court which reflect our view of section 29. One such decision is by Rubama, J. in *Izengo v. Republic* (6). After accepting the prosecution evidence that the appellant had been severely assaulted before making the confession attributed to him, the late judge said:

> Going by the testimony of PW4 one tends to believe that this assault had preceded any confession made by the appellant. In accordance with section 29 of the Evidence Act 1967, I hold that this admission of guilt, if it was ever made ..., was made in such circumstances and was of such a nature as was unlikely to be a true admission of guilt. The appellant must have made it to save his life.

The learned judge was unconcerned whether the confession was true; it has to be rejected because the appellant made it to save his life

and may, therefore, have made an untrue admission of guilt. The other decision is, ironically, one by Katiti, J. himself.

In *Maziku v. Republic* (7) the learned judge had this to say after referring to section 29:

> ... it is a view I humbly hold, again that a confession is not just rejectable because threats have been made. Not at all in my view. This is because it is for the prosecution to prove voluntariness of the confession, and once a threat has been shown to have been made, the Court may presume that it induced the confession until the prosecution proves that there was no casual connection – see *Smith* [1959] 2 QB 35; [1959] 2 All ER193. So that where you have threats and a confession far apart, without casual connection and no chance of such threats inducing confession, *such confession should be taken to be free of inducement, voluntary and admissible* [our emphasis].

That is precisely the essence of section 29 although the learned judge thought he was saying something in addition to it. The section is about free and voluntary confessions which, despite threats and promises, are not the products of such.

At the level of this Court it has been pointed out that section 29 mentions promises and threats only, but not actual torture. Where torture is alleged this Court has taken a more serious view and has implicitly presumed an associated confession to be vitiated and incapable of admission under section 29. This position is well stated in *inter alia*, *Moana and another v. Republic* (8) and *Marus Kisukuli v. Republic* (9). We are, not unaware of *Mlowo v. Republic* (10) where this Court said:

> ...if a confession was involuntary, then it will be accepted under section 29 if the Court is of the opinion that the confession constitutes the truth.

In view of what we have endeavoured to show this statement is not without difficulty and it may require re-examination. But it should be noted that the Court was quick to add:

> We may point out that this holding is not in conflict with our previous decision in *Marus Lisukuli v. Republic*. There we said that section 29 cannot be used where there is actual torture. Here there was no proof of torture but only threats thereof.

The Court therefore appears to have been saying that with threats only, it may be possible to make an admissible confession, but not with torture.

Reverting to the case at hand, what is the position? Ideally, matters of voluntariness of a confession are determined in a trial within a trial and it is at that stage that the application of section 29 is considered. All the same, even at the appellate stage, the appellate Court would be entitled to review the evidence and make its own findings. In this case Katiti, J., pointedly observed that the appellant's statement was most likely prompted by the *sungusungu* torture.

Having said so, he could not then turn to section 29 because the section does not permit the admission of involuntary statements and in view of the position taken by this Court where torture is alleged. Had he directed himself properly on the application of the section, he would have considered the appellant's allegation that he was in *sungusungu* custody for ten days and that there were about 30 of them – the type of mob that Wigmore has in mind. He would further have considered the fact that the appellant was taken out of *sungusungu* custody for interrogation by PW10 and returned to them thereafter, which made the connection between his ordeal and his statement not just casual but real. When the appellant was finally handed over to the police, he was taken to hospital for treatment. He tendered a medical chit, Exhibit D1, which is duly listed but not contained in the Record of Appeal. In the absence of any evidence by the prosecution in refutation of all this, we think, on a proper direction, the learned judge would inevitably have held that the inducement held out to the appellant was of such a nature and was made in such circumstance as was likely to cause an untrue admission of guilt to be made. He would consequently have rejected the statement.

The misdirection on the application of *Tuwamoi's* case will be briefly dealt with. It similarly derived from the supposed truth of the appellant's statement. The learned judge said:

> Ordinarily, as a matter of practice, corroboration of a retracted/repudiated confession has to be supplied before basing a conviction thereon, though the Court may rely on the same and convict without corroboration if the Court is fully satisfied....that the confession is verily true – see *Tuwamoi v. Uganda* (10) ... So it would seem to me that the overriding factor is the truthfulness of the confession . I have, with respect, sweatingly scrutinized the above statements, I have given them omnipresent opportunity of consideration, and I have emerged fully satisfied that the same disclose nothing but the truth, and on the authority of the above case, I hereby uphold the convictions ...

The judge is of course correct that the Court may base a conviction on a retracted or repudiated confession without corroboration if it is fully satisfied it is true. That, however, is only part of the story. The confession must be voluntary in the first place, and *Tuwamoi* does not purport to lay down that a conviction may be founded on an involuntary confession if it is true.

This is what was said in the case, at page 91:

> A conviction can be founded on a confession of guilt by an accused person. The prosecution must first prove that this confession has been properly and legally made. The main essential for the validity of a confession is that it is voluntary, but the other legal requirements for each territory must also be established ... if the Court is satisfied that the statement is properly admissible and so admits it, then when the Court is arriving at its judgment it will consider all the evidence before it and all the circumstances of the case, and in doing so will consider the weight to be placed on any confession that has been admitted. In assessing a confession the main consideration at this stage will be, is it true? And if the confession is the only evidence against an accused then the Court must decide whether the accused has correctly related what happened and whether the statement establishes his guilt with that degree of certainty required in a criminal case. This applies to all confessions whether they have been re-tracted or repudiated or admitted ...

What this passage says is that in order for any confession to be admitted in evidence, it must first and foremost be adjudged voluntary. If it is involuntary, that is the end of the matter and it cannot be admitted. If it is adjudged voluntary and admitted but it is retracted or repudiated by the accused, the Court will then as a matter of practice look for corroboration. But if corroboration cannot be found, that is, if the confession is the only evidence against the accused, the Court may found a conviction thereon if it is fully satisfied that the confession is true. In this context the truth relates to the correctness of the account given. There is no question, therefore, *Tuwamoi* authorizing conviction on involuntary statements on the ground that they are true. Indeed a glance through the reported cases in which that decision has been cited and applied will reveal that the confessions in question were first adjudged voluntary in a trial within a trial. In the case before us the High Court found that the appellant's statement was not voluntary. That should have marked the end of the matter and *Tuwamoi* did not apply. The statement, being involuntary, was illegal and inadmissible and the Court was precluded from looking for corroboration or considering whether it was true. Once, again it had to be rejected.

As stated earlier, there was no other evidence implicating the appellant in the robberies except his statement. We think it has sufficiently been demonstrated that the statement was improperly admitted and acted upon. It is for these reasons that we were of the opinion that the appellant's convictions were bad in law and made the orders stated at the beginning.

SHINYANGA TOWN COUNCIL *v.* TANZANIA BREWERIES LTD

HIGH COURT OF TANZANIA AT TABORA

(Mwita, J.)

CIVIL CASE No. 5 OF 1999

Administrative Law – Administrative action – Challenging an administrative action for being unconstitutional – Whether an application under section 4 of the Basic Rights and Duties Enforcement Act 1994 is the only way of challenging such action.

Constitutional Law – Administrative Action – Resistance to an unconstitutional administrative action – Whether an application under section 4 of the Basic Rights and Duties Enforcement Act 1994 is the only way.

The plaintiff sued the defendant for non-payment of an industrial cess imposed by the plaintiff by virtue of Government Notice Number 186 of 1998. In its defence, the defendant raised a counter claim seeking, *inter alia*, a declaration that the Government Notice was unconstitutional. There upon, the plaintiff raised an objection claiming that because the defendant was alleging contravention of basic rights under the Constitution, it should institute a separate suit under section 4 of the Basic Rights and Duties Enforcement Act 1994 which would require the Court to be composed of three judges in order to hear the case.

Held: (i) The provisions of section 4 of the Basic Rights and Duties Enforcement Act do not preclude a person from seeking redress for contravention of the provisions of sections 12 to 29 of the Constitution by ways other than instituting an action under section 4 of the Act.

(ii) The validity of an administrative action can be challenged by way of defence to a criminal charge or, as in this case, defence to a demand for some payment.

(iii) Under section 8(2) of the Basic Rights and Duties Enforcement Act 1994, the High Court may reject an application under section 4 of the Act if satisfied that

adequate means of redress for the alleged contravention are available to the applicant under some other law;

(iv) The defendant in this case has the right to challenge the validity of Government Notice Number 186 of 1998 by way of defence to the suit for payment of the industrial cess imposed under the said Notice.

Preliminary objection overruled

Cases referred to:

(1) *Boddington v. British Transport Police* [1998] NLJ Law Reports 515

(2) *Customs and Excise Commissioner v. Cure and Deeley* [1961] 3 All ER 641

(3) *Daymond v. Plymouth City Council* [1975]3 All ER 134

(4) *Wandswort LBC v. Winder* [1985] AC 461

Statutory provisions referred to:

(1) Basic Rights and Duties Enforcement Act 1994, Act Number 33 of 1994, sections 3, 4 and 8(2)

(2) Constitution of the United Republic of Tanzania1977, sections 12 to 29.

(3) Civil Procedure Code 1966, Order XIV, rule 2

Mr Kaunda, for the Plaintiff

Mr Mbwambo, for the Defendant

RULING

(Delivered 17 May 2001)

Mwita, J.: By virtue of GN Number 186 of 1998 Shinyanga Town Council (now Municipal Council) is empowered to impose industrial cess on certain industrial products, including beer, which are either locally produced or sold within the area of jurisdiction of the said Council. In exercise of its power under the said by law the said Council

imposed a cess of TZS. 1 in respect of every bottle of beer sold within its area of jurisdiction with effect from July 1997. GN Number 186 of 1998 is deemed to have come into force on 1 July 1997.

The defendant is among the sellers of beer within the area of jurisdiction of the said Council. For some time the defendant paid to the said Council cess at the rate of TZS. 1 per bottle of beer, then declined to pay any cess.

On 24 May 1999 Shinyanga Town Council (plaintiff) instituted a suit against the defendant claiming the amount of cess then due. By its Written Statement of Defence the defendant disputed the plaintiff's claim on the ground that the cess demanded is equivalent to double taxation and in its counter-claim the defendant seeks a number of declaratory orders including a declaration that GN Number 186 of 1998 is *ultra-vires*, unconstitutional and unreasonable.

When the suit came up for hearing on 30 June 2000 Mr Mbwambo, the defendant's advocate, raised a preliminary objection touching on the validity of GN Number 186 of 1998. On 25 of September 2000 I made an order to the effect that, in so far as the issue of the validity of the said by-law may dispose of the suit, in terms of rule 2 of Order XIV of the Civil Procedure Code 1966, the issue of the validity of GN Number 186 of 1998 be tried first. When the matter came up for hearing on 10 May 2001, Mr Kaunda, Advocate for the plaintiff, raised a preliminary objection to the effect that in so far as the defendant appears to raise the issue of contravention of its basic rights under the Constitution, then the defendant should institute a separate suit under section 4 of the Basic Rights and Duties Enforcement Act Number 33 of 1994. The implication of that is that this Court lacks jurisdiction to entertain the defendant's count-claim as a suit under section 4 of Act Number 33 of 1994 must be tried by a Court composed of three judges.

In terms of section 3 of Act Number 33 of 1994 that Act applies only to an allegation in the defendant's counter-claim that appears to be capable of being within the ambit of Part III of Chapter One of

the Constitution since the allegation is that G.N Number 186 of 1998 is discriminatory, the issue is whether redress for such constitutional contravention can only be obtained by instituting a suit under section 4 of Act Number 33 of 1994.

Section 4 of Act Number 33 of 1994 provides:

> If any person alleges that any of the provisions of sections 12 to 29 of the Constitution has been, is being or is likely to be contravened in relation to him, he may, without prejudice to any other action with respect to the same matter that is lawfully available, apply to the High Court for redress.

It is clear from the above provision that it is not mandatory that redress for contravention of any of the provision of section 12 to 29 of the Constitution must necessarily be sought by instituting a suit under section 4 of Act Number 33 of 1994. In other words section 4 does not preclude a person from seeking redress for contravention of the said provisions of the Constitution by other lawful action open to him apart from instituting a suit under section 4.

The next issue is whether the defendant in this matter has other lawful action open to him apart from instituting a suit under section 4. In other words, whether challenging the validity of GN Number 186 of 1998 in the manner it is being done in this suit is proper.

In **Administrative Law** by Wade, (4 ed), at page 285 it is stated:

> ... the Court will treat an administrative act or order as invalid only if the right remedy is sought by the right person in the right proceedings. The question now is what are the right proceedings in which the validity of the act or order can be challenged. It may be challenged directly, as in proceedings for *certiorari* to quash it or for a declaration that it is unlawful. But it may also be challenged collaterally, as for example by way of defence to a criminal charge, or by way of defence to a demand for some payment.

A firm may resist a demand for purchase tax by showing that the assessment is made under and invalid regulation; *Customs and Excise Commissioner v. Cure and Deeley* (1); and a rate payer may similarly resist a rate demand: *Daymond v. Plymouth City Council* (2).

In *Boddington v. British Transport Police* (3) the House of Lords held that in the absence of a clear parliamentary intention to the contrary, a defendant is entitled to raise a defence to a criminal charge the contention that subordinate legislation under which he is prosecuted, or an administrative decision made thereunder is *ultra vires* and unlawful and that if he establishes that he has committed no crime.

Lord Irvine LC said:

> In approaching the issue of statutory construction the Courts proceed from a strong appreciation that ours is a country subject to the rule of law. This means that it is well recognized to be important for the maintenance of the rule of law and preservation of liberty that individuals affected by legal measures promulgated by executive public bodies should have a fair opportunity to challenge these measures and to vindicate their rights in Court proceedings. There is a strong presumption that Parliament will not legislate to prevent individuals from doing so.

It is clear, therefore, that a defendant in civil proceedings and an accused person in criminal proceedings is entitled to raise a defence by way of collateral challenge in respect of by-laws that affect their rights. The principle in Civil Cases was demonstrated in *Wandswort LBC v. Winder* (4), where a defendant was permitted to raise, by way of defence to possession proceedings brought by council for non-payment of rent, the argument that he was not liable for arrears because certain resolutions and notices of increase were *ultra vires* for unreasonableness.

Sub-section (2) of section 8 of the Basic Rights and Duties Enforcement Act 1994 provides:

> The High Court shall not exercise its power under this section if it is satisfied that adequate means of redress for the contravention alleged are or have been available to the person concerned under any other law, or that the application is merely frivolous or vexatious.

In the instant matter the defendant, having been sued for non-payment of cess imposed under GN Number 186 of 1998, is entitled to raise a defence by way of collateral challenge relating to the validity of the said by-law. Since the defendant has adequate means of redress available to it an application under section 4 of Act Number 33 of 1994 may be rejected.

For the above reasons the preliminary objection by the plaintiff is overruled.

CRDB BANK LIMITED *v.* DAMAS JOSEPH MALLYA

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Kalegeya, J.)

COMMERCIAL CASE No. 63 OF 2000

Banking – Collecting bank – Collecting bank sends cheque to drawee bank for payment – Collecting bank observes the value date procedure – After expiry of 14 days allows payee to draw – Within a span of hardly two weeks payee withdraws almost all the money deposited – After such withdrawals it is discovered the cheque has disappeared – Whether the bank may recover the money paid out.

Banking – Bank pays money to payee by mistake believing a cheque sent for collection has been paid – Later it is discovered cheque has disappeared – Whether bank can recover money paid out by mistake from the payee.

Banking – Bank pays money to payee by mistake – Basis of recovery of money paid out by mistake.

Banking – Bank pays money to payee by mistake – Whether bank can exercise the right of set-off – Whether bank can combine a personal account and an account of a company in which defendant is director.

Banking – Tracing – Bank pays money to payee by mistake – Whether bank can trace the proceeds to accounts other than the account of defendant.

Bills of exchange – Holder for value – Customer allowed to withdraw before proceeds of cheque were cleared – Later it is discovered that the cheque is lost – Banker becomes holder for value

A cheque worth TZS. 48 835 000, drawn on NBC Samora Branch, Dar es Salaam, in favour of the defendant was deposited in the defendant's personal account at CRDB Dodoma Branch. After observing the value date procedure, i.e., upon expiry of 14 days from the day the cheque was deposited, the defendant was allowed by the plaintiff to draw. Within a span of 12 days the defendant had withdrawn a total of TZS. 47 million from the account. Out of the money withdrawn TZS. 8 million was deposited in an account of a company in which the defendant was director.

After these withdrawals it was discovered that the relevant cheque which had been sent by CRDB Dodoma Branch, a collecting bank, to the paying bank for payment had disappeared. The plaintiff bank turned to the defendant for return of the money or assistance to trace the drawer. When the defendant proved to be uncooperative, since he had four accounts in the same bank branch, the plaintiff bank decided to combine the accounts and therefore was able to recover TZS. 10 789 700 out of the TZS. 47 million, leaving a balance of TZS. 36 200 300 the subject matter of this case.

The Court considered various issues including whether and under what circumstances money paid under a mistake of fact is recoverable, and whether the bank was right to combine the accounts of the defendant.

Held: (i) The general principle underlying the requirement that money paid by mistake of fact must be refunded is that the law should not countenance unjust enrichment; the law should not permit a person to retain a benefit unjustly derived from the other;

(ii) In this case the mistake is as to a matter of fact in that the collecting banker assumed that the cheque had in fact been cleared because as per the obtaining value-date procedure, fourteen days had elapsed without the cheque being dishonoured or without receipt of any kind of communication which would otherwise affect its payment;

(iii) Once there is payment by mistake the Court should be concerned with who in the circumstances is a holder of unjust riches and who holds the card in the blame;

(iv) Thus, once there is payment by mistake it should be left to the Court depending on the facts of a particular case to decide on who should not be allowed to have unjust enrichment to the extent, for example, that in a fitting situation the payer can proceed against both the payee and the drawer at the same time, the payee being a necessary party;

(v) Since the defendant made it impossible for plaintiff to get a duplicate cheque by being totally indifferent and uncooperative, justice dictates that the defendant should not escape liability;

(vi) In the circumstances of the case, i.e., his role in the whole transaction, the defendant is liable to refund the sum mistakenly paid out to him;

(vii) While the general principle of combination of accounts or set-off would not apply in this case because technically the owners of the two accounts are two different entities, yet the bank has a right to trace the proceeds of the mistaken payment deposited into other accounts operated by the same customer even if under the veil of a company, provided the said sum is not yet withdrawn;

(viii) Although legally the customer is not owner of the account which holds part of the proceeds mistakenly paid out, where a customer is mistakenly paid by a banker in a situation where the customer is liable to refund the sum so mistakenly paid, the banker has a right to trace the proceeds of the mistaken payment deposited (whether by design or otherwise) into other accounts operated by the customer even if under the veil of a company provided the said sum is not yet withdrawn;

(ix) The bank was constituted holder for value of the lost cheque after it was deposited and subsequently, after observing the value-date procedure, the bank allowed the payee to withdraw.

Judgment for plaintiff

Cases referred to:

(1) *Barclays Bank Plc v. Bank of England* [1985] 1 All ER 385

(2) *CRDB Bank Ltd. v. Calist Silayo t/a Seleka Investment*, Civil Case Number 5of 1998, (HC) Moshi Registry, (unreported)

(3) *Greenwood Teale v. William Williams Brown and Co.* [1894] 11 T.L.R. 56

(4) *Morgan v. Ashcroft* [1938] 1 KB 49

(5) *National Westminster Bank Ltd. v. Barclays Bank International Ltd and another* [1975] 1 QB 654

(6) *NBC v. Perma Shoe Company* [1988] T.L.R. 224

(7) *Nhangwa v. Simon Chamlulu*, (PC) Civil Appeal number 87 of 1993 (Dodoma Registry, unreported)

(8) *RG Patel v. Lalji Makani* [1957] EA 314

(9) *Rouxel v. Royal Bank of Canada* [1918] 2 WWR 791

(10) *Yahaya S. Makoluma v. NBC Holdings Corporation Ltd,* Civil Appeal number 44 of 1997

Statutory provisions referred to:

(1) Civil Procedure Code, Order XIV, rule 5

(2) Evidence Act, Order 591(a)

(3) Bill of Exchange Ordinance Chapter 215, section 6

Mr Lyimo, for the plaintiff

Mr Nyabiri, for the Defendant

JUDGMENT

(Delivered 21 May 2001)

Kalegeya, J.: The plaintiff is before this Court claiming "for the refund of the sum of TZS. 38 045 300 being part of the amount of money fraudulently withdrawn by the defendant from the plaintiff's branch at Dodoma, against uncleared effect". Apart from the above the plaintiff also prays for:

(a) General damages

(b) Interest on the principal sum from the date the withdrawals were made to the date of judgment at the rate of 31% per annum.

(c) Interest on the decretal sum from the date of judgment to the full payment at the Court rates.

(d) Costs

(e) Any other relief(s) this Court may deem proper to grant

On the other hand the defendant not only disputes the claim in total but also counter-claims. He claims to be paid a total of TZS. 10 799 700 allegedly unlawfully confiscated by the plaintiff. Further prayers included:

(i) An order for payment of interest at commercial rate of 31% per annum on the principal sum from 25 September 2000.

(ii) An order for payment of interest at Court rate from the date of filing the counter-claim till payment of the decretal sum and the usual prayers for costs and any other relief deemed proper by the Court.

Mr Lyimo, of Deograias J Lyimo and Co. Advocates, represents the plaintiff while the defendant is represented by Mr Nyabiri of Rweyongeza and Co. Advocates. The plaintiff called three witnesses while the defendant stood on his own.

Issue one is in two parts, one being in the alternative of the other, that is, whether the sum of TZS. 48 million was fraudulently withdrawn by the defendant or, whether the sum of TZS.48 million was withdrawn by the defendant with the approval of the plaintiff basing on the value date of 10 August 2000, pending clearance of the cheque deposited by defendant. However, as the evidence adduced shows that the total sum withdrawn is TZS. 47 million and not 48 million, part one of the issue is amended so as to reflect a sum of TZS. 47 million and not TZS. 48 million, acting under Order XIV, rule 5(1) of the Civil Procedure Code. The last issue is; to what reliefs are parties entitled.

The following matters stand undisputed. The defendant is a seasoned customer of the plaintiff's branch at Dodoma. He operated four accounts at the Branch in two Capacities. Account Number 01J1081252900

is in his personal name while the remaining three are operated in his Chapter as a Director. Account Number 0J1081469300 is in the name of Hotel DM while Account Numbers 01J1081248100 and 160081248100 are in the name of Datco. The defendant is the Director of both account holders.

On 25 July 2000 the defendant deposited with his branch (in the personal Account Number 01J1081252900) cheque Number 008901045 drawn by m/s. Ismail General Suppliers in his favour. The cheque was for a sum of TZS. 48 835 000. The drawer had an account with NBC Ltd. Samora Branch, Dar es Salaam. The account was number 6553900898. By the time the said cheque was being deposited the defendant's Account had a balance of TZS. 41 700 and no other deposit was made till 23 August 2000 when TZS. 600 000 was deposited from Mwanza. Between 10 August 2000 and 22 August 2000 the defendant withdrew from his account a total of 47 million as follows:

(a) TZS. 10 million vide cheque number 030556 on 10 August 2000

(b) TZS. 11 million vide cheque number 030559 on 12 August 2000 payable to Jitendra Vinod Rathod who had account number 01J1027208000 with CRDB Branch Azikiwe.

(c) TZS. 8 000 000 vide cheque number 030558 on same date 12 August 2000, which sum was credited in Datco Account number 01J1081248100

(d) TZS. 5 million vide cheque number 030560 and

(e) TZS. 13 million vide cheque number 030562 dated 22 August 2000.

After the withdrawal of 22 August 2000 the balance in the Account stood at TZS. 1 853 200 the total Bank balance having been reduced that much by the withdrawal of the TZS. 47 million in total and deductions of Bank commission and service fee for the deposited cheque. A part from TZS. 600 000 deposited on 23 August 2000, two further deposits were made into the Account TZS. 350 000 on 25 September 2000 and TZS. 700 000 on 13 September 2000. By 16 September 2000 the account had a balance of TZS. 2 799 700

The plaintiff permitted defendant to start withdrawals on the deposited cheque, 14 days after depositing the cheque and prior to each withdrawal he (defendant) asked and was given his bank balance.

However, it was soon discovered that the relevant cheque did not reach the plaintiff's clearing Bank in Dar es Salaam nor the drawers Bank, NBC Samora Branch. In short, it disappeared! The plaintiff turned to defendant for return of the money or assistance to trace the drawer. None proved fruitful hence the action.

PW1 and 3 (Pamui, Department Manager, and Munyele, Controller, respectively) are the plaintiff's employees stationed at Dodoma Branch. They both deposed on how the relevant cheque was deposited; how as per obtaining procedure it had to be sent to the head office in Dar es Salaam for clearance. They deposed further that for upcountry cheques, of which the cheque in dispute was one, a customer is allowed to start withdrawals thereon 14 days after depositing it if it is not dishonored. They term this as 'a value date' procedure and insist that this is as per Bank of Tanzania Regulations and that this is what happened with defendant. PW3 in very certain terms deposed that he as a controller is the last person to verify all mails to be dispatched by EMS by comparing the contents of the entries and the Register and signing before handing it over to the dispatch personnel for onward transmission to EMS. He insisted that he did the same with the effects containing the relevant cheque.

The said witnesses deposed further that during reconciliation with the head office it was discovered that in fact the cheque in question did not reach the head office; they called defendant who became uncooperative by failing to return the money or assist them trace the drawer arguing that he should first be shown the cheque in question which made them cast suspicions on him.

PW2, Tarimo, who works with NBC Ltd, Samora Branch as a Supervisor Incharge of Customer Service Department, deposed that M/s Ismail General Supplies is their Customer with current Account Number 6553900898; that the last transaction by the customer was

made on 9 July 1999 with cheque number 008901044 and that this left a balance of TZS. 2 462-40 and as of now the account is closed as the last balance was charged for Bank Commission on 27 July 1999.

On his side, the defendant maintains that the cheque was given to him by one Said Abdi, Director of M/s Ismail General Suppliers for the purposes of maize buying business; that he was to provide transport; that after 5 trips of 10 tons each Said called business to an end; that he was paid TZS. 1 million as transportation charges and returned the balance to owner. He stated that at times he gave Said his own cash at hand. He insisted that he does not know Said's whereabouts – whether by office, business premises or residence. Regarding the cheque, he argues that he started withdrawing with plaintiff's permission; does not know what happened to the cheque and maintains that his money now blocked, should be released to him.

Now, for the analysis of the evidence and issues, I will start with the drawer's role in this. On the evidence adduced I am satisfied that it has sufficiently been proved that M/s Ismail General Suppliers issued the cheque while aware that there were no funds in the Account to meet its demand. Although Mr Nyabiri seeks to challenge PW2's testimony by arguing that these are bare assertion hence no proof I am settled in my mind that this evidence discharges the burden of proof required in civil matters. PW2 is a Senior Personal in the Bank. She is the incharge of the Customer Service Department under which Current Accounts, including M/s Ismail General Suppliers Account, fall. She is not speculating but testifying on what her work takes her into. Not only that. We have also Exhibit P1, a letter from the Director of Audit and Investigations, NBC Ltd, addressed to the plaintiff's Director of Internal Audit, which stands unchallenged and which states as under:

> **Re: Request For Confirmation**
>
> Your letter ref. number DIA/OF/37 dated 9 October 2000 on the above heading refers. We confirm that, M/s Ismail General Suppliers is a customer maintaining account number 6553900898 at our Samora Branch. The Customer was issued with a cheque book ranging from Numbers 008901001-008901050. Last cheque utilized was number 008901044. This account has a nil balance thus, cheque number 008901045 could not debit this account.

The totality of this cogent evident is not bare assertions as Mr Nyabiri would wish to have it branded when he sought the assistance of the decision in *Emmanuel Nhwanga v. Simon Chamlulu* (1) which castigated reliance by Courts on bare assertions of witness.

Naturally, an account with "NIL" balance in the absence of overdraft (or a similar arrangements) cannot accommodate any withdrawal thereon let alone TZS. 48.8 million. And in this obvious situation, it is most likely that the Drawer has a hand in the disappearance of the cheque in question. Why shouldn't he? It would have been dishonoured in any event regard being had to state of his account, with disastrous consequences on him including possible criminal prosecution. The only question on this is whether defendant was in the scheme.

Submitting on issue one, Mr Lyimo fronts as elements establishing fraud as follows – withdrawing the money within a short period; transfer of monies into account and payees unconnected with the alleged maize business; failure to call Drawer as a witness and insistence that the cheque should be revealed first before he can call upon drawer to issue another one. He cited *CRDB Bank Ltd v. Calist Silayo t/a Seleka Investment* (2), Moshi Registry (unreported).

I should outrightly state that although the burden of proof in civil matters is merely on a balance of probability, unlike in criminal matters where it should be beyond all reasonable doubt, where fraud is alleged, this being a serious vice, the burden of proof required is above the ordinary. I am on all fours with Mr Nyabiri on this and for which he rightly backed himself up with what was stated in *RG Patel v. Lalji Makani* (3) at page 316, in the following wording:

> Allegations of fraud must be strictly proved. Although the standard of proof may not be as heavy as beyond reasonable doubt, something more than a mere balance of probability is required.

On the evidence at hand the defendant is indeed a suspect but the evidence falls short of the standard required to establish fraud. The withdrawal manner casts no doubt the way alleged. These withdrawals were staggered over a period of about one month. It would have been different if he had withdrawn the same once or within a period close to such situation. In business circles and dealings, withdrawal of a total of TZS. 47 million *per se* cannot attract the raising of eyebrows. I must concede however that there is in existence a suspicious climate.

Indeed, any common mind looking at defendant's general behavior cannot escape casting doubts on him. He talks of a stranger, Said, landing unto him and handing him a cheque worth TZS. 48.8 million. They have to jointly deal in maize business. However, his commitment in here is to provide just transport for which he will be paid and that is his only share in the deal! He does not know him in any other capacity. They have never known each other before. He does not know where his business office is nor his residence. Even after getting information regarding the problems with the cheque he does not bother to get him. Even after he is landed in Court he makes no attempt to trace him although his drivers allegedly know where the maize was being ferried. When contacted by the bank he becomes uncooperative including making un-intelligible demand that they should first produce the cheque as if the issue was that it was dishonoured when the issue concerned loss of the same. Indeed, he is all over splashed with suspicion.

However, all the above notwithstanding, no fraud in certain terms had been proved against the defendant. If he is a player in this game he successfully cocooned himself in the safe-zone of the play-ground. He deposited the cheque; displayed all due patiency until the Bank allowed him to effect withdrawals. Facts in here are different from those that existed in *Calist Silayo* case cited by plaintiff because in the latter case it was established by direct evidence that the drawer, payee and some bank officials had conspired to perpetrate the crime. On the basis of the evidence at hand therefore part of issue one- whether the TZS. 47 million was withdrawn by defendant fraudulently

– is answered negatively. Acting on same evidence however, the other part of issue has to be answered positively. Why?

PW1 and 3 unchallengedly testified that as per the banks procedure, and as permitted under the Bank of Tanzania Regulations, up-country cheques (under which the relevant cheque falls) are given a value date – that is a customer is allowed to effect withdrawals on cheque deposited after elapse of 14 days if there is no notice of the same having been dishonoured. The defendant seems to have been aware of this (PW1 convincingly testified that he informed him of this on the very day the cheque was deposited) because he acted exactly on time – the cheque was deposited on 25 July 2000 and on 10 August 2000 he went to the Bank to check his balance and effected the first withdrawal on the same day. PW1 deposed:

> On the same day we informed Mr Maliya of the clearing days as set by the BOT. These are the days he had to wait before he draws on the basis of that cheque. It was 14 days. This is the period set by BOT. The said period was to expire on 10 August 2000. The expiry date and value date are the same. After the relevant date instrument has value and not before. This period set assumes that the clearing will go on smoothly and you have to pay your customer. If the paying bank has not responded within 14 days, the instrument will be taken to have been honoured. We didn't receive any response from the paying Bank. After the value date we paid Mr Maliya.

I should pose here and observe that, after the closure of the trial the plaintiff's Counsel dispatched to the Court a copy of a document entitled. "Bank of Tanzania – Regulations and Rules for the Dar es Salaam Bankers' Clearing House (DBCH)", and copied the same to defendant's Counsel. Although during the trial the witnesses made reference to the Bank of Tanzania Rules, as this was not tendered as an Exhibit, I cannot make a direct reference to it in this judgment.

Under section 59(1)(a) of the Evidence Act the Court is supposed to take judicial notice of all laws, rules and regulations obtaining in the United Republic of Tanzania but the regulations and rules envisaged

are those made under Acts of Parliament and not rules and regulations made by persons, or group of people just for their internal regulations or guidance. It would have been different if it was pointed out that they are Regulations made under the Bank of Tanzania Act. Neither plaintiff's witnesses nor the Counsel so ventured. Nor does a scrutiny of the document reveal any statute under which they could have been possibly made. So, the only avenue the document could have been placed on record would have been through its production as evidence which was seemingly overlooked.

The above apart, however, I am satisfied with PW1 and 3's testimony that the plaintiff did not act out of normality in allowing defendant to effect withdrawals 14 days after the cheque was deposited. There was no negligence Exhibited at all on their side as seemingly propounded by the Defence.

Mr Nyabiri, Councel for the defendant, charges:

> ...either the bank was extremely negligent in its handling of the cheque; or did so with malicious intention to deprive the defendant of his money.

On the evidence at hand, this has no base to support it. Starting with the latter proposition, I fail to see how the bank would stand to gain by hiding the said cheque. There is no allegation of corruption; no allegations of double payment; no allegation of enemity between defendant and any of the banks officials – in fact, it is in evidence that he was one of the customers held in high esteem – thus this wild conclusion naturally comes out as a surprise.

So also is my surprise on the wild allegations of "extreme negligence" – what the bank officials did was in accordance with the obtaining practice and procedure. That the system allowed for obvious risks as exemplified by what happened in this case is a different matter. Indeed, I should strongly observe that this practice is prone to abuse and risks as conmen scattered the world over, either on their own or in collaboration with unfaithful bank officials at both ends and mail deliverers can exploit it with disastrous consequences to banks in plaintiff's position. What is needed to perpetrate this is simply to

have a drawer who has an account with "nil" balance at bank A issue a cheque which if deposited at bank B by the payee that would qualify to be termed a country cheque; then station guards (or even a guard) at any point thereafter in the movement line (either at the presenting bank, the mail deliverers clearing house or drawer's bank) who would seize the cheque and cause it to disappear so as to have the 14 days period elapse after which spirited withdrawals are put into effect. The simplicity of such schemes permitted by *lacunas* in the procedure need no orchestration.

Back to the issue before us, the procedure as explained by these witnesses (PW1 and 3) stands as follows: once a customer presents a cheque which is drawable upon another bank, and if the said cheque *prima facie* meets all tests of a depositable cheque, the necessary entries are made in the customer's account reflecting a credit, thanks to modern technology, computerization, but he would not be allowed to draw on that account until the said period (14 days) has elapsed. Meanwhile the said cheque is sent by EMS to the clearing house which in turn has to present it to the drawer's bank (in this case NBC, Samora Branch, Dar es Salaam) for clearance. PW1 and PW3 unreservedly and unchallengedly confirmed that this procedure was put into effect until the point where the mail containing the cheque was dispatched to EMS. The cheque never reached the clearing house, at least as per official records, and naturally, did not reach the drawer's bank.

Mr Nyabiri, urging that the plaintiff was negligent referred to *Barclays Bank Plc v. Bank of England* (4), relying on the following statement:

> The collecting bank's responsibility for a cheque which it is presenting for payment is not discharged with the cheque in favour of its Customer has been delivered to the branch on which it is drawn.

With respect to Mr Nyabiri, the above cited is of different bearing from the present case. First, this was not a case before the Court as such upon which a judgment was handed down but an arbitration matter

presented by the parties to an arbitrator of their choice who happened to be a judge and hence the finding is just an arbitration award, and secondly, in there, at least according to the report, it was not disclosed what actually transpired between the parties – they were simply seeking what would be the obligations for a presenting bank in relation to its customer who presents a cheque drawable on another bank through a clearing house system. It was not disclosed however whether there was a question of loss of cheque, its dishonour because of delays or negligence or any other ground constituting failure by the presenting bank in its duties.

On the facts of the case before us I find no negligence or acts beyond normality committed by the plaintiff. As earlier on stated, the second part of issue one is positively answered.

The above brings us to the last issue to what relief's are the parties entitled.

We have already dispelled the existence of either fraud on defendant's side or negligence on plaintiff's side.

Ordinarily, in the absence of very wanting actions or omissions by the parties or their agents the banker/customer relationship envisages loss of cheques hence the Legislature's inclusion of section 69 in the Bills of Exchange Ordinance (Chapter 215). The said section provides:

> Where a bill has been lost before it is overdue, the person who was the holder of it may apply to the drawer to give him another bill of the same tenor, giving security to the drawer if required to indemnity him against all persons whatever in case the bill alleged to have been lost shall be found again.
>
> If the drawer on request as aforesaid refuses to give such duplicate bill he may be compelled to do so.

Again, ordinarily a banker does not become a holder for value of a bill of exchange merely by depositing a cheque in the customer's account. In order for such relationship to be created there must be

in existence a situation which permits the customer to withdraw on the cheque before it is cleared and it must have been acted upon. This understanding could either be express or implied.

In the existing situation, the plaintiff did not become a holder for value merely upon deposit of the relevant cheque on 25 July 2000. However, with the obtaining procedure i.e value date custom, expressly provided, and whose operation was communicated to defendant on that same day, coupled with the withdrawals as demonstrably effected by the said defendant from the very value-date maturity day and before the cheque was cleared, clearly, the plaintiff became a holder for value, a status which entitled it to proceed against the drawer in terms of section 69 of Chapter 215 quoted above for issuance of a duplicate cheque. But, alas, the evidence shows that the drawer was known only to the payee (defendant); that only him could assist in tracing his whereabouts for the issuance of a duplicate cheque; in short, the applicability of section 69 lay entirely in his hands. And what does he do when approached to render this assistance? He flatly becomes uncooperative. Let PW1's testimony *in extenso*, which I find unimpeached, tell what happened:

> Thereafter we called our customer. I told Malya that his cheque did not reach its destination and that this was a strange thing as it had not happened in our branch before. I asked him to assist us regarding the clues on how the cheque got lost. Maliya asked as to what clues did I wish to have. I asked him whether he knew the drawer in person. Maliya replied that he didn't know him. I asked whether he knew his residence and the answer was negative. I asked him about the telephone number of that businessman. He said yes, but that he had left it at home. I then asked him to call him and give us the number. He then said that for that exercise he had to go home and that he would do it. We told him that he is our corporate customer and didn't want to cause him trouble. We asked him how he could transact with a customer for TZS. 48 million and yet can't locate the residence, office no. telephone numbers in memory but at the same time maintain that he is his partner. He told us:

> I met him only once. He came by taxi from DSM. We just met here. After that we didn't have communication again.

One transaction with his partner he said that he sent a trip of maize once. We then wanted to know if he didn't know the residence or office how did he manage to send the maize. He told us that it was his drivers who sent the maize. We asked him to bring in the drivers so that they lead us to the area. Malya replied that was difficult job. We asked him to go and refresh his mind and also bring us the telephone number.

When he came back the story was changed. He said that the telephone number was not reachable but that he believed the cheque was genuine and that it had already been paid. He went on to say:

> If it hadn't bring back my cheque. If you can manage to bring back my cheque I can ask the bank to give me two weeks so that I repay back the money and I will do it after looking for my colleague because after the first transaction I refunded the money to him as the business was not good.
>
> We then asked him how he managed to refund the money if he didn't know his whereabouts he told us that he had come back to Dodoma where he made the refund and the business was over...
>
> The witness insisted, Maliya did not respond positively when we told him about the matter. We didn't get any assistance from him

In view of the above quoted, among other evidence (i.e. PW3's testimony), what more is needed to establish that indeed defendant was a very uncooperative payee who made compliance with section 69 of the Bill of Exchange Order impossible. What is the effect of this on parties rights?

The plaintiff's Counsel referred to the case of *NBC v. Perma Shoes* (5) where in considering the applicability of section 69 of the Bill of Exchange Order, the Court of Appeal of Tanzania observed that the holder in due course, this time the payee, (customer) could not be held to blame because he unsuccessfully tried to trace the

drawer, and in any case the loss of the cheque was discovered after a period of over one year. The reasoning of their Lordships, as rightly fronted by plaintiff's Counsel, suggested that they would have reached a different finding if the drawer was around and action taken within reasonable time. In that case *(Perma case)* the payee (the defendant in this case) was the one who had mounted an action against the collecting Bank, (plaintiff in our case). As is the case in here, in that case the cheque deposited by the payee with the collecting Bank got lost.

Again, as is the case here, the collecting bank credited Payee's account before clearance of the deposited cheque and Payee went on with drawing without any restrictions being imposed. When 461 days had elapsed without clearance being made, the cheque having been lost was finally discovered, the collecting Bank called upon payee to in turn call upon drawer to issue a duplicate cheque in terms of section 69 of the Bills of Exchange Ordinance. Payee tried without success because the drawer had already left the country. The collecting Bank then debited the payee's account with the amount equal to that reflected on the lost cheque. The payee sued for recovery of the debited sum challenging that the Bank had been negligent. The Court of Appeal of Tanzania upheld a finding by the High Court that the Bank was negligent and therefore liable to pay. In so holding the Court expressed the Bank's duty in the following words:

> We are firmly of the view that where, as in this case a customer deposits a country cheque with a collecting bank and the cheque gets lost, the bank owes a duty of care to the customer to inform him promptly of such loss so that the customer may take the appropriate steps that might be open to him to avert any or further consequences resulting from such loss. The duty...exists whether the cheque was lost by the bank itself or by a third party having possession thereof on behalf of the bank.

Although in that *Perma case* it was not explicitly so put, in my view, as is the case in the present case, the issue revolved around principles guiding recovery of monies paid by mistake (although again, in *Perma's case,* as already indicated, it was the payee who had sued in response

to the bank's unilateral action of debiting payee's account based on belief that it was entitled to payment of sums of money mistakenly paid out by them). Categories of money paid on forged instruments, money paid on dishonoured instruments and of course money paid in situations like the present one, where the instrument upon which payment was made is lost. As to what principle should guide Court decisions, I am afraid to state that our past economic policy business climate have not created catalysts which encouraged disputes of this nature hence local decisions are very few if not lacking. This invariably forces us to turn to other Commonwealth jurisdictions, especially Britain, for guidance. How have Courts there approached this matter? Having discussed various decisions, some dating as far back as 1850s, the learned authors of **The Law Relating to Domestic Banking** (Banking Law Volume 1), GA Penn, AM Shea and A Arora, in summary form, put the guiding principles as follows:

> Money paid by a bank under a mistake of fact may be recovered by the payer if
>
> (i) the payment is not made by the bank under a mandate which creates a debt between customer and banker; and,
>
> (ii) the mistake is of fact, not of law; and
>
> (iii) but for the mistake the payment would not have been made; provided that:
>
> (a) an agent is not liable if he has paid the money to his principal without knowledge of the claim:
>
> (b) recovery is not possible if the defendant is entitled to refer to an estoppel, by reason of representation (or duty), reliance and detriment or inequitableness;
>
> (c) recovery may not be possible if the payment is under a negotiated negotiable instrument with an intrinsic defect, (in which case payment alone is a representation, and it may be the case that no actual detriment need be suffered in order to establish an easier form of estoppels).

That quoted, I should pose here and make an observation.

I have painstakingly gone through a number of Court decisions and treatise by some legal scholars on the matter – money paid by mistake or in some instances referred to as money had and received – and at the end of it all I have concluded that this concept has been a subject of different approaches and conclusions by different Courts and at different times such that even to-date uncertainty still lingers on. In *Morgan v. Ashcroft* (6) at page 69 Sir Wilfrid Greene, Mr observing on a string of judicial pronouncements prior to that case had the following to say:

> The nature of the claim to recover money paid under a mistake, and the limits within which it can be made, have been the subject of much controversy and the difficulties involved in providing a comprehensive solution to these problems have not as yet been overcome

In **Paget's Law of Banking** (8 ed), 1972) page 356, lamenting on the problems regarding the action on money had and received the learned authors state that "It is, at the present day, the most difficult of all actions to define or dogmatise about". It is thus clear that the quoted guidelines are not blue-prints, settled for good and exclusive. I have found it proper to point this out. We can use them guidedly as pronouncements coming from jurisdictions with a wealth of long experiences, backed up by their respective strong socio-economic backgrounds and more so when we lack our own or because those available are scanty but we should be lane-tied by the same as we are supposed to develop principles suited to our own environment.

Now, back to the matter in issue. The general principle underlying the requirement that money paid under mistake must be refunded is that the law should not countenance unjust enrichment. The law should not permit a person to retain a benefit (in this case, money) unjustly derived from the other.

Now, looking at our facts in relation to the principles quoted above (disregarding the proviso in sub-paragraphs (a) and (c) following immediately after (iii) as they are irrelevant in this situation) guiding

principles (iii) and (ii) against which, notwithstanding the caution I have propounded above, I entertain no reservations are fully met. The mistake was as to fact – the payer (Banker) assumed that the cheque had in fact been cleared because as per the obtaining value-date procedure fourteen days had elapsed without the cheque being dishonoured or without receipt of any kind of communication which would otherwise affect its payment. Mistakenly, the Bank acted on the value-date cut-off procedure assuming in the process that the cheque would go, and indeed that it was going, through the normal course of clearance when in fact it had disappeared into thin air. And, without entertaining this mistake, the plaintiff would not have allowed the defendant to effect withdrawals.

What about the first condition-principle (i)? While as indicated already, I have no quarrel with the last two principles (ii) and (iii) for they are the obvious and necessary elements under the concept, I have reservations on this [principle (i)]. According to the majority of decisions leading there to, in order for the payer to recover, payment should not have been made on the authority or mandate of drawer. This envisages situations like when payment is made on a countermanded effect. The principle does not recognize any situation where the mistake is between payer and drawer. However, as already pointed out, Commonwealth judicial pronouncements so far made on the concept are not without confrontational stance. For appreciation of this let the authors of the **Law Relating to Domestic Banking** already referred to, relate *in extenso* examples of the confrontational element:

> In *Barclays Bank Ltd v. WJ Simms, Son and Cooke (Southern) Ltd*, payment was made on a cheque contrary to the drawer's countermand and the paying bank was able to recover the money. This is relatively straightforward but there was some discussion also of the case where a bank pays believing that the customer has sufficient funds, when he has not. In *Chambers v. Miller* the Bank discovered such a mistake immediately after paying and attempted to stop the payee from leaving the bank. The Court held that they were liable for assault and false imprisonment. The judgment is given in terms of the effect of the mistake on the assumption that if the money is irrecoverable the Bank was liable. The Court said that the mistake was between drawer and payer not between payer and payee.
>
> Thus, property in the money passed to the payee and he could not be detained. In the present case, Robert Goff J disagreed with the reasoning in *Chambers v. Miller* holding that the mistake there was capable of being a mistake between payer and payee. The real reason for the decision, said the learned judge, was that the cheque is a good mandate and a request for an overdraft which the bank accepts by paying. The customer's debt to the payee is discharged. As the payee gave the customer consideration the money is irrecoverable. **Paget** agrees that the mistakes in *Chambers v. Miller* was between payer and payee but argues that if it was the presence or absence of a mandate is, because of that very fact, irrelevant as the money is still paid by mistake. **Paget** also argues that the existence of consideration between customer and payee is no concern of the bank's and that money paid by mistake as to adequacy of funds should be recoverable. It is submitted that **Paget** is correct as to the consideration point. Additionally, if a bank pays on a countermanded cheque or on insufficiency of funds it has, in either case, at least ostensible authority (and in the latter case actual authority) and payment with either form of authority should discharge the customer's liability to the payee. It is nevertheless thought that the argument of the learned editor of Paget ignores the element of unjust enrichment and the purpose of the remedy.
>
> The distinction made by Goff J between cases of mandate and no mandate may be justified by the principle of avoiding unjust enrichment. Where a party is paid by mistake and the bank had a mandate (e.g. payment on insufficient funds) a debt is created between bank and customer by reason of the payment. The bank may then debit the customer's account and there is no reason to recover from a third party. The customer is not detrimentally affected, because his liability to the third party is discharged. Where there is no mandate (e.g. countermand not obeyed), then even if (as submitted here) the payment discharges the customer's liability to the payee non-recovery would enrich the customer inasmuch as the bank has no remedy against him.

> By way of compromise, the money is recoverable from the payee who may then as before sue the customer for the debt. Another reason for rejecting **Paget's** argument is that if it were correct the bank would be able to sue both the customer (in a mandate case, a debt would be created), and the payee. Robert Goff J.'s opinions as to case of insufficiency of funds were stated *obiter* but it is submitted that it would be correct to deny the bank recovery on the principle that there is a mandate (whether or not the customer's debt to the payee is discharged).

In the case of *National Westminster Bank Ltd v. Barclays Bank International Ltd and another* (7) at page 666, the Court, lamenting on the unclearness of principles guiding Courts in reaching different decisions stated,

> There is a line of cases relating to negotiable instruments proper, i.e. instruments which are not mere forgeries *in toto* but contain at least one genuine signature and which have been negotiated to at least one innocent holder, which suggest that in relation to such instruments the plaintiffs would be unable to recover the money from either defendant in the present case. *Unfortunately, however, the judgements in these cases reveal a variety or amalgam of reasons underlying the decisions from which it is difficult to extract any clear principle, and this is the difficulty to which the text books have drawn attention...* [emphasis supplied].

The variant approach and reasoning by legal minds on the issue generally as Exhibited by the above and other statements earlier on quoted needs no orchestration. However, let me make myself clear. My lengthy quotations are intended to establish the complexity of the concept the confusious nature of the various discussions and analysis so far held thereon, the uncertainty of the principles so far pronounced and above all to show that in that situation the doors for varying those thought to be ruling so far and laying of further or new ones are still open.

Thus, in my considered view, mandate or no mandate should not be our bother. Nor should the status of the interlations of the parties be accorded unnecessary importance when it comes to who is liable.

The Court should be concerned with who in the circumstances is a holder of unjust riches and who holds the card in the blame. Depending on facts of a particular case, liability may lie on the basis of one of the two or both. Once there is payment by mistake it should be left to the Court depending on the facts of particular case to decide on who should not be allowed to have unjust enrichment. The situation should be left wide enough to the extent for example, that in a fitting situation the payer can proceed against both the payee and drawer at the same time the payee being a necessary party. In saying this I am mindful of the necessity that a payee should not be put into uncertainty of enjoyment of the effects of the instrument lawfully given to him and to which he is entitled or where the payer allows him and he faithfully so enjoys them (as was the case in *Perma case* referred to above) and there being no wanting elements, but for sure, the law should put up a full proof security valve in favour of payer by creating a liability upon a payee, who in normal situation would not be liable but who conducts himself in a manner which Exhibit him as an aider or abator of the enjoyment of unjust enrichment by any person whatsoever or upon whom the blame for one reason or another can be apportioned. And this, my example goes hand and glove with the case at hand. How?

I have already concluded that neither has fraud been proved on the defendant nor negligence on the plaintiff. We have however found that two things have been established first even if the cheque had not been lost it would have been dishonoured as the drawer's account had "nil" balance at the time and secondly, the defendant made it impossible for plaintiff to get a duplicate cheque by being totally indifferent and uncooperative. If we tread by the principle of "no drawer's mandate" defendant would not be liable as the mandate was there by the time the cheque got deposited for the instrument in itself was perfect. Under the principle quoted the plaintiff can only proceed against the drawer. But would this really be in line with justice when it is known that the drawer cannot be traced at all the defendant having aided the machination of impracticability? Living

it at that means the banker will never recover its money but at the same time the defendant will be left to have enjoyment of this unjust enrichment for which the evidence shows he paid no consideration. In my view justice dictates that the defendant should not escape liability. And it is for this matter that I have argued and concluded as above, that the guiding principle should be the wider one I have proposed above, which caters for various situations including those that shall be hatched in future.

I should observe here that even the *Perma case* seems to recognize a wider principle because from the excerpt quoted in this judgment the Court would have possibly reached a different finding if the Bank had notified the payee within a reasonable time over the loss of the cheque.

In conclusion therefore I am satisfied, in the circumstance of the case, i.e. his role in the whole transaction, that the defendant is liable to refund the sum mistakenly paid out to him.

Finally, we come to the issue of TZS. 10 799 700 composed of TZS. 8 000 000 deposited in DATCO account and TZS. 2 799 700 lying in the defendant's account where the disputed cheque was deposited. For the latter sum, having found liability on defendants the obvious conclusion is that the Bank should naturally retrieve it as being part of the cheque proceeds. What about the TZS. 8 000 000? Mr Nyabiri's resistance was based on one argument – that the bank was negligent. Now that that argument has been rejected we are left with no other adverse submission from the defence. We have to turn to the plaintiffs. The counsel there argues that the bank had a right in the following words:

> In the case of *Yahaya Nkoloma v. NBC Holding Corporation Ltd* (10), it was held that unless there was an express term to restrain the Bank from exercising its right of combination of accounts the Bank can exercise such right and confiscate the defendant money in another account to compensate for the defendant's debts

The relevant part in the Court of Appeal judgment referred to runs as under:

> Is there such an inherent power by which a bank can deduct one account of a customer to pay the liabilities of the customer under another account?
>
> There is a common law right of combination of accounts. A customer may have more than one account with a bank. In that case the bank has a right to combine the accounts and treat them as one. This is what is called combination of accounts. The accounts may be in one branch of the bank or in different branches of the same bank. But here we shall deal with the former situation because that is what concerns us in this appeal the two accounts of the appellant are both in the same branch of the respondent bank.
>
> Combination of accounts is also referred to as a right of set-off. This is a monetary cross-claim made in an action by a plaintiff that is a legal right by which a debtor is entitled to take into account a debt owing to him by a creditor when sued for a debt due from him to the creditor.
>
> However, the right of combination of accounts or set-off is only exercisable in the context of the relationship of a banker and a customer (*Rouxel v. Royal Bank of Canada* (9) cited in **Modern Banking Law,** by EP Ellinger and E Lomnicka, Oxford (2 ed) at page 184).
>
> There are two instances in which a bank is entitled to combine accounts or to set-off. First, where a customer is unable or unwilling to repay an overdraft incurred in one account although another account is in credit. Second is where a customer draws a cheque for an amount exceeding the balance standing to the credit of the account involved but the deficiency can be met out of the funds deposited in another account (See Ellinger and Lomicka at page 179).
>
> Combination of accounts has three other exceptions. One the right could be abrogated by a special agreement. Two the right is inapplicable where the property was remitted to the bank and appropriated for a special purpose. Lastly, a customer's account cannot be combined with a trust account or an account to be utilized by the customer as a trustee (See

Greenwood Teale v. William Williams, Brown and Company. (10) cited in Ellinger and Lomnicka at page. 185).

It is clear from the above that facts in the *Yahaya case* regarding the ownership of the accounts were different from those in the present case. In this case, the customer, legally, is not the owner of the Account which holds part of the proceeds mistakenly paid out. The cheque was deposited in defendant's personal account. The sum of TZS. 8 million was then withdrawn and deposited in Datco Account of which the defendant is a Director.

Here, the general principles under the concept of combination of Accounts or set off as enunciated in *Yahaya case* do not apply because technically the owners of the two accounts are two different entities. However, under the general principle of justice and fairness would the Court have ensured fair dealing between the parties, if because of that technicality *per se*, on the set-of facts as already found, it is decreed that the plaintiff is precluded from tracing the proceeds of the mistaken payment into what is obviously another purse of the defendant though disguised? In my considered opinion, where a customer is mistakenly paid by a banker in a situation where the customer is liable to refund the sum so mistakenly paid, the banker has a right to trace the proceeds of the mistaken payment deposited (whether by design or otherwise) into other accounts operated by the customer even if under the veil of a company provided the said sum is not yet withdrawn.

To decide otherwise would amount to assisting unfaithful customers to enjoy unjust enrichments to the detriment of the banking industry. It would be absurd for example for an unfaithful customer to cause or aid a mistaken payment into his account "A" which is in personal name and immediately transfer the sums into Account "B" in the name of Company or which he is a sole signatory and then bar the same banker from tracing its money under the only and mere principle that account "B" is in the name of another entity.

In conclusion, I enter judgement in favour of the plaintiff and consequently dismiss the counter claim: holding that the defendant

is liable to refund the sum mistakenly paid out; that the plaintiff is entitled to trace the unjust proceeds in the sum of TZS. 8 million deposited in Datco account and so is the TZS. 2 799 700, being the balance in the personal account. Regarding the principal sum claimed, TZS. 38 045 000, an adjustment has to be made. The total sum withdrawn being TZS. 47 million and the sum in plaintiff's custody being TZS. 10 799 700 (TZS. 8 million in Datco account and TZS. 2 799 700 in the personal account) the sum to which the plaintiff is now entitled is less than 38 045 000. Why? TZS. 47 million minus TZS. 10 799 700 equals TZS. 36 200 300. This is the principal sum of which the judgement is entered. The plaintiff is also entitled to interest of 31% p.a. starting from 22 August 2000 (I have taken the date for the last withdrawal to be a reasonable cut-off date) to the date of judgement. I also award 7% interest on the decretal sum for the period commencing from the date of judgment till payment in full. Costs are awarded in favour of plaintiff.

CONSOLIDATED HOLDING CORPORATION *v.* GRACE NDEANA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Lugakingira and Mroso, JJ.A.)

CIVIL APPLICATION No. 63 OF 2000

(For review of the decision of the Court of Appeal, Ramadhani, Lubuva and Lugakingira, JJ.A. dated 27 June 2000)

Civil Practice and Procedure – Damages – Damages not pleaded – Whether damages not pleaded are awardable – Order VII rule 7 of the Civil Procedure Code 1966.

Civil Practice and procedure – Interest on damages – Whether bank rate applicable – Order XX, rule 21 of the Civil Procedures Code 1966.

On 27 June 2000 the Court of Appeal delivered its decision in Civil Appeal Number 76 of 1999 awarding the respondent general damages with interest thereon at bank rate. The applicant applied that the Court review its decision on three matters: that the Court had awarded damages which had not been pleaded; that the Court had mistakenly awarded interest at bank rate on general damages and did not specify from what date the interest was to run; and that the applicant had not been given an opportunity to show that the respondent had not been defamed.

Held: (i) Rule 7 of Order VII of the Civil Procedure Code empowers the Court to grant general damages or other relief the Court thinks fit even though not pleaded;

(ii) Interest on general damages begins to run from the date of judgment on which the decretal amount is known and is governed by rule 21 of Order XX of the Civil Procedure Code;

(iii) The issue of whether there was defamation was framed at the trial and both counsel made submissions but the trial judge wrongly omitted to decide the issue, so the Court of Appeal corrected the omission by deciding the point.

Review allowed on one ground but dismissed on the other two

Mr Rweyongeza, for the Applicant

Mr Njulumi for, the Respondent

Case referred to:

(1) *Said Kibwana and General Tyre EA Ltd v. Rose Jumbe* [1993] T.L.R. 175

Statutory provision referred to:

1. Civil Procedure Code Order XX, rule 21, Order VII, rule 7

RULING

(Dated 11 June 2001)

Ramadhani, J.A.: The applicant, the Consolidated Holding Corporation, at the beginning of the hearing of the application applied to amend its name from NBC Holding Corporation to the Consolidated Holding Corporation, following the amendment of Act Number 23 of 1997 by Act Number 10 of 2001 changing the name. That was granted and the record ordered to be so rectified.

Mr Rweyongeza, learned advocate, represented the applicant while Mr Njulumi, learned counsel, appeared for the respondent. Mr Rweyongeza wanted us to review our judgement of 27 June 2000 specifically on three matters:

(i) The Court awarded general damages to the respondent while they were not pleaded.

(ii) The Court mistakenly awarded interest at bank rate on the general damages and did not say when it should start to run

(iii) The applicant was not given opportunity to show that the respondent was not defamed.

Admittedly, the respondent did not pray for general damages but we granted them. However, Mr Njulumi correctly pointed out that Order VII, rule 7 provides that "general or other relief may be given as the Court thinks fit." So we were not wrong to make that award.

We concede that interest should not have been at bank rate following the decision of this Court in *Saidi Kibwana and General Tyre EA. Ltd. v. Rose Jumbe* (1) that:

> The rate of interest to be awarded during the period after the judgment is delivered is governed by the provisions of Order XX, rule 21 of the Civil Procedure Code which is limited between the minimum of seven per cent per annum and the maximum of twelve per cent per annum.

We award interest at 12% per annum on the general damages.

The other complaint was that we did not specify when the interest accrues. This should not have a problem because Mr Rweyongeza himself has pointed out that *Said Kibwana* has set out that "interest on general damages is only due after the delivery of judgement because then the principal amount due is known". Anyway, since the matter

is back to us, we order that the interest is to be calculated from the date of our judgment, that is, 27 June, 2000.

As for the third ground we think that Mr Rweyongeza wants a second bite on the appeal. Defamation was one of the issues framed at the High Court and both counsel made submissions on that. However, the learned judge did not decide the issue. We found that the words "*kukopa harusi kulipa matanga*" to have been defamatory and the reputation of the respondent, who was a head teacher of a primary school in the town, was injured. All this was based on the evidence and the submissions of the advocates available in the Record of Appeal. So, this ground is baseless.

The review is allowed to the extent explained above.

ATTORNEY GENERAL *v.* PHILEMON NDESAMBURO

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 14 OF 1998

(From the decision of the High Court of Tanzania, Dar es Salaam, Msumi, J.K. dated 30 April 1997 in [1997] T.L.R. 137)

Appeals – Appeals to the Court of Appeal – Requirement of leave to appeal under the Appellate Jurisdiction Act 1979 – Written law providing for automatic right of appeal – Whether leave to appeal is still a necessary requirement – Section 5(1) of the Appellate Jurisdiction Act 1979 and section 17(5) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter360.

Natural Justice – Right to be heard – Right of Occupancy revoked after receipt of a letter from the respondent explaining why his right of occupancy should not be revoked – Whether there was breach of natural justice.

A notice was published on 9 September 1994 that the Minister for Lands, Housing and Urban Development intended to revoke the right of occupancy granted to the respondent 5 years earlier in respect of a piece of land held in Kinondoni District , Dar es Salaam, under Certificate of Title Number 35585. On 4 October 1994 the respondent wrote to the Minister explaining why the intended revocation should not be done but the Minister still revoked the right of occupancy. The respondent then sought from the High Court the prerogative orders of *certiorari*, to quash the revocation order, and of *mandamus*, to reinstate the right of occupancy to him. The High Court granted him the orders on the ground that the revocation was made in contravention of the principles of natural justice in that the respondent had not been given the right of hearing. Aggrieved, the Attorney General appealed to the Court of Appeal. During the hearing an issue whether or not leave to appeal was required was raised.

Held: (i) There was no need for leave in the matter as section 17(5) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance provides for an automatic right of appeal to the Court of Appeal;

(ii) Since the revocation was made after considering the letter of the respondent in which he stated why revocation should not take place there was no denial of natural justice.

Appeal allowed with costs

Case referred to:

(1) *Leonsi Silayo Ngalai v. Hon. Justine Alfred Salakana and Attorney General* CAT -- Civil Appeal Number 38 of 1996

Mr Salula for the Appellant

Mr Muccadam for the Respondent

Statutory provisions referred to:

(1) Appellate Jurisdiction Act 1979, section 5

(2) Law Reform (Fatal) Accidents and Miscellaneous Provisions) Ordinance Chapter 360, section 17(5)

Editorial note: This case reverses the decision of the High Court in [1997] T.L.R. 137

JUDGMENT

(Dated 21 June 2001)

Ramadhani, J.A.: The respondent, Philemon Ndesamburo, was given a right of occupancy over Plot Number 3, Ununio, Kinondoni District, Dar es Salaam, with Title Number 35585 L.O Number 80998 on 17 August 1989. He saw in the Uhuru Newspaper of 9 September 1994 that the Minister for Lands, Housing and Urban Development intended to revoke his right of occupancy. On 4 October 1994 he wrote to the Minister showing why there should not be a revocation order. Nevertheless, the title was revoked. So, the respondent sought from the High Court the prerogative orders of *certiorari*, to quash the revocation order, and of *mandamus*, to reinstate the right of occupancy to the respondent.

The application was heard by the learned Jaji Kiongozi (Msumi, J.K.) who granted the two orders saying:

> ...the revocation is bad in law for it was issued in contravention of the principles of natural justice in that the applicant was not given the right of hearing.

The Attorney General being aggrieved by that decision has preferred this appeal.

An issue arose whether or not leave to appeal was required in this case. Mr Salula, learned Principal State Attorney, for the appellant, cited the decision of this Court in *Leonsi Silayo Ngalai v. Honourable Justine Alfred Salakana and the Attorney General* (1) holding at page 12 that:

> .... it is apparent that the provisions of section 5 of the Appellate Jurisdiction Act 1979 do not apply to all cases. Exceptions are recognized where there is a written law providing for a contrary position.

As it is apparent from the portion quoted, that holding is founded on express words of section 5(1) of the Appellate Jurisdiction Act 1979, that:

> In civil proceedings, except where any other written law for the time being in force provides otherwise, an appeal shall lie to the Court of Appeal.

In this case, Mr Salula pointed out that section 17(5) of the Law Reform (Fatal) Accidents and Miscellaneous Provisions) Ordinance (Chapter. 360) provides:

> Any person aggrieved by an order made under this section may appeal to the Court of Appeal of East Africa.

Mr Muccadam, learned counsel, who advocated for the respondent, argued that as the Appellate Jurisdiction Act 1979, does not provide for automatic appeals from decisions on prerogative orders the appellant required leave to appeal.

We do not think that this issue need detain us. Under section 5(1) of the Appellate Jurisdiction Act 1979, and as this Court held in *Ngalai's* appeal, it is obvious that the right of appeal to this Court is not granted by the Appellate Jurisdiction Act 1979, alone but that there are other laws providing for such right. In *Ngalai,* the other law was the Constitution of the United Republic of Tanzania, 1977. In the present case it is the Law Reform (Fatal Accidents and Miscellaneous Provision) Ordinance as amended. So, there was no need for leave to appeal in the present case.

Much was submitted in this appeal but we are of the firm opinion that the appeal stands or falls on the narrow issue of whether or not the respondent was condemned unheard as the learned *Jaji Kiongozi* so found.

Mr Muccadam himself conceded that the learned Jaji Kiongozi erred in finding that the respondent was condemned unheard. The

learned advocate contended that the President did not consider the reasons given by the respondent in resisting revocation of the right of occupancy.

The respondent himself in his affidavit in support of his application for the prerogative orders said in paragraph 8:

> That I have advanced good cause before the revocation took place. I enclose herewith the letter of 4 October 1994, to the City Director and of even date to the Honourable Minister for Lands and Urban Development.

We have seen the letter he wrote to the Minister. Again the respondent said in paragraph 10:

> That there has been serious miscarriage of justice in that the said Revocation was made without good cause and contrary to the Land Ordinance.

Now, rules of natural justice prescribe that a person should not be condemned unheard. The respondent here was heard. Of course, a hearing is meaningful if what has been said is taken into consideration in arriving at a decision. As the President is not required to assign any reason for revoking a right of occupancy, we can only presume that he considered the submissions of the respondent. Of course, the presumption is rebuttable.

However, in the present case we are of the opinion that the facts of the matter do not accommodate a different decision to revocation. The title deed clearly directed that building in accordance to approved plans should have been erected and be ready for use by 31 March 1992. The respondent submitted his drawings to the City Council for approval on 15 March 1992, that is, he had 16 days in which to comply with the stipulated condition, assuming that the approval could have been obtained on the same day! As it turned out, until 4 October 1994, the respondent had not got the approval because on that date he wrote a reminder to the City Director. The revocation as already said, was 9 March 1995, that is, three years after deadline.

For the above reasons we allow the appeal with costs.

ISSA ATHUMANI TOJO *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Samatta, CJ, Makame and Ramadhani, JJ.A.)

CRIMINAL APPEAL No. 54 OF 1996

(From the decision of the High Court of Tanzania at Dar es Salaam, Kyando, J. dated 4 April 1994, in Economic Crime Case No. 17 of 1990)

Criminal Practice and Procedure – Issue estoppel – Whether the doctrine of issue estoppel is applicable to criminal trials in Tanzania – Section 2(2) of the Judicature and Application of Laws Ordinance Chapter 358.

The appellant and another were convicted in the District Court of receiving stolen property and sentenced to imprisonment. His appeal to the High Court was allowed, the judge finding that the offence was not proved. Exercising his revisional powers, the judge also quashed the conviction of the co-accused. Subsequently, the two were prosecuted again, this time for unlawful possession of stolen property, the subject – matter of the previous case. Their plea of *autrefois acquit* was rejected and they were convicted and sentenced to imprisonment. They appealed unsuccessfully to the High Court, the judge upholding that the plea of *autrefois acquit* was not available to them. The appellant appealed to the Court of Appeal. The Court paused to consider a novel point, namely, whether the doctrine of *issue estoppel* should be adopted in criminal trials in Tanzania and, if so, whether the doctrine was applicable to this case. Otherwise, the Court was inclined to dismiss the appeal.

Held: (i) Assuming that before the reception date the common law did not recognize the application of the doctrine of issue *estoppel* in criminal law, the common law is modified, by virtue of the proviso to section 2(2) of the Judicature and Application of Laws Ordinance, to make the doctrine applicable in criminal trials in Tanzania;

(ii) Accordingly, where an issue of fact has been tried by a competent Court on a former occasion, and a finding has been reached in favour of the accused, such finding would constitute an *estoppel* against the prosecution, and thus evidence to

disturb that finding of fact when the accused is tried subsequently, even for a different offence, will not be received;

(iii) The doctrine of *issue estoppel* should however apply only to cases in which it would promote fairness;

(iv) That being the case, the prosecution was estopped in the second trial from seeking to prove that, contrary to the judge's finding in the former appeal, the appellant and his co-accused were found in possession of the stolen property;

(v) Under the circumstances, the appeal should be allowed, and the provisions of section 4(2) of the Appellate Jurisdiction Act 1979 as amended should be applied to quash the co-accused's conviction and set aside the sentence imposed on him.

Order accordingly

Cases referred to:

(1) *Connolly v. Director of Public Prosecutions* [1964] 2 All ER 401

(2) *Director of Public Prosecutions v. Humphrys* [1977] AC 1

(3) *Gopal Prasad Sinha v. The State of Bihar* (1971) SC 458

(4) *Marz v. The Queen* 96 CLR 62

(5) *Masud Khan v. State of Litter Pradesh* [1974] 1 SCR 793

(6) *Ravinder v. Singh v. State of Haryana* AIR [1975] SC 854

(7) *Regina v. Hogan,* [1974] 1 QB 398

(8) *Sambasavam v. Public Prosecutor, Federation of Malaya* [1970] AC 458

(9) *Sealfon v. United States* [1948] 332 US 575

(10) *The King v. Wilkes* [1948] 77 CLR 511

Statutory provisions referred to:

(1) Arms and Ammunition Ordinance, section 13(1)

(2) Economic and Organised Crime Control Act 1984, sections 21 and 59(2)

(3) Criminal Procedure Act section 137 and 280 section 192

(4) Evidence Act 1967, section 123

(5) Judicature and Application of Laws Ordinance, section 2(2)

(6) Civil Procedure Code Order VIIIB, Order XII, rule 4, Order XX, rule 21

Ms Mkwizu for the Respondent

JUDGMENT

(Dated 28 June 2001)

Samatta CJ: This is an appeal by Issa Athuman Tojo from a judgment of the High Court (Kyando, J.) dismissing his appeal and upholding his conviction on a charge of unlawful possession of a firearm and three rounds of ammunition, contrary to section 13(1) of the Arms and Ammunition Ordinance as read together with sections 21 and 59(2) of the Economic and Organised Crime Control Act 1984, and the Written Laws Miscellaneous Amendments Act 1989, and also upholding a sentence of seven years' imprisonment. One of the appellant's co-accused, Yahya Abdallah, who was also found guilty, did not appeal against his conviction.

A novel point of law, namely, whether the doctrine or principle of *issue estoppel* is applicable in criminal cases in this country arises in this appeal, but we shall first cull out of the record the essential facts of the case which have risen to that issue. Happily, those fact are not complex. Most of them were, in fact, not in dispute. They may, we think, be narrated as follows: in April 1990, one Haken Jetha, a resident of Morogoro, was robbed of his rifle and some other property by a group of persons. On 22 December 1990, the firearm was recovered by a team of policemen who, following a tip their leader had received from an informer to the effect that some men were planning to perpetrate a robbery, pounced upon six men, including the appellant and Yahya Abdallah, who were in a house, owned by the appellant, situated within Morogoro town. The six men were arrested in various parts of the premises.

The appellant's arrest was effected by one D/Sgt. Gabriel, in the presence of Corporal Ramadhani. When the room from which, according to the testimony of D/Sgt. Gabriel, the appellant had emerged immediately before his arrest, was searched by the police, Rakem Jetha's stolen rifle was found therein, lying on the floor underneath a bed. Being in possession of this evidence, the police charged the six men before the District Court of Morogoro with robbing Hakem Jetha of his rifle.

The appellant and his co-accused protested their innocence. The learned trial magistrate acquitted all the six accused of the charge, but convicted the appellant and Yahya Abdallah of the offence of receiving stolen property, contrary to section 311 of the Penal Code and sentenced each of them to three years' imprisonment. Aggrieved by that decision, the appellant appealed against it to the High Court. Mkude, J. allowed the appeal, quashed the conviction and set aside the sentence imposed thereon. Exercising revisional powers, he quashed Yahya Abdallah's conviction and set aside the sentence imposed thereon. The learned Judge held that the evidence laid in the scale against the appellant and Yahya Abdallah was insufficient to constitute a basis for making a finding that the two men were found in possession of Jetha's rifle. In the course of his judgement he said.

> It seems to me that before a person can be convicted of the offence under section 311 of the Penal Code it must be shown that he "received" the property which was feloniously or unlawfully obtained and he did so with knowledge, actual or constructive that the property was feloniously or unlawfully obtained. It is not enough, as it happened in the present case, that a person owns the house in which the stolen property is found by the police. In that case the element of "receiving" has not been shown, let alone the knowledge that the property had been feloniously or unlawfully obtained. The rule in *Mwangi Njoroge WR* [1963] EA 624 is that where there is no direct proof of receiving goods knowing them to have been stolen, the ordinary rule of circumstantial evidence must be applied, namely, that the circumstances must be such as to convince any reasonable person that no other conclusion was reasonably possible. As it happened in this case the gun was found in a room in which several other people were found and so no such irresistible inference can be drawn.

The police were undaunted by Mkude, J.'s decision. On 18 March 1991, they preferred a charge of unlawful possession of the rifle and three rounds of ammunition, before the District Court, against the appellant and his five co-accused. The basis of this new charge was still the alleged possession by the accused of Jetha's rifle. The appellant and his co-accused unsuccessfully raised a plea of *autrefois acquit* under section 280(1)(a) of the Criminal Procedure Act 1985. As already pointed out, at the end of the trial, the District Court convicted the appellant and Yahya Abdallah as charged and sentenced each of them to seven years' imprisonment. The appellant was of the view that his plea of *autrefois acquit* ought to have been sustained. He appealed against the District court's decision to the High Court on the ground, *inter alia,* that the learned trial magistrate had strayed into an error in law in rejecting his plea. Like the learned trial magistrate, Kyando, J. found no merit in the plea. In the course of his judgement, he said:

> ... I fully agree myself that the appellant was acquitted in a case charging him with robbery and not in one charging him with (offence) in this case. His plea of *autrefois acquit* therefore has no substance or merit and the Trial Court rightly rejected it. I hereby reject it too.

Before us the primary contention of the appellant who was, as was the position in the two Courts below, unrepresented, is that his plea of *autrefois acquit* was sustainable. His grievance is that Kyando, J. misdirected himself in law in holding, as he did, that the District Court had directed itself correctly on that plea. Since we were inclined to be of the opinion that the plea of *autrefois acquit* was not available to the appellant in this case, in the interests of justice; we invited Ms Mkwizu, Senior State Attorney, to address us on the question whether the doctrine of *issue estoppel* applies to criminal trial in this country and, if it does, whether it is applicable in the instant case. The crux of the statement of that doctrine may be stated in the words of Lawson, J. in *Regina v. Hogan* (1) at page 401:

> ... Issue estoppel can be said to exist when there is a judicial establishment of a proposition of law or fact between parties to earlier litigation and when the same question arises in later litigation between the same parties. In the later litigation the established proposition is treated as conclusive between those same parties. It can also be described as a situation when, between the same parties to current litigation, there has been an issue or issues distinctly raised and found in earlier litigation between the same parties.

In order to invoke the doctrine of *issue estoppel* the parties in the two trials must be same and the fact-in-issue proved or not in the earlier trial must be identical with what is sought to be reagitated in the subsequent trial: see *Ravinder Singh v. State of Haryana* (2). The principle differs from the *autrefois* principle, embodied in sections 137 and 280(1)(a) of the Criminal Procedure Act. The difference is described by Lord Devlin in *Connelly v. Director of Public Prosecutions* (3), at page 436 as follows:

> ...The difference between issue estoppel and the *autrefois* principle is that while the latter prevents the prosecution from impugning the validity of the verdict as a whole, the former prevents it from raising again any of the separate issues of fact which the jury have decided, or are presumed to have decided, in reaching their verdict in the accused's favour.

There is no provision in the Criminal Procedure Act or the Evidence Act 1967, which embodies the principle of *issue estoppel*. What is embodied in section 137 and 280 of the former Act is, as already pointed out, the *autrefois* principle, and what is embodied in section 123 of the latter Act (the Evidence Act) is estoppel by declaration, act or omission.

Can the principle of *issue estoppel* be invoked in a criminal case? Placing reliance on an observation made by SK Sarkar and Ejaz Ahmed in their book *Law of Evidence*, Ms Mkwizu invited us to answer that question in the negative. The observation, at page 1223, reads:

> Rule of estoppel is not applicable to criminal cases.

With great respect, we are unable to accept the learned Senior State Attorney's invitation. The statement relied upon by Ms Mkwizu, namely, that the rule of estoppel is not applicable to criminal cases, to support her argument, is clearly made in reference to estoppel by declaration, act or omission as embodied in section 115 of the Indian Evidence Act 1872, which is *in pari materia* with section 123 of our Evidence Act.

The view that the observation relied on by the learned Senior State Attorney has no relevance to the principle of *issue estoppel* is re-enforced by the learned authors' observation at page 1315 of their book, which is almost a repetition of a passage in the judgment of the supreme Court of India in *Masud Khan v. State of Uttar Pradesh* (4):

> Principle of issue estoppel is simply this where an issue of fact has been tried by a competent Court on a former occasion and a finding has been reached in favour of an accused, such a finding would constitute an estoppel or *res judicata* against the prosecution not as a bar to the trial and conviction of the accused for a different and distinct offence but as precluding the reception of evidence to disturb that finding of fact when the accused is tried subsequently even for a different offence which might be permitted by law.

In our opinion, this passage leaves no doubt that in India issue estoppel is applicable to criminal cases. There is stream of authority from that country plainly demonstrating that, contrary to Ms Mkwizu's submission, issue estopel is applicable in criminal cases. Those cases include *Gopal Prasad Sinha v. The State of Bihar* (5); *Masud Khan* (4) and *Ravinder Singh v. State of Haryano* (2). In *Masudi Khan's case,* the Supreme Court, speaking through Alagiriswami, J. said, at page 795:

> The principle of *estoppel issue* is simply this; that where an issue of fact has been tried by a competent Court on a former occasion and a finding has been reached in favour of an accused such a finding would constitute

> an estoppel or *res judicata* against the prosecution not as a bar to the trial and conviction of the accused for a different or distinct offence but as precluding the reception of evidence to disturb that finding of fact when the accused is tried subsequently even for a different offence which might be permitted by law.

The Supreme Court, having quoted a passage from the opinion of the Privy Council in *Sambasivam v. Public Prosecutor, Federation of Malaya* (6), proceeded, a little later, to quote the following passage from the judgment of Dixon, J. (sitting in the High Court of Australia) in *The King v. Wilkes* (7), the report of which, unfortunately, is not available to us:

> ... it appears to me that there is nothing wrong in the view that there is an issue estoppel, if it appears by record of itself or as explained by proper evidence, that the same point was determined in favour of a prisoner in a previous criminal trial of the same prisoner ... There must be a prior proceeding determined against the Crown necessarily involving an issue which again arises in subsequent proceeding by the Crown against the same prisoner. The allegation of the Crown in the subsequent proceeding must itself be inconsistent with the acquittal of the prisoner in the previous proceeding. But if such a condition of affairs arises I see no reason why the ordinary rules of issue estoppel should not apply. Issue estoppel is concerned with the judicial establishment of a proposition of law or fact between the parties. It depends upon well-known doctrines which control the relitigation of issues which are settled by prior litigation.

This passage was also quoted with approval by-lawson, J. in *Hogan's case* (1). The Supreme Court also cited with approval the following passage from the judgment of the High Court of Australia in *Marz v. The Queen* (8).

> The Crown is as much precluded by an estoppel by judgment in criminal proceedings as is a subject in civil proceedings ... The law which gives effect to issue estoppel is not concerned with the correctness or incorrectness of the finding which amounts to an estoppel, still less with the process of reasoning by which that finding was reached in fact ... It is enough that an issue or issues have been distinctly raised or found. Once that is done, then so long as the finding stands, if there be any subsequent litigation between the same parties, no allegations legally inconsistent with the finding, may be made by one of them against the other.

In our opinion, it is not of little significance to observe, as we do, that in Canada, too, the principle of issue estoppel has been applied to criminal cases; see footnote 22 page 1037 of **Phipson on Evidence**. In USA, too, the principal may afford protection to an accused person: see the references to *Sealfon v. United States* (9) made in both *Connely* and *Hogan's* cases *supra*.

Does *issue estoppel* avail an accused person in England? To this question we now turn our attention. Until when the appeal in *Director of Public Prosecutions v. Humphrys* (10) was determined, it seemed settled that under the English Law an accused could invoke the principle of *issue estoppel* against the prosecution. In *Hogan's case* (1), Lawson, J. entertained no doubt that *issue estoppel* applied to criminal proceedings. He held that the plea applied with mutuality as between the Crown and the defendant in such proceedings and could operate when the relevant issues were determinable with precision and certainty by reference to the earlier record and what occurred in relation to them in the course of the previous proceeding. In *Connelly's case* (3), three of their Lordships, Lord Morris of Borth-y-Gest, Lord Hodson and Lord Pearce were of the view that the principle applied to criminal proceedings. Lord Delvin, however, specifically dissented from that view. In the course of his judgment, Lord Hodson said, at page 430:

> Thus, so far as *autrefois acquit* is concerned the appellant must fail unless he can persuade your Lordships to make a further extension of the principle which justice requires. This he has sought to do by reliance on issue estoppel, which has been referred to of recent years more often in other countries than our own, but is an aspect of the law which, I think, lies behind the application of the principle autrefois acquit. It was recognized pro tanto in the Sambasivam case [1950] AC 458] and the appellant is entitled if he can...bring himself within it.

Thirteen years later, however, the House of Lords, in *Humphrys' case* (10), departed from the views expressed by the majority in the *Connelly* case and held that issue estoppel, in the form in which it operates in Civil Cases, has no role to play in criminal trials. The facts of that case are accurately summarized in the headnote, which read:

> The respondent was charged with driving a motor vehicle on 18 July1972, while disqualified. The only issue at the trial was whether a police officer was correct in identifying the respondent as the driver of a motor vehicle on that day. In evidence, in answer to a question, the respondent denied driving any motor vehicle during 1972. He was acquitted. Later he was charged with perjury, the allegation being that at the first trial he had willfully made a statement which he knew to be false, *viz.*, that he did not drive any motor vehicle during 1972. The same police officer was a prosecution witness, with others, at the second trial. The judge rejecting a plea of issue estoppel raised by the defence, allowed the police officer to give evidence again identifying the respondent as the driver of the motor vehicle which he had stopped on 18 July1972. The respondent was convicted.

The Court of Appeal allowed Humphrys' appeal against conviction, holding that the doctrine of *issue estoppel* applied. The House of Lords reversed that decision. As already pointed out, their Lordships departed from the views of the majority in *Connelly's case* (3) and held that issue estoppel, in the form in which it operates in Civil Cases, has no application in criminal cases. The difficulty of identifying issues in a criminal trial (conducted in England), because of the absence of pleadings, and the fact that verdicts given by the jury in those cases are of general character, appear to have weighed fairly heavily on their Lordships' minds in arriving at their decision. In the course of his judgement, Lord Salmon said, at page 43 D – E.

> The doctrine of issue estoppel is complex and highly technical, even where applied to civil proceedings alone. In this field, however, it is firmly entrenched and performs a useful function. It brings finality to litigation. The whole procedure relating to pleadings in the Civil Courts is appropriate for defining with precision the issues between the parties. Once these issues have been ascertained and fought out and then finally adjudicated upon in the Courts, it would be unjust and absurd if the disappointed party, save in certain exceptional circumstances which I need not recite, were allowed to reopen the issues and start litigating them all over again. It is in the public interest that litigation should have an end.

His Lordship went on to say:

> It the criminal field, however, besides being complex and technical, the doctrine of issue estoppel would, in my view, also be inappropriate, artificial, unnecessary and unfair. It would be inappropriate because there are no pleadings defining the issues and no judgments explaining how the issues (even if identifiable) were decided. Sometimes, as in the present case, it would be possible to identify the issues. But it would rarely be possible to do so. Since juries give general verdicts "guilty" or "not guilty' it would often be difficult, if not impossible, to do more than guess how they had decided any issue capable of identification.

Lord Edmund-Davies also alluded to the difficulties pointed out by Lord Salmon. He said, at page 49:

> It is not surprising that, at an early stage in the expression of his doubts, Lord Devlin said (in *Connelly's* case), at page 1344:
>
> > The main difficulty about its application to criminal trials is that as a rule there is no determination by the jury of separate issues; and so their conclusion on any issue can be reached only by an analysis of the general verdict.
>
> The verdict is, in the vast majority of cases, simply one of "guilty" or "not guilty." *Connelly v. Director of Public Prosecutions* is itself an example the issues can be, while the Australian decision in *Marz v. The Queen (8)* illustrates how subtle such an analysis may be. Unlike on the civil side, there are no formal pleadings and, if more than one issue is involved it can indeed be difficult to ascertain upon which particular issue or issues the jury found for or against the accused. And the difficulty may be enormously increased in relation to decisions in the magistrates' Courts, unless they state the reasons for their decisions, which they are not generally obliged to do.

A little later, his Lordship said:

> But, even if the decisive issue can be isolated, as in the present case, Mr David Lanham has powerfully demonstrated (*Issue Estoppel in the English Criminal Law* [1970] Criminal LR 428, 440) that:
>
> > The difficulty is that once the principle of issue estoppel is recognized in cases where the issue is easy to discern...there is a danger that it will be applied in cases where it is inappropriate.
>
> *Sambasivan v. Public Prosecutor, Federation of Malaya* [1950] AC 458 to my way of thinking illustrates the difficulty.

Courts in this country are empowered by section 2(2) of the Judicature and Application of Laws Ordinance to apply the common law as it existed in England on the twenty-second day of July 1920. Authorities, including *Hogan's case* (1) and the *Connelly case* (3), appear to us to demonstrate that prior to 1997, when the House of Lords, in *Humphrys' case* (10), reversed the earlier decisions, the common law recognized the application of the doctrine of *issue estoppel* in criminal cases. We are not persuaded that the difficulties of applying the doctrine in criminal cases, alluded to by their Lordships in *Humphrys' case,* exist in our country.

It is true, of course, that no pleadings are framed in criminal cases in this country. But bearing in mind the mandatory provisions of section 192 of the Criminal Procedure Act which require a Trial Court, before the trial commences, to identify issues which are not dispute, and taking into consideration the provisions of sections 312(1) of the Act and 32 of the Primary Courts Criminal Procedure Code which enact that judgments must contain points for determination, the decision thereon and the reasons for such decisions, we are of the settled opinion that the primary considerations which moved their Lordships in *Humphrys' case* (10) to depart from what the majority of their Lordships in the *Connelly* case had held to be the law on application of the doctrine of *issue estoppel* in criminal cases have no weight in our country, where the jury system does not apply.

As regards the danger of the doctrine being applied in cases where it is inappropriate, we are content to observe that the doctrine should not be given universal applicability. If its application in certain situations is likely to give rise to injustice, the solution is not to exclude its application entirely, but to limit it to cases in which it would promote fairness. As was rightly observed by Lawton, J. in one of his interventions in the course of argument of counsel for the Crown in *Connelly's* case in the Court of Criminal Appeal (see [1964] AC 1254), "It would be deplorable that a defence available in Civil Cases would not be available in identical circumstances in a criminal matter."

The judgments delivered in *Hogan* and *Connelly's* cases do not, however, show that before 22 July1920, the common law recognized the application of the doctrine of *issue estoppel* in criminal cases. We find the reasoning in the judgment of Lawson, J. in *Hogan's* case and that of the majority in the *Connelly* case so persuasive that, assuming that before the reception date the common law did not recognize the application of the doctrine in criminal law, we are prepared to invoke the proviso to section 2(2) of the Judicature and Application of Laws Ordinance, modify the common law, and hold, as we do, that in this country the doctrine applies in criminal cases.

Keeping in view of what we have said, we pass to consider the facts of the instant case. One of the issues in the appellant's second trial was the same as that in the first trial, to wit, whether the appellant and his co-accused had been in possession of Jetha's rifle. Mkude, J as will be recalled, answered that issue in the negative. We entertain no doubt that, for reasons we have endeavoured to give, the prosecution was bound to accept the correctness of that finding and was precluded from taking any step to challenge it at the subsequent trial. In other words, the prosecution was estopped in the second trial from seeking to prove that, contrary to Mkude, J.'s finding, the appellant and his co-accused were found in possession of Jetha's rifle. The mounting of the prosecution against the appellant and his co-accused in the second trial was inconsistent with what is right. Kyando, J. should have allowed the appeal before him.

For the reasons we have given, we allow the appeal, quash the appellant's conviction and set aside the sentence imposed thereon. Exercising revisional powers conferred upon this Court by section 4(2) of the Appellate Jurisdiction Act 1979 as amended by the Appellate Jurisdiction (Amendment) Act 1993, we quash Yahya Abdallah's conviction and the sentence imposed thereon. As the two men are, as far as this case is concerned, out of prison, we make no order for their release. Though the appellant and his co-accused will derive no practical advantage from our decision, they are entitled to have their convictions expunged from records.

ULC (TANZANIA) LTD *v.* NATIONAL INSURANCE CORPORATION AND ANOTHER

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Dr Bwana, J.)

COMMERCIAL CASE No. 56 OF 2000

Civil Practice and Procedure – Costs – Costs of a suit – Award of costs of a suit where no prayer for costs is made in the plaint – Whether award of costs to the successful party is automatic

Civil Practice and Procedure – Precedent – Decisions by judges of the same Court – Judges of the same Court not to give conflicting decisions

The plaintiff insured its motor vehicles with the first defendant and paid all the premiums. Twelve such insured motor vehicles were involved in accidents between 1997 and 1999, the period of the subsistence of the insurance policies. The plaintiff sued for specified sums of money which arose from losses suffered as a result of the accidents. The defendant admitted liability and thus judgment and decree on admission were entered in favour of the plaintiff. The plaintiff also claimed interest on the principal sum admitted as the defendant delayed to effect payment and the plaintiff's motor vehicles were for commercial use. The defendant disputed the claim for interest and the Court considered the issue as well as the issue of costs of the suit, which was not pleaded in the plaint.

Held: (i) Judges of the same Court should not give conflicting decisions over similar issues, unless it is absolutely necessary;

(ii) The plaintiff deserves to be awarded costs of the suit since he came to the Court due to negligence of the defendant.

Order accordingly

Cases referred to:

(1) *JS Mutungi v. The University of Dar es Salaam* [2001] T.L.R. 261

(2) *Said Kibwana and others v. Rose Jumbe*[1993] T.L.R. 175

Statutory provisions referred to:

(1) Public Corporations (Amendment Act 1993)

(2) Civil Procedure Code Order XII, rule 4, Order XX, rule 21

(3) Insurance Act Number 18 of 1996, section 109

Mr El-Maamry, for the Plaintiff

Mr Msemwa, for the Defendant

JUDGMENT

(Dated 29 June 2001)

Dr Bwana, J.: The plaintiff is a commercial transporter possessing several motor vehicles for the purpose. The first defendant is an insurance company with which the plaintiff had contractual dealings. He had insured his motor vehicles with NIC. During the subsistence of such contractual obligations, the plaintiff paid and the first defendant accepted the premiums for the said motor vehicle insurance policies. The second defendant is a body corporate established by an Act of

Parliament and its responsible (as per Public Corporations (Amendment) Act of 1993) for, *inter alia*, divestiture of parastatal bodies. The first defendant is one of such specified bodies.

Initially the plaintiff sued the defendants for judgement and decree, claiming for specified sums of money arising from losses suffered as a result of motor vehicle accidents. Twelve insured motor vehicles were a subject matter of the claims covering a period of between 1997 and 1999 that is, during the subsistence of the said insurance policies.

The plaintiff requested the defendants to pay or make good the said loss and damage pursuant to the said insurance policies. The defendants agreed to meet the claims and issued a number of discharge vouchers to that effect. They, however, failed to honour their commitments, hence this case. Subsequently however, the defendants admitted liability in the sum of TZS. 92 193 301-20 out of the sum of TZS. 98 193 301-20 claimed by the plaintiff. On 8 December 2000, judgment on admission was entered in favour of the plaintiff as follows:

> In view of the admission by the defendants of their liability to the plaintiff to the tune of TZS. 92 193 301-20. I do hereby enter judgment on admission under Order XII, rule 4 of the Civil Procedure Code in favour of the plaintiff. The outstanding balance of TZS. 6 million will be the subject of the second session of mediation . including other matters not yet settled.

Those "other matters not yet settled" were issues of costs claimed, damages and interest. On 23 April 2001 the parties recorded a consent order for TZS. 98 193 301-50 but failed to agree on the question of interest and general damages. Mediation having failed on those issues the case was re-assigned for continuation before me. During a final pretrial conference, pursuant to Order VIIIB of the Civil Procedure Code the decree holder abandoned the issue of damages. This Court was left with interest as an issue for determination. The issue of costs was never mentioned but in subsequent written submissions it was averred by counsel for the plaintiff that the issue of costs is automatic. It follows the event. Further that the defendants having

admitted liability, the plaintiff was entitled to costs to be determined by the Taxing Officer. On his part, counsel for the defendants requested this Court to dismiss this suit with costs. This Court therefore is required to make its determination on two issues – interest and costs of this suit.

Mr El-Maamry submitted that the plaintiff was entitled to interest because that money was needed for the plaintiff's business. Had that money been paid, the plaintiff would have either banked it (hence got interest thereon) or spent it in the further improvement of his business.

Two kinds of interest are claimed, as per pleadings:

> Interest at commercial rate from the date of filing the suit to the date of judgment. Interest from the date of judgment to the date of payment.

In so far as the issue of costs is concerned, Mr El-Maamry submitted that the plaintiff had to come to Court because of the failure of the first defendant to pay the plaintiff his dues. As a consequence thereof, the plaintiff is entitled to payment of the costs incurred namely Court fees, advocates' fees and other disbursements.

On his part, Mr Msemwa submitted that since the decree holder does not plead as to what was the prevailing rate of interest during the material times up to the date of judgment, such claims should be dismissed with costs.

The issue of claims for interest has been exhaustively dealt with by the High Court of Tanzania at large and this Court in particular. It is a well respected principle in judicial circles that judges of the same Court should seldom give conflicting decisions over similar issues unless it is absolutely necessary. The Court of Appeal of Tanzania stated in *JS Mtungi v. The University of Dar es Salaam and others* (1) thus:

> ... it is not a matter of judicial courtesy but a matter of duty to act judicially which requires a judge not lightly to dissent from the considered opinion of his brethren...one expects (in case of dissent) sufficient reasons to be

> given for the results (in the present case) to be different from those in an earlier case ...This is necessary to avoid giving parties and the general public a false impression that results of cases in Courts of law perhaps depend more on the personalities of judges than the law of this land ...

I will not, therefore, depart from the foregoing decision of the Court of Appeal.

As stated earlier, one of the two key issues is that of interest to be awarded to the plaintiff. This matter has been dealt with by this Court on several occasions. I must note at this stage, however, that both counsel seem to agree on the fact that the plaintiff is entitled to interest. They differ only on the issue of what percentage should be awarded. Discharge vouchers were signed and issued to the plaintiff in respect of all motor vehicles which form the subject matter of this case. That represents admission of liability. They were all issued more than sixty days ago. Section 109 of the Insurance Act Number 18 of 1996 states:

> Every insurer shall pay the claims within sixty days of the admission of liability if the insurer is unable to settle the claim within that time he may apply to the Commissioner for extension and the Commissioner may grant an extra time within which the claim shall be settled...

As such, the plaintiff is entitled to the payments admitted. The issue of interest cannot be ignored, insurance is commercial. It stands on the four pillars of profit and losses gained or suffered by the parties. By insuring his motor vehicles, the plaintiff was taking the necessary precautions against possible loss. Thirteen of the plaintiff's vehicles were involved in accidents and got damaged. Had they been operational, he would have made gains, commercially. After the loss, he has not been indemnified in time as required by the Insurance law (supra). Even if he would not utilize the said money, he would have banked the same thus obtaining interest at the bank's rate. He cannot, therefore, be denied of the same.

There are two categories of interests that are claimed in the instant case and which are usually awarded by Courts. The first one is usually

awarded in cases of a commercial nature. It usually reflects commercial rates currently in application. It covers the period from filing of the suit to its successful determination in favour of the party claiming such interest. The second, is the interest awarded by the Court pursuant to Order XX, rule 21 of the Civil Procedure Code. In the instant case the plaintiff simply prays for interest at the commercial rate (as regards the first category) and interest at court's rate of 12% (in the latter category). Counsel for the defendants controverts both, submitting that the exact rates covering the period between 1997 and 1999 have not been provided and/or pleaded. I do understand Counsel's concern. The claims cover periods of over two years, during which rates of commercial interests may have fluctuated. The foregoing notwithstanding, it is my considered view that the basic need for awarding interest in favour of the plaintiff is not affected. He has been awarded the principal sum. That sum should carry an interest for reasons stated above. In the case of *Said Kibwana and others v. Rose Jumbe* (2) the Court of Appeal of Tanzania held at page 19 thus:

> The rate of interest to be awarded for the period prior to the delivery of judgment is set at the discretion of the Court. The rate which it considers reasonable. There are thus two divisions of interest under Tanzania law. These two correspond to the period for which interest is awarded. The first period covers the whole of that period up to delivery of judgment. The second period is the period from delivery of judgment to final satisfaction. The rate to be awarded for the first period is entirely at the discretion for the Court, whereas the rate to be awarded for the second period is also at the discretion of the Court but within set limits i.e. between 7% and 12% per annum.

In invoking the discretionary powers granted to me I have taken into consideration the following factors:

> The plaintiffs' vehicles were commercial vehicles. The principal sum admitted to be paid to the plaintiff is a result of the commercial transactions that existed between the parties and regulated by the insurance law, principles of payment of premiums and indemnities.

Therefore the plaintiff is awarded interest at the commercial rate applicable between 1997 and 1999. The parties shall have to produce proof thereof before the taxing officer.

In so far as the second leg of the interest is concerned, I award the plaintiff interest at the court's rate.

I will now examine the issue of costs. Both counsel seem to be claiming for the same. I do concur with Mr El-Maamry that it was the failure on the part of the defendant to meet its obligations – by paying the claims – which prompted the plaintiff to come to Court. In so doing he had to pay *inter alia*, for the Court fees, and instructions fees. Since judgment has been entered on admission in favour of the plaintiff and further, since the issue of interest has been determined in favour of the said plaintiff, he deserves to be awarded costs of this suit. I order accordingly.

ROBINSON MWANJISI AND THREE OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 154 OF 1994

(From the judgment of the High Court of Tanzania at Mbeya, Mchome, J. dated 11 March 1994, in Criminal Appeal Nos. 63 and 71 of 1993)

Criminal Practice and Procedure – Appeals – Admission of statements of appellants on appeal without hearing them – Whether proper – Sections 197, 225, 226 and 369 of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Trial – Dispensing with presence of accused – When a statement of accused person should be read out.

Criminal Practice and Procedure – Competent witness – Investigator as a witness – Whether an investigator is competent to testify.

Criminal Practice and Procedure – Mis-directions and non-directions – Effect thereof.

Criminal Practice and Procedure – Trial within a trial – When a trial within a trial may be conducted.

Criminal Practice and Procedure – Hearing a case after expiry of 60 days – Whether lawful section 225(4) of the Criminal Procedure Act 1985.

The four appellants were convicted, by the District Court, of one count of conspiracy and four counts of robbery with violence. Each of them was sentenced to three years imprisonment on the conspiracy charge and to thirty years imprisonment on each of the four counts of robbery with violence, sentences running concurrently. Their appeals to the High Court were dismissed. In the course of hearing the appellants' appeals, the High Court admitted statements made to police by the appellants, which had been rejected by the Trial Court, and the High Court admitted those statements in the absence of the appellants and in the course of preparing the judgment of the Court. The evidence was that during the night of 12/13 February1992, a robbery took place at a DANIDA Project Camp in Chunya District in the course of which an Isuzu lorry, a motor cycle, four mattresses and a Seiko watch were stolen. An engine and other parts of the lorry, mattresses and the "Seiko" watch were recovered from the appellants from various areas within one month of the robbery. In the course of hearing the appeal, the appellants submitted that the trial was improper as it had started after sixty days had passed.

Held: (i) The learned judge never gave the appellants or their advocates the opportunity to be heard before admitting the statements which amounted to additional evidence; the basic rule in section 369(3) is that the accused or his advocate has to be present where the High Court decides to take additional evidence, save where the accused manifests disorderly conduct, or cannot be present on the ground of health but is represented by counsel and has consented to the evidence being taken in his absence;

(ii) The dispensing with the presence of the appellants and their advocates by the learned judge in this case amounted to an improper exercise of discretion;

(iii) The issue as to the voluntariness of the statements was not resolved in the appropriate manner since the Trial Court did not conduct a trial-within-a-trial;

(iv) The burden of proving the voluntariness of the statements was upon the prosecution and no onus lay on the defence to prove their involuntariness; as neither the prosecution nor the defence was heard on the question, the ruling of the learned magistrate was without legal basis;

(v) Even the High Court judge could have admitted the statements only after holding a trial-within-a-trial and establishing their admissibility, but now the admission of the statements was illegal and not authorized by any law;

(vi) Whenever it is intended to introduce any document in evidence, it should first be cleared for admission, and be actually admitted, before it can be read out, otherwise it is difficult for the Court to be seen not to have been influenced by the same;

(vii) According to section 225(4) of the Criminal Procedure Act what is unlawful is not "to hear" a case after an aggregate of sixty days has expired but what shall not be lawful is "to adjourn" a case after the expiry of sixty days if the exceptional circumstances have not been complied with; nowhere in the section is it implied or expressed that a hearing after the expiry of sixty days is a nullity; otherwise subsection (5) would be useless as it does not bar subsequent charges on the same facts;

(viii) If the prosecution is unable to proceed with the hearing for whatever reason, the Court should discharge the accused, but the omission to discharge the accused that does not affect the jurisdiction of the Court to try the case; it has little or no consequence since discharging of the accused would not bar subsequent proceedings against him for the same offence;

(ix) The purpose of section 225 generally, and subsection (4) and (5) in particular, is to expedite trials but not to clear accused persons from criminal liability.

(x) The purpose of investigation is to collect facts and later to give evidence; there is no law or authority that declares an investigator incompetent to testify.

(xi) In the light of the evidence on record, there was no misdirection or non-direction to lead to a perverse finding; the matters raised by the appellants were too

trivial to deserve attention and the appellants were properly convicted for the robbery and conspiracy charges.

Appeals dismissed

Case referred to:

(1) *Komanya v. Republic* [1971] HCD n 278

Statutory provisions referred to:

(1) Evidence Act 1967, section 33 subsection 1

(2) Criminal Procedure Act section 369 subsection 3

(3) Evidence Act 1967, section 27(2)

JUDGMENT

(Dated 13 July 2001)

Lugakingira, J.A.: The four appellants, Robinson Mwanjisi, Laison Siwale, Salum Asajile and Dominic Emmanuel, who were at the trial first, third, fourth and fifth accused respectively, were before the District Court of Mbeya convicted on one count of conspiracy to commit an offence and four counts of robbery with violence. They were sentenced to three years imprisonment each for the conspiracy and thirty years on each of the robbery counts, all terms running concurrently. They appealed to the High Court which dismissed their appeals. In doing so, the Court also admitted in evidence cautioned statements made to the police by Mwanjisi and Siwale which had been excluded by the Trial Court.

There were seven accused persons originally. It is desirable to mention the rest as it will be necessary to refer to them in the course of this judgment. The second accused was Emmanuel Paramani. He was similarly convicted and sentenced at the trial but was acquitted on appeal to the High Court. The sixth accused was Greyson Mwakalinga. His conviction at the trial was upheld by the High Court but he died

after instituting an appeal to this Court. The seventh and last accused, Asajile Mwaijulu, the father of the fourth accused (and third appellant herein), faced a separate charge of receiving stolen property. He was acquitted at the trial.

The robbery took place at Ifwekenya DANIDA Water Project Camp in Chunya District on the night of 12/13 February 1992. Masked men armed with a gun invaded the camp around midnight and made away with an Isuzu lorry TZ 19810, a motor cycle TX 18491 and four mattresses, all properties of DANIDA, as well as a Seiko watch, the property of PW3 Selemani Haizuru, a driver at the camp, and two radios and an amount of cash, the property of PW6 Abuu Mkungume, a foreman at the camp. PW3 and PW6 were severely assaulted in the process and a bullet was fired in the air to scare off any intervention.

The first appellant (and first accused) is a brother of PW2 Job Mwanjisi, the proprietor of a transport business at Mbalizi on the outskirts of Mbeya municipality. He owned a Land Rover pick up MB 3459 with which the first appellant used to transport passengers for hire. On the afternoon of 12 February the first appellant drove to Chunya with passengers but although he was expected back the same day, he never returned. On the night of 17 February some police officers based at Inyala police post were patrolling along the Mbeya/Iringa road when they came upon a parked Land Rover facing in the Mbeya direction. They passed it but then became suspicious and reversed. When they drew closer to it, the Land Rover took off at a tremendous speed. After a short chase it stopped and its occupants jumped out and disappeared into the night. It was MB 3459, the property of PW2. It was loaded with various motor vehicle parts, later identified as of an Isuzu lorry. Under the driver's seat was a shotgun a Greener Number 10318. The Mbeya police were informed and collected the Land Rover and its load. Investigations led to the discovery of more parts. On 14 March the investigation officer, PW1 DC Clemence, recovered the engine block, mattresses, etc. at a house near the Mbeya airport and the motor cycle from the seventh accused's house. We

will come to the details later. On 19 March he recovered a chassis, cabin, two doors, mudguards, fuel tank, etc., from the bush near Nyololo Village at Sao Hill in Iringa region. Meanwhile, the first appellant surfaced at Dar es Salaam where he conveyed himself at Magomeni police station and was duly detained in custody. He was later collected by PW1. The other accused were picked up at various places in Mbeya between March and May and the entire groups were accordingly charged.

The appellants appeared in person before this Court. A ground of appeal common to all is that Mchome, J. on first appeal erred in law in admitting in their absence, the statements recorded by the police from the first and second appellants. There is merit in this ground. At the trial the prosecution sought to introduce the statements in evidence but the trial magistrate, while remarking that the statements were voluntarily made, declined to admit them on the ground that they were exculpatory. Mchome, J. seems to have found them both inculpatory and exculpatory and, taking the view that they were improperly excluded, went ahead and admitted them on the strength of subsection (1) of section 33 of the Evidence Act 1967. However, he did so in the absence of the appellants and their advocates, and had this to say:

> I called up this case in order to admit the evidence which was improperly rejected. Neither the appellants nor their advocates appeared on that date when I admitted these confessions as Court Exhibits 1 and 2 respectively. I found it safe to do so in their absence because at the trial the appellants were represented by learned counsel who had all the opportunity to scrutinize the confessions and argue against their admission and convince the trial magistrate in their favour. In their confessions the appellants confessed to have participated in the commission of this crime in different capacities and implicated the other co-accused except the seventh accused.

Although the learned judge gives the impression that the appellants and their advocates were required to appear but did not appear when he admitted the statements, the original record gives quite a different picture. Hearing of the appeal before the High Court took place on

14 September 1993 when judgment was reserved. Six months later, on 4 March 1994 to be exact, the record has this:

> 4 March 1994
>
> Coram: LB Mchome, J.
>
> For appellants: Absent
>
> For respondent: Mr Mwaililo
>
> Court: While I was preparing this judgment I found that the first and third accused persons' cautioned statements to the police were improperly rejected admission by the Trial Court. I hereby order the State Attorney to produce them in Court.
>
> Mr Mwaililo: I hereby produce the cautioned statements as Exhibits.
>
> Court: Marked as Court Exhibits 1 and 2 respectively.
>
> Sgd. LB Mchome
>
> Judge
>
> 4 March 1994

It is apparent from the foregoing that the learned judge never gave the appellants or their advocates the opportunity to be heard before admitting the statements. The statements amounted to additional evidence and it seems that in dispensing with the presence of the appellants and their advocates the judge relied on subsection (3) of section 369 of the Criminal Procedure Act which states:

> (1) Unless the High Court otherwise directs, the accused or his advocate shall be present when the additional evidence is taken.

The basic rule in this subsection is, to our minds, that the accused or his advocate has to be present where the High Court decides to take additional evidence; in certain circumstances, however, the Court may proceed in the absence of the accused or his advocate. What are those circumstances? To discover this, section 369 has to be read as a whole. Subsection (4) thereof provides that evidence taken

in pursuance of the section shall be taken as if it were evidence taken at a trial before a Subordinate Court. One implication of this subsection is that when taking additional evidence the High Court may dispense with the presence of the accused or his advocate in the same circumstances as a Subordinate Court may in a trial. Apart from warrant offences where under section 193 the accused may plead guilty to a charge in writing, a Subordinate Court may dispense with the presence of the accused in two ways. First, under section 197(a), it may so dispense with the accused's presence where it considers that by reason of the accused's disorderly conduct before the Court, it is not practicable for the evidence to be given in his presence. It should be emphasized that the accused has to manifest his disorderly conduct before the Court in order to exclude his presence. Under paragraph (b) of the same section a Subordinate Court may again dispense with the presence of the accused if he cannot be present for reasons of health but is represented by a counsel and has consented to the evidence being given in his absence. A Subordinate Court may also dispense with the presence of the accused in the circumstances set out under section 226(1). That is where following an adjournment the accused does not appear for hearing or continuation of hearing. None of these factors obtained in this case and we think the decision by the learned judge to dispense with the presence of the appellants and their advocates was an improper exercise of discretion.

There was yet another reason in this case for the appellants and their advocates to be present when the statements were admitted. We think, with respect, that although the trial magistrate considered the statements to be voluntary, their voluntariness was in fact hotly contested, the defence counsel contending that the first and second appellants were "strongly tortured." This issue was not resolved in the appropriate manner for as far as the record goes the trial magistrate did not hold any trial within a trial. He simply proceeded to this surprising ruling:

> Now reverting back to the case at hand, the above named accused persons claimed to have been severely tortured by the police when their respective

> statements were being extracted from them. But to the surprise of the Court, they did not inform the Court of the nature of the torture which the police leveled on them at the material time. It doesn't suffice, I venture to think, for the accused persons to just allege that they were tortured without further proof of the matter. Their claim is therefore rejected for that reason.

We say this is surprising ruling for the accused were not given the opportunity to be heard on the nature of the torture leveled at them. Moreover, the burden of providing the voluntariness of the statements was upon the prosecution and no onus lay on the defence to prove their involuntariness. Section 27(2) of the Evidence Act 1967 is clear on that. Neither the prosecution nor the defence was heard on the question and we think it correct to say that the ruling of the learned Resident Magistrate was without legal basis.

In view of this state of affairs, it is equally surprising that the learned judge on first appeal regarded the statements as voluntarily made. We think, with respect, he would not have taken that view had he correctly directed himself on the record. If upon doing so he was still intent on admitting the statements; he could do so only after holding a trial-within-a-trial and establishing their admissibility. As it is now, the admission of the statements was illegal and not authorized by any law.

One other matter requires to be put right. It is noted that the statements were read out before the Trial Court although they were subsequently rejected, a practice unfortunately common in trials before Subordinate Courts. Whenever it is intended to introduce any document in evidence, it should first be cleared for admission, and be actually admitted, before it can be read out. Ruling out documents before they are admitted in evidence is wrong and prejudicial. If the document is ultimately excluded, as happened in this case, it is difficult for the Court to be seen not to have been influenced by the same.

In the light of the foregoing, Court Exhibits 1 and 2 are expunged from the record and there will be no further reference to them.

A ground common to the first and third appellants only is that the trial was unlawful, it having taken off contrary to the provisions of subsection (4) of section 225 of the Criminal Procedure Act. Subsection (4) declares unlawful the adjournment of a case for an aggregate exceeding sixty days except, on each aggregate, upon a certificate by the Regional Crime Officer, a State Attorney and the Director of Public Prosecutions. The question was raised before and considered by the High Court where Mchome, J. had this to say:

> My interpretation of this section is that what is not lawful is not "to hear" a case after sixty aggregate days have expired but what shall not be lawful is "to adjourn" a case after the expiry of sixty days if the exceptional circumstances have not been complied with.

The judge then cited subsection (5) of section 225 and continued:

> Nowhere in this section is it implied or expressed that a hearing after the expiry of the sixty days in a nullity. Otherwise subsection (5) would have been useless as it does not bar subsequent charge on the same facts.

We agree with the learned judge. The two subsections mean that an adjournment should not be granted to the prosecution after the elapse of an aggregate of sixty days in the absence of the requisite certificate, but the Court should press on with the hearing. If the prosecution is unable to proceed with the hearing, e.g. for investigations being incomplete or witnesses being unavailable, the Court should discharge the accused. Our view, however, is that the omission to discharge the accused where he ought to be discharged is only an irregularity but it does not affect the jurisdiction of the Court to try the case or, as Mchome, J. put it, what is unlawful is to adjourn but not to hear the case. We think, moreover, it is an irregularity of little or no consequence since discharging the accused would not operate as a bar to subsequent proceedings against him for the same offence. The purpose of section 225 generally and subsections (4) and (5) in particular is to expedite trials but not to clear accused persons from criminal liability. We find no merit it this ground of appeal.

We will now turn to consider the cases of the individual appellants. The first appellant claimed at the trial that after dropping his passengers at Chunya he decided to sleep there. While still there he was pounced upon by four armed bandits who forcefully took his ignition keys, tied his hands and legs, blindfolded him and drove him for a long time in a Land Cruiser until 5 a.m. when they released him at Mburahati in Dar es Salaam. The Courts below did not believe this story and we think rightly so. It does not make sense at all for carjackers to burn fuel for hundreds of kilometers just for getting the victim out of the way. There was, on the other hand, sufficient evidence to connect the first appellant with the crime. He was the driver of MB 3459 and drove to Chunya on the material day. Four days later the vehicle is found loaded with dismantled parts which were definitely identified by PW3 as of the stolen lorry. Indeed there was no dispute about the ownership of all the parts as well as the motor cycle which were restored to DANIDA very early in the trial with the unanimous agreement of the defence. Thirdly, this appellant never reported back to his brother, PW2, about any misadventure for all the period he went missing. To crown it all, he virtually admitted to some aspects of the offence. On 31 March he told PW1 that there was a person at Nyololo village who saw all the accused when they were engaged in dismantling the lorry. He took PW1 to the village at a tearoom run by Fatuma Nziku and Chiku who both remembered him. Of course it would have been better to conduct an identification parade and to summon the two women or one of them to testify, but we still think this was a significant and relevant episode.

The first appellant contended that PW1 should not have been believed because he was the investigator and had an interest in the outcome of the trial. There is no merit in this. The purpose of investigation is to collect facts and later to give evidence. There is no law or authority which declares an investigator incompetent to testify. The case of *Komanya v. Republic* (1), to which the first appellant referred, is not such authority. Apart from being a criminal proceeding involving some aspects of circumstantial evidence, it says nothing about

investigators as witness. We think on the whole there is no merit in the first appellant's case.

The case of the remaining appellants may be taken together as the evidence against them was interwoven and came from PW1, PW3, PW4, PW5, PW9, PW10 and PW13. PW4 Bosco Peter Lukuli and PW5 Upendo Lukuhi, husband and wife, were resident at the airport area in Mbeya municipality. Their premises consisted of two houses, one in front and another at the back. They occupied the back house. We shall term the front house the "Airport house." In February 1992 the second appellant and the sixth accused rented the Airport house consisting of two rooms and a sitting room at 1 200pm. On one occasion PW5 saw the two bring mattresses there. Then on 14 March she saw heavy metal objects being unloaded into the house from a white pick-up.

There was indeed more evidence that the Airport house was being used as a transit point and appears to have been rented in fact for that purpose. PW9 Buka Mwasalemba, driver of a Fiat pick-up MB 4060 was in February hired by the third and fourth appellants as well as the sixth accused to ferry various Isuzu components, which included a gear box, from the third appellant's house at Ilema to Iwambi at the seventh accused's house. As stated earlier, the seventh accused is the third appellant's father. On another occasion PW9 was hired by the same persons to transfer the gear box from the seventh accused's house to the Airport house. On all occasions he was paid by the third appellant. Then came 14 March. On that day the third and fourth appellants as well as the second and sixth accused hired PW10 Christopher Mwakalinga, driver of a Toyota pick-up TZ 88766, to ferry from the seventh accused's house to the Airport house an engine block, differential, cylinder head, air cleaner and other components which he recognized as Isuzu parts.

They found the second appellant standing outside the Airport house and unloaded the items into the house. That was the occasion witnessed by PW5. In the afternoon of the same day the police arrived at the

house. The second appellant and the sixth accused were inside as well as the third appellant who used to frequent the house. PW5 was also at home. Apparently the three saw the police in good time and PW5 saw them run in different directions. The police arrived only to find the doors ajar and they do not appear to have taken notice of PW5 because PW1 said: "Nobody was at home." In one room the police found three mattresses (Exhibit P7), a blanket and two bed sheets and in the second room they found the engine block and other accessories (Exhibit P9). Earlier on the same day they had gone to the seventh accused's house and recovered the motor cycle (Exhibit P4).

At the trial PW3 identified in Exhibit P7 the mattresses taken from his room as well as Exhibits P4 and P9, pointing to the service number on the engine block. The fourth appellant was arrested on 24 May after a chase in which he was shot in the leg. He was then found with a Seiko watch (Exhibit P11) which was identified by PW3 because of his initials "S H" inscribed at the back and the glass.

The Courts below believed the prosecution witnesses that the second, third and fourth appellants were in possession of the various items either at the Airport house or at the seventh accused's house. In the light of the evidence just reviewed, we have no cause to differ. It has not been demonstrated to us that there was any misdirection or non-direction as would have led to a perverse finding. The matters raised by these appellants are so trivial as not to deserve attention. We are satisfied that these appellants were similarly properly convicted for the robberies and that all the appellants were properly convicted on the conspiracy charge. The appeal is dismissed in its entirety.

SULTAN SEIF NASSOR v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Ramadhani and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 66 OF 2000

(From the Judgment of the High Court of Tanzania at Dar es Salaam, Ihema, J. dated 20 September 1999 in Criminal Appeal No. 43 of 1999)

Criminal Law – Theft – Doctrine of recent possession – Accused explains how he got possession of the stolen goods – Whether the doctrine may properly apply.

Criminal Practice and Procedure – Sentencing – Sentencing powers on appeal – Whether appellate Court may interfere with sentence of a lower Court

Criminal Practice and Procedure – Appeal – Evaluation of evidence on appeal – Powers of appellate Court – Whether appellate Court may evaluate the evidence afresh.

The appellant together with seven others were charged with two counts of conspiracy to steal and stealing contrary to sections 384 and 267 of the Penal Code respectively. The prosecution case was that goods belonging to Daniel Kapapa, a State Minister in Zambia, stolen while in transit from Dar es Salaam, were then found in possession of the appellant. The appellant explained how he came into possession of the goods and a witness was called to testify in his favour. Both the Courts below rejected the explanation and the trial District Magistrate convicted the appellant and sentenced him to five years' imprisonment, and acquitted the other accused persons. On first appeal the High Court upheld the conviction and enhanced the sentence to seven years imprisonment.

Held: (i) It is trite law that where the accused person explains how he came into possession of the stolen goods, the doctrine of recent possession should not stand.

(ii) Where a second appeal is brought under section 5(7) of the Appellate Jurisdiction Act 1979 on a point of law the second appellate Court can evaluate the evidence afresh and make its own findings.

(iii) Where the sentence is manifestly inadequate or excessive to amount to a miscarriage of justice, and where the Trial Court acted on a wrong principle or overlooked some material facts, the appellate Court may interfere with the sentence passed by the lower Court.

Appeal allowed

Cases referred to:

(1) *Director of Public Prosecutions v. Jafari Mfaume Kawawa* [1981] T.L.R. 149

(2) *James Yoram v. R* (1951) 18 E.A.C.A. 147

(3) *Republic v. Abdallah Selemani* [1983] T.L.R. 215

(4) *Republic v. Mohammedali Jamal* (1948) 15 E.A.C.A. 130

(5) *Silvanus Leopard Ngumwe v. Republic* [1981] T.L.R. 66

Mr Ndolezi for the Appellant

Ms Malecela for the Republic

Statutory provisions referred to:

(1) Penal Code sections 384 and 265

JUDGMENT

(Dated 23 July 2001)

Ramadhani, J.A.: The appellant, Sultan Seif Nassor, together with other seven persons were charged with two counts: conspiracy to steal contrary to section 384 and stealing goods in transit contrary to section 265 of the Penal Code. The story of prosecution is that some goods belongings to one Daniel Kapapa, a state Minister in Zambia, (PW6), were stolen while in transit to Zambia from Dar es Salaam. These goods were found in the possession of the appellant

and his companions four of whom were his co-accused persons. A locomotive driver, a train guard and train escort who were on duty on the fateful day were also charged.

The learned District Magistrate of Kisarawe district was not satisfied that the charge of conspiracy to steal was proved. So he acquitted all eight accused persons on the charge. He also acquitted all accused persons, except the appellant, on the second count of stealing goods in transit. For that offence the appellant was sentenced to a term of imprisonment for five years.

The appellant being aggrieved by the conviction and sentence unsuccessfully appealed to the High Court where his sentence was enhanced to seven years. This is his second appeal and this was advocated for by Mr Ndolezi, learned counsel, while Ms Malecela, learned State Attorney, represented the Republic/respondent.

The evidence before two lower Courts was that PW6 went to Bangkok in April 1997, and had massive shopping of assorted items of goods, which were then "packed in a package *(sic)*; it was sealed and got my name Mr Kapapa". The container was shipped to Dar es Salaam where the container was loaded on a train to Kasama, Zambia. PW6 received the container on 15 August 1997, and on 24 August 1997 he opened it before two police officers, Ackson Zulu (PW7) and Mark Mwingu (PW8), only to discover that it was empty. The opening of the container was at PW1's residence where PW7 and 8 found it already off-loaded and on the ground.

That discovery was reported to the Tanzania Zambia Railway Authority (TAZARA). PW7 and 8 came to Dar es Salaam where they were shown 54 parcels with PW6's name written on them. PW6 himself identified the goods in Court but wondered why his luggage had some Kiswahili writings. PW6 also could not satisfactory explain the difference in the weight of the container from 6032 kilos in Bangkok to 6740 in Dar es Salaam, that is, an increase of 708 kilos.

These goods were recovered by Assistant Inspector Mohamed Juma (PW1) from the appellant, Sultan Seif Nassor, and his six colleagues

on 11 August 1997, at Kisanga Village in Kisarawe District , where the vehicle transporting the goods broke down. The appellant claimed ownership of the goods and told PW1 that he bought them in Arusha. At the time of his arrest, however, he did not have receipts because they were lost in the accident. The appellant later produced copies of receipts and he was prepared to take the police to Rumbo General Enterprises, the shop from which he bought them. However, when these charges were placed to his door, the appellant declined to cooperate. So D/C Phillipo (PW5) went to Arusha to look for the shop but found "Tumbo Games Stone" *(sic)*. PW5 admitted that he did not make enquires at the Registrar of Companies.

Vedasto S Lugemalila, a train controller with TAZARA, (PW3), said that the container in question left Yombo for Kasama at 5:00am on 11 August1997. After covering some 71 kilometers, it stopped for some forty minutes because of some technical reasons. The seal on the container was found tampered with. PW6 said "TAZARA staff found the seal was different in number from Bangkok the seal was reddish and while in Zambia it were green with different figures" *(sic)*.

In his defense, the appellant reiterated his claim of ownership of the goods and produced Martin Masanja (DW6) who affirmed to have sold the goods to the appellant.

Mr Ndolezi had a three-ground Memorandum of Appeal. His first ground was whether as a matter of law the prosecution proved theft of the goods in transit beyond reasonable doubt. Mr Ndolezi submitted that even invoking the doctrines of recent possession, the appellant gave an explanation of how he came to possess the goods that they belong to him. The learned advocate contended that PW5 did not prove the non-existence of the Tumbo General Enterprises. The learned advocate submitted that the Registrar of Companies should have been consulted. He pointed out that DW9 was not cross-examined on the existence or otherwise of the store. Ms Malecela, on the other hand, argued that the learned District Magistrate did not believe the claim of the ownership of the goods by the appellant and his witness, DW9.

On the second ground of appeal Mr Ndolezi submitted that the enhancement of the sentence was contrary to law because the appellant was not heard on the matter. He cited *Republic v. Abdallah Sulemani*, (1) at 215. Ms Malecela argued that the advocate for the appellant addressed the Court on the question of punishment.

Finally the learned advocate submitted that the order of giving the goods to PW6 while the process of appeal had not been exhausted was wrong in law. Ms Malecela did not make any submission on that.

We must admit that the learned district magistrate erred in convicting the appellant with theft of goods in transit without expressly stating that he was invoking the doctrine of recent possession. Besides that, the question is whether the evidence before the two Courts proved the offence beyond the reasonable doubt.

It is undisputed that the first five accused persons were found in possession of the goods that are alleged to have been stolen. Nevertheless, four of those persons were acquitted of the offence of stealing goods in transit. Only the appellant was convicted of the offence. The question was why? What distinguished the appellant from his four colleagues who were all found by PW1 to possess the goods at Kisanga Village?

The answer is not difficult to come by, the appellant consistently owned to have been in possession of the goods claimed to belong to PW6. Whereas both lower Courts believed the appellant's admission of possession the goods, they disbelieved his claim of ownership. We must emphasize that it was not the evidence of PW1 that swayed the lower Courts. If it were so, then all of the first five accused persons would have been convicted. It was the claim of the appellant to the ownership of those goods that clinched the matter. The two Courts did not also believe DW9's assertion that he sold those goods to the appellant and, therefore, the goods belonged to the appellant.

Were the Courts legally correct? Were the goods conclusively identified to belong to PW6?

PW6 claimed that when he left Bangkok his purchases were put in a container and sealed. One wonders why then it was necessary to write the name of PW6 on every one of the 116 packages in the container. That doubt is reinforced by the existence of Kiswahili words on those packages that baffled even PW6 himself.

The learned district magistrate was satisfied that ownership of the good by PW6 was proved and he said:

> I also inspected Mr Kapapa's receipts (PW6) by which he was acknowledged when he bought the goods in Bangkok and the copies of original receipts of the first accused, and found that the documentary evidence and real evidence produced in Court prove more certainly that it is the properties of Mr Kapapa (PW6) *(sic)*.

We had a look at the receipts and saw that they merely said "boys' suits", for instance. There were no detailed descriptions of those suits. Then in a number of cases those brief descriptions were followed by scribblings in Thai characters which we are dead sure the two lower Courts could not decipher just as we were unable to do so.

The duplicate copies of receipt tendered by the appellant were equally brief. However, these had rubber stamp impressions "Tumbo General Enterprises, P O Box 4552, Arusha" and also "stamp duty paid. Composition Agreement Number SD/95/1/42". Now, these receipts were presented to the police very early in their investigation, according to PW1 one wonders why those details could not have been investigated and witnesses brought to disprove their authenticity. The learned district magistrate merely dismissed them by saying:

> ... receipts first accused produced in Court as Exhibits it has not the name of the company Tumbo Enterprises, Arusha, it is only sealed with the company seal as Tumbo Enterprises Arusha. The company should be known reliably if it would have the printed title of the company. The copies appear any one could afford to use ordinary paper as receipt by using a fake or fabric company seal Tumbo Enterprises, Arusha in sealing on that paper to make copies of the receipts *(sic)*.

So, the learned District Magistrate dismissed those receipts because they were not in printed letterheads but merely had rubber stamp impressions bearing the company name. But such details as "Box Number" and "Composition Agreement Number" should have been investigated so as either to give the lie to the appellant or exonerate him.

It is trite law that it is not for an accused person to prove his innocence but merely to raise a reasonable doubt. Where there are such clear leads as shown above and the prosecution does not disprove them while a conscientious one would have done so, then a Court, albeit an appellate one is justified to draw adverse inference as we do.

There are other issues that raise eyebrows. It is not in evidence when PW6 collected the container from the railway station in Zambia. The container arrived on 15 August but it was opened on 24 August that is after 9 days. We are prepared to take judicial notice of the fact that PW6 being a Minister is obviously a very busy man. But we cannot understand that whereas he was personally present when the container was lifted onto the truck at the railway station, PWs 7 and 8 did not witness the loading and the unloading. They found the container on the ground. So, they would not know what happened to the container before they were called to witness the opening. Yet the reason for summoning these two officers, according to PW8, was that the leadership of Zambia requires the police to know any business done by any minister! We wonder whether that was accomplished. Incidentally, PW6 gave a different reason: he said that as a Minister he was entitled to have bodyguards.

Apart from what we have said, we ask ourselves why did DW9 stick out his neck and assert on oath that he had sold the goods to the appellant. What he actually did was to confess that he was a person to be in the dock instead of the appellant. Could any one be so bold as to sacrifice oneself in that way while fully aware that what he was stating was false? That raises a lingering doubt not to be lightly waved aside.

We are satisfied that the decisions of both lower Courts were perverse: such finding was untenable. This Court has Director of Public Prosecutions in *Director of Public Prosecutions v. Jaffari Mfaume Kawawa*, (2) that:

> Where a second appeal was brought under section 5(7) of the appellate Jurisdiction Act 1979 on a point of law, the second appellate Court can evaluate evidence afresh and make its own findings of fact where there are misdirection or non-directions by the first appellate Court. [The section now as amended by Act Number 16 of 1984 is 6(7)].

This is what we have just done in this appeal.

We, therefore, quash the conviction and set aside the sentence. This ought to have settled the matter. However, there is a question of the enhancement of the sentence by the High Court.

Admittedly, before the High Court the appeal was also against the sentence and, therefore, the appellant's advocate had an opportunity of addressing the Court and argued that the sentence was stiff and should be reduced. The learned state attorney told the High Court "the sentence of 5 years is a proper sentence".

It would appear that the learned first appellate judge was of view that the sentence ought to have been the maximum provided by the law. There is abundant guidance on when an appellate Court could interfere with a sentence passed by a lower Court: One, if the sentence is manifestly inadequate or excessive so as to amount to a miscarriage of justice in *Republic v. Mohamedali Jamal* (3) and two, if the Trial Court acted on a wrong principle or overlooked some material factor in *James Yoram v. Republic* (4). This Court has encapsulated these principles in *Silvanus Leopard Ngumwe v. Republic* (5).

Be it as it may, the learned judge should have disclosed his intention and should have specifically invited the appellant or his counsel to address the Court on the matter. This was not done and was, therefore, against the decision in *Republic v. Abdallah Selemani* cited by Mr Ndolezi:

> Enhancement of sentence should not be made to the prejudice of the accused persons, for example, where he cannot be given an opportunity to be heard.

Finally, it is a matter of a great pity that the goods were by Court order given to PW6. That order now cannot be reversed. It would be proper in future that such goods are sold and the proceeds of the sale are kept in Court pending the finalization of the entire appellate process.

The appeal is allowed. The appellant is to be set free immediately unless his continued incarceration is otherwise lawful.

MINISTER FOR LABOUR AND YOUTH DEVELOPMENT AND ANOTHER v. GASPAR SWAI AND 67 OTHERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 101 OF 1998

(From the decision of the High Court of Tanzania at Dar es Salaam (Mapigano, Bubeshi and Kaji, J.J.), dated 11 December 1997, in Miscellaneous Civil Case No. 29 of 1995)

Appeals – Appeals to the Court of Appeal – Notice of Appeal – Need and time to file a Notice of Appeal – Rule 76 of the Tanzania Court of Appeal Rules 1979.

Appeals – Appeals to the Court of Appeal – Filing the record of appeal - Rule 83(1) of the Court of Appeal Rules 1979.

Appeals – Appeals to the Court of Appeal – Certificate of delay in lodging record of appeal – Effect of certificate of delay where a copy of the letter to the Registrar asking for a copy of the proceedings was not sent to the respondent – Rule 83 of the Court of Appeal Rules 1979.

The respondents were declared redundant by their employer, the second appellant, and that decision was upheld by the first appellant. The respondents applied to the High Court for an order of *certiorari* to quash the decision, and an order of *mandamus* compelling the second appellant to reinstate them. The High Court granted these prayers on 11 December 1997. On 17 November 1998 the advocate for the appellants filed a Notice of Appeal against the decision of the High Court without obtaining extension of time within which to file the same and, similarly, the appeal was instituted on 21 December 1998. The advocate for the respondents raised preliminary objections firstly that the appeal was time-barred for not complying with rule 83(2) of the Court of Appeal Rules 1979, and that the Record of Appeal offended rules 10(1) and (5) and 90(1) and (2) of the rules. On the morning of the hearing the advocate for the appellants lodged in the registry a Supplimentary Record of Appeal containing papers showing that an application for extension of time to file Notice of Appeal had been filed.

Held: (i) Where a preliminary objection to an appeal has been lodged it is improper for the appellant to seek to defeat the objection by acts designed to remove its basis;

(ii) An appellant cannot benefit from the certificate of delay issued under rule 83 of the Court of Appeal Rules 1979 if a copy of the letter to the Registrar asking for a copy of the proceedings was not sent to the respondent;

(iii) As there was no valid Notice of Appeal it having been lodged out of time the appeal is incompetent

Appeal struck out

Cases referred to:

(1) *Arusha International Conference Centre v. Damas Kavishe*, CAT – Civil Appeal Number 34 of 1993 (CA)

(2) *D P Valambia v. Transport Equipment Ltd* [1992] T.L.R 246

(3) *Alhaj Talib v. Kiweni Mushi* [1990] T.L.R. 108

Statutory provision referred to:

(1) Court Rules, rule 83(3), rules 10(1) and (5) and 90(1) and (2)

Mr Lyimo, for the Appellants

Professor Issa Shivji, for the Respondents

RULING

(Dated 27 July 2001)

Lugakingira, J.A.: When this appeal came on for hearing, Professor Issa Shivji who appeared for respondents raised preliminary objections comprised in two notices. The first or original notice was lodged way back on 14 January 1999 by the former counsel for the respondents, Mr Ngasala, the second or additional notice was lodged by Professor Shivji on 8 June 2001. After Proffesor Shivji had submitted on both notices counsel for the appellants, Mr Lyimo, gave us to understand that he had not had the opportunity to prepare a response to the additional notice but was prepared to respond to the original notice. We allowed him to do so and this ruling is based on that one.

The original notice of objection comprises two parts, namely that the appeal is time-barred for not complying with rule 83(3) of the Court Rules, and that the Record of Appeal offends rules 10(1) and (5) and 90(1) and (2). We concede that the second part, particularly non-compliance with rule 90(1) and (2), is not without importance, but we prefer to base our decision on the first part. It is necessary for that purpose to set our briefly the background to the objection.

The respondents are former employees of the second appellant, Shirika la Usafiri Dar es Salaam Limited. In July 1992 the second appellant declared the respondents redundant. The action of the second appellant was upheld by the Minister for Labour and Youth Development, the first appellant, in a decision dated 8 February 1995. The respondents were aggrieved by that decision and applied to the High Court for

an order of *certiorari* to quash the same and an order of *mandamus* compelling the respondents' reinstatement in their employment. The application was granted by the High Court in a ruling delivered on 11 December 1997.

On 17 November 1998, almost a year later, Mr Lyimo lodged a Notice of Appeal against the ruling and followed this up by instituting the appeal on 21 December 1998. According to rule 76(2) a Notice of Appeal has to be lodged within fourteen days of the decision against which it is intended to appeal and according to rule 83(1) the appeal has to be instituted within sixty days of the date when the Notice of Appeal was lodged. Where the intending appellant has applied for a copy of the proceedings in the High Court within thirty days of the decision against which it is intended to appeal, there is excluded in computing the time within which to institute the appeal the time taken by the High Court to prepare and deliver the copy of proceedings. In accordance with rule 83(2) this exclusion is available only where the application for a copy of the proceedings is made in writing and a copy of it is sent to the respondent.

In view of the above background and position, Professor Shivji argued that the appeal was time-barred, it having been instituted nearly a year after 17 December 1997. An extension of time was not granted by the High Court to lodge the Notice of Appeal, there was no letter applying for a copy of the proceedings, there was also no certificate of delay by the Registrar of the High Court. In terms of rule 83(2), therefore, the appellants could not rely on the exception to sub-rule (1). Professor Shivji accordingly prayed that the appeal be struck out with cost.

Mr Lyimo contended in reply that the appeal was instituted in time. He pointed out that the Notice of Appeal was lodged on 17 November 1998, and the appeal was instituted on 21 December 1998, only thirty-four days after the Notice of Appeal was lodged. He submitted that in those circumstances the appellant did not require any exclusion of time. When it was pointed out to him that the Notice of Appeal

was lodged well out of time, he changed track and stated that he was aware that the notice was out of time and that he had applied for and obtained an extension of time. We referred to an extracted order in the main Record of Appeal but it turned out that the order related to an extension of time to apply for leave to appeal and the grant of leave by the High Court.

We need to go a little back to tie up the story about extension of time. On the morning of the hearing Mr Lyimo lodged in the registry a Supplimentary Record of Appeal containing papers evidencing an application for extension of time to file Notice of Appeal. While arguing the additional preliminary objection, Professor Shivji objected to the Supplimentary Record and invited the Court to reject it. We heard brief arguments on the issue. Professor Shivji pointed out that the Supplimentary Record was filed after service on Mr Lyimo of the two preliminary objections. He submitted that this was an attempt to defeat the bases of the objections and charged that it was tantamount to playing around with the rules and practices of the Court. Mr Lyimo replied that there was no time limit for lodging a Supplimentary Record and referred to rule 92(3) which provides that the appellant may lodge a Supplimentary Record "at any time". His construction of that rule was that it applied even after an objection had been taken. After hearing the arguments we upheld Professor Shivji and promised to give our reasons in this ruling.

When a preliminary objection to an appeal has been lodged in accordance with rule 100, it is, in our view, improper for the appellant to seek to defeat the objection by acts designed to remove its basis. If such practice were allowed, rule 100 would lose purpose and meaning and decency of proceedings would be in jeopardy. This is not the first time that the Court has had to deal with a situation of this kind. A somewhat similar problem arose in *Arusha International Conference Centre v. Damas Kavishe* (1), and the question was whether a Notice of Motion to save an appeal could properly be taken up in answer to another notice of motion which had sought to have that appeal struck

out as being incompetent. The Court gave a negative answer to the question. The decision was followed in *DF Valambhia v. Transport Equipment Ltd.* (2). In similar vein is the decision in *Alhaj Talib v. Kiweni Mushi* (3). We agree with Mr Lyimo that under rule 92(3) an appellant may at any time lodge a Supplimentary Record but we construe the expression "at any time" to mean at any time before objection is taken. Upon objection being taken, time is up, so to speak, and a Supplimentary Record cannot then be lodged as of right but with leave of the Court. Any other interpretation would lead to chaos and absurdity. We were satisfied that the Supplimentary Record was lodged to pre-empt and defeat the preliminary objections already served on Mr Lyimo, and so we rejected it. For the avoidance of doubts, however, it should go on record that the Supplimentary Record, even if it were properly lodged, would not have assisted the appellants. It did not contain any decision extending the time to lodge the Notice of Appeal.

In short, there was no valid Notice of Appeal, it having been lodged out of time without extension. It follows that the appeal was also out of time; indeed it is more correct to say the appeal was vitiated as there can be no appeal without a valid notice in the first place. We uphold the preliminary objection and strike out the appeal with costs. The appellants, if they so wish, may go back to the High Court and start all over, beginning with an application for Extension of Time to file Notice of Appeal.

ILUMINATUS MKOKA v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Ramadhani and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 67 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Bubeshi, J. dated 2 July 1999, in Economic Crime Case No. 3 of 1997)

Criminal Practice and Procedure – Exhibits – Custody of Exhibits – Need to know in whose custody Exhibits were kept.

Evidence – Proof – Proof of person who made microfilms and person who kept custody or control of the same – Section 78 of the Evidence Act 1967.

Evidence – Proof – Failure to examine copy with the original – Effect of such failure – Section 79 of the Evidence Act 1967.

The appellant had been convicted of occasioning loss to a specified authority and sentenced to ten years' imprisonment and was also ordered to compensate the specified authority for the loss. He had been a branch manager of the defunct National Bank of Commerce, Mlimani Branch. Acting in that Capacity he authorized cash payments on various cheques drawn by one Abdallah Mohamed Dalidali, a fellow branch manager of the same bank at Mlandizi. Dalidali operated two accounts under two different names at his own branch. A total of TZS. 127 million was thus paid out in cash within a period of seven months. By the time it was discovered that the two accounts had no funds at the time of the encashment of the cheques Dalidali had disappeared as had the cheques against which the payments totalling TZS. 127 million had been made. In his defence the appellant said he only authorized the cheques after seeing an endorsement on the reverse side of the cheques of either "Good Customer" or "Good for Funds." At the trial the prosecution produced copies of cheques printed from microfilms after the Court had so ordered. The copies so produced did not have the endorsement as alleged by the appellant. However, there was no evidence of the person or persons who had photographed the original cheques for keeping in the

microfilms or who had custody of the microfilms before the cheques were printed. Further, there was no evidence of who had printed the cheques produced in Court or where the microfilms had been kept between the photographing of the original cheques and the printing of the copies produced in Court.

Held: (i) There was no cogent evidence to prove the authenticity of the microfilmed copies of the missing cheques printed upon the order of the Court;

(ii) The microfilm copies relating to the reverse side of the missing cheques were wrongly admitted in evidence especially as there was no evidence that the copies were at any stage examined with the reverse side of the original cheques;

(iii) The finding of the Trial Court that the appellant, in authorising payment of the cheques, acted recklessly and in total disregard of normal banking practice was not supported by evidence on record.

Appeal allowed

Statutory provisions referred:

(1) Economic and Organized Crime Control Act 1984, section 59

(2) Evidence Act sections 78 and 79

Mr Lugua for the Appellant

Miss Mkwizu for the Respondent

JUDGMENT

(Dated 30 July 2001)

Kisanga, J.A.: The appellant was convicted by the High Court (Bubeshi, J.) of occasioning loss to a specified authority contrary to paragraph 11(1) of the first schedule to and section 59 of, the Economic and Organized Crime Control Act 1984, and was sentenced to 10 years' imprisonment with an order to compensate the specified authority for the loss. He appealed to this Court against both conviction and sentence. At the hearing of the appeal he was advocated for by Mr Lugua, Advocate, while the respondent Republic was represented

by Miss Mkwizu, Senior State Attorney. Counsel for both sides did not seek to support the conviction and as we were inclined to the same view, we allowed the appeal after hearing counsel submissions, quashed the conviction and set aside the sentence, reserving our reasons for doing so. We now give our reasons.

The appellant was a branch manager of the defunct National Bank of Commerce at Mlimani Branch in the City of Dar es Salaam. Acting in that Capacity he authorized cash payments, on various cheques, to one Abdallah Mohamed Dalidali, a fellow branch manager of the said defunct Bank at Mlandizi, Kibaha in the Coast Region, who operated two accounts at his own branch under the names of Abdallah Mohamed Dalidali and Madaila Abdallah Mohamed respectively. While the two accounts were maintained at the Mlandizi branch, the appellant authorized payment of the cheques in question at his Mlimani branch. The proceeds of the cheques for which payment was so authorized totaled TZS. 127 million paid out frequently at short intervals and extending only between January and July 1995. It turned out that the accounts of this customer lacked funds to meet such payment, but at the time of discovering this, the said Mohamed Abdallah Dalidali *alias* Madaila Abdallah Mohamed had absconded and has not been traced to date, and the cheques against which the payments totaling TZS. 127 million were made had also disappeared. The prosecution therefore charged the appellant for recklessly authorizing payments without ascertaining that the payee's accounts at the Mlandizi branch had funds to meet the payments.

In his defence the appellant asserted that he did ascertain the availability of funds after seeking the endorsement by the Mlandizi branch manager of such words as "Good Customer" or "Good Funds" on the reverse side of the cheques in question. However, the trial judge rejected the defence and proceeded to convict and sentence the appellant as above stated, hence this appeal.

The crucial question both at the trial and in this appeal was whether it was proved that the appellant did not ascertain on the availability of funds before authorizing the payments in question. The burden

was on the prosecution to prove this but the task was obviously made difficult by the disappearance of the cheques in question. In an attempt to discharge that burden the prosecution led secondary evidence consisting of copies of the said cheques. However, that attempt hit a snag when it turned out that the copies so tendered did not show the back side of the cheques; only the front side was shown. Whereupon the prosecution sought leave of the Court to tender in evidence microfilms of the missing cheques in order to reproduce or print therefrom copies showing the back side of the cheques, and thereby to demonstrate that there was no endorsement at the back of the cheques confirming the availability of funds, as asserted by the appellant.

Microfilm was described as a technique for the purposes of keeping and retaining bank documents or records in a more permanent form less susceptible to destruction or loss. A document or a cheque in this case, is passed though a microfilm machine which automatically photographs it both sides. The document is then developed and retained in cartridge form until when it is required in which case copies may then be printed or reproduced from it.

The defence objected to the admissibility of the microfilms in evidence saying that the copies which it was intended to print from them belatedly showing the back side of the missing cheques should have been put in evidence at the time the copies showing only the front side of the cheques were tendered in evidence. To admit such evidence at this stage amounted to re-opening investigation and making out a new case against the appellant. In any case, it was further contended, such evidence was suspect and of no probative value. However, the objection was overruled, the microfilms were received in evidence and copies showing the back side of the missing cheques were reproduced or printed out of them by order of the Court. The copies so reproduced bore no endorsement on the back side of the cheques as to availability of funds as was asserted by the appellant. That was the basis for the trial judge rejecting the appellant's defence.

The issue in this appeal turned largely on the authenticity and reliability of the microfilm evidence which, as pointed out, was the

basis for the Trial Court rejecting the appellant's defence. The appellant contended that before authorizing payment he saw on the back of the missing cheques endorsement by the Mlandazi branch manager to the effect that the cheques were good for payment. But the copies reproduced or printed from the microfilms of the cheques show no such endorsement on the back side, a number of serious questions have been raised concerning the microfilms and the copies printed from them only belatedly, upon Court order, showing no endorsement on the reverse side. The identity of the person or persons who photographed the missing cheques for the purpose of preserving them in the microfilms was not established. The prosecution put forward PW9, Christine Malamba, as the person who photographed the missing cheques and processed the microfilms or as the person who supervised the clerks to do so. But the witness was photographing the cheques and processing the microfils all the time. She did that job only when the clerks were not there, otherwise she used to supervise the clerks to do it. The said clerks, however, did not give evidence, nor were they identified. Furthermore PW9 could not recognize any of the microfilm copies as being those of the missing cheques which she photographed and processed or supervised the clerks to do so. She said she could not identify or recognize any of the cheques because she used to deal with so many cheques. To make matters worse, she said that when processing the cheques she used to look at the front side only. And lastly, the microfilms were not produced from PW9's custody. They were retrieved from what was described as Dar es Salaam Zonal Office – Metro Office but no one from that office was called to testify on how the microfilms were received and preserved there.

There is therefore, no cogent evidence to prove whether or not the back side of the cheques was microfilmed and if so whether the microfilms thereof were kept intact and not tampered with. In the circumstances, therefore, the authenticity of the microfilmed copies of the missing cheques printed out only belatedly upon the order of the Court was, to say the least, questionable. Counsel for both sides submitted that the microfilm copies relating to the back side of the

missing cheques were wrongly admitted in evidence in non-compliance with provisions of sections 78 and 79 of the Evidence Act especially as the copies were not at any stage examined with the back side of the original cheques. That criticism is quite justified, and that part of the evidence ought to have been held inadmissible.

The other piece of evidence relied on by the Trial Court to convict the appellant was that the appellant, in authorizing payment of the cheques, acted recklessly and in total disregard of the normal banking practice or procedure. This finding was allegedly based on the evidence of PW2, Fatuma Mkangaa, who, it is alleged said that the normal banking procedure required the appellant, before authorizing the payment, to send a tested message to the responding Mlandizi branch for confirmation as to the existence of the customer's account there and the availability of funds, and that when the witness asked the appellant if he had taken such precaution the appellant replied that he knew what he was doing and that the cheques would not be dishonoured. But even assuming that this pointed to the appellant's guilt, the point is that this statement is nowhere to be found in PW2's evidence in Court. It is to be found in the final submission by the prosecuting attorney who attributed it to PW2 but, as already said, there is nothing like it in PW2's evidence in Court. With due respect to the learned trial judge, she wrongly acted on the statement to the appellant's detriment without being satisfied that the statement did, in fact, form part of the recorded evidence of PW2.

Once the evidence of microfilms and the said statement wrongly attributed to PW2 are discounted, there is nothing to support the appellant's conviction. The trial judge in her judgment lamented that the investigation and the prosecution of this case in certain aspects left a lot to be desired. Indeed she should have gone further and found that the evidence as adduced, although it cast a lot of suspicion on the appellant, fell far short of the requisite standard of proof of a criminal charge. As already intimated, Miss Mkwizu, learned Senior State Attorney for the respondent Republic, did not seek to support the appellant's conviction, and for the reasons briefly set out herein above, we are satisfied that she took the right decision. It is for these reasons that we allowed the appeal and set aside the conviction and sentence with an order for the appellant's immediate release from prison unless he was otherwise lawfully detained there.

MBEYA-RUKWA AUTOPARTS AND TRANSPORT LTD *v.* JESTINA GEORGE MWAKYOMA

COURT OF APPEAL OF TANZANIA
AT MBEYA

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 101 OF 1998

(Appeal from the Judgement of the High Court of Tanzania at Mbeya, Mwipopo J. dated 16 December 1999, in Miscellaneous Civil Application No. 3 of 1999)

Civil Practice and Procedure – Affidavits – Pleading by affidavits – Whether a rejoinder to a Reply to a Counter Affidavit is permissible

Appeal – Locus standi in appeals – Whether a person who was not involved in original proceedings has capacity to bring appeal – Rule 76(1) of the Court of Appeal Rules 1979.

Court of Appeal – Court of Appeal Rules 1979 – Notice of preliminary objection –Whether omission to cite provision under which the objection is brought is fatal.

Natural Justice – Right to be heard – Right to land revoked without a hearing – Decision reached without regard to natural justice.

Constitutional Law – Basic Rights – Basic rights guaranteed protection by the Constitution – Right to be fully heard enshrined in the Constitution – Article 13(6)(a) of the Constitution of Tanzania.

Constitutional Law – Separation of powers and functions – Power to grant and revoke rights to land – High Court makes orders granting and revoking rights of occupancy – High Court infringing doctrine of separation of powers by usurping powers of the executive.

M/s Kagera transferred their right of occupancy over unsurveyed land to the appellant. The land was subsequently surveyed and appellant took steps to acquire a certificate of occupancy. Before a certificate was issued the land was allocated to the respondent, a certificate of occupancy issued to her, and her title registered by the Assistant Registrar of Titles. After acquiring a certificate of occupancy the appellant presented it to the Assistant Registrar for registration. Realizing that the land had been the subject of a double allocation, and believing that the allocation to the respondent was invalid, the Assistant Registrar sent notice to the respondent, under section 37(1) of the Land Registration Ordinance Chapter 334, requiring her to produce her certificate of title for cancellation. When the respondent failed to comply, the Assistant Registrar filed an application in the High Court, under section 37(2) of the said Ordinance, praying for the cancellation of the certificate. The application was supported by an affidavit. The respondent filed a counter–affidavit and the Assistant Registrar filed an affidavit in reply. The respondent was then allowed to file a rejoinder, or reply to the Registrar's reply. The respondent did not however appear when the application was called for hearing and so the Court proceeded *ex-parte*. The application was granted. The respondent then applied to set aside the decision, which application was heard *inter partes* and the ruling thereon reserved. Before the ruling was delivered the trial judge sent a curious notice to the appellant and the Director of the Mbeya Municipality to appear before the Court and show cause why they should not be condemned to pay compensation to the respondent or to give her equivalent alternative plots, in case the application was granted. The appellant and the director were not required to file counter–affidavits in the application, and they were barred by the judge from adducing evidence. As for M/s Kagera, the judge said that it would have served no useful purpose to afford them opportunity of being heard. Displeased by the reactions of the appellant and the director, the judge, in his ruling, made orders purporting to revoke the right granted to M/s Kagera, as well as the transfer of that right to the appellant. The judge also declared as lawful the respondent's title to the suit-land, and the application was thus granted. Aggrieved, the appellant appealed to the Court of Appeal. The Court had to consider, *inter alia*, (a) whether a notice of

preliminary objection filed by the respondent was invalid for omission to cite the provision under which it was brought; (b) whether the appellant had a right of appeal; and (c) whether this was a fit case for the Court to revise the proceedings in the High Court suo *motu*.

Held: (i) Omission to cite the provision under which a notice of objection is brought is not fatal;

(ii) Pleadings by affidavit are complete with the applicant's reply, if any, to the respondent's counter-affidavit;

(iii) The appellant was not a party to the original application, notwithstanding that he was required to appear and show cause, and had, therefore, no right of appeal;

(iv) An injustice would be condoned if the proceedings in the High Court are not revised;

(v) The right of hearing is a fundamental constitutional right in Tanzania by virtue of Article 13(6)(a) of the constitution;

(vi) It was a breach of the rule of hearing, that justice must not only be done but must manifestly be seen to be done, when the trial judge considered it as needless to give M/s Kagera an opportunity to be heard;

(vii) The judge's decision to revoke the rights of M/s Kagera and the appellant, without giving them opportunity to be heard, was not only a violation of the Rules of natural justice, but also a contravention of the Constitution, hence void and of no effect;

(viii) The decision of the judge to revoke the rights of M/s Kagera and the appellant, and to grant a right to the respondent, violated the doctrine of separation of powers, hence illegal and of no effect.

Order accordingly

Cases referred to:

(1) *NBC v. Sadrudin Meghji* [1998] T.L.R 503

(2) *Almas Iddie Mwinyi v. NBC and another* CAT – Civil Application Number 68 of 1998 (unreported)

(3) *AG v. Maalim Kadau and Others* [1997] T.L.R. 69

(4) *Halais Pro-Chemie v. Wella AG* [1996] T.L.R. 269

(5) *Ridge v. Baldwin,* [1964] AC 40

(6) *Furnell v. Whangarei High School Board* [1973] AC 660

(7) *Tellis and Others v. Bombay Municipal Corporation* [1987] L.R.C. (Const) 351

(8) *Sadiki Athumani v. Republic* [1986] T.L.R 235

Statutory provisions referred to:

(1) Land Registration Ordinance Chapter 113, Chapter 334, section 37(1),(2)

(2) Appellate Jurisdiction Act subsection 2(a)(i) and (b)

(3) Constitution, article 13(6)(a)

Mr Mbise for the Appellant

Mr Mkumbe for the Respondent

RULING

(Dated 9 August 2001)

Lugakingira, J.A.: When this appeal came on for hearing, learned counsel for the respondent, Mr Victor Mkumbe raised a preliminary objection to its competence. He put forward two grounds which may be rephrased thus:

(a) that the appellant has no legal standing in the proceeding as it was not a party to Miscellaneous Civil Application Number 3 of 1995;

(b) that leave to appeal was not obtained although the decision of the High Court was not made under the Civil Procedure Code 1966.

The appeal and the preliminary objection derive from a drawn out background which ought to be set out at length.

The proceeding centres on a parcel of land comprised in Plot Numbers 1 and 2, Block "BB", Uyole Industrial Area, Mbeya Municipality.

This land was first allocated on a right of occupancy to M/s Kagera Canning Industry Ltd. (hereinafter KAGERA) under an executed offer which was registered by the Assistant Registrar of Titles at Mbeya in October 1986. The land was then unsurveyed and known simply as Plot Numbers 1 and 2, Block "BB", Mbeya Municipality, that is, without the further reference to Uyole Industrial Area. In April 1989, and with the consent of the Regional Land Officer, Kagera transferred the right of occupancy to the appellants, M/s Mbeya-Rukwa Autoparts and Transport Ltd. (referred to in the proceedings and this ruling by its acronym Mrapata). The transfer was duly recorded by the Assistant Registrar of Titles. Subsequently, the land was surveyed and given the description Plot Numbers 1 and 2, Block "BB". Uyole Industrial Area, Mbeya Municipality, and at some later stage Mrapata took steps to acquire a certificate of occupancy in replacement to the offer.

Meanwhile, the surveyed land was allocated to the respondent, Justina George Mwakyoma, on a 33-year right of occupancy commencing 1 October,1991. The allocation was followed with the issuance of a Certificate of Occupancy by the Commissioner for Lands which was registered by the Assistant Registrar of Titles in August 1992 as Certificate of Title Number 3728-MBYLR. However, in December 1994 the Assistant Registrar of Titles received for registration another Certificate of Occupancy over the same land, this one in the name of Mrapata. At this juncture the Assistant Registrar of Titles realized that Plot Numbers 1 and 2, Block "BB", Uyole Industrial Area, Mbeya Municipality were one and the same piece of land and that there had been a double allocation of the same. Believing that the allocation to the respondent was invalid for being subsequent to Mrapata's, the Assistant Registrar of Titles sent notice to the respondent under section 37(1) of the Land Registration Ordinance (Chapter 334), requiring her to produce her certificate of title for cancellation. The respondent failed to comply. Accordingly, and pursuant to subsection (2) of section 37, the Assistant Registrar of Titles filed Miscellaneous Civil Application Number 3 of 1995 in the High Court praying for the cancellation of the respondent's certificate.

The respondent never responded to the Court summons and her Dar es Salaam-based lawyers never showed up when directed to. The application was therefore heard and granted *ex parte* by Mwipopo, J. in a ruling delivered on 24 September 1996. Interestingly, the respondent was for the first time present in person to take the ruling. The judge advised her to make an application to set aside the order, warned her on limitation and *suo motu* stayed execution of the order pending the respondent's application. It seems the application was presented in time and the *ex parte* order was set aside on 3 April 1998. Hearing of the application *inter partes* took place on 4 November 1998 and ruling was reserved to 15 December.

It transpired in the pleadings and counsel's submissions that the respondent had started building a fence around the plots and questions of compensation and alternative plots for her had become apparent. While the ruling was reserved it occurred to the judge that the application might succeed and this gave urgency to the two questions. The judge appears to have been concerned that the respondent should not suffer loss, therefore, on 12 December he wrote and delivered an interim order in which he said, *inter alia*:

> I therefore before a ruling is made in respect of this application required ... Mrapata and Municipal Director/Land Officer of Mbeya Municipality to appear and show cause why, in case this application is granted, they should not be condemned to pay compensation and to give equivalent alternative plots for industrial development to the respondent.
>
> The proceeding of this application shall be served upon the same two new parties with this order for them to appear in Court and be heard accordingly.

On 6 December 1999 the Municipal Director and Mrapata appeared through learned counsel, Mr Luanda and Mr Mbise, respectively. The record then goes thus:

> *Court:* Mr Luanda Municipal Solicitor for Municipal Director and learned Mr Mbise advocate for Mrapata are told the essence of their presence. The learned Mr Mbise Advocate to start first for Mrapata because he is the second counsel to the Municipal Solicitor.

This was an invitation to learned counsel to submit on the questions of compensation and alternative plots to the respondent. It is not disputed that the "new parties" were not required to file counter-affidavits in the application; they were also expressly barred from adducing any evidence. The learned judge stated:

> For the time being I allowed each side to submit any factual or legal points...If this Court finds it necessary to have evidence tendered ... in support of or to counter the factual submissions. I will allow both sides to do so and make necessary directions accordingly.

This never happened but the Court heard submissions only. Regarding the points on which reactions were solicited, Mr Mbise stated that Mrapata were not prepared to compensate the respondent. The reasons he gave are not relevant. Mr Luanda, on the other hand, stated that the Municipal Director had no industrial plots then to offer to the respondent.

These reactions did not go well with the learned judge. He was manifestly anxious to assist the respondent and, seeing no possibility of realising compensation and allocation of the alternative plots, he hit upon the idea of legalizing the respondent's ownership of the land. In this strategy he took advantage of a letter by the Commissioner for Lands (later rescinded) addressed to the Regional Land Officer. The letter, prompted by the respondent's plea to the Commissioner, chastised the Regional Land Officer for the double allocation and for allowing the transfer between Kagera and Mrapata in the first place. The Commissioner suggested withdrawal of the application in Court in order for his department to sort out the irregularities administratively and with a view to regularizing the respondent's title. As indicated, the Commissioner rescinded the letter in a subsequent one, but the learned judge ridiculed and dismissed the rescission as unauthentic in a "judgment" where he held as follows:

1. I hold that the transfer of the plot from Kagera Canning Industry Ltd to Mrapata was illegal for being without any consideration proved and if there was such consideration it was for no developments never made by him.

2. Jestina Mwakyoma got the land lawfully for she was an innocent third party who did not have to lift the veil to see whether the Office which had the power and authority to grant her the land had done so lawfully.

3. As between Mwakyoma and Kagera Canning Industry Ltd. The one who deserves retention of this plot now is Mwakyoma because she has interest in it and has developed it.

4. There is no need of giving chance to Kagera Canning Industry Ltd. to be heard for he won't have any better claim over this plot than Mwakyoma.

The judge went on to state that it could not be left to the Regional Land Officer to revoke the subsisting right of occupancy or to the Municipal Director to regularize the respondent's position and proceeded to make the following orders:

1. This Court therefore hereby revokes the Offer of Right of Occupancy granted to Kagera Canning Industry Ltd. for it was illegal for him to transfer it to Mrapata without following the procedures and laws referred to by the Commissioner.

2. This Court also revokes hereby the transfer of the 2 plots to Mrapata for the same reason and for failure to develop it in between 1989 and 1991 or enter upon it or leave his mark upon the land in time.

3. This Court retains the offer of Right of Occupancy to Jestina George Mwakyoma as properly registered by the Assistant Registrar of Titles so far.

4. Kagera Canning Industry Ltd has no remedy or relief this Court can grant him for he already got paid or freely gave it and transferred it to Mrapata.

5. As for the said transferee he is free to claim and sue for his costs incurred on this plot and to claim for alternative plots from the relevant authorities.

6. This application is dismissed with costs.

These pronouncements generally make difficult reading but we may have to come to that later. Presently, it will be seen that these pronouncements and orders affected Mrapata's interests considerably. It is on that account that Mrapata brought this appeal. Without the necessity of setting out the grounds of appeal, which in a nutshell take issue with each and every item set out above, we will go straight to consider the preliminary objection.

The first ground was that Mrapata had no right or *locus standi* to bring the appeal because they were not a party to the proceeding. Mr Mkumbe submitted that Mrapata were never joined as a party in as much as they were not required to file pleadings or to adduce evidence.

The second ground related to want of leave to appeal. Mr Mkumbe argued that the proceeding was determined under section 37(2) of the Land Registration Ordinance rather than the Civil Procedure Code and that the provisions of section 5(1)(c) of the Appellate Jurisdiction Act 1997 came into play. In reply, Mr Mbise started off by questioning the competence of the notice of preliminary objection. He contended that it did not comply with the law by omitting to cite the provision under which it was brought. He wondered whether it was brought under rules 82, 100 or 106 of the Court Rules. He also pointed out that another objection brought by notice of motion was struck out the day before and submitted that the respondent should either have made another application or brought a reference under rule 57.

Turning to the substance of the preliminary objection, Mr Mbise contended that Mrapata were joined in the proceeding because, (i) the judge directed the record to be served on the "new parties", (ii) it was recorded that the judgment was "delivered in the presence of all parties except the Municipal Director", and (iii) the right of appeal

was explained in general terms. He was quick to add, however, that it was not Mrapata's fault if the joinder was improper. Regarding leave to appeal, Mr Mbise argued that Mrapata were joined pursuant to the provisions of section 95 of the Civil Procedure Code there being no provision for that purpose under section 37 of the Land Registration Ordinance. In the alternative, Mr Mbise submitted that the proceedings were so chaotic and the decisions reached so contrary to law and justice that this was a proper case for the Court to step in and invoke its revisional powers under section 4(3) of the appellant Jurisdiction Act.

To begin with, we think, with respect, Mr Mbise's challenge to the notice of preliminary objection is untenable. Incidentally, the notice arose thus: In Civil Application Number MBY 7 of 2000 the respondent applied for the appeal to be struck out on the same grounds later given in the notice. That application was heard and struck out by a member of this panel the day before the appeal was to be heard because the affidavit accompanying the Notice of Motion was invalid. With less than twenty-four hours to the hearing of the appeal, Mr Mkumbe determined that the better alternative was to give Notice of Preliminary Objection. It does not appear to us that the omission to cite the provision under which it was brought was fatal. We say so because a Notice of Preliminary Objection which, of course, falls under rule 100, is not an application. It is simply a notice and is given just before hearing of the appeal begins.

What is essential is reasonable notice both to the opposite side and the Court. If the Court does not consider the notice reasonable it may adjourn the hearing of the appeal in order for reasonable notice to be given. Rule 100 is procedural rather than substantive. It does not confer any right upon litigants nor does it bestow any power on the Court, it merely regulates the conduct of the business of the Court. Omission to cite a procedural rule does not bring into question the jurisdiction of the Court to hear and determine the matter before it and is therefore not fatal.

A different position obtains with applications. With these the applicant has to cite the relevant provision from which the Court derives the power to hear and determine the application. This may be illustrated with one or two decisions. *NBC v. Sadrudin Meghji* (1) was an application for revision which was expressed as brought under section 4(2) of the Appellate Jurisdiction Act. The Court rejected the application observing that the power vested in the Court by subsection (2) is exercisable for the purpose of and incidental to the hearing and determination of an appeal, but an appeal had been instituted. The Court said:

> It follows therefore that the application has been filed by Notice of Motion under an inapplicable section of the law. Consequently, as the Court was not properly moved, the application is likewise incompetent.

The Court declined to proceed with revision *suo motu* under subsection (3) stating:

> ... the matter is already before the Court by Notice of Motion ... It has to be dealt with in the manner the Court was moved and not otherwise.

This decision was applied by Ramadhani, J.A. in *Almas Iddie Mwinyi v. NBC and another* (2), an application for stay of execution where the provisions relied upon were not cited at all. It was argued that the Court had not been moved at all because of the omission. The learned judge upheld the argument and said that the practice of the Court has always been that the provision of law relied upon to move the Court be cited. Referring to *Sadrudin Meghji* he said that if a wrong citation of a law renders an application incompetent, "I have not a flicker of doubt in my mind that non-citation of law is worse and equally renders an application incompetent".

It may well be that Mr Mbise had such situations in mind. But as no doubt evident, both these cases involved an application by notice of motion and both cases involved non-citation of an enabling provision. Section 4(3), which should have been cited in *Sadrudin Meghji* and rule 9(2)(b), which should have been cited in *Almas Iddie Mwinyi*,

are substantive provisions. The former vests the Court with power to revise High Court proceedings *suo motu*, the latter empowers the Court to stay execution in Civil proceedings. In contrast, rule 100 is not enabling, in other words, it is not a provision from which the Court derives power to transact anything but it regulates the manner of exercising a power granted elsewhere. As stated earlier, what matters under the rule is reasonable notice and Mr Mbise did not complain about the reasonableness of the notice. The omission to cite the rule, although this is by no means encouraged, was therefore inconsequential.

Mr Mbise's other argument that the respondent should have made another application or brought a reference following the striking out of Civil Application Number MBY 7 of 2000 has no merit, either. First, another application was impractical in point of time and could only have resulted in delaying the hearing of the appeal. We think, on the other hand, it was unnecessary to make such application because that was not the only or best option open to the respondent. She could give notice of preliminary objection, if it could be done reasonably, or she could sit back and wait for the hearing of the appeal at which she could have sought leave of the Court to raise the objection pursuant to rule 106(b). She took the former option and the reasonableness of the notice is not in question. Second, rule 57 does not come into this. The rule provides for reference to the Court where a party to an application before a single judge is dissatisfied with the decision of the judge. The term decision in the rule is intended to refer to a decision on the merits of the application but not any decision. The rule cannot for that reason apply where an application is struck out without being heard as it was in the instant case. As Mr Mkumbe rightly observed, when an application is struck out it ceases to exist and there is nothing to pursue on reference.

We are satisfied on the whole that Mr Mbise's challenge to the notice of preliminary objection was not justified and we proceed to consider the grounds of the objection.

The first question is whether Mrapata had the Capacity to bring the appeal, and this turns on whether they were a party to the proceeding, rule 76(1) states:

> (1) Any person who desires to appeal to the Court shall lodge a written notice in duplicate with the Registrar of the High Court.

In *AG v. Maalim Kadau and others* (3) the Court held that the words any person in the rule refer to any of the parties involved in the original suit and not any other person. This position is also necessarily implied in section 5 of the Appellate Jurisdiction Act where subsection 2(a)(i) and (b) specifically refer to "the parties" and "a party" respectively. The question therefore becomes whether Mrapata were a party involved in the original application. We think, with respect, they were not; the fact that the trial judge referred to them and to the Municipal Director as "new parties" did not have the magic of making them parties in fact or in law. If the learned judge considered Mrapata's presence before the Court necessary in order to enable the Court effectually and completely to adjudicate upon and settle all the questions involved in the application, he should have proceeded on the analogy of joinder of parties in civil suits to make Mrapata a party to the application. To that end, the affidavits and counter affidavits in the application should have been served on them and they should have been given the opportunity to file their own counter affidavits. Assuming the documents were served as directed in the trial judge's interim order, it is clear from the proceedings of 6 December 1999, and not disputed, that opportunity to file such counter affidavits was not given to them. That being the position, it is not correct to say that Mrapata became a party to the application. Merely being required, as they were, to appear and show cause why they should not be condemned to compensate the respondent, did not make them a party in the original proceeding. It is clear to us that the whole purpose of summoning them before the Court was to assist the Court in its preoccupation with the respondent's rights. We hold that the company never became a party to the application and was incapable of bringing any appeal.

Having said so it is not available, really, to consider the second ground of objection namely whether the appeal required leave. Leave to appeal where required, can only be applied for by and granted to a party entitled to appeal, but not strangers. As Mrapata had no right of appeal, the question of leave becomes irrelevant. In view of the foregoing, we strike out the appeal.

Mr Mbise prayed the Court in the alternative to exercise its revisional jurisdiction *suo motu*. The prayer was based on what he termed the chaotic nature of the proceedings and the decisions made contrary to the principles of natural justice. In *Halais Pro-Chemie v. Wella AG* (4), this Court held that it will revise *suo motu* the proceedings in the High Court where, for instance, the aggrieved party or person has no right of appeal, it will also do so where in the circumstances of any given case an injustice would otherwise be condoned.

The instant case is a typical example in which both these factors obtain. As just demonstrated Mrapata had no right of appeal; on the other hand, the decision to declare illegal the transfer by Kagera and to revoke the same as well as the right of occupancy was a grave one, yet it was taken without the parties concerned being heard. The learned judge took the decision on the basis of the respondent's counter-affidavit and her so-called supplementary counter-affidavit in which she claimed that Kagera had in the first place breached the conditions of the right of occupancy and had therefore "not accepted the plots". On that basis she argued in the supplementary counter affidavit that Kagera had no title to pass on to Mrapata. She further claimed that the transfer did not receive the consent of the Commissioner for Lands. In general the supplementary counter-affidavit is five pages of allegations, submissions and argumentation rather than facts, but what is worse is that Mrapata had no opportunity to respond thereto.

It is a cardinal principle of natural justice that a person should not be condemned unheard but fair procedure demands that both sides should be heard: *audi alteram partem*. In *Ridge v. Baldwin* (5), the leading English case on the subject, it was held that a power which

affects rights must be exercised judicially, ie fairly. We agree and therefore hold that it is not a fair and judicious exercise of power, but a negation of justice, where a party is denied a hearing before its rights are taken away. As similarly stated by Lord Morris in *Furnell v. Whangarei High School Board* (6) at page 679, "Natural justice is but fairness writ large and judicially." We wish to add that it made no difference that in the instant case counsel was called appeared for Mrapata and addressed the Court. What counsel was called not be condemned to pay compensation. He was not required or permitted to adduce evidence on the merits of his client's title to the suit land, but was expressly barred from doing so. Indeed hearing of the application had been concluded but the Court was having problems reaching a decision favourable to the respondent in case she lost. In this country, natural justice is not merely a principle of the common law, it has become a fundamental constitutional right. Article 13(6)(a) includes the right to be heard among the attributes of equality before the law, and declares in part:

> (a) *wakati haki ni wajibu wa mtu yeyote vinahitaji kufanyiwa uamuzi wa mahakama au chombo kinginecho kinachohusika, basi mtu huyo atakuwa na haki ya kupewa fursa ya kusikilizwa kwa ukamilifu...*

Under this paragraph of the Constitution, Mrapata had the right not only to be heard but to be heard fully. We hold that a decision reached without regard to the principles of natural justice and or in contravention of the Constitution is void and of no effect.

There is yet another ground for holding the High Court's decision unconstitutional and void. It violates the doctrine of separation of powers. The Constitution sets out in clear terms the spheres of the executive, the legislature and the judiciary, to the end that these organs will not unsurp or infringe on each other's powers. Although the judiciary may be said to exercise residual legislative powers when interpreting the law, in reality it does no more than give meaning to the intentions of the legislature. It is otherwise impermissible

for the Judiciary to intrude into the Legislative or Executive sphere. Under the Land Ordinance (Chapter 113) which was in force when this proceeding was decided and under the present law, the power to grant and revoke rights of occupancy are vested in the President. They are executive powers. Such powers cannot be wielded by the Courts, as was done in this case, without bringing the judiciary into contempt and ridicule. The learned judge, with respect, went terribly wrong when he purported to revoke the Kagera-Mrapata right of occupancy and when he purported to grant a right of occupancy to the respondent. These decisions were illegal, void and of no effect. Although, finally, Kagera did not appear before us we are duty bound to remark that it was similarly contrary to fairness to condemn them without being heard. The learned judge's contention that there was no need of giving them a chance to be heard "because he won't have any better claim.than Mwakyoma", was untenable. As stated by Chandrachud, C.J. in *Tellis and others v. Bombay Municipal Corporation* (7),

> The proposition that notice need not be given of a proposed action because there can possibly be no answer to it, is contrary to the well-recognised understanding of the real import of the rule of hearing. The proposition overlooks that justice must not only be done but must manifestly be seen to be done and confuses one for the other.

This decision was applied by the High Court in this country in *Sadiki Athumani v. Republic* (8) and we agree with the views expressed therein. There is one final matter evident in the record which also requires remedy. We note that after the Assistant Registrar of Titles filed a reply to the respondent's counter-affidavits, the respondent replied to the reply in a rejoinder consisting of three affidavits: her own, dated 30 June 1998, that of Alexander Fikiri Mwanshinga, dated 23 June1998 and that of Emmanuel Simon, dated 30 June 1998. Such a procedure is uncommon but may in this case be further evidence of the chaotic nature of the proceedings. Pleadings by affidavits are supposed to be complete with the applicant's reply, if any, to the respondent's counter-affidavit. There should normally be no reply

to a reply for the applicant, being entitled to the last word, would then have to reply to the reply to the reply. Moreover, the record does not show that leave was granted for presentation of these affidavits, hence it is curious how they got accommodated into the record. Finally, the three documents are expressed to be translations from Kiswahili by Mr Mkumbe, but they do not bear Mr Mkumbe's certificate as to their accuracy. These documents are therefore hearsay apart from having been improperly introduced into the record.

In the light of the foregoing, we make the following orders. First, the three affidavits just referred to are expunged from and cease to be part of the record. Second, we set aside all the proceedings and decisions transacted and given after 4 November 1998 when the High Court reserved its ruling. Third, the High Court is directed to decide the application by the Assistant Registrar of Titles on the basis of the proceedings transacted up to 4 November 1998.

TANZANIA BREWERIES LTD *v.* GREENWAY COMPANY LTD

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAM

(Ramadhani, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 79 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Chipeta, J. dated 1 September 1998, in Miscellaneous Civil Cause No. 41 of 1997)

Civil Practice and Procedure – Arbitration – Petition to set aside arbitration award – Petition omits to mention section 15 of the Arbitration Ordinance – Whether the omission is fatal to the petition.

The appellant and the respondents entered into an agreement making the respondent a mini-wholesaler of the appellant's beer. Before expiration of the contractual period the appellant terminated the agreement. The respondent invoked an arbitration clause in the agreement and referred the matter to arbitration. The arbitrator decided in favour of the respondent. Dissatisfied, the appellant petitioned to the High Court under section 11(2) of the Arbitration Ordinance and Rules 4 and 5 of the Arbitration Rules 1957, requesting the High Court to set aside the award of the Arbitrator under section 15 of the Arbitration Ordinance, but the petition made no mention of section 15 of the Ordinance.

Held: In order for the High Court to invoke its powers under section 15 of the Arbitration Ordinance Chapter 15, rule 6 of the Arbitration Rules 1957 requires explicit reference to be made to that section of the Ordinance; failure to make reference to the section in the petition is fatal to the petition.

Petition struck out

Statutory provisions referred to referred

(1) Arbitration Ordinance Act section 11(2)

(2) Arbitration Ordinance Rules 1957, Chapter 15, rules 4, 5 and 6

Dr Tenga, for the Appellant

Mr Mkatte, for the Respondent

JUDGMENT

(Dated 9 August 2001)

Lubuva, J.A.: This appeal arises from the decisions of the High Court (Chipeta, J.) in Miscellaneous Civil Cause Number 41 of 1997. The historical background of the matter may briefly be stated as follows. The appellant, Tanzania Breweries Limited, and the respondents. M/s. Greenway Company Ltd, entered into an agreement whereby the respondents were appointed mini-wholesaler of the appellant's beer products. Before the contractual period of one year expired, the appellant terminated the agreement on various grounds. Among

the grounds was that the respondents had failed to return 3,400 crates of empties. The respondents were aggrieved, they invoked the arbitration clause in the agreement by referring the matter to arbitration. On 13 December 1996, the award was given in favour of the respondents. Dissatisfied with the arbitration award, the appellant petitioned to the High Court under section 11(2) of the Arbitration Ordinance Chapter 15 and rules 4 of the Arbitration Rules 1957. In the petition, the Arbitrator's award was challenged on various grounds.

In turn, the respondents also cross-petitioned alleging among others, misconduct against the Arbitrator. The learned judge partly allowed the petition and the cross petition was dismissed. This appeal has been preferred against the decision of the High Court partly allowing the petition.

In this appeal, Dr Tenga, learned counsel, like he had done in the High Court and the proceedings before the Arbitrator, appeared for the appellant. On the other hand, the respondents were advocated for by Mr Mkatte, learned counsel. When the matter was called on for hearing we heard well researched and useful submissions from counsel for both parties. At the end of the submissions and at the prompting by the Court, both Counsel conceded, and we think correctly so, that as the mandatory provisions of Rule 6 of the Arbitration Rules 1957, were not complied with the petition in the High Court was incompetent. Accordingly, we agreed with learned counsel that the petition in the High Court was incompetent and that reasons were to be reserved which, we proceed to give in this judgment.

As indicated earlier, the petition to the High Court was filed under section 11(2) of the Arbitration Ordinance Chapter 15 and rules 4 and 5 of the Arbitration Rules 1957. It was common ground that the essence of the petition to the High Court was that the Arbitrator had misconducted himself in the course of dealing with the arbitration proceedings leading to the award. Under section 15 of the Arbitration Ordinance, the Court has power in appropriate circumstances to set aside the award. This is what the petitioner, the appellant in this

case was seeking to achieve in the petition. In order for the High Court to invoke its powers under section 15 of the Arbitration Ordinance, rule 6 of the Arbitration Rules 1957 requires explicit reference to be made to section 15 of the Arbitration Ordinance, failure to make reference to the section in the petition is fatal to the petition. Rule 6 provides;

> 6. All petitions, affidavits and other proceedings under the Ordinance shall be instituted in the matter of the arbitration and in the matter of the Ordinance *and reference shall be made therein to the relevant section of such Ordinance.* [emphasis supplied]

From this it is apparent that it is a mandatory requirement under the rule to make reference in the petition to the relevant section of the Ordinance. The relevant section that vests on the Court with jurisdiction to set aside the award is section 15. In this case, there was no such reference made to this section in the Petition. It being a mandatory requirement under rule 6, the petition before the High Court was rendered incompetent. Likewise, the cross-petition was not free from the same error because in it, no reference was made to any of the rules. Consequently both the petition and cross-petition in the High Court were incompetent.

It follows therefore that as the proceedings in the High Court were a nullity, the same are accordingly, quashed and set aside. The appeal in this Court which arises from such proceedings is also incompetent; it is accordingly struck out with costs.

JARIBU ABDALLAH v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAM

(Makame, Kisanga and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 220 OF 1994

(From the decision of the High Court of Tanzania at Dar es Salaam, Mackanja, J. dated 19 December 1994, in Criminal Appeal Case No. 158 of 1993)

Evidence – Identification of offender – Offender not named by witnesses when the first opportunity presented itself – Offender named after sometime – Credibility of witnesses.

Evidence – Statement purported to be a confession – Statement never put in evidence – Statement repudiated – Whether Court can act on it.

The appellant was convicted and sentenced to 30 years imprisonment by the District Court for armed robbery. His first appeal to the High Court was unsuccessful, hence, the appeal to this Court. The evidence against the appellant, and which was believed by the Trial Court, was three-fold: that he was visually identified at the scene of the crime, that his photograph was later picked up at the scene, and, that he made a statement confessing to the offence. The overall contention of the appellant in this appeal was that the High Court failed to direct itself fully and correctly on the evidence.

Held: (i) In matters of identification, it is not enough merely to look at factors favouring accurate identification, equally important is the credibility of the witness. The ability of the witness to name the offender at the earliest possible moment is a reassuring, though not a decisive factor;

(ii) Where a previous statement has been used to contradict the evidence of the accused, the statement has to be admitted in evidence to form part of the record, unless the accused explains the contradictions;

(iii) It was wrong in law to use a statement that did not form part of the evidence and could not be referred to for any purpose;

(iv) The totality and nature of the evidence make it unsafe to sustain the conviction.

Appeal allowed

Statutory provisions referred to:

(1) Appeallate Jurisdiction Act 1979, section 6(7)(a)

Ms Mkwizu for the Republic

JUDGMENT

(Dated 10 August 2001)

Lugakingira, J.A.: The appellant was sentenced to 30 years imprisonment upon conviction in the District Court of Morogoro on a charge of armed robbery. His first appeal to the High Court was unsuccessful. Both Courts found that the appellant was among the gang which, on the night of 6 January 1992 broke into the shop-cum-residence of PW1 at Kingolwira, assaulted him, and made off with various shop items. There was no evidence of the use of arms but of late this is of no significance in robbery cases. The evidence against the appellant and which was believed at the trial was three-fold; that he was visually identified at the scene of crime by PW1, PW2 and PW3, all residents in the house, that his photograph was later picked up at the scene, and that he made a statement confessing to the offence.

The appellant appeared in person at the hearing to support his eight-point Memorandum of Appeal. Taken together the grounds of appeal revolve around the three items of evidence just stated. The overall contention is that the High Court failed to direct itself fully and correctly on the evidence. Ms Mkwizu, State Attorney, appeared for the respondent Republic. She had earlier lodged a preliminary objection contending that the appeal was grounded on matters of

fact but she came round to concede in the end that the memorandum could be read to disclose some points of law.

In accordance with section 6(7)(a) of the Appellate Jurisdiction Act 1979, as amended, a party to criminal proceedings commenced in a Subordinate Court may appeal to this Court on matter of law but not on a matter of fact. A finding on a matter of fact as such will, therefore, not be assailed before this Court, but whether the finding is perverse having regard to the nature and totality of the evidence, is a point of law fit for the Court's consideration. The central question in this case is whether, having regard to the nature and totality of the evidence, the finding that the appellant was among the criminal gang was legally tenable. We have had the opportunity to examine the record carefully and we think, with respect, the evidence was both flawed and wanting. We will demonstrate this by reference to the three items of evidence.

First of all, it was not in dispute that the appellant was not immediately named. This was significant since the appellant was well known to the three prosecution witnesses, his house was just behind their own, and he was at home at the time. Many villagers came to the scene but the three witnesses admitted that they did not name anyone to them. Moreover, the police came to the scene that same night, according to the appellant, and they came or returned to the scene in the evening of the following day according to PW2; yet no attempt was made to arrest the appellant, which means he was not named on those occasions. At some unknown date he left for Dar es Salaam where he was arrested sometime in February. In matters of identification, it is not enough merely to look at factors favouring accurate identification; equally important is credibility of the witness. The conditions for identification might appear ideal but is not guarantee against untruthful evidence. The ability of the witness to name the offender at the earliest possible moment is, in our view, a reassuring, though not a decisive, factor. We can find no reason why the three prosecution witnesses, one of them an army corporal, were unable to name the appellant when the

opportunity presented itself. He was just there, right behind their house, and they could trust the police, if not the villagers, to act on their report. We think their silence has raised alarm but the High Court never addressed the matter.

There was, next, intriguing evidence about the appellant's photograph being picked at the scene of crime by PW2. It does not sound as being in the natural course of events that anyone would walk around with their photograph after midnight; leave alone on a mission to commit a crime. It seems that DW8, the appellant's brother solved the riddle. He stated that the photograph was in fact collected by the police from their home at Mkono wa Mara. We note that the witness was not cross-examined on this, but the trial magistrate invited the prosecutor to re-cross-examine him when he tendered an album to show where the photograph was plucked from. The exercise was still unimpressive, for the witness was merely asked who removed the photograph, which he had already stated, and what steps he took, as if he had any choice in the matter. Both Courts below mentioned this affair in their judgments, but no more, there was no comment on its implications on the prosecution case. It seems to us that PW2 was untruthful on the source of the photograph. Such apparent mischief cannot and should not be glossed over as happened in the instant case, but a Court properly directing itself should be concerned why the mischief was hatched in the first place. Were the High Court minded to address the question it would probably have doubted PW2 on other aspects of his evidence, not least his dramatic story about observing the robbery from the ceiling.

Finally, both Courts, the High Court to a lesser degree, relied on a statement allegedly made by the appellant while in the police custody at Dar es Salaam, terming it a confession. The appellant denied making the statement and it seems the intention of the prosecutor was to use it to contradict the appellant's evidence because he brought it out in the course of cross-examination. When the trial magistrate heard its contents, however, he declared it a confession and went on

to treat it as such in his judgment although it was never put in evidence. The judge on first appeal, perhaps by misreading the record, thought the statement was part of the evidence. And while observing that it was repudiated and that it could be discarded without harm to the prosecution case, he fell back on it and said it was amply corroborated.

We say that the use of the statement was wrong in law. Where a previous statement has been used to contradict the evidence of the accused, the statement has to be admitted in evidence to form part of the record, unless the accused explains the contradictions. In this case the prosecutor was not even given the chance to demonstrate whatever contradictions he had in mind, let alone to decide what to do with the statement. Because the learned magistrate had his own ideas about confessions, but apparently no idea about the established principles governing their reception and use, he literally hijacked the statement and the initiative from the prosecutor and subsequently made use of it although it was not in evidence. It is also evident that the statement was decisive in his decision because after extensive reference to it, he declared "...I am not prepared to take any of the defence claims by the sixth accused [as the appellant was] and the entire bunch of his witnesses". As just stated, it was wrong in law to use the statement, it could not be referred to for any purpose since it did not form part of the evidence. Had the learned judge on first appeal carefully examined the record and realized the correct position, he would not have concurred that there was a confession, and that would have made the prosecution case even weaker. We think these factors sufficiently demonstrate the perversity of the findings leading to the appellant's conviction. The totality and nature of the evidence make it unsafe to sustain the conviction. We allow the appeal, quash the conviction and sentence and order the appellant's release from custody.

TANZANIA ELECTRIC SUPPLY CO. LTD *v.* MUHIMBILI MEDICAL CENTRE

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Nsekela, J.)

COMMERCIAL CASE No. 35 OF 2000

Landlord and Tenant – Period of rent payable – Lease states amount of rent payable per square metre but does not state whether per month or per annum – Determination of period of rent.

Landlord and Tenant – Lease – Notice to terminate lease – Receipt of rent due after issue of notice to terminate lease – Whether receipt of rent by the lessor after notice of termination is issued operates as waiver of the notice.

Civil Practice and Procedure – Pleadings – Matter not pleaded – Whether Court may decide a matter which was not pleaded.

Stamp Duty – Obligation to pay stamp duty – Lessor pays stamp duty on a lease instead of the lessee – Whether the lessor may recover from the lessee the amount paid as stamp duty.

The plaintiff and defendant signed a lease under which the plaintiff let its premises to the defendant. The agreement mentioned the rent to be in USD per square metre but did not state whether it was payable per month or per annum. The defendant did not pay the rent and the plaintiff proceeded to issue notice to terminate the lease. The defendant then made payment in part which was received by the plaintiff. This was contended by the defendant to be waiver of the notice to terminate the lease, and refused to hand over the premises; the plaintiff sued for vacant possession. No stamp duty was paid on the lease and during the trial the plaintiff unsuccessfully sought to tender the lease as the same was not duly stamped as required by the Stamp Duty Act 1972. Later on the plaintiff succeeded to tender it in evidence, but only after paying stamp duty on it.

Held: (i) Where the lease does not specify whether the rent payable is per month or per annum, it is legitimate to examine the negotiations preceding the lease; the letters exchanged between the parties here show clearly that the rent was payable per month;

(ii) Acceptance of part of the rent due after issuing notice of termination did not operate as a waiver of the plaintiff's notice to terminate the lease;

(iii) Normally nothing can be awarded unless pleaded in the plaint, but in the peculiar situation which arose in this case, the Court would award the plaintiff the amount paid for stamp duty since the Stamp Duty Act 1972 imposed liability for this on the defendant and justice demands the making of this award.

Judgment for the plaintiff

Cases referred to:

(1) *Vitol BV v. Compagnie Europeene des Petroles* [1988] 1 Lloyds Rep 514

(2) *Damodar Jihabhai and Company Limited and another v. Eustace Sisal Estate Limited* [1967] EA 153

(3) *Clarke v. Grant and Another* [1949] 1 All ER768

(4) *Odd Jobs v. Mubia* [1970] EA 476

(5) *Robinson v. Harman* 154 ER 363

(6) *Woodruff v. Dupont* [1964] EA 404

(7) *Saidi Kibwana and General Tyre EA Limited v. Rose Jumbe* [1993] T.L.R. 175

Statutory provisions referred to referred

(1) Companies Ordinance Chapter 212

(2) Public Corporations Order, 1997

(3) Government Notice Number 543 1997

(4) Muhimbili Medical Centre Act 1976

(5) Civil Procedure Code 1996, Order VIIIA, Order XIV, rule 5(1)

(6) Law of Contract Ordinance, section 55(3), Chapter 433, section 73

(7) Civil Procedure Code section 9, Order VII, rule 7

(8) Stamp Duty Act 1972

Mr Mwandambo for the plaintiff

Mr Ngatunga for the Defendant

JUDGMENT

(Dated 22 August 2001)

Nsekela, J.: The plaintiff, Tanzania Electric Supply Limited (TANESCO) is a limited liability company incorporated under the Companies Ordinance Chapter 212 and is of present a specified public corporation under the Public Corporations (Specified Public Corporations) Order, 1997 GN Number 543 of 1997. The defendant is a statutory corporation established under the Muhimbili Medical Centre Act 1976 as amended. The plaintiff and the defendant on the 27 July 1998 executed a lease under which the plaintiff leased its house situate on Plot Number 147 Magore Street, Upanga Dar es Salaam to the defendant for a duration of ten (10) years subject to renewal as therein contained. The amount of rent that the defendant was obligated to pay to the plaintiff whether monthly or annually has been a subject matter of heated controversy and will be discussed in the course of the judgment. It is evident from the pleadings that the defendant did not apparently honour its obligations to pay to the plaintiff the reserved rent and the defendant was allegedly in breach of other obligations under the lease. To vindicate its rights under the lease the plaintiff instituted this suit. The mediation process under order VIIIA of the Civil Procedure Code 1966 as amended did not bear fruit and was so recorded on the 5 October 2000. A final pre-trial conference was held on the 30 October 2000 and having failed to reach an amicable settlement the following issues were framed and recorded after consultation with the learned advocates namely, Mr Mwandambo, learned Advocate

for the plaintiff and Mr Ngatunga learned Advocate for the defendant. The issues were as follows:

(i) What were the terms and conditions of the lease

(ii) Has the defendant breached any of the terms and conditions of the lease

(iii) Has the plaintiff suffered any loss and damage as a result of the breach of the lease by the defendant

(iv) To what reliefs are the parties entitled to.

On the 20 February 2001 the Court *suo motu* framed an additional issue under Order XIV, rule 5(1) of the Civil Procedure Code. This issued which was not to be the first one reads:

> Was there an agreement between the plaintiffs and defendants to lease premises situated at Plot 14 Magore Street, Upanga Dar es Salaam.

This issue was not contentious and both the learned advocates for the parties concurred that there was such an agreement which was in writing and contained in Exhibit P1. The agreement was tendered in evidence by PW1 Godson Ezekiel Makia, a legal officer employed by the plaintiff. Following logically from the first issue. The second issue was:

> What were the terms and conditions of the lease?

PW1 Godson Ezekiel Makia, PW3 John Madaha, DW1 Dr Harrison Mwakyembe, DW2, Dr Sydney C Yongolo testified on the existence of Exhibit P1 and in particular on the question relating to the rent that was payable by the defendant to the plaintiff. In fact this is the main bone of contention by the parties. A resolution of the rental charges forms the existence of the first issue framed. More specifically, this issue boils down to "was the rent payable USD 9 per sq metre, per month or per annum." I quote below the relevant clauses of Exhibit P1 executed on the 27 July 98 in order to resolve this hotly contested issue. They provide as follows:

Now This Deed Witnesseth as follows:

Rent and Duration

The Landlord unto the Tenant the premises situated at Plot Number 147, Magore Street Upanga, Dar es Salaam comprising total area of 1772 m2. To hold the same from the first day of August, 1998 for the term of 10 years then another three years term to be followed by renewal of two years until expiry of the lease period.

Payment

The Landlord covenants with the tenant as to the mode of payment as described in the payment schedule hereto.

The Tenant covenants with the landlord as follows:

(a) To pay rent and due payment on the days and in the manner agreed.

At the end of the agreement there is this payment schedule:

(a) Payment shall be made in USD 9 per sq metre at the prevailing exchange rate on the day of payment.

(b) Payment shall be categorized as follows:

(i) One year's rent at the end of the first year.

(ii) One year's rent in advance each for the second and third year on the first week of the year.

(iii) Three years advance payment during the second three years term

(iv) Two years advance payment for each two years herein until expiry of the lease period.

(c) Interest on delayed payment shall pursuant to the prevailing commercial on the date when such payment is made.

The plaintiff called three witnesses PW1 was one Godson Ezekiel Makia, a legal officer of the plaintiff. This witness testified that he was involved in the early preparatory stages of Exhibit P1. After the execution of the agreement the defendant was given vacant possession

of the premises and is still in occupation. He added that the plaintiff received information that the defendant had written to the Treasury Exhibit P3 dated the 23 November 1998 seeking to buy the premises. In view of these developments the plaintiff was of the view that this was a contravention of the agreement and so issued a notice to the defendant to terminate the agreement. The notice was dated the 7 December 1998 Exhibit P4. During cross examination by *Mr Ngatunga,* PW1 stated that the premises were let to the defendant and not to Tumaini Comprehensive Infirmary Limited PW2 was one Gideon Nyamboha, the plaintiff's Chief Engineer (Design). His responsibilities included the design of buildings and valuation thereof. His professional experience spans some twenty two (22) years. He testified that he made a valuation of the suit premises for commercial renting. The total cost of construction was TZS. 452 985 993-20 and in terms of his calculations, the rent payable per month was USD12.5 per sq metre and that this was the figure he forwarded to the plaintiff's Management. During cross examination, he stated that Management was not bound to accept his recommendations. PW3 was the plaintiff's Deputy Managing Director, Mr John Madaha, responsible for Finance and Administration. He testified that he was fully involved in the negotiations that led to the plaintiff renting to the defendant the plaintiff's suit premises. He testified that the rent that was agreed upon was USD 9 per sq meter per month and that he executed on behalf of th plaintiff Exhibit P1.

In addition, he stated that as of now the defendant is not in possession of the suit premises but there is an organization called Tumaini and the defendant had no mandate to sub-let the suit premises. To make matters worse the defendant he claimed attempted to acquire the suit premises itself. He however admitted that a small portion of rent has been paid but there is still rent outstanding and the plaintiff wanted the suit premises back to itself. The defendant called three witnesses as well namely DW1 Harrison Mwakyembe, DW2 Sydney C Yongolo, and DW3 Dr J Mwaikusa. DW2 is a surgeon and Senior Lecturer at Muhimbili Medical Centre, and a Director of Tumani

Comprehensive Infirmary Ltd; DW1 and DW3 are advocates of the High Court of Tanzania and close friends of DW2. DW2 in my view was the important witness for the defendant since he is operationally connected with the defendant and Tumaini Comprehensive Infirmary.

Apart from the admitted friendship of DW2 with DW1 and DW3, it would appear to me that the operational connection between DW1 and DW3 with the defendant is on the periphery and therefore their evidence has to be evaluated accordingly. DW2 testified that there were negotiations between the plaintiff and the defendant for the latter to lease the suit premises from the plaintiff. The rental charge that was finally agreed upon was USD 9 per annum which translated into USD 15 930-00 per annum. DW2 added that they received a demand letter for the same amount Exhibit D1 dated 1 June 2000 from Sinare, Shiyo and Mwandambo, Advocates, for the plaintiff. There was also Exhibit D2 signed by one JK Madaha (PW3) demanding USD 31 860-00. DW2 also tendered in evidence Exhibit D3 which is a receipt issued by the plaintiff acknowledging receipt of USD 15 980-00 from the defendant. Furthermore, DW2 testified that Tumaini Comprehensive Infirmary is an associate company of the defendant composed of forty-five doctors running the hospital on behalf of the defendant. The evidence of DW1 and DW3 can be very briefly considered together. By their own admission both are not members of the Management of the defendant. Both provided gratuitous legal advice to DW2, their bosom friend. DW3 on his part was particularly emphatic that the rent chargeable was USD9 per sq metre per annum.

Mr Mwandambo learned advocate, in his spirited arguments submitted that a number of facts were not in dispute including the fact that there was a lease executed between the parties on the 1 August 1998 for the a term of ten (10) years, that the agreed rent was not paid according to the payment schedule and that despite the notice to terminate the agreement the defendant is still in occupation of the suit premises. The learned advocate then made reference to the evidence of PW1, PW2 and PW3 and stated:

> Your Lordship, the evidence of the three witnesses for the plaintiff is water tight and was not in any way impeached by the defendant by way of cross–examination. In our view the said evidence establishes a strong case for the plaintiff on the issue of rent as agreed by the parties *through Exhibit P1 and negotiations prior to the execution of the agreement* [emphasis supplied].

The learned advocate was man-enough to admit that Exhibit P1 is ambiguous as regards the rent that was payable to the plaintiff and boldly invited the Court to cure that ambiguity by ascertaining the intention of the parties before the execution of Exhibit P1. He cited the case of *Vitol BV v. Compagnie Europeene des Petroles* (1) at page 576 where Saville, J. stated in part as follows:

> ... If the words are not so clear and admit of more than one sensible meaning then the ambiguity may be resolved by looking at the aim and genesis of the agreement, choosing the meaning which seems to make the most sense in the context of contract and its surrounding circumstances as a whole . (See paragraph 105 page 12. **The Interpretation of Contracts** (2 ed) by Kim Lewison QC)

He was of the opinion that, according to clause 1 of Exhibit P1 the rent chargeable was USD 9 per sq metre per month. Mr Ngatunga learned advocate for the defendant took a conventional view of the matter. He submitted that the terms and conditions of the lease were as contained in Exhibit P1 and that the parties were bound by its contents. To be fair to the learned advocate, this is what he stated:

> In the present case it is our contention that the agreement signed by the parties on 27 July 1988 (Exhibit P1) binds the parties therein. As to the terms of the agreement we submit with respect to the issue as to whether the rent payable was monthly or annually that can be found in the agreement signed by the parties.

The learned advocate, however, did not come out clearly as to whether or not the rent chargeable was USD 9 per sq metre per month or per annum but proceeded on to quote item (a) of the payment schedule which reads.

(a) Payment shall be made in USD 9 per sq metre at the prevailing rate on the day of payment.

Both the learned advocates have submitted that the terms and conditions of the Lease were those contained in Exhibit P1. I agree. The learned advocates however part company as regards the contents of Exhibit P1 on the calculation of rent payable by the defendant to the plaintiff. Item (a) above clearly states that payment shall be USD 9 per sq metre. There is no mention of USD 9 per sq metre *per month or per annum*. Item b(i) to (iv) have nothing to do with the calculation of rent payable. It deals with when the said rent will be payable during the lease period under clause 1 of Exhibit P1. There is no doubt in my mind that there is an ambiguity in item (a) of the payment schedule! If I may be permitted to indulge in some sort of speculation payment could be USD 9 per sq metre per day: or per week or per month or quarterly; or semi annually: or annually or whatever!

Item (a) of the payment schedule is not a model of clarity, but all the same the Court cannot fold its hands and say this is the end of the matter. The Court has to strive hard to make commercial sense out of it. I am constrained to look at the surrounding circumstances that existed before the execution of Exhibit P1 on the 27 July 1998. I must hasten to say that I am fully aware that evidence of prior negotiations is stridently not admissible in evidence, but I find solace in the following observations of Sir Charles Newbold P in the case of *Damodar Jihabhai and Company Limited* (2) at page 156 G-11 where he sated thus:

> Whatever may be form of the words once the intention of the parties can be ascertained the Court will give effect to that intention unless the words used cannot possibly bear that meaning. Further, if the words used are on the face of them meaningless in relation to the surrounding circumstances in which they were used then if the Court is satisfied that the words used were intended to give effect to an agreement between the parties, the Court will not discard the words as meaningless or complete surplus age but will construe them in such a manner as to give effect to the intention of the parties and in order to ascertain that intention the Court will have regard to the surrounding circumstances (see also *Prenn v. Simmonds* [1973] All ER 23.

I now turn to consideration of the surrounding circumstances that existed prior to the execution of the lease on the 27 July 1998. There are two letters that were exchanged between the Chief Executives of both parties. They are in Exhibit P2. The first one is from Professor SY Maselle, Director General of the defendant dated 16 January 1998 to the Managing Director, Tanesco. It reads in part as under:

> Please refer to our joint Management Meeting which was held on 8 day of January, in your office premises. Although the minutes of that meeting prepared by your secretariat are not yet out, however there are points which need clarification from our side the issue of rent. Although we still believe that our proposal of USD 5 per sq m. per month is the optimum rate however we are prepared to go up to USD 7 per sq m. per month.

The response from his counterpart one Beat Luhanga, Managing Director of Tanesco was a letter dated the 9 February 1998 which provides in part as under:

> **Rental of our Magore Street Clinic**
>
> Kindly refer to your letter A3 1351 125 dated 16 January 1998 by which you have informed us of your willingness to accept a rent of US$ 7 per sq m. per month. Our economic rent was USD 11 per sq. m. per month.
>
> We have reviewed your proposal and considering the length of time it has taken to negotiate this deal we are proposing to lower our asking rent from USD 11per sq m. per month to USD 9 per sq m. per month. We consider this rent to be very reasonable and therefore wish to state that this is our final position which we ask you to accept or reject as the case may be.

It is abundantly clear from these letters that during the negotiations the parties were at one that the rent would be such and such USD per sq meter per month. It was certainly not per annum. I thus have no hesitation at all in finding that the rent was USD 9 per sq metre per month. There is another point which was raised by Mr Ngatunga

in connection with the Demand Notices Exhibit D1 and D2. According to Mr Ngatunga, the rent demanded was USD 9 per sq metre per annum. The learned advocates should have taken note of the correction in Exhibit P5 dated 26 June 2000 from the plaintiff's advocates that the rent paid on 9 June 2000 was for one month only and that as of August 1999, the outstanding rent was USD 382 320-00. The plaintiff's suit was based on the amended plaint filed on 11 September 2000 and not on the Demand Notices.

The third issue was in the following terms:

> Has the defendant breached any of the terms and condition of the lease.

It is the contention of the learned advocate for the plaintiff that the defendant is in breach of the covenant to pay the reserved rent as agreed upon in the Lease. (Exhibit P1) Mr Mwandambo has submitted that the defendant defaulted in the payment of the agreed rent on the due dates. The agreed rent was to be paid on the 31 July 1999 during the first year at the latest and the rent for the second and third year was payable in one lump sum in the first week of the relevant year. He added that only one month rent was paid on the 16 June 2000, as per Exhibit D3. Mr Ngatunga on his part does not dispute the mode of payment of the agreed rent and has further submitted that:

> Upon the defendant's failure to pay in the said mode agreed upon there was no action on the part of the plaintiff other than demanding for arrears of rent. Here it must be pointed out that under clause 5(1) of the Lease the plaintiff had the right to re-enter upon the premises.

If I understand the learned advocate correctly, he is saying that there was inaction on the part of the plaintiff to collect the reserved rent when it was due. Later on the learned advocate submitted thus:

> It is our contention that the plaintiff did accept the defendant's to pay the first years' rent at a later period than that agreed and that therefore the provision in section 55(3) of the Law of Contract Ordinance apply.

Although the learned advocates' argument on this point does not come out clearly, he appears to be submitting that since the plaintiff did not exercise his rights under the agreement on the failure by the defendant to pay the reserved rent in a timely manner as per agreement then the plaintiff cannot now insist on exercising such right that he had. In other words, there was a waiver of his right under the agreement. This argument was unfortunately not fully articulated by the learned advocate for the defendant. The plaintiff on the 7 December 1998 issued to the defendant "Notice to terminate Contract between Tanesco and Muhimbili Medical Centre (MMC)" Exhibit P4 by invoking cause 5(iii) of the lease (Exhibit P1). The said notice was to last six months after which the "lease shall automatically cease and be void". Clause 5(iii) referred to above reads:

> If the tenant or landlord shall desire to determine the term hereby granted before the expiration of the tenancy or for any other reason not specifically stipulated herein the desiring party shall issue to the other party a six month's notice in writing of his desire and then immediately on expiration of such notice the present demise and everything herein contained shall cease and be void but without prejudice to the rights and remedies of either party against the other in respect of any antecedent claim or breach of the covenant.

On the 30 June 1999 the plaintiff again wrote a letter to the defendant reminding the latter that the "Notice of Termination" Exhibit P4 had expired on the 6 June 99 and that the defendant should "kindly arrange to hand over the premises in the presence of Tanesco company officials by 7 July1999 at 10.00am. The argument of the defendant is that the receipt by the plaintiff of USD 15 980-00 on the 16 June 2000 which date incidentally was after the expiry of the Notice of Determination of the Lease Agreement operated as a waiver of the said Notice. There is no doubt in my mind that according to Exhibit D3, the money was received as rent for the period stated therein which was then outstanding and not all had been paid. The question to be answered however is what are the consequences to the plaintiff of receiving rent after notice to terminate the lease agreement and

when in fact the period in question had already expired. I think the legal position was succinctly stated by Lord Goddard, CJ, in the case of *Clarke v. Grant and another* (3) at page 769 in these terms:

> If a landlord seeks to recover possession of property on the ground that the breach of covenant has entitled him to a forfeiture it had always been held that acceptance of rent after notice waives the forfeiture the reasons being that in the case of forfeiture the landlord has the option of saying whether or not he will treat the breach of covenant as a breach. The lease is avoidable not void and if the landLord accepts rent after notice of a forfeiture it has always been held that he thereby acknowledges or recognizes that the lease is continuing. *With regard to the payment of rent after a notice to quit however that result has never followed. If a proper notice to quit has been given in respect of a periodic tenancy such as a yearly tenancy the effect of the notice is to bring the tenancy to an end just as effectually as if there has been a term which has expired. Therefore, the tenancy having been brought to an end by a notice to quit a payment of rent after the termination of the tenancy would only operate in favour of the tenant if it could be shown that the parties intended that there should be a new tenancy* [emphasis supplied]

Exhibit P4 was very explicit in its terms. It gave to the defendant six month's notice to terminate the lease. It was unconditional. It was followed by Exhibit P6 which requested the defendant to hand over the demised premises on the 7 July 1999 at 10:00am. Thus the acceptance of part of the rent on the 16 June 2000 did not operate as a waiver by the plaintiff of the notice dated 7 December 1998 (Exhibit P4). The tenancy had expired on 6 July 1999.

The plaintiff in giving notice to terminate the lease quoted clause 5(iii) of the said agreement by giving six months notice to that effect. There was no reliance on non-payment of rent under clause 3(a) or assigning underletting under clause 3(b) though they might have been important considerations in arriving at such a decision. Exhibit P4 speaks for itself.

It is true that in the amended plaint dated 11 September 2000 the question of subletting the demised premised was not pleaded. It was the evidence of PW1 that Exhibit P4 "Notice to Terminate the Contract between Tanesco and Muhimbili Medical Centre" does not refer to any sub-letting by the defendant to a third party. In this letter the plaintiff is complaining of the fact that the defendant was plotting to acquire the demised premises itself. The argument of the defendant is that this matter was not pleaded and should therefore be excluded. In his examination in chief PW3 was led to give evidence on this and was cross examined on the issue as well. DW2, Dr Sydney Yongolo also gave evidence on this matter and was cross examined on the point as well. Mr Ngatunga learned advocate for the defendant allowed this piece of evidence to be admitted without protest. Thus, two key witnesses PW3 and DW2 testified on the question of sub-letting were cross–examined on their testimony and submissions on it were made; Mr Ngatunga's complaint is not supported by the facts on the record. The fact of the matter now is that the parties were heard on the question of sub-letting though it was not pleaded. The learned advocate for the defendant did not protest the admission of the evidence of PW3 on the point but instead cross-examined PW3 on the matter and on his part as well led DW2 Dr Yongolo to give evidence on the issue. This issue has been left to the Court for adjudication. In the case of *Odd Jobs v. Mubia* (4) at page 480 Duffs, P observed:

> There has been an irregularity in the pleadings but this Court will usually interfere with a judgment if it is satisfied that there has been no failure of justice or lack of jurisdiction. I am satisfied that the issue was before the Court and that the parties were heard on the issue and the main question here is whether or not the appellant suffered any prejudice or injustice by the course the proceedings took.

I am satisfied that no injustice or prejudice will be occasioned under the circumstances for me to adjudicate upon the matter. I must state at the outset that the evidence on the record is very scanty indeed It was first casually raised by PW1 that there was an issue of sub-letting without the consent of the defendant, but he did not elaborate

what that meant in the context of the lease. It was PW3 who testified that the defendant was not in possession of the suit premises but had sub-let them to an organization called Tumainiwithout the consent of the plaintiff. DW2, Dr Sydney C Yongolo is on the record as having said thus:

> The premises are used for treating patients. The premises are called Tumaini Comprehensive Infirmary. This is an associate company of the defendant composed of forty five medical doctors who are running the hospital on behalf of the defendant. The defendant offered the premises to the doctors who are managing the hospital on a joint venture with the defendant.

In terms of clause 3(b) of Exhibit P1 the defendant covenanted not to assign underlet or part with the possession of the demised premises or any part thereof, without the written consent of the plaintiff. I have not seen any scintilla of evidence that the defendant has sub-let the suit premises. According to the plaintiff's own witnesses, the defendant is still occupying the suit premises despite the Notice to Terminate the lease which has expired. One would have expected that if at all there was any sub-letting of the suit premises the new occupants would have been joined as defendants to the suit. The plaintiff has not established on a balance of probabilities that Tumaini Infirmary is a separate entity in law and in fact from the defendant. He who alleges must prove! This ground of complaint must fail.

The fourth issue concerns an examination as to whether or not the plaintiff had in fact suffered any loss or damage as a result of the defendant's breach of the lease. It is clear that the defendant was in breach of its obligation to pay the reserved rent on the due dates. The question that has to be resolved now is the quantum of damages. The general principle is that a plaintiff is entitled to recover all losses flowing directly and naturally from the defendant's breach of contract so that in awarding damages for the breach the plaintiff should as far as it can be done by money, be placed in the same position as they would have been if the contract had been performed. (*Robinson v. Harman* (5) per Parke B). This principle is embodied

in section 73 of the Law of Contract Ordinance Chapter 433 which provides:

> 73(1) When a contract has been broken the party who suffers by such breach is entitled to receive from the party who has broken the contract compensation for any loss or damage caused to him thereby which naturally arose in the usual course of things from such breach or the parties know when they made the contract to be likely to result from the breach of it (See also *Woodruff's v. Dupont* (6)).

In the amended plaint the plaintiff's prayers included:

> (a) payment of USD 366 390 or its equivalent in Tanzania shillings at an exchange rate ruling on the date of payment's (b) vacant possession of the demised premises or interest on (a) above at the commercial lending interest from the date of filing the suit till date of judgment (c) interest on the decretal amount at the Court rate from the date of judgment till the date of full and final satisfaction of the decree.

The learned advocate for the plaintiff has submitted that the plaintiff has suffered loss of use of the income from rent payable by the defendant by the first week of August 1999 to the tune of USD 366 390 which would have attracted interest at the commercial lending rate. I agree with prayer (a) above. I agree in principle with prayer (c) to the extent that the plaintiff is entitled to interest on the judgment-debt, but at what rate of interest? The rate of interest which is sought under (c) is "commercial lending interest". The learned advocate did not lead any evidence during the trial as to the exact rate of interest which is perceived to be "commercial lending interest". The rate of interest to be awarded for the period prior to the delivery of judgment is at the discretion of the Court the rate it considers to be reasonable (see *Saidi Kibwana and General Tyre EA Ltd v. Rose Jumbe* (7) at page 188). In the exercise of my discretion under section 29 of the Civil Procedure Code read together with GN Number 410 of 1964, I award interest under (c) at the rate of 7% per annum.

In the course of submissions Mr Mwandambo submitted that the defendant should be ordered to refund TZS. 6 139 300 which the

plaintiff had paid to the revenue authorities as stamp duty on Exhibit P1 the lease. The matter arose in this way. On the 28 November 2000 when PW1 was giving evidence he sought to tender in evidence the lease. The Court noticed that the same had not been stamped as required by the Stamp Duty Act 1979 and declared to admit it in evidence whereupon the hearing of the suit was adjourned to 19 February 2001. On the resumptioning the hearing PW1 tendered the lease in evidence duly stamped. It is this expense of stamp duty that the plaintiff is seeking to be refunded by the defendant. Section 40(e) of the Stamp Duty Act 1972 provides:

> Section 40 in the absence of an agreement to the contrary the expense for stamp duty shall be borne by (e) on the case of a lease or agreement to lease by the lessee or intended lessee.

In Exhibit P1 there is no provision to the contrary as to which party will shoulder the burden of paying stamp duty and so the burden to do so falls on the Tenant Lessees. As the lessee defendant did not incur the expenses the defendant has to refund the plaintiff the sum of TZS. 6 139 300 paid as stamp duty. Order VII, rule 7 of the Civil Procedure Code reads:

> Every plaint shall state specifically the relief which the plaintiff claims either simply or in the alternative and it shall not be necessary to ask for general or other relief which may always be given as the Court may think just to the same extent as if it had been asked for.
>
> And the same shall apply to any relief claimed by the defendant in his written statement.

As a general rule a plaintiff is not entitled to a relief which he has not specifically pleaded in the Plaint. But in this particular instance, in the circumstances in which the payment of stamp duty arose I think it is just and fair that the defendant be ordered to refund the stamp duty that was paid by the plaintiff on Exhibit P1 though it was not specified in the plaint. It was the responsibility under the Stamp Duty Act 1972 for the defendant to pay the same.

To conclude on the evidence which I have accepted, I am satisfied that the plaintiff has established and it is hereby ordered:

(a) That there was a lease between the plaintiff and the defendant dated 27 June 1998.

(b) That there was a breach of that lease by the defendant and the plaintiff validly invoked clause 5(iii) of the Lease to terminate the said Lease by giving six months notice to that effect.

(c) That the plaintiff is entitled to payment of USD 366 390-00 or its equivalent in Tanzanian shilling at the exchange rate ruling on the date of payment.

(d) That the plaintiff is entitled to interest on the decretal amount at the rate of 7% per annum from the date of filing the suit to the date of judgment.

(e) That the plaintiff is entitled to interest on the decretal amount at the rate of 7% per annum from the date of judgment until satisfaction.

(f) That the plaintiff is entitled to an order of vacant possession of the suit premises.

(g) That defendant is ordered to refund the sum of TZS. 6 139 300-00 paid by the plaintiff to revenue authorities as stamp duty on Exhibit P1 the lease.

(h) The defendant is condemned to pay costs hereof.

It is accordingly ordered.

FEDERATION OF MINES ASSOCIATIONS OF TANZANIA AND 2 OTHERS *v.* AFRICA GEM RESOURCES (AFGEM) AND 7 OTHERS

HIGH COURT OF TANZANIA AT DAR ES SALAAM

(Msumi, J.K. Chipeta and Kyando, JJ.)

MISCELLANEOUS CIVIL CASE No. 23 OF 2001

Human rights - Provisions of law relating to human rights – Need to be construed liberally, with elasticity and not restrictively or rigidly – Compliance with legal requirements necessary.

Civil Practice and Procedure – Preliminary objection – Petition incompetent because not accompanied by originating summons - The complaints in the petition are not proper matter for suit under the Basic Rights and Duties Enforcement Act – Seventh respondent wrongly sued in his personal capacity.

Constitutional law – Basic Rights and Duties – Enforcement of basic rights under the Constitution – Acts complained of constituting ordinary crimes and torts that can be prosecuted in ordinary Courts – Petition under the Basic Rights and Duties Enforcement Act 1994 improper.

This was a petition for enforcement of the basic rights as stipulated in Part III of Chapter I of the Constitution of the United Republic of Tanzania, specifically articles 12 to 29. The petitioners alleged a number of wrongs against the respondents in respect of mining operations at Merelani, in Arusha Region. The seventh respondent was the Minister responsible for mining affairs who was sued in his personal capacity. A number of preliminary objections were raised including that the petition was incompetent because it was not accompanied by originating summons, that the complaints in the petition were not proper matters for suit under the Basic Rights and Duties Enforcement Act and that the seventh respondent was wrongly sued in his personal Capacity.

The High Court presided by three judges considered the preliminary objections.

Held: (i) While we are aware of the well established modern approach to human rights matters that provisions of law relating to human rights have to be construed liberally, with elasticity and not restrictively or rigidly, that does not mean that a party in a human right case can disregard compliance with legal requirements with impunity;

(ii) A petition is not incompetent because it is not accompanied by originating summons as required under section 5 of the Basic Rights and Duties Enforcement Act because the procedures of a petition and originating summons under section 5 of the Act are alternative procedures;

(iii) The wrongs which are enforceable under the Act must be those which contravene the provisions of articles 12 to 29 which are in Part III of Chapter I of the Constitution and it is necessary to state specific Articles of Part III Chapter I of the Constitution which have been contravened;

(iv) The complaints in the petition are not proper matter for suit under the Basic Rights and Duties Enforcement Act because they are crimes and torts which can be prosecuted in ordinary Court proceedings without impediment or cumbersomeness;

(v) A public officer, including a Government officer, is personally answerable for tort arising from his acts done in the course of discharge of official duties;

(vi) It is not legally proper for the seventh respondent to be sued in his personal Chapter for a non-tortuous suit.

Petition is incompetent

Cases referred to:

(1) *Ismail G Lazaro v. Josephine Ngomera* CAT – Civil Appeal Number 2 of 1986

(2) *Lucas Matafu v. Hon. M M Songambele* [1977] LRT 10

(3) *Mtikila v. Editor, Business Times and Augustine Lyatonga Mrema* [1993] T.L.R. 60

(4) *Registrar of Societies and others v. Baraza la Wanawake Tanzania and 5 others* CAT – Civil Appeal Number 82 of 1999 (unreported)

Statutory provisions referred to:

(1) Constitutution, Articles 14, 23, 24, 27 and 30(1)., Chapter 1, Articles 12 and 29

(2) Basic Rights and Duties Enforcement Act Number 33, 1994, sections 4, 5,12 and 13

(3) Civil Procedure Code section 68(e) and section 95

(4) Government Suits Ordinance Chapter 5

Mr Rweyemamu, for Petitioners

Mr Mujulizi, for first to sixth Respondents

Mr Mdamu, for seventh Respondent

RULING

(Dated 22 August 2001)

Msumi, J.K.: According to its heading, this petition has been filed under Articles 14, 23, 24, 27 and 30(1) of the Constitution of the United Republic of Tanzania, sections 4, 5, 12 and 13 of the Basic Rights and Duties Enforcement Act Number 33 of 1994; section 68(e) and 95 of the Civil Procedure Code 1966 and any other enabling provisions of the law. However, the petition is for the enforcement of the basic rights as stipulated in Part III of Chapter 1 of the Constitution, specifically Articles 12 and 29. The petitioners are representative bodies of miners while the first six respondents are connected in different capacities with commercial mining of tanzanite gemstones at Mererani mines within Arusha Region. Though he is being sued in his personal capacity, the seventh respondent was at the material time Minister of Energy and Minerals.

The conflict which is the subject matter of this petition arises from the respondent's connection in the mining operation of tanzanite gemstone at Mererani mines. The petitioners allege a number of wrongs against the respondents in respect of the said mining operations

and pray for declaratory reliefs and damages. Among the alleged wrongs and consequential reliefs sought are that the seventh respondent acted *ultra vires* in granting a Special Mining License to the third respondent and as such the said grant be declared null and void, that the third respondent be ordered to halt mining operation in Block C of the mines and instead the said mines be granted to the petitioners after duly complying with the relevant provisions of the law. There is also a prayer for an order for exhumation of dead bodies of small scale miners allegedly buried alive by the first, second and third respondents in various pits dug in Block C of the mines in the course of filling up exhausted pits.

Besides controverting the petition on merits, respondents have raised some points of law against it by way of preliminary objection. There are:

1. That essential steps in the filing and prior to hearing of this petition have been skipped, and therefore the petition is incompetent and ought to be struck out with costs.
2. The first – sixth respondents are wrongly jointed to the petition. The names ought to be struck off with costs.
3. The matters subject of the petition are not amenable to adjudication before the High Court exercising its powers to enforce the provisions of Articles 12 to 29 of the Constitution of the United Republic of Tanzania 1977.
4. On the allegations in the petition as filed, the plaintiffs have alternative and adequate means of redress for the alleged contraventions.
5. The petition is merely superfluous and vexations it must therefore be dismissed with costs.

As for the seventh respondent, his preliminary objection is based on the following points:

1. That the petition is incompetent in that it is not accompanied by an originating summons as required by law and thus cannot be the basis for the application for temporary injunction.

2. The seventh respondent is wrongly impleaded in the petition since in granting the Special Mining Licence he was performing his official functions as the Minister responsible for mining affairs in the Government of the United Republic of Tanzania.

3. That the facts alleged do not constitute any constitutional matter and thus the petition and the application are wrongly brought.

In their written submissions, counsel for all the respondents made lengthy elaborations of these points. As far as the first point is concerned counsel relied on the provision of section 5 of the Basic Rights and Duties Enforcement Act Number 33 of 1994 which states:

1. An application to the High Court in pursuance of section 4 shall be made by petition to be filed in the appropriate registry of the High Court by Originating Summons.

It is a fact that no originating summons has been filed in these proceedings, respondents are therefore arguing that the petition is incompetent. Arguing on behalf of the first six respondents in support of the second point, counsel submitted that the petition is incompetent in so far as it seeks redress for breach of human rights for which respondents being private persons cannot be held answerable. If the applicants are entitled to any relief for these alleged breaches their claims should be against the State. The argument in support of the third issue raised by the first six respondents is similar to that submitted in support of the third point raised by the seventh respondent. In respect of both points counsel are contending that the subject matter of the petition does not raise any constitutional issue as described under Articles 12 to 29 of the Constitution. In other words counsel are arguing that proceedings for enforcement of duties and basic rights must be founded on the breach of Articles 12 to 29 of the Constitution.

As far as the fourth point raised by the first six respondents is concerned it is argued that there is adequate alternative means by which applicants could get redress for the alleged wrongs. For example it is argued that applicants could get the prayed exhumation order

through criminal proceedings with or without involving the police. In the elaboration of his second point, seventh respondent is arguing that since he committed the alleged wrong of issuing void licence in his Chapter as a Minister responsible for mines, he cannot be sued in his personal Chapter. It is appreciable that counsel for the applicants filed fairly detailed written submission in reply to the preliminary objections.

However, rather than summarize it generally, we will refer this submission in the course of determination of each point of the preliminary objection. Before considering the arguments for and against the preliminary objection we wish to make the following general observation. We are quite aware of the well established modern approach to human rights matters that provision of law relating to human rights have to be construed liberally, with elasticity, and not restrictively or rigidly. Being grave matters, allegations of human right breaches should not be dismissed on mere rigidity of the law. This does not, however, mean that a party in a human right case can disregard compliance with legal requirements with impunity. The mentioned liberal approach is not applicable if it renders a provision of law nugatory.

As noted earlier, the first issues raised by the first six respondents and seventh respondent are similar. It is contended that the petition is incompetent because it is not accompanied by Originating Summons as required under section 5 of the Basic Rights and Duties Enforcement Act. We find no difficulty in overruling these objections in view of the descision in the *Registrar of Societies and others v. Baraza la Wanawake Tanzania and others* (1) in which the Court of Appeal held that the procedures of a petition and originating summons under section 5 of the Act are alternative procedures. It is not correct view, as submitted by the respondents in the present case, that both procedures must be complied with cumulatively. The arguments in support of the second point raised by the first six respondents require more information than what is available in the pleadings. Evidence on the actual identities of the respondents is required in order to determine whether they have been misjoined. On this ground we are

of the view that this issue cannot be raised and determined by way of a preliminary objection. Accordingly this point is overruled.

Points number three and four of objection raised by the first six respondents and point number three raised by the seventh respondent are basically the same. What is substantially being contended in these points is that the alleged wrongs narrated in the petitions are not constitutional issues which are subject to proceedings under the Basic Rights and Duties Enforcement Act. We respectfully agree with this contention. The wrongs which are enforceable under the Act must be those which contravene the provisions of Articles 12 to 29 which are in Part III of Chapter 1 of the Constitution. Indeed section 6(d) of Act requires a petition, among other particulars, to state specific Articles of Part III Chapter 1 of the Constitution which has been contravened. Contrary to this requirement, the present petition does not contain these specifications except in paragraphs 11 and 12.

We have however tried to construe all the paragraphs of the petition to find out whether what are being alleged are in substance contraventions of Articles 12 to 29 of the Constitution. In paragraph 11 the petitioners allege that all the respondents have jointly and severally violated Articles 27 of the Constitution by exporting minerals from the country irregularly, unlawfully and corruptly. Rather then being constitutional wrong, we are of respectful view in respect of the allegation in paragraph 12 of the petition that the first six respondents infringed Article 14 of the Constitution "by conducting mining operations negligently and causing harm and injury by shooting and committing barbaric and inhuman acts such as smearing some Tanzanian faces with cement and pushing bare fingers in persons' anus". The referred Article 14 says.

> 14. Every person has the right to live and to the protection of his life by the society in accordance with law.

However, liberally the provisions of this Article are construed, they cannot be said to have been contravened by the said wrongs alleged

in paragraph 12 of the petition. All the wrongs alleged in paragraphs 11 and 12 are criminal offences of economic sabotage and corruption. As far as the provisions of the Act are concerned these allegations are not amenable. On the other hand the allegations contained in the other paragraphs have not specified the constitutional provisions which they contravened. Even without this specification, these allegations are basically not constitutional matters. On this ground, we respectfully sustain point of objection number three raised by the first six respondents and point number three raised by seventh respondent. The basis for the fourth and fifth points of objection raised by the first six respondents is the provisions of section 8(2) of the Act which says:

> 8(2) The High Court shall not exercise its powers under this section if it is satisfied that adequate means of redress for the contravention alleged are or have been available to the person concerned under any other law, or that the application is merely frivolous or vexatious.

It is notable that paragraphs 11, 14, 15 and 16 of the petition allege criminal offences ranging from simple assault, corruption, economic sabotage and murder. These is no indication in the petition that cogent reports have been made to police authorities for steps to be taken and that no appropriate steps have been taken in furtherance of the report. As regards paragraphs 12 and 13, the allegations are tortious acts of assault and negligence which are entertainable in an ordinary suit. Similarly the allegations in paragraph 17 could adequately be dealt with in ordinary proceedings for revocation of mining licence for infringement of conditions of the license. The allegation in paragraph 27 is libelous hence actionable in an ordinary suit. Generally all the declatory relief and damages prayed in the petition may be sought by way of ordinary suit. We accordingly sustain the fourth point of objection raised by the first six respondents that this petition is incompetent because the petitioners have adequate alternative means or redress for the alleged complaints. However despite this finding we are not convinced that the petition is superfluous and vexatious. Accordingly the fifth point of preliminary objection raised by the first six respondents is overruled.

Lastly, let us now consider the second ground of the seventh respondent's preliminary objection. There is not doubt that seventh respondent issued the alleged offensive Special Mining Licence in his Chapter as the Minister responsible for mines. Indeed he acted in accordance with the statutory power vested in him as a Minister and not in his personal Chapter. In suing the seventh respondent in his personal Chapter, counsel for the applicants is relying on the decision in *Mtikila v. Editor, Business Times and Augustine Lyatonga Mrema* (2). The plaintiff in that case sued the second respondent who was a Government Minister for defamation arising from words uttered by him in the course of his business. It was argued as preliminary objection that because second defendant uttered the alleged defamatory words in the course of discharging his ministerial duties, he could not be sued in his personal Chapter rather the suit should have been against the Government.

The Court overruled this argument and stated as a general rule that any public officer including a minister can be sued for tort based on the acts of such officer in the course of discharge of his duties. Similar view was held by the Court of Appeal in *Ismail G Lazaro v. Josphine Ngomera* (3). On the same issue there is also another decision of this Court in *Lucas Matafu v. MM Songambele* (4). The plaintiff in this case sued the defendant who, at the material time was Regional Commissioner, for closing his bar business premises. In upholding the defendant's contention that it was legally incompetent to be sued in his personally Chapter, Mfalila, J. as he then was, said:

> The third difficulty relates to the competency of this application. I take it that for the purpose of the Government Suits Ordinance Chapter 5 this application is a suit. It is alleged in the affidavit that the respondent, Songambele closed the applicant's bar and tenantable premises. I cannot imagine how the respondent could have done this in his personal capacity. He must have used his authority as a Government Officer whatever he did so that the final responsibility lay with the Government. For instance if indeed the respondent closed these two premises, and he were either transferred or removed from office tomorrow, he would not as Songambele have the authority to re-open them, even if he wanted or was ordered so.

In the present case, the petitioners are not suing the seventh respondent for tort. The petition has been purportedly brought under the procedure provided in the Basic Rights and Duties Act. Hence appropriately as the seventh respondent's act of granting the alleged offensive Special Mining Licence is concerned, applicants are praying for declatory order that the said licence is null and void. Since the suit against the seventh respondent is not for tort, the two decisions in *Lazaro* and *Mtikila* cases are not applicable in the present suit. In other words our understanding of the law as restated in these cases is that a public officer, including a Government Minister is personally answerable for tort arising from his acts done in the course of discharge of official duties. As noted earlier that the cause of action against the seventh respondent is not tortious hence he cannot be sued in his personal Chapter. Indeed the declatory reliefs sought by the petitioners are not enforceable against the seventh respondent personally. We accordingly uphold the second point of seventh respondent's preliminary objection.

In summary our findings are that we do not consider that the complaints in the petition are proper matters for suit under the Basic Rights and Duties Enforcement Act. They are crimes or torts which can be prosecuted in ordinary Court proceedings without impediment or cumbersomeness. Furthermore we are of the view that it is not legally proper for the seventh respondent to be sued in his personal Chapter for a non-tortious act. For these reasons the petition as a whole is incompetent and it is accordingly struck out with costs.

JUMA SWALEHE *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Makame, Kisanga and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 61 OF 2000

(From the judgment of the High Court of Tanzania at Moshi, Mchome, J. dated 3 November 1999, in Criminal Appeal No. 73 of 1994)

Criminal Law – Charge – Obtaining money by false pretence – Charge alleges obtaining money by falsely claiming to be able to multiply it but complainant parted with the money to purchase a house – Whether the charge has a basis.

This was a second appeal arising from the judgment of the High Court affirming the appellant's conviction by the District Court for the offence of obtaining money by false pretence. He was accused of obtaining TZS. 6 million from the complainant by falsely pretending that he would, by some magic power, multiply that sum to make it TZS. 12 million. But the complainant testified that she parted with the money in favour of the appellant for the purchase of a house which the appellant had agreed to sell to the complainant and her husband. At the time of parting with the said sum of money she had in contemplation the purchase of the house from the appellant, not the multiplying of the money.

Held: (i) The representation to multiply the money did not operate to induce the complainant to part with the money because it was made only after she had already parted with the money;

(ii) In our view if a charge lay at all, it would lie for obtaining money by false pretences that the appellant was selling a house. But the present charge, based on misrepresentation to multiply the alleged sum, was clearly misconceived.

Appeal allowed

Statutory provisions referred to:

(1) Penal Code section 302

Mr Makange for the Appellant

Mrs Sumari for the Republic

JUDGMENT

(Dated 13 September 2001)

Kisanga, J.A.: This is a second appeal arising from the Judgment of the High Court (Mchome, J.) affirming the appellant's conviction by the District Court for the offence of obtaining money by false pretences contrary to section 302 of the Penal Code and the sentence of TZS. 15 000 fine or one year's imprisonment in default. Before us the appellant was advocated for by Mr Makange, Advocate, while Mrs Sumari, Principal State Attorney was for the respondent Republic.

This being a second appeal will be entertained only if it raises a point or points of law. On perusing the record and from the submissions by counsel for both sides, we think that the main point of law involved is whether the evidence as adduced did disclose the offence charged. The particulars of the offence alleged that:

> Juma s/o Swalehe charged on the month of March, 1993 at Soweto area within the municipality *(sic)* and district of Moshi in Kilimanjaro Region, by false pretences and with intent to defraud did obtain cash TZS. 6 Millions from one Zahara w/o Kitindi by pretending that he has magic power to reproduce the said amount of money to TZS.12 000 000 which is not true.

Quite clearly the appellant here is being accused of obtaining TZS. 6 million from Zahara w/o Kitindi by falsely pretending that he would, by some magic power, multiply that sum to make it TZS. 12 million. But the prosecution story as told by the complainant, the said Zahara w/o Kitindi (PW1) is that she PW1 parted with a total sum of TZS. 6 Million to which she and her husband (DW2) had contributed in equal shares, in favour of the appellant for the purchase of a house which the appellant had agreed to sell to them. At the time of parting with the alleged sum of money she had in contemplation the purchase of the house from the appellant, not the multiplying of it. For on

PW1's own account, the idea or plan of multiplying the money came up only subsequently when her husband after handing over the money to the appellant, returned home and disclosed to her that the plan had changed in that the appellant would now keep the money and use magic power to multiply and double it. In other words, what induced PW1 to part with the alleged sum of money was the appellant's representation to sell the house to her and her husband. She believed that representation to be true and in reliance of it she parted with the money in the appellant's favour. The representation to multiply the money did not operate to induce her to part with the money because it was made only after she had already parted with the money.

So that in our view if a charge lay at all, it would lie for obtaining money by false pretences that the appellant was selling a house, but the present charge based on misrepresentation to multiply the alleged sum was clearly misconceived. On that ground alone we allow the appeal, quash the conviction and set aside the sentence.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* THOMAS MOLLEL *alias* ASKOFU

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Makame, Kisanga, and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 30 OF 1998

(From the Judgment of the Resident Magistrates' Court of Arusha at Arusha, Rugazia, PRM, Extended Jurisdiction, dated 14 September 2001, in Criminal Appeal No. 3 of 1997)

Criminal Practice and Procedure – Appeals – Appeals by the Director of Public Prosecutions – Notice of Appeal filed by the Regional Crime Officer – Whether such appeal properly before the Court – Sections 279, 370 and 379(a) of the Criminal Procedure Act 1985.

Criminal Practice and Procedure – Appeals – Notice of Appeal by the Director of Public Prosecutions – Meaning of Director of Public Prosecutions – Section 377 of the Criminal Procedure Act 1985.

Statute – Interpretation of statute – Cross references to sections in the same statute – The Criminal Procedure Act 1985 – Meaning of the word "section" in section 377 of the Criminal Procedure Act 1985.

A Notice of Appeal was lodged in the Resident Magistrate's Court with extended jurisdiction by a Regional Crime Officer (RCO) to challenge a decision of a Subordinate Court. The RCO purported to file that Notice under section 379(a) of the Criminal Procedure Act 1985. The Resident Magistrate's Court, extended jurisdiction, struck out the appeal, holding that the appeal was not properly before the Court. The Director of Public Prosecutions appealed.

Held: (i) section 370 of the Criminal Procedure Act 1985 confers on the High Court jurisdiction to hear appeals from the Subordinate Courts; and section 379(a) of the Act provides that an appeal to the High Court is to be initiated by the Director of Public Prosecutions giving notice of his intention to do so;

(ii) The Regional Crime Officer (RCO) may have been appointed a public prosecutor by the Director of Public Prosecutions (DPP) either under General Notices 135 and 382 of 1941 and 1943, respectively, or under section 95 of the Criminal Procedure Act but not every public prosecutor so appointed is empowered to give the requisite notice; section 377 of the Act defines "Director of Public Prosecution" to include any officer subordinate to him, acting in accordance with his general or special instructions;

(iii) For purposes of appeals under the Act the meaning of the words "Director of Public Prosecutions" should include a public prosecutor only if such a public prosecutor is an officer subordinate to the Director of Public Prosecutions and is acting under his general or special instructions; it cannot include public prosecutors appointed in different ministries, departments or sections throughout the country, who are not necessarily officers subordinate to Director of Public Prosecutions but are subordinate to some other officials, in which case they would not be competent to give the requisite Notice of Appeal;

(iv) In this case there was no evidence to show that the RCO who gave the Notice of Appeal was subordinate to the Director of Public Prosecutions; the RCO, therefore, was not the Director of Public Prosecutions within the meaning of the section;

(v) To read the word "section" appearing in the first line of section 377 in its present form would mean that the provision is targeting or is directed to only the section immediately after it, i.e. section 378, and such formulation is grammatically unsound and clumsy. For, if the provision had targeted section 378 only, the use of the words "of this part unless the context otherwise requires" would be both superfluous and meaningless; the word should read "sections" to mean that the interpretation of "Director of Public Prosecutions" applies to the remaining sections of Part X(c) of the Act.

(vii) In the result the High Court rightly struck out the appeal.

Appeal dismissed

Statutory provisions referred to:

(1) Criminal Procedure Act 1985 section 95,370, 379(a), section 377 part X(c)

(2) Government Notices Number 135 of 1941 and 382 of 1943

Mrs Lyimo, Principal State Attorney, for the Director of Public Prosecutions

Mr Jundu, for the Respondent

JUDGMENT

(Dated 14 September 2001)

Kisanga, J.A.: The Director of Public Prosecutions is appealing against the decision of the Court of Resident Magistrate (Rugazia PRM) with extended jurisdiction, striking out an appeal on the ground that the said appeal was not properly before the Court because the Notice of Intention to bring it had not been given by the Director of Public Prosecutions.

Section 370 of the Criminal Procedure Act 1985 (hereinafter referred to as the Act) confers on the High Court jurisdiction to

hear appeals from the Subordinate Courts; and section 379(a) of the Act provides that an appeal to the High Court is to be initiated by the Director of Public Prosecutions giving Notice of his Intention to do so. That provision says:

> 379 No appeal under section 370 shall be entertained unless the Director of Public Prosecutions;
>
> (a) shall have given notice of his intention to appeal to the Subordinate Court within thirty days of the acquittal, finding, sentence or order against which he wishes (to) appeal.

In this case the Notice of Intention to Appeal was given by the Regional Crimes Officer (RCO) of Arusha Region, and the question both in the Court below and in this Court was whether that constituted Notice of Intention to Appeal within the meaning of the above quoted provision. As already stated the Court below held that it did not.

Before us the appellant Republic was represented by Mrs Lyimo, Principal State Attorney, while Mr Jundu, advocate, was for the respondent. Mrs Lyimo maintained that the notice given by the RCO constituted the requisite notice under section 379(a) of the Act that the appeal was properly before the Court and that the Court, therefore, erred in striking it out. She cited various provisions of the law including sections 2, 95, 377 and 396 of the Act and Government Notices 135 of 1941 and 382 of 1943 to support her thesis that the RCO was a Public Prosecutor acting under general directions of the Director of Public Prosecutions and therefore entitled to give the requisite notice. Mr Jundu took the opposite view and supported the decision of the Court below.

We agree with Mrs Lyimo that the RCO was, or can be said to have been appointed public prosecutor by the Director of Public Prosecutions either under Government Notice Numbers 135 and 382 of 1941 and 1943 respectively, or under section 95 of the Act. Indeed this question was not seriously in issue either before us or in the Court below. However, it is apparent that not every public prosecutor so appointed is empowered to give the requisite notice.

This is apparent from reading section 377 of the Act which falls under Part X(c) thereof with the heading "Appeals by Director of Public Prosecutions." section 377 which comes immediately after that heading says:

> 377. In the following section of this Part unless the context otherwise requires – 'Director of Public Prosecutions' *shall include any officer subordinate* to him acting in accordance with his general or special instructions; [emphasis supplied]

Our construction of this provision is that for purposes of appeals under the Act by the Director of Public Prosecutions *the latter is interpreted to include a public prosecutor only if such a public prosecutor is an officer subordinate to the Director of Public Prosecutions,* and is acting under his general or special instructions. For, it is conceivable that while the Director of Public Prosecutions may have appointed public prosecutors in different ministries, departments or sections throughout the country, all such appointees are not necessarily officers subordinate to him; some are subordinate to some other officials, in which case in our view, they would not be competent to give the requisite notice. In the instant case there was no evidence to show that the RCO who purported to give the requisite notice was subordinate to the Director of Public Prosecutions within the meaning of the section, and on that account the Court below was perfectly justified to hold as it did that there was no notice given by the Director of Public Prosecutions of his intention to appeal.

Before we take leave of the matter, we have to deal with a supplementary issue which arose in the course of our interpretation of section 377 of the Act which is quoted above. This is in connection with the word "section" appearing in the first line of that section. We thought that there was a typographical error and that the word should read "sections" instead. Mr Jundu, however, took the view that the word should be read in its present form. He contended that is what the drafters of it had intended it to be and that if it was a typographical error, the Parliamentary Draftsman would have already corrected it since 1985 when it was enacted. With respect, however,

we disagree. If Mr Jundu's interpretation is adopted, it would mean that the provision is targeting or is directed to only the section immediately after it i.e section 378. Such formulation, however, is grammatically unsound and indeed clumsy. For, if the provision had section 378 only as its target then the use of the words "of this Part unless the context otherwise requires" is both superfluous and meaningless. We increasingly feel that the framers of the section cannot have intended such consequences.

There is yet another ground which is even more important. Reading the word in its present form would mean that the interpretation of Director of Public Prosecutions applies only to section 378 which deals only with conferring on the Director of Public Prosecutions the power of appeal to the High Court. In other words it means that the Director of Public Prosecutions and any officer subordinate to him acting under his instructions in terms of section 377 would be empowered to appeal to the High Court, but that in terms of section 379 of the Act (quoted earlier) the notice of intention to appeal can only be given by the Director of Public Prosecutions himself. We can find no justification for adopting such a restrictive interpretation of "Director of Public Prosecutions" in section 379 of the Act.

We feel justified to say that the word should read "sections" to mean that the interpretation of "Director of Public Prosecutions" applies to the remaining sections of Part X(c) of the Act. We reject Mr Jundu's contention that if it was a typographical error the Parliamentary Draftsman would have already corrected it. For, in practice there are a number of typographical errors which remain uncorrected on the statute books, may be due to pressure of work, and this is one of them.

In the result we are satisfied that the High Court rightly struck out the appeal before it for being incompetent, and the present appeal from that decision is accordingly dismissed.

PENIEL LOTTA *v.* GABRIEL TANAKI AND OTHERS

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Makame, Kisanga, and Lugakingira, JJ.A.)

CIVIL APPEAL No. 61 OF 1999

(From the decision of the High Court of Tanzania at Arusha, Mroso, J. dated 14 September 2001 in Civil Appeal No. 18 of 1995)

Civil Practice and Procedure – Res Judicata – Appellant was not a party to previous suit but had a common interest with parties on one side – The parties in the previous suit were the appellant's mother and sister – Whether plea of res judicata is available.

In a previous suit the second respondent sued two women in the Primary Court, one being the mother of the appellant and the other his sister. The issue was ownership of a piece of land. The suit succeeded and the two women were ordered to vacate the land. The decision was upheld by the District Court on appeal. About ten years later the appellant sued the respondents in the Resident Magistrate Court, claiming ownership of the same land. The second respondent raised a plea of *res judicata* which was accepted by the Court, which decision was upheld by the High Court on first appeal. Still aggrieved, the appellant went to the Court of Appeal to fault the common finding of the Courts below. The evidence on record showed that during the time of the litigation in the previous suit the appellant was aware of the litigation and witnessed what was taking place in Court.

Held: Though the appellant was not formally joined in the former suit, for the purposes of section 9 of the Civil Procedure Code he must be deemed to have claimed under his mother in that suit; explanation (vi) to section 9 is not confined to representative suits

Appeal dismissed

Statutory provisions referred to:

(1) Civil Procedure Code section 9

Mr Chadha for the Appellant

Mr Umbulla for the Respondents

JUDGMENT

(Dated 14 September 2001)

Lugakingira, J.A.: The question in this appeal is whether the suit in Civil Case Number 9 of 1995 instituted in the Court of the Resident Magistrate of Arusha is *res judicata*. That Court and the High Court on first appeal held in the affirmative. The question has its origins in Civil Case Number 38 of 1986 before the Primary Court at Enaboishu. In that case the second respondent, Samwel Tanaki was the plaintiff, the defendants were two women, Sindani Monyembere and Silato Sungure (or Sung'are), who are respectively sister and mother of the appellant, Peniel Lotta. The issue in the suit was the ownership of a piece of land at Sekei village in Arumeru District . The Primary Court found in the second respondent's favour and ordered the two women to vacate the suit land and move to their own lands known to exist elsewhere.

But being of the view that these women had stayed on the suit land as licensees, the Court directed the second respondent to build them alternative huts at their new abode. This decision was upheld by the District Court in Civil Appeal Number 11 of 1986 and there was no further appeal.

In 1995 the appellant, with leave of the High Court, commenced the present proceedings against the second respondent and two others claiming ownership of the same land. He averred in his plaint that the land was donated to him by his mother in 1952, and that the respondents had since 1986 trespassed into the same and committed waste therein. He prayed for their ouster and for compensation of TZS. 55 492 272 for the alleged waste. Preliminary objections were taken on the respondents' behalf involving questions of pecuniary jurisdiction, limitation of time and *res judicata*. The other questions

terminated in the High Court while *res judicata* and compensation constitute the subject matters of this appeal. Mr Chadha and Mr Umbulla, learned counsel, appeared for the appellant and the respondents respectively.

The doctrine of *res judicata* is provided for in section 9 of the Civil Procedure Code 1966. Its object is to bar multiplicity of suits and guarantee finality to litigation. It makes conclusive a final judgment between the same parties or their privies on the same issue by a Court of competent jurisdiction in the subject matter of the suit. The scheme of section 9, therefore, contemplates five conditions which, when co-existent, will bar a subsequent suit. The conditions are: (i) the matter directly and substantially in issue in the subsequent suit must have been directly and substantially in issue in the former suit; (ii) the former suit must have been between the same parties or privies claiming under them; (iii) the parties must have litigated under the same title in the former suit; (iv) the Court which decided the former suit must have been competent to try the subsequent suit; and (v) the matter in issue must have been heard and finally decided in the former suit.

Both Courts below were alive to these conditions. They stated, though, that the appellant was not a party to the *Enaboishu case* but that he was bound by the decision therein for he was litigating under the same title as his mother. We think, with respect, after holding that the appellant was not a party to the *Enaboishu* suit, a gap had been created in the scheme of section 9 and it was not enough to hold that the appellant was litigating under the same title as his mother. It was necessary to go further and establish whether, in the alternative to being a party, the appellant was a privy to his mother that is, claiming under her, which is different from litigating under the same title.

It was strongly argued by Mr Chadha that the appellant was not claiming under his mother since his plaint put his title to the land prior to the Enaboishu case. In his submission, the defendants in that case were parties. He contended, citing a passage from the (15 ed) of **Mulla on the Code of Civil Procedure**, that in order for

the suit to be barred, the appellant would have obtained the land subsequent to the Enaboishu case. Mr Umbulla replied that the appellant was claiming under his mother since he had an interest in the Enaboishu case. He said if his mother were wrongly sued, she could have said so.

The question in the case therefore narrows down to the simple issue whether the appellant is claiming under his mother. Mr Chadha's argument that he is not was based on a passage on page 136 of **Mulla** where it is stated;

> The ground of privity is property and not personal relation. To make a person a privy he must have acquired an interest in the subject matter of the action by inheritance, succession or purchase subsequently to the action or he must hold the property subordinately, e.g. as a sub-lessee.

We do not doubt the correctness of this statement but we say it does not say it all. It excludes the phenomenon of common interest litigation which section 9 is expressed to cover. Explanation VI to the section states thus:

> Where persons litigate *bona fide* in respect of a public right or of a private right claimed in common for themselves and others, all persons interested in such right shall, for the purposes, of this section, be deemed to claim under the persons so litigating.

Mulla observes on page 143 that Explanation VI is not confined to representative suits under Order1, rule 8 and we think that, too, is correct. That means a person does not have to be formally enjoined in a suit, but he will be deemed to claim under the person litigating on the basis of a common interest in the subject matter of the suit. The appellant claims to have owned the suit land since 1952. That land was in the occupation of his mother and his sister, giving all three a common interest therein. In 1986 the two women were sued, adjudged licensees of the second respondent's family, and ordered off the land. The appellant was present. Witnessing what was taking place, but taking no step, like seeking to be substituted or joined as defendant. So much aware of the goings on was he, and so much was

his interest therein, that he was present in the District Court to receive the judgment on appeal. On these facts, we think, he cannot be dissociated from that litigation but must be deemed to claim under his mother for the purposes of section 9. We therefore agree with Mr Umbulla that the suit is barred.

We also wish to observe that the appellant does not appear to be litigating *bona fide*. In Civil Case Number 31 of 1993 before the Court of the Resident Magistrate, he armed himself with a Power of Attorney and sued his sister, Sindani Menyembere, as well as the first and third respondents in this appeal claiming that the suit land was the property of his maternal uncle, one Kimasirwa Sung'are. The suit was struck out for want of leave.

That is when he turned around to institute Civil Case Number 9 of 1995 asserting his own title to the same land. We think that amounts to abuse of the Court process and indulgence in frivolous and vexatious litigation. The Courts have a right and a duty to prevent such abuse and to strike out offending proceedings.

Mr Chadha also suggested, as it were, that the High Court should have remitted the issue of compensation for trial by the Court of the Resident Magistrate. We fail to see how that could have been possible after the Court concurred in the finding that the suit was *res judicata*. In fact compensation was considered in the *Enaboishu case* and the order to build alternative huts for the defendants proceeded from that consideration. That issues, too, was therefore *res judicata*.

In the light of the foregoing, we uphold the decision of the High Court and dismiss the appeal with costs.

RIDAS ELIPHASI v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Makame, Kisanga and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 107 OF 1999

(From the Judgment of the Resident Magistrate's Court of Arusha, Extended Jurisdiction, dated 27 October 1998, in Criminal Appeal No. 26 of 1998)

Criminal Practice and Procedure – Defence – Defence of alibi - Need to give notice of defence of alibi – Section 194 (b) of the Criminal Procedure Act 1985.

At his trial before the District Court at Arusha the appellant who was facing a charge of armed robbery had applied to call one Asinati Metili as his witness. The record showed that at least on one occasion Asinati Metili had attended Court but had not given evidence. Out of frustration he withdrew the request. He was convicted and sentenced to 30 years' imprisonment. His appeal to the High Court was unsucceful and on further appeal to the Court of Appeal he complained that he had sought to call Asinati Metili who would have supported his defence of alibi. The record showed that even before the High Court he had the same complaint. The Republic urged the Court not to accord any weight to the alibi as the appellant had not given prior notice of it.

Held: (i) The intentions of the appellant to call his witness were frustrated by factors other than himself;

(ii) It is not possible to say for certain that the High Court would have necessarily rejected the alibi of the appellant if it had before it the evidence of Asinati Metili or that, had it directed itself along these lines, it would necessarily have upheld the conviction of the appellant.

Appeal allowed

Statutory provisions referred to:

(1) Penal Code section 285 and 286

(2) Criminal Procedure Act section 194(6)

Appellant in person

Mrs Sumari for the Respondent

JUDGMENT

(Dated 14 September 2001)

Kisanga, J.A.: The appellant was convicted by the District Court at Arusha of armed robbery contrary to sections 285 and 286 of the Penal Code and sentenced to 30 years' imprisonment. His appeal to the High Court was unsuccessful, hence this second appeal. He appeared before us and argued the appeal in person while Mrs Sumari, learned Principal State Attorney, appeared for the respondent, Republic.

In his lengthy Memorandum of Appeal the appellant raises mostly points of fact. However, he raises one point of law which we consider to be relevant. In paragraph 11 of his Memorandum he complains that he was denied the right to call his witness at the trial. In his oral submission to us he stated that this witness called Asinati d/o Metili would have supported his defence that at the time of the alleged offence he was not at the scene of crime; he was elsewhere. He had raised this compliant in his first appeal to the High Court as contained in paragraph 6 of his petition of appeal to that Court but in its judgement the High Court made no mention of it at all.

The appellant is supported by the record which shows that he informed the Trial Court of his intention to call one Asinati d/o Metili who on one occasion attended Court but for reasons quite unconnected with the appellant her evidence was not taken. This was then followed by adjourning the case on four occasions because the appellant was not brought from the lock-up. The record is silent on whether his

witness, the said Asinati, was in attendance on those occasions but eventually the appellant, no doubt due to frustration, gave up and is recorded to have withdrawn his intention to call his witness. It is clear that the appellant seriously intended to call his witness but his intentions were frustrated by factors other than himself. The High Court failed to consider whether had the witness been called she would not have supported the appellant's story. For our part we are unable to say for certain that had the Court heard the evidence of that witness it would necessarily have rejected the appellant's story.

Mrs Sumari contended that in terms of section 194(6) of the Criminal Procedure Act the appellant's alibi should not be accorded any weight because he gave no prior notice of it. The point being made, however, is that in deciding whether or not to attach weight on the appellant's alibi the Court failed to consider what the appellant's witness might have said if she were called, and we are saying that we are unable to say for certain that the Court would have necessarily rejected the appellant's alibi if it had before it the evidence of the said witness Asinati d/o Metili. And had the High Court directed itself along these lines we could not say that it would necessarily have upheld the appellant's conviction.

In the light of such doubt we allow the appeal, quash the conviction and set aside the sentence with an order for the appellant's immediate release from prison unless he is otherwise lawfully held there.

WILLIAM LOITIAME *v.* ASHERI NAFTALI

COURT OF APPEAL OF TANZANIA AT ARUSHA

(Makame and Lugakingira, JJ.A.)

CIVIL APPEAL No. 62 OF 1999

(From the Judgment and Decree of the High Court of Tanzania at Arusha, Kapoor, J. dated 7 January 1997, in Civil Appeal No. 21 of 1995)

Appeals – Appeal to the Court of Appeal – Notice of Appeal – Whether Notice of Appeal filed in the sub registry of the Court of Appeal and signed on behalf of Deputy Registrar of the Court of Appeal is valid.

Appeals – Appeals to the Court of Appeal – Notice of Appeal – Filing of the Notice of Appeal – Notice of Appeal to be filed in the High Court – Rule 76(1) of the Court of Appeal Rules 1979.

Court of Appeal – Court of Appeal Rules – Notice of Appeal – Form of the Notice of Appeal – Notice of Appeal to be in Form D in the first Schedule to the Court of Appeal Rules – Rule 76(6) of the Court of Appeal Rules 1979.

The respondent successfully sued the appellant in the Court of the Resident Magistrate to claim clan land. Aggrieved the appellant appealed to the High Court where he again lost. He then appealed to the Court of Appeal. The advocate for the respondent raised a preliminary objection that the Notice of Appeal filed by the appellant was invalid as the Notice was not filed in the High Court as required by rule 76(1) of the Court of Appeal Rules 1979 but in the sub-registry of the Court of Appeal. The Notice of Appeal did not show to whom it was addressed and did not conform with Form D.

Held: (i) The Notice of Appeal was invalid as it was filed in the sub-registry of the Court of Appeal instead of the High Court.

(ii) The Notice of Appeal should have been addressed to the Registrar of the High Court and should have been substantially in Form D in the First Schedule of the Court of Appeal Rules 1979.

Appeal struck out

Case referred to:

(1) *Robert John Mugo v. Adam Mollel* Civil Appeal Number 2 of 1990 (unreported)

Statutory provision referred to:

(1) Court of Appeal Rules 1979, rule 76(1)(6)

Mr Sang'ka, for the Respondent

RULING

(Dated 14 September 2001)

Makame, J.A.: This appeal arises from a land dispute involving the two parties. The present respondent Asher Naftali sued in the Court of the Resident Magistrate Arusha for, among other things, a declaration that he is the rightful owner of the suit land. He succeeded there, as he did also in the High Court where the present appellant went on appeal. The appellant has now come to this Court. He appeared on his own before us while the respondent was advocated for by Mr Sang'ka, learned counsel.

On behalf of his client Mr Sang'ka raised a preliminary objection under rule 100 of the Court of Appeal Rules. He was quite elaborate, for which we are grateful, but basically what he urged was that the appeal should not be heard because the Notice of Appeal filed by Counsel for the appellant offended rule 76(1) of the Rules of this Court, which requires that such a Notice should be lodged with the Registrar of the High Court. Mr Sang'ka argued further that a purported Notice of Appeal which is not lodged with the Registrar of the High Court cannot be a Notice of Appeal for the purposes of rule 89(2), which lists the various documents that must be contained in the Record of Appeal. The inclusion of such an invalid Notice of Appeal would

therefore technically result in there being no appeal. There is also the fact that the Notice was lodged in the wrong registry, the Sub-Registry of the Court of Appeal, instead of that of the High Court.

As we have indicated, the appellant did not have the services of an advocate. He said, merely, he did not understand what was being said and asked this Court to help him.

We are respectfully of the view that Mr Sang'ka is right that the Notice should have been lodged in accordance with rule 76(1). We wish to observe also that in fact this particular Notice, written by an advocate, is not addressed to any one at all. Form D, provided for under rule 76(6), requires that the Notice should be addressed to the Registrar of the High Court and lodged in the High Court. This one was not. That said, however, we must say we gave anxious thought as to what should be done. We wish to observe first that rule 76(6) says that: "A Notice of Appeal shall be substantially in the Form D in the First Schedule to these rules ..." We underline the word "substantially", for emphasis and design. The rule does not call for 100% compliance and it is our view that substantial compliance can be enough. In a slightly different context this Court said something similar in *Robert John Mugo v. Adam Mollel* (1) which Mr Sang'ka cited to us. In an appropriate case, therefore, this Court can forgive a minor slip.

In the instant case, however, a more serious problem has emerged. A look at the original Notice of Appeal revealed that it was received and signed by a person of an undisclosed designation "for Deputy Registrar, Court of Appeal". Form D requires that the Notice should be signed by the Registrar of the High Court, which term includes the District Registrar. But whereas one can arguably assert that, after all, the "District Registrar" of the High Court is one and the same person as the "Deputy Registrar Court of Appeal", and construct an argument from that, there is absolutely no room for delegation. For all we know, the Notice might have been signed by a member of the Clerical Staff, and that would be highly irregular. This practice is

not only grossly improper but also potentially dangerous because it can easily open the flood-gates and be exploited, especially in a situation like this one when one's right can crucially depend on doing certain things within given time-scales.

This Notice of Appeal cannot be saved. We accordingly strike it out, and naturally the appeal also crumbles.

The fact still remains, and is staring at us in the face, that the receipt of the Notice of Appeal by an unauthorized person cannot really be blamed on the would-be-appellant. We also have to take into account this Court's observation in *Mugo* about undetected habitual errors, with regard to the other indicated shortfalls in the present matter. We think it is just, and so order, that, if the would-be-appellant is so minded, he may lodge a proper Notice of Appeal and institute an appeal within thirty days from today. We accordingly extend the time.

We wish to add that because the main purpose of having the rules is to regulate procedure and facilitate the dispensing of justice, there is need to look at the rules critically and constructively from time to time and, if necessary, initiate appropriate changes. The various Forms may also have to be streamlined to the same end.

Mr Sang'ka saw it fit not to ask for costs, and we do not order any.

DIRECTOR OF PUBLIC PROSECUTIONS v. JAMAL WAZIRI

HIGH COURT OF TANZANIA AT MOSHI

(Munuo, J.)

CRIMINAL APPEAL No. 71 OF 2001

(From the District Court of Hai in original Criminal Case No. 4 of 2001)

Criminal law – Rape – Carnal knowledge of a girl aged 15 years – Victim does not report offence because the offender promises to marry her – The offender then breaks the promise – Whether the victim consented to carnal knowledge – Section 130(2)(e) of the Penal Code (as amended by section 5 of the Sexual Offences (Special Provisions) Act 1998).

The respondent, a religious instructor whose pupils included the complainant, was acquitted of rape by the District Court. He had carnal knowledge of the complainant when she was aged 15 years but she kept quiet and did not report the incident because the respondent promised to marry her if she did not report him. She got pregnant from the rape and the respondent did not marry her. The Director of Public Prosecutions appealed against the acquittal.

Held: (i) Under section 130(2)(e) of the Penal Code as amended by section 5 of the Sexual Offences Special Provisions Act 1998, a girl who is below the age of 18 years has no capacity to consent to sexual intercourse save where she is consenting to her spouse and she is not below the age of 15 years;

(ii) As the complainant was aged only 15 years when she was assaulted by her religious instructor and she was not married to him, the complainant lacked capacity to consent to carnal knowledge.

(iii) Respondent convicted of rape and sentenced to 30 years' imprisonment, and ordered to pay TZS. 1 500 000 compensation.

Appeal allowed

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 130 and 131

(2) Sexual Offences Special Provisions Act 1998, Act Number 4 of 1998, sections 5 and 6

Mr *Kakolaki,* for the Appellant

JUDGMENT

(Delivered 21 September 2001)

Munuo, J.: In Hai, District Court Criminal Case Number 4 of 2001 the accused was charged with the offence of rape contrary to section 130(2)(e) and 131(3) of the Penal Code Chapter 16 as amended by sections 5 and 6 of the Sexual Offences Special Provisions Act Number 4 of 1998. It was alleged that on the 27 March 2000 at about 17:00 hours at Lyamungo Village within Hai District in Kilimanjaro Region the accused did unlawfully have carnal knowledge of a girl without her consent. At the trial the girl (PW1), the complainant was 16 years old which means she was allegedly raped at the age of 15 years. The trial magistrate found the accused not guilty of the charged offence thereby acquitting him under section 235 of the Criminal Procedure Act Number 9 of 1985. The Director of Public Prosecutions is challenging the acquittal of the accused. Hence the present appeal.

In her testimony, the 16 year old minor stated that she was called by her Madras teacher, the accused, to his house to clean his house on the afternoon of the 27 March 2000 at about 1700 hours. She proceeded to clean the house during which time the accused took advantage of the opportunity, closed her mouth and raped her warning her not to tell anyone. PW1 and the accused promised to marry so she did not report the matter to her parents or to any authority. She claimed that was the first occasion to have sex and that she got pregnant on that same occasion. A neighbour, PW2 Janet Anate Mafiya saw the accused and the complainant (PW1) entering the house of the

accused on the material afternoon but she did not hear the complainant cry out for help. PW2 is a neighbour of the accused. She decided to let the mother of the complainant know that the complainant had been going to the house of the accused. The complainant was furious at PW2 and she cautioned PW2 to stop interfering in her affairs. Her mother, PW3, Habiba Kadiri, decided to ask her daughter, the complainant about her visits to the house of her teacher, the accused only to discover that the complainant was already pregnant and that the accused had promised to marry her.

It so turned out that the accused married another woman. The complainant then reported the rape to the police. Subsequently the accused was arrested and charged with the offence of rape per the charge sheet.

Defending himself on oath, the accused, DW1 Jamali Waziri, aged 22 years denied the charge. He stated that at the police station the complainant had recorded that he pregnanted her on the 30 May 2000 whereas in her evidence she gave the date as the 27 March 2000 thereby contradicting herself which made her story incredible. He said complainant was aggrieved because he married another girl which is why she implicated him in this rape case. He called two defence witnesses whose evidence is not material because they were informed about the rape when the matter was reported to the police for prosecution.

Mr Kakolaki learned State Attorney filed two grounds of appeal, to wit:

(1) That the trial magistrate erred in law and fact in acquitting the respondent despite the overwhelming evidence adduced by the prosecution side.

(2) That the trial magistrate misdirected himself when he held that the complainant had consented to the sexual intercourse and failed to adhere to the provisions of the law regarding the issue of minors, ie., children below 18 years of age not being capable of giving such consent.

The learned State Attorney maintained that the Trial Court ought to have grounded a conviction on the strong prosecution evidence noting that the clinic card of the complainant fully corroborated her evidence for it shows that the respondent is the father of her child, her delivery date being the 16 December 2000 per the clinic card Exhibit P1. The complainant also tendered the respondent's photograph, Exhibit P2 which the respondent had given to her while promising to marry her and pleading with her not to disclose the affair of sexually assaulting her to anyone. The Republic contended that the evidence of PW2 further corroborated the evidence of the complainant for PW2 saw the accused respondent and the victim enter the accused's house together and that it was PW2 who alerted PW3 Habiba Kadiri, the mother of the victim that there was a relationship between the respondent and the victim.

Mr Kakolaki observed that the trial magistrate erroneously held that the complainant, a minor female aged fifteen at the time of the rape had consented to the sexual intercourse. He pointed out the provisions of section 130(2)(a) of the Penal Code as amended by the Sexual Offences Special Provisions Act Number 4 of 1998 state that minors below the age of 18 years have no Chapter to give consent to sexual acts. In this case, he correctly noted, the complainant minor was incapable of consenting so the accused should have been held strictly liable for the rape because the complainant was not his spouse. He maintained furthermore that the complainant did not complain about the rape because initially the respondent had promised to marry her. She reported the rape to the police when the accused abandoned her after sexually exploiting her and quenching his lust.

The respondent contended that he did not rape the complainant. He claimed that the complainant hates him because he married another woman and because of religious problems the Moslems in his village have. He urged the Court to uphold the acquittal.

That the complainant went to the house of the respondent on the material afternoon was fully corroborated by a neighbour of the parties,

PW2 Janet Mafiya who saw the respondent entering his house with the complainant and also noted there was a relationship when the complainant passed by house going to the accused's house subsequently. Because the complainant was a school-girl and child, PW2 advised herself properly and reported the matter to the mother of the complainant which report annoyed the complainant who thereafter changed the route to the house of her male friend, the respondent, an Islamic teacher at their area. The complainant stated that the accused closed her mouth thereby preventing her from crying out during the rape.

The issue is whether the complainant had Chapter to consent to sexual intercourse with the respondent.

As the appellant, Director of Public Prosecution correctly submitted, a minor, age 15 years at the material time was incapable of consenting to the sexual assault by her Madras teacher, the respondent who was then aged twenty one years old, and adult above the age of majority which is eighteen years.

Being a minor, the complainant, a girl aged 15 years at the time of the rape was protected by 130(1)(e) of the Penal Code as amended by the section 5 of the Sexual Offences Special Provision Act Number 4 of 1998 which provides:

> 5. Section 130 of the Penal Code is hereby repealed and replaced with the following:
>
> Rape. 130(1) It is an offence for a male person to rape a girl or a woman.
>
> (2) A male person commits the offence of rape if he has sexual intercourse with a girl or a woman under circumstances falling under any of the following descriptions:
>
> (a) to (d) inapplicable here.
>
> (e) *with or without her consent* when she is under eighteen years of age, unless the woman is his wife who is fifteen or more years of age and is not separated from the man.
>
> (3) Whoever:

> (a) to (d) inapplicable here
>
> (e) being a religious leader takes advantage of his position and commits rape on a girl or woman.
>
> Is liable to imprisonment for a term prescribed under subsection (1) of section 131.[emphasis supplied]

The term of imprisonment prescribed under subsection (1) of section 131 provides:

> 131(1) Any person who commits rape is, except in the cases provided for in the renumbered subsection (2), *liable to be punished with imprisonment for life,* and in any case for imprisonment of not less than thirty years with corporal punishment, and with a fine, and shall in addition be ordered to pay compensation of an amount determined by the Court, to the person in respect of whom the offence was committed for the injuries caused to such person.
>
> (2) Inapplicable here.
>
> (3) Notwithstanding the preceding provisions of this section whoever commits an offence of rape to a girl under the age of ten years shall on conviction be sentenced to life imprisonment.[emphasis supplied]

In the present case the respondent raped a minor aged 15 years, so he raped a child. The Court notes that the national and international statutory age for children under our Constitution and also under Convention on the Rights of the Child (CRC) 1989 is 18 years. Article 1 of 1989 (CRC) defines a child as meaning:

> "... every human being below the age of eighteen years unless under the law applicable to the child, majority age is attained earlier.

Article 19 of CRC further protects children from:

> ... all forms of physical or mental violence, or abuse, neglect or negligent treatment, maltreatment or exploitation, including sexual abuse, while in the care of parent(s), legal guardian(s) or any other person who has the care of the child.

Article 19(2) of the CRC requires States parties to take:

> 2. Such protective measure ... as appropriate, . as well as other forms of prevention and for identification, reporting, referral, investigation, treatment and follow up of instances of child treatment and described heretofore, as appropriate, for judicial involvement.

Tanzania ratified the CRC on 1 June 1990. In the present case the respondent exploited his special position of being a Madras-Islamic teacher of the complainant, lured her into his residence and raped her promising to marry her only to be abandoned and fail to honour his promise. Not realizing that the respondent was out to sexually exploit her, the complainant minor gave up her educational pursuits as a secondary and Madras pupil and went along with the respondent. Because the latter promised to marry her and upon his request that she does not disclose their love affair to her parents the complainant did not reveal the relationship until a neighbour, PW2 who had suspected the relationship alerted the complainant's mother. By then it was too late in the day for the complainant constructed pregnancy on the first day the respondent raped her.

The complainant a minor was incapable of consenting for she lacked Chapter to consent pursuant to the provisions of section 130(1)(e) of the Sexual Offences Special Provisions Act Number 4 of 1998.

In view of the above the defence of the accused lacked merit. The Trial Court therefore wrongly acquitted the respondent. The appeal has merit for the reasons stated above. Under the circumstances the acquittal by the Trial Court is quashed and set aside. The accused is guilty and convicted of rape as charged. The appeal is accordingly allowed.

LEONARD JONATHAN v. REPUBLIC

HIGH COURT OF TANZANIA
AT MOSHI
(Munuo, J.)

CRIMINAL APPEAL No. 53 OF 2001

(From the District Court of Hai, in Original Criminal Case No. 292 of 2000)

Criminal Law – Rape – Defence to a charge of rape – Appellant claiming to have contracted a Chagga customary law marriage by forcefully grabbing and having carnal knowledge of the "bride" – Whether constituting a defence to a charge of rape.

Family Law – Marriage – Contracting marriage – Appellant forcefully grabbed complainant and took her to his house and had carnal knowledge of her – Whether a customary law marriage was thereby contracted – Sections 2 and 9(1) of the Law of Marriage Act 1971.

Customary Law – Marriage under customary law – Whether a customary law marriage may be contracted without the consent of the bride – Sections 2 and 9(1) of the Law of Marriage Act 1971.

The appellant was, along with 3 other persons, charged with rape. The Trial Court convicted the appellant and acquitted the other three. The facts were that on the material day the complainant was going home from church when she met the appellant with the other accused and they grabbed her and carried her to the appellant's house. Inside the house the appellant assaulted her with assistance from another person who was never arrested and charged. In his defense the appellant claimed that he was in love with the complainant and wanted to marry her but she insisted on a Christian marriage which was too expensive for the appellant to afford. He therefore decided to marry her according to Chagga Customary rites by ambush and capture and carrying her to his house "to consummate" the marriage.

Held: (i) There is no doubt that the complainant was forcefully captured and carried to the house of the appellant who then had carnal knowledge of her without her consent; the ingredients of the offence of rape were constituted;

(ii) According to section 9(1) of the Law of Marriage Act 1971 a marriage, including a customary law marriage, means a voluntary union of a man and a woman intended to last for their joint lives;

(iii) The complainant was captured and carried away and then carnally known in a violent transaction beastly executed against her volition; this negated anything called marriage under Chagga or any other customary norms;

(iv) The right of the complainant to enter into a marital union only with her consent is protected by both the domestic law of marriage as well as international instruments to which Tanzania is a party.

Appeal dismissed

Statutory provisions referred to:

(1) Penal Code Chapter 16, sections 130(2) and 131(3)

(2) Law of Marriage Act 1971, Number 5 of 1971, sections 2 and 9(1)

Mr Kakolaki for the Respondent

JUDGMENT

(Delivered 21 September 2001)

Munuo, J.: In Hai District Court Criminal Case Number 292/2000 four accused persons namely:

Accused number 1 Leonard Jonathan;

Accused number 2 Stephano Jonathan;

Accused number 3 Anaufoo Justine; and

Accused number 4 Jackson Elinewinga;

Were jointly charged with rape contrary to sections 130(2) and 131(3) of the Penal Code Chapter 16 Volume 1 of the Revised Laws as

amended by the Sexual Offences Special Provisions Act Number 4 of 1998. It was alleged that on the 16 December 1999 at about 1800 hours at Masama Mula Village in Hai District within Kilimanjaro Region the accused had carnal knowledge of a girl aged 23 years, without her consent. The accused persons denied the charge. The Trial Court acquitted accused number 2 to 4 accused number 1 Leonard Jonathan, the appellant was convicted of the offence charged. He was sentenced to a term of 30 years imprisonment plus ten strokes of the cane. Aggrieved the accused lodged the present appeal to challenge the conviction and sentence.

The complainant, PW1, the daughter of PW3 Elinkira Samanga testified that on the 16 December 1999 she was going home from church in the company of PW2 Neema Mengishu. They found the appellant Leonard Jonathan and his co-accused on the way. The accused persons, who were known to them, caught the complainant and carried her to the house of the appellant Leonard Jonathan. In that capture the accused persons were armed with a matchet and sticks with which they threatened rescuers who responded to the victim's alarm. PW3 Elinkira Samanga, the father of the complainant got word of the captivity of his daughter.

He swiftly gathered force and was accompanied by PW4 Joram Mwasha, PW5 Goodluck Amani and PW6 Wilson Nsaro. The father's contingent broke the door of the appellant's house and released the victim who had unfortunately already been sexually assaulted by the appellant.

The complainant stated that when the co-accused carried her to the house of the appellant, the latter locked the door. In that room one Eshiwakwe Justine who is at large helped the accused by holding apart the legs of the victim while the appellant sexually assaulted her. When appellant had satisfied his lust, Eshiwakwe was ready for his turn but fortunately the victim's father broke the door open thereby interrupting the sexual assault by Eshiwakwe Justine who is at large. Dissatisfied with PW3's act of breaking the door and setting free his daughter who then ran home, the appellant struck PW3 with a

stick on the back of his head causing him to fall down. His colleagues rushed PW3 to the hospital. Subsequently the accused persons were arrested and jointly charged with rape.

The complainant reported the matter to the police. She got a PF3 form for treatment. Per her PF3 form, PW1 suffered strangulation to her neck, bruises in her vagina which was smeared with spermatozoa, bruises and haemotoma on the knee joints and chest, dangerous harm inflicted by rape and the hands (blunt object). She tendered her PF 3 form as (Exhibit P1).

In his defence on oath, the appellant admitted that he had carnal knowledge of the complainant. He claimed that he was in love with her and that had wanted to marry her but that she insisted on a Christian marriage which he could not afford. He then decided to ambush, catch and marry her under Chagga customary marriage norms, he stated. He said people pressed the complainant to go to the hospital and take action against him. The appellant took responsibility for the rape denying that his co-accused were involved in the matter.

In his twelve grounds of appeal the appellant denied the offence contending that his guilt was not proved beyond all reasonable doubt. He further contended that the ingredients of the offence were not established by the prosecution. He faulted the credibility of the prosecution witnesses and observed that no torn clothing was tendered to establish rape he insisted that he, on the material day, married the complainant under customary norms so he committed no offence. He rejected that PF3 form (Exhibit P1) as being of no weight.

The appellant faulted the trial magistrate for not finding the defence of contracting a Chagga customary marriage with the complainant on the fateful 16 December 1999 probable.

Ms *Makala* learned State Attorney supported the conviction and sentence on the straight forward and strong evidence adduced by the complainant which evidence was fully corroborated by PW2, PW3, PW4, PW6 and also by the PF3 form Exhibit P1.

The issue is whether the accused raped the victim or married her under Chagga customary law as he maintained in his defence and in ground seven of the appeal.

There is no speck of doubt that on the evidence on record and in law the prosecution established the guilt of the appellant beyond all reasonable doubt. The evidence of the complainant was fully corroborated by her PF3 form Exhibit P1 which shows that she suffered bruises in her vagina which was smeared with spermatozoa; she suffered a bruised left knee and chest and a strangled neck; all injuries caused by the violence the appellant deployed on the victim. The appellant sexually assaulted the victim with the assistance of a co-suspect, one Eshiwakwe Justine who is at large. The latter held the victim's legs apart thereby giving the appellant access to her vagina. The appellant muzzled the victim to prevent her from crying out but she did cry out all the same for PW3, PW4, PW5 and PW6 did hear her cry in the locked room which PW3 broke thereby releasing her.

The complainant was forcibly caught, carried to the appellant's house by a gang of five men including the appellant. The co-accused were armed with a matchet and sticks to keep off people who wanted to intervene. It was the victim's brave father who broke open the door of the assailant setting the complainant at liberty. She quickly dressed and ran home. The complainant was captured and carried to the house of the appellant with the assistance of his four co-suspects. He then locked the room and with the help of his colleague Eshiwakwe Justine who has since remained at large, the appellant sexually assaulted the victim. The complainant did not consent to the carnal knowledge. Under those circumstances the ingredients of the offence of rape were constituted thereby rendering the appellant liable of raping the complainant as charged.

The defence of contracting a Chagga customary marriage through the rape is improbable and fallacious in fact and law.

The Law of Marriage Act Number 5 of 1971 governs all legally recognized marriages including customary law marriages. Section 2 of the said Act defines marriage as follows:

> Section 2 "marriage" has the meaning attributed to it in section 9, and any reference to a marriage means a marriage whether contracted before or after the commencement of this Act and whether contracted in Tanganyika or elsewhere.

Section 9 of the Law of Marriage Act Number 5 of 1971 defines marriage:

> 9(1) Marriage means the *voluntary union* of a man and a woman, intended to last for their joint lives.[emphasis supplied]

The appellant admitted in his sworn defence that he captured and carried away the victim whereafter he had carnal knowledge of her without her consent apparently because be could not afford a Christian marriage. As I stated earlier the victim did not consent to the rape, she was bruised and humiliated by the entire violent transaction which was beastly executed against her volition which completely negated anything called marriage under Chagga or other customary norms.

The complainant is protected by the domestic Law of Marriage Act Number 5 of 1971 for without volition there can be no marriage between parties intending or contracting a marriage. She is further protected by International norms notably under the provisions of Article 4 of the 1993 United Nations Declaration on Elimination of Violence Against Woman (DEVAW) which calls on states to protect and offer adequate relief to women victims of violence and calls on States to condemn violence against women and not invoke custom, tradition or religion to avoid their obligations.

The complainant is also protected by Article 14 of the 1948 Universal Declaration of Human Rights which gives adults the right to choose ones spouse and the right to voluntarily marry the particular spouse by stating:

> (1) Article 14(1) Men and woman of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal right as to marriage, during marriage and at its dissolution.
>
> (2) Marriage *shall be entered into only with the free and full consent of the intending spouse.*[emphasis supplied]

Article 14(2) of the Universal Declaration of Human Rights is akin to the provisions of section 9(1) of the Law of Marriage Act Number 5 of 1981 which have conditions of volition and the consent of the intending spouses for a valid marriage.

Finally there are the provisions of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), 1981 Article 2 of CEDAW calls on states to modify or abolish discriminatory laws, regulations customs and practices. See: *Towards a Jurisprudence of Equality – Training Manual* by Justice Natalia Kimaro and Pellagia Khaday, Dar es Salaam 2001 Tanzania ratified CEDAW on 17 July 1980.

Article 16(b) of CEDAW guarantees the right to freely choose ones spouse and marry on ones volition by stating:

> Article 16. States Parties shall take all appropriate measures to eliminate discrimination against women in all matters relating to marriage and family relations and in particular shall ensure on a basis of equality of men and women:
>
> (a) The same right to enter into marriage;
>
> (b) The same right freely to choose a spouse and to enter into a marriage only within their free and full consent.
>
> (c) to (h) ...

The complaint's fundamental human right of marrying voluntarily is also protected under Article 23 of the Convention on Civil and Political Rights, 1966 which became effective in March 1976 and which was ratified by Tanzania on 11 June 1976. Article 23 of CCPR states:

Article 23.

1. The family is the natural and fundamental group unit of society and is entitled to protection by society and state.

2. The right of men and women of manageable age to marry and to found a family shall be recognized.

3. No marriage shall be entered into without the free and full consent of the intending spouses.

4 ...

In view of the above provisions of domestic and international law, the appellant seriously offended the complainant's fundamental right to choose her spouse and marry on her own volition. Those circumstances reinforce her complaint of rape which I have already observed, was proved beyond all reasonable doubt for she never consented to the appellant carnally knowing her nor marrying her under the obnoxious customary practice of grabbing women, locking them up and sexually assaulting them in the name of Chagga customary marriage.

All in all the appeal is devoid of merit. The sentence is statutory under the Sexual Offences Special Provisions Act Number 4 of 1998. For those reasons the appeal is dismissed in its entirety. It is so ordered.

UMOJA GARAGE *v.* NBC HOLDING CORPORATION

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Makame, Kisanga and Lubuva, JJ.A.)

CIVIL APPEAL No. 3 OF 2001

(Appeal from the Ruling of the High Court of Tanzania at Dar es Salaam, Mackanja, J. dated 12 November 1999, in Civil Case No. 63 of 1999)

Civil Practice and Procedure – Res judicata – In the previous case the plaintiff sued the defendant for a declaration that he (the plaintiff) was not in breach of agreement with the defendant and for an order determining the agreement – In the subsequent suit the same plaintiff sues the same defendant for a declaration that it was the defendant who was in breach of the agreement – Whether the doctrine of res judicata applies – Section 9 of the Civil Procedure Code 1966.

Under an agreement between the parties the appellant obtained a certain amount of money from the respondent as a loan, the appellant mortgaging his property as security for the repayment of the debt. The respondent also undertook, to supply machinery equipment to the appellant. There was a long delay in the supply of the machinery, and when it was supplied it was partly deficient and partly second-hand. Next, the respondent demanded the repayment of the loan, threatening to sell the property mortgaged if the appellant failed to do so. The appellant then sued the respondent in the High Court successfully for a declaration that he (appellant) was not in breach of the agreement to warrant the sale of his property, and an order determining the agreement. Thereafter the appellant instituted another suit against the respondent in the same Court seeking a declaration that it was the respondent who had breached the contract. The suit was dismissed on the ground that it was barred by the principle of *res judicata.* On appeal to the Court of Appeal, it was considered whether the principle of *res judicata* was applicable.

Held: (i) Like the previous case, the subsequent case was based on alleged breaches of the agreement by the respondent.

(ii) Since by the time the previous suit was filed the facts giving rise to the cause of action in the subsequent suit were known to the appellant, the matter raised in the subsequent case are deemed to have been a matter, directly and substantially, in issue in the previous case and the principle of *res judicata* applies.

Appealed dismissed

Cases referred to:

(1) *Stephen Masatu Wasira v. Joseph Sinde Warioba* [1999] T.L.R. 334

(2) *Hezekiel Bakari Sanga v. Tanzania Zambia Railway Authority*, CAT, Civil Appeal Number 79 of 1998 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Code 1966, section 9

Mr Luanda, for respondent

JUDGMENT

(Dated 30 September 2001)

Lubuva, J.A.: The appeal arises from the decision of the High Court (Mackanja, J.) of 12 November 1999 in Civil Case Number 63 of 1999. The history of the matter is that on November 1984, the appellant and the respondent signed a loan agreement in order to enable the appellant to cover part of the construction costs for his factory building. According to the agreement, the appellant was to obtain a term loan of an aggregate amount of TZS. 1 900 000 payable in 20 installments. The first installment was due fifteen months after the signing of the agreement. For the loan, the appellant mortgaged the property comprised under CT Number 28907 Plot Number 24 Block "JJ" within Lindi Township. Apart from availing the funds, it is apparent that the respondent also undertook to purchase the machinery equipment for the appellant. As a result, the appellant received the machinery equipment from

Kilimanjaro Machinery Tools Limited. on 26 June 1986, and the other machinery equipment from Sweden on 3 March 1987. The appellant was also granted additional term loan money which added up to a total of TZS. 6 795 000 loan amount outstanding. On 19 August 1989, the machinery in the appellant's Umoja Garage in Lindi underwent an inspection and trial run exercise by two experts from the Small Scale Industries Organization (SIDO). On 19 August 1989 the experts, A Lindstrom and L Magai inspected and up started the machinery in the appellant's Umoja Garage. In their commissioning report (Exhibit "A") of 19 August 1989, some inadequacies in the machinery, including the fact that the machinery from Sweden was second hand, were revealed. The appellant wrote several letters of complaint to the respondent regarding these inadequacies.

The respondent wrote to the appellant a letter demanding under the loan agreement. In the letter the respondent threatened to sell the appellant's property which was mortgaged as security for the loan. This prompted the appellant in filing Civil Case Number 83 of 1993 against the respondent. Among the reliefs sought was a declaration that the appellant was not in breach of the loan agreement to warrant the sale of the appellant is mortgaged property under the agreement. It was awarded this relief. In addition, it was also ordered that the loan agreement be determined. Apparently, the appellant again instituted Civil Case Number 55 of 1998, against the respondent which was dismissed on the ground that it had been instituted against a non-existent legal entity. Then, he instituted Civil Case Number 63 of 1999 from which this appeal arises.

In this case, the appellant sought several reliefs one of which was a declaration that by supplying incomplete and non-performing second hand machinery, the respondent contravened the principal terms of the agreement such that the respondent could not either determine the agreement or take any action adverse to the appellant. At the commencement of the trial, the respondent raised a preliminary objection that the matter was *res judicata* because in Civil Case Number 83 of 1993, the matter based on the same cause of action

involving the same parties had been finally determined. The learned trial judge sustained the preliminary objection. He held that as the matter in issue in Civil Case Number 83 of 1993 was also directly and substantially in issue in Civil Case Number 63 of 1999, the doctrine of *res judicata* applied. The suit was dismissed. The appellant has preferred this appeal against the decision.

The appellant is unrepresented. He has filed a detailed, narrative six-point Memorandum of Appeal which, in essence, raises one point of complaint. That is, that the learned trial judge erred in holding hat the principle of *res-judicata* applied to this case. Elaborating he contended that *res-judicata* does not apply to the instant case because the matter in issue in Civil Case Number 83 of 1993 is not directly and substantially in issue in this case – ie Civil Case Number 63 of 1999. He further said in the former case, Civil Case Number 83 of 1993, he had instituted the suit in order to restrain the respondent from the suit in order to restrain the respondent from auctioning the appellant's mortgaged property before the repayment of the loan was re-scheduled. The reason, he maintained, was that there was an inordinate delay of about 2½ years before the machinery was delivered after signing of the agreement. For this reason, and as observed earlier, the appellant filed Civil Case Number 83 of 1993, seeking among others, a declaration that he (appellant) had not breached the agreement and that the loan agreement be determined. As regards the instant case Civil Case Number 63 of 1999, the appellant strongly urged the Court to hold that the situation is different.

In this case, it was the appellant's contention that he instituted the suit on the ground that he should not be held liable for paying the loan or any other claim based on the loan agreement because it was the respondent who breached the terms of the agreement. He vigorously urged that apart from the fact that there was a delay in the delivery of the machinery, the machinery delivered was incomplete, non-performing and second-hand. In that situation, the appellant insisted, the cause of action in this case is different from that in Civil Case

Number 83 of 1993. For instance, the appellant argued, in the previous suit he could not raise the issue pertaining to the machinery being second hand and non-performing because his aspect had not been brought to light at that time. In support of his submission, among other authorities, the Court was referred to its decision in the cases of *Stephen Masatu Wasira v. Joseph Sinde Warioba* (1) and *Hezekiel Bakari Sanga v. Tanzania Zambia Railway Authority* (2).

Mr Luanda, learned counsel for the respondent vehemently countered these submissions. He submitted that the principle of *res judicata* properly applied in this case because the matter in issue in this case, the subject matter of this appeal, was also directly and substantially in issue in the previous suit in Civil Case Number 83 of 1993. In both cases, Mr Luanda claimed, the appellant is alleging breach of the loan agreement on the basis of which the various reliefs are sought. In that case, he argued, it was open for the appellant to raise all the various reliefs in the previous suit and not to come to the Court instituting one suit after the other based on the same cause of action indefinitely.

We have closely considered these submissions. It is common knowledge that the objective behind the doctrine of *res judicata* is to ensure finality in litigation. In the case of *Stephen Wasira* (1) cited to us by the appellant, the Court underscored the application of this principle in Tanzania. Like the position obtaining in other jurisdictions with a similar legal system, this cardinal principle of justice is well entrenched in the laws of this country. Section 9 of the Civil Procedure Code 1966, provides as follows:

> No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties or between parties under whom they or any of them claim litigating under the same title in a Court competent to try such subsequent or the suit in which such issue has been subsequently raised and has been heard and finally decided by such Court.

And Explanation IV to section 9 provides that:

> Any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.

From these provisions of the law the question falling for consideration is whether *res judicata* applied in this case. As already indicated, in both Civil Case Number 83 of 1993 and Number 63 of 1998, the same loan agreement of 6 November 1984 is central to the issues involved. Among the reliefs sought is Civil Case Number 83 of 1993 was a declaration that the plaintiff is not in breach of the loan agreement. The appellant also sought a declaration that the loan agreement was legally determined. In Civil Case Number 63 of 1999, the subject of this appeal among other reliefs sought was a declaration that by supplying incomplete and unproductive second hand machines, the respondent (original defendant) contravened the terms of the agreement. Holding that the matters directly and substantially in issue in the instant case the subject of this appeal were also directly and substantially in issue in the previous case, Civil Case Number 83 of 1993, the learned trial judge *inter alia*, observed:

> Indeed, the cause of action which constitutes the matters which are directly and substantially in issue in the former suit are the same in the instant suit, namely the breach of the loan agreement by defendant.

On the basis of the reliefs sought as indicated above, we are respectfully in agreement with the learned trial judge that the matters which had been directly and substantially in issue in Civil Case Number 83 of 1993, between the same parties in the High Court were also directly and substantially in issue in the subsequent Civil Case Number 63 of 1999. In both cases, the claims are based on alleged breaches of the agreement by the respondent. We cannot accept the appellant's claim that the matters which were substantially and directly in issue in both cases were different. In his attempt to explain the distinction between the two suits, the appellant charged that in the former suit, Civil Case Number 83 of 1993, he could not make it as a ground of defence or attack that the respondent was in breach of agreement by supplying incomplete, unproductive and second hand machinery.

The reason, he maintains, was that at that time the element of the deficiency of the machinery had not been brought to light. In this light, it was the appellant's submission that *res judicata* does not fall within the ambit of Explanation IV to section 9 of the Civil Procedure Code.

We do not think that the appellant is correct in this submission. From the record, it is clear that the expert's commissioning report Exhibit "A" was furnished on 19 August 1989. It is from this report that the appellant became aware of the fact that some of the machinery imported from Sweden was second hand. In the circumstance, it is our view that by the time the suit in Civil Case Number 83 of 1993 was filled on 11 June 1993, it was within the knowledge of the appellant that the machinery was incomplete and second hand. In that situation, we are of the view that the matter falls within the ambit of Explanation IV to section 9 of the Civil Procedure Code. That is, in instituting Civil Case Number 83 of 1993, the claim based on alleged breach of the agreement on account of the machinery supplied being second hand ought to have been made ground of defence or attack. Admittedly, the situation would be different if the defects in the machinery were discovered and brought to the knowledge of the appellant after the filing and determination of the previous Civil Case Number 83 of 1993.

This was not the case and so, the matters which were directly and substantially in issue in the subsequent Civil Case Number 63 of 1999 would properly be deemed to have been matters directly and substantially in issue in Civil Case Number 83 of 1993. This, we think, is in accord with the views expressed by the learned author Mulla in his commentary on Explanation IV of the Indian Code of Civil Procedure which is in *pari materia* with the Explanation of section 9 of our Civil Procedure Code. In **Mulla, Code of Civil Procedure**, Volume I, (15 ed) at page 114, the learned author state:

> The principle underlying Explanation IV that *res judicata* is not confined to issues which the Court is actually asked to decide but covers issues or facts which are so clearly part of the subject matter of litigation and so,

clearly could have been raised that it would be an abuse of the process of the Court to allow a new proceeding be started in respect of them.

These views by the learned author we think also aptly apply to the instant case. The appellant is raising claims based on alleged breach of the agreement which are so closely part of the subject matter of litigation in the previous suit in Civil Case Number 83 of 1993. Consequently, when the appellant instituted Civil Case Number 83 of 1993, the breach of the agreement was a matter which might and ought to have been made a ground of defence. The appellant having failed to raise the matter in the previous suit, it would be an abuse of Court process to allow the same matter to be litigated again in the subsequent Civil Case Number 63 of 1999. Not only would it be an abuse of Court process to allow such matter to be subject of litigation in the subsequent case, the matter would, we think, under the provisions of Explanation IV to section 9 of the Civil Procedure Code be deemed to have been a matter directly and substantially in issue in the case – Civil Case Number 63 of 1999. In the event, we are satisfied that the learned trial judge properly invoked the doctrine of *res judicata.* We think this ground based on *res judicata* is sufficient to dispose of this appeal.

However, before concluding this matter we wish to go a bit further by briefly addressing on another aspect. As indicated earlier, among other relief sought and awarded to the appellant in Civil Case Number 83 of 1993, was a declaration that the loan agreement was legally determined. Consequently, with the determination of the agreement on 24 October 1994 when the judgment was delivered, the position of the matter was that the loan agreement was no longer enforceable in law. That is, in practical terms, as a result of the Court decision, the agreement was, as it were, brought to an end, it was no longer binding upon the parties. Since this decision of the High Court was not reversed on appeal, it is still valid. It follows therefore that as the appellant's claim against the respondent in Civil Case Number 63 of 1999 was based upon alleged breach of the loan agreement which, as just indicated, was determined by the High Court in Civil

Case Number 83 of 1993, it had no leg to stand on. In other words, there was no legal foundation upon which to base the claim.

The suit being based on an unenforceable agreement, could hardly be sustained on this ground as well. For the reasons we have endeavoured to explain, we are settled in our minds that this appeal has no merit, it is dismissed with costs.

ROSELEEN KOMBE AS THE ADMINSTRATIX OF THE ESTATE OF THE LATE LIEUTENANT GENERAL IMRAN HUSSEIN KOMBE *v.* ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT MOSHI
(Mchome, J.)

CIVIL CASE No. 8 OF 1999

Tort – Vicarious liability – Whether master alone can be sued without joining the Tort-feasor.

Tort – Vicarious liability – Vicarious liability for murder – Unauthorised wrongful killing of the deceased by police officers – Whether criminal liability may be attributed to the master.

Government Liability – Vicarious liability of the Government – Unauthorised wrongful killing of the deceased by police officers – Whether the Government is vicariously liable – Section 3(4) of the Government Proceedings Act 1967.

Tort – Relief – Grant of relief sought – Written Statement of Defence is only evasive with general denials – Whether Court should grant the relief sought without further proof by the plaintiff.

Tort – Damages – Assessment of damages – Assessment of damages awardable to dependants – Working life of the deceased husband and widow's chances of remarriage as factors in assessing damages.

Human Rights – Abuse of human rights by Government organs – Right to adequate compensation – Whether holding the Government vicariously liable for acts of its servants will open flood gates of litigation.

On 30 June 1996, the former Director of Intelligence was murdered by two police officers. The two officers, along with three others, were charged with murder and the two were found guilty as charged and sentenced to death by this Court. The two police officers killed the deceased while searching for a stolen car and its thief, and they mistook the vehicle the deceased was driving for the stolen car, and the deceased for the thief. The plaintiff on behalf of herself and eight dependants sued the Government for damages for the death of her husband, caused by the two police officers while on duty. The defendant denied that the said officers were acting in the course and scope of their employment. The defendant also denied any vicarious liability for the tortious acts of the police officers.

Held: (i) The tort-feasor is always liable but the law says the master is also vicariously liable; nowhere does the law state that the master cannot be sued alone;

(ii) If assault is a tort it is absurd to argue that the worst result of an assault, ie causing death with or without malice aforethought is not a tort and not actionable;

(iii) When they took the body to the police station and claimed to have killed the thief, surely they were in the scope of their employment but their mode of doing the authorized thing was unauthorized; section 3(4) of the Government Proceedings Act 1967 even simplifies matters for the plaintiff by making the Government statutorily liable for the tortious acts and omissions of its servants in a case like this one;

(iv) Even where the defendant files no Written Statement of Defence at all or does not appear, let alone where he files "an evasive or general denial", the plaintiff still has to prove his case for the relief sought, even if *ex-parte;*

(v) It is improper so submit that the deceased was not expected to live a long working life because "working life" does not necessarily mean working in the government, or the public or private sector or otherwise as a salaried person; one can be self-employed and continue working for the rest of one's life;

(vi) Marriage is too personal a matter these days and weighing the widow's chances of remarrying in assessing the right damages to award her is no longer good law.

(vii) Since it believes in good governance, transparency and high respect for the human rights of its citizen, instead of fearing the floodgates of civil suits, the Government should teach its organs, particularly those trusted to hold fire-arms, to respect the rights of its citizens, especially the right to life; and when any member of those organs abuses that trust and violates the rights of the citizens or otherwise commits any civil wrong, the government should be ready and willing to adequately and promptly compensate the victims of that violation.

Judgment for the plaintiff

Cases referred to:

(1) *Moris A Sasawata Matias Malieko* [1980] T.L.R. 158

(2) *Ismail G Lazaro v. Josephine Ngomera* Civil Appeal Number 2 of 1986, Mbeya Registry (unreported)

(3) *Mtikila v. Editor, Business Times and another* [1993] T.L.R. 60

(4) *Warren v. Henlys Limited* [1943] 2 All ER 935

(5) *Chunibhai Patel and Another v. PF Hayes and others* [1957] EA 748

(6) *Bradburn v. Great Western Railways* [1874] LR 10 Ex 1

(7) *Madeleine Delorie and others v. Claude Joseph Pool* Civil Case Number 20 of 1994, Supreme Court of Seychelles (unreported)

(8) *Buckley v. John Allen and Ford (Oxford) Limited* [1967] 2 WLR

(9) *Mohmet v. Perry and another* [1972] 2 All ER 529

(10) *Burns v. Edman* [1970] 2 WLR (QB D) 1005

(11) *Hay and another v. Hughes* [1975] WLR 34

Statutory provisions referred to Referred

(1) Government Proceedings Act 1967, section 3(4)

(2) Penal Code section 196

(3) Law Reform Ordinance Chapter 360, section 4(2)

(4) Evidence Act Number 12 of 1967, section 7

Mr Ng'maryo, for the Plaintiff

Mr Mwidunda, for the Defendant

JUDGMENT

(Delivered 4 October 2001)

Mchome, J.: On the 30 June 1996, the former Director of Intelligence, Lieutenant General Imran Hussein Kombe, was murdered by two officers of the Tanzania Police Force, namely, number C7874 Detective Corporal Juma Muswa and number E 3479 Detective Constable Mataba Matiku. The two policemen, with three others, were jointly charged with murder contrary to section 196 of the Penal Code. These two were found guilty as charged and sentenced to death by this Court (BD Chipeta, J.). Their appeal to the Court of Appeal of Tanzania against both conviction and sentence was dismissed.

The plaintiff in this suit, Roseleen Kombe is the widow and administratrix of the estate of the late Lieutenant General Kombe. She has filed this suit against The Attorney General of the United Republic of Tanzania under The Government Proceedings Act 1967 (as amended by Act Number 30 of 1994); and the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Chapter 360 of the Laws (as amended by Act number 55 of 1968 and Act Number 5 of 1971).

The plaintiff is suing the Attorney General, for the Tanzania Government, for damages for the death of her husband which was caused by the two police officers while on duty. She is suing on behalf of herself and eight other dependants of the deceased. She is claiming general damages to the tune of around TZS. 690 000 000 (six hundred and ninety million TZS.); interest at Court rate, costs of this suit and any other and further relief which this Court shall deem fit to grant.

In defence, the Attorney General is not disputing that the deceased, General Kombe, was murdered by the said two police officers. He denies that the said officers were acting in the course and scope of their employment. The defendant denies any vicarious liability for the tortious acts of the police officers. He prays that the plaint be dismissed with costs.

This case has only two issues framed at the beginning of the hearing:

ie (1) Whether the defendant is vicariously liable for the tortious acts of number C7874 D/Cpl. Juma Muswa and number E3479 Detective Constable Mataba Matiku.

(2) What reliefs are the parties entitled to.

It is not disputed that the two police officers killed the deceased while searching for a stolen car and its thief. The car was stolen in Dar es Salaam. Its registration Number is TZG 50, make Nissan Patrol, the property of one DW Ladwa. The two police officers mistook the vehicle the deceased was driving for the stolen car and the deceased for the thief, and shot the deceased to death.

In his long submission that the Government is not vicariously liable the learned Senior State Attorney, Mr Mwidunda, argues that as the two ex-police officers were not joined as co-defendants the employer can not be held liable alone. Order I, rule 9 of the Civil Procedure Code 1966 clearly states that a suit can not be defeated merely by the non-joinder or misjoinder of parties.

Mr Mwindunda argues that the employer is not liable in place of the employees but the employer is liable along with his employee. First it must be proved that the employees committed the tort, and then whether the employer is liable. The learned Senior State Attorney then defeats his own argument when he submits:

> They are joint tort-feasors and their liability is joint and several though in some cases the practice has been to sue the master because of his better position to pay damages.

The learned Senior State Attorney then did further damage to his own case by citing the case of *Moris A Sasawata v. Matiko Malieko* (1) and quoted Samatta, J. (as he then was) that:

> By vicarious liability the master is liable for tortious acts or omissions of the servant and the two joint tort-feasors either or both of them can be sued.

He even goes on to quote Mustafa J.A. in the case of *Ismail G Lazaro v. Josephine Ngomera* (2);

> ... section 3(4) of Act Number 16 of 1967 merely, renders the government civil liable vicariously for acts done by its servants in the course of their official duties. In matters of tort, a tort-feasor, the person who commits a tort, is always primarily liable. An employer is vicariously liable if his servant commits a tort in the course and within the scope of his employment. That does not absolve the liability of the servant for the tort committed.

Of course the tort-feasor is always liable but the law says the master is also vicariously liable. Nowhere does the law state that the master can not be sued alone. Even the learned State Attorney's submission states that "either or both can be sued". The position of the law is what was stated by Samatta JK (as he then was) and cited by the learned counsel for the plaintiff, Mr Ng'maryo, in the case of *Mtikila v. Editor, Business Times and another* (3).

> So vicarious liability means that one person takes the place of another so far as liability is concerned. Familiar instances are where the master shoulders the liability of his servant; or the principal shoulders the liability of his agent and so forth. Whenever the law imposes vicarious liability, it does so for reasons of social policy – reasons which commend themselves to the people at large. If a servant injures another by his negligence, his master should make good the loss.
>
> It does not matter whether the servant or agent is acting for the benefit of his master or principal or not. Suffice it that the master or principal has put him in a position where he may do injury to another; and should be liable for the way in which he conducts himself therein. It is true that the master or principal is not personally at fault. But it is only that he should be made vicariously liable. Otherwise it would mean that the injured person would get no redress; for, more often than not, the servant or agent has not the means; or, at any rate, ought to insure against the liability so as to get the means to pay. In this way the innocent victim is not left to bear the whole loss himself. It is distributed among the community in a way that is fair to all.

The learned Senior State Attorney continues to submit that criminal liability is not vicarious liability. But he continues submitting that the same act or omission can be both a crime and a tort. He cited such crime as theft that it can be both. But he argues that murder is not a tort but only a crime because it involves malice aforethought. Manslaughter can be tortious but not murder, argues the learned Senior State Attorney.

With all due respect, the learned Senior State Attorney is wrong. As submitted by the learned counsel for the plaintiff murder is a tort. If assault is a tort it is absurd to argue that the worst result of an assault, i.e. causing death with or without malice afore-thought is not a tort and therefore not actionable.

Section 3 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Act Chapter 360 of the Laws states:

> If the death of any person is caused by the wrongful act of any person and the wrongful act is such as would, if death had not ensued, have entitled the person injured thereby to maintain an action and recover damages in respect thereof the person who would have been liable if death had not ensued shall be liable to an action for damages, notwithstanding the death of the person injured, and although the death was caused under such circumstances as would amount in law to a felony.

Another argument for the defendant not being vicariously liable is stated by the learned Senior State Attorney that the tort must be committed in the course of the servant's employment for the master to be liable. He then cited several cases (for which I am grateful) but the most appropriate one is that of *Warren v. Henlys Limited* (4).

> ... A master is not responsible for wrongful act done by his servant unless it is done in the cause of his employment. It is deemed to be so done if it is either (a) a wrongful act authorized by the master or (b) a wrongful and unauthorized mode of doing some act authorized by the master.

He goes on submitting that at the time of killing the deceased the two police officers were clearly not in the course of and within the scope of their employment.

He argues further that the Government did not authorize the killing. Police orders too do not authorize killing. Police officers are not employed to kill and what the two police officers did can never be taken to be part of their employment of arresting, but an act completely outside their employment, making this case not to qualify to make the master liable. It is submitted that the unauthorized and wrongful killing by the police officers is not connected with the authorized acts of police of arresting as to be a mode of doing it, but the intentional killing is an independent act hence making the government not responsible. For the police officers were not acting in the course of their employment but went outside it, concluded the learned Senior State Attorney.

In reply the learned counsel for the plaintiff, *Eric S Ng'maryo,* submits that the two police officers, in wounding and killing the deceased, had a wrongful, improper and unauthorized mode of doing an act which they were authorized, to wit, to arrest a notorious car thief. He cited **Salmond and Heuston on the Laws of Torts,** by RFV Heuston and RA Buckley (21 ed) 1996 at page448:

> The mere fact that a servant has acted out of personal vengeance or malice or resentment or by way of a practical joke will not necessarily exonerate the master provided the act was within the scope of his employment.

The learned counsel further cited The Government Proceedings Act Number 16 of 1967 at section 3(4):

> Where any functions are conferred or imposed upon an officer of the Government as such either by any rule of the common law or by any written law, and that officer commits a tort while performing or purporting to perform those functions, the liabilities of Government in respect of the tort shall be such as they would have been if those functions had been conferred or imposed solely by virtue of instructions lawfully given by the Government.

What the learned Senior State Attorney submits is not unlike the case of a bus owner whose driver drives recklessly and causes the death of a pedestrian, let us say off the road. The bus owner can not say "I authorized the driver to take passengers from Moshi to Arusha. I did not authorize him to drive recklessly, leave the road and knock the pedestrian." The reckless driving is an unauthorized mode of doing an authorized act. So the driver was in the scope of his employment and the bus owner is vicariously liable for this tortious action.

The two police officers thought the deceased was the notorious thief called Ernest Sabuo *alias* White. They shot him dead by four shots, took him to the police station at Moshi, and told the Regional Police Commandant they had killed "White". Had they left the dead body where they shot it and run away they may have been held to be on a frolic of their own. But when they took the body to the police station and claimed to have killed the thief, surely they were in the scope of their employment but their mode of doing the authorized thing was unauthorized.

As the learned counsel for the plaintiff has submitted section 3(4) of the Government Proceedings Act even simplifies matters for the plaintiff by making the government statutorily liable for the tortious acts and omissions of its servants in a case like this one.

The learned Senior State Attorney did not give up. He raised another point though at the eleventh hour, that the plaintiff has no cause of action against the defendant. This is an obvious after thought, as it should have been raised as a preliminary point before the commencement of the hearing of this suit. His argument is:

> My Lord, it is a trite law of pleadings in an action based on vicarious liability to specifically plead that the employee committed the tort while in the course and scope of his employment.

... My Lord, in vicarious liability cases if it is not specifically pleaded that the servant committed a tort while in the course of his/her employment then the plaint discloses no cause of action.

I think the learned Senior State Attorney is just trying to play with semantics. Paragraphs 8 and 9 of the plaint clearly plead that the Government is vicariously liable. I hereby reproduce them for ease of reference:

8. At the time of the killing referred to in paragraph 7 above, the said C 7874 Detective Corporal Juma Muswa and E3479 Detective Constable Mataba Matiku were police officers of the Government under the Ministry of Home Affairs and were performing of purporting to perform the functions conferred or imposed upon them by the Government ....

9. The Government is tortiously liable for those utterly reckless and grossly negligent acts of the said police officers ... by virtue of Government Proceedings Act 1967.

The meaning of the above paragraphs is pleading on vicarious liability although the word "vicarious" was not used. For these reasons I resolve the first issue in the affirmative that the defendant is vicariously liable for the tortious act of those two police officers. Now we come to the second and last issue. This is "what reliefs are the parties entitled to".

It is unfortunate that the learned counsel for the plaintiff did not argue substantially on this issue. He took it for granted that once the issue on vicarious liability is resolved in his favour the reliefs he claims are not questionable. Even if the Written Statement of Defence is full of evasive or general denials it is wrong to take these as admissions. The issue of quantum of damages is in this case more difficult and perhaps more important than that of vicarious liability. Vicarious liability from the facts of this case seemed almost obvious, but the issue of quantum of damages is a difficult one. The Evidence Act Number 12 of 1967 whose section 7 the learned counsel for the plaintiff cited, requires proof of facts on issue and other relevant

facts. The defendant denied all the claims in general terms. That is no admission expressly or even impliedly of the reliefs claimed. He prayed that the suit should be dismissed with costs. It is wrong to assume he impliedly admitted anything in this suit.

Failing to argue adequately or at all on the issue of what reliefs are just is quite risky for learned counsel for the plaintiff. This is assuming that since there are no specific denials but only evasive and general denials in the Written Statement of Defence the Court will automatically grant every prayer claimed. The Court is not sitting just like a referee in a game watching the parties passively do whatever they want with justice. Even where the defendant files no Written Statement of Defence at all or does not appear, let alone where he files "an evasive or general denial," the plaintiff still has to prove his case even if *ex parte*. **Mulla, The Code of Civil Procedure** Twelveth, abridged Edition, pages 547, and 567 states:

... But the rule of implied admission by non-traverse has not been strictly applied to pleadings in this country. The Court has a discretion to require a party to prove a particular fact notwithstanding the implied admission thereof by the opposite party...

Every judge in dealing with an *ex parte* case should take care to see that the plaintiff's case is at least *prima facie* proved. The mere absence of the defendant does not of itself justify the presumption that the plaintiff's case is true.

Learned counsel for the plaintiff, it is regretted, did not help the Court or even the plaintiff as one would have expected in the last issue. Surely he could have done better.

I am grateful to the learned Senior State Attorney for his well researched submission on the issue of assessment of damages, section 4(2) of the Law Reform (Fatal Accidents and Miscellaneous Provision Ordinance Chapter 360 provides:

In every such action the Court may give such damages as it may think proportioned to the injury resulting from such death to the parties respectively

for whom and for whose benefit such action is brought; and the amount so recovered, after deducting the costs not recovered from the defendant shall be divided amongst the aforesaid parties in such shares as the Court shall find and direct.

On the deceased's dependants the learned Senior State Attorney submits:

> It is our humble submission that dependants and dependence is a question of fact to be proved by evidence. The evidence on record shows clearly that the plaintiff did not prove it, of all the alleged dependants no one came to testify or was brought before the Court in case of the minor Sheila Kombe (10 years) daughter, Karim Mohamed (3 years grandson) and Imran Mohamed (grandson 1 year).
>
> My Lord, the purported dependants who are of majority age – Sophia Kombe (30 years) married daughter, Sonia Kombe 28 years daughter Salga Kombe 24 years daughter, Shariffa Kombe 18 years daughter, did not come to testify. It is submitted that all those who could have testified should have done so to show individual dependence and justification thereof My Lord it is my submission that in law it can not be reasonably foreseeable for a tort-feasor to be liable to compensate able – bodied adults as dependants as it is in this matter. Likewise compensation should not be awarded to children of those able-bodied adults' grandsons, for the responsibility of upbringing lied upon their parents not the deceased.

The word "dependant" is defined in section 2 of The Law Reform Fatal Accidents and Miscellaneous Provision) Ordinance Chapter 360 of The Laws, as amended by The Second Schedule to the Law of Marriage Act 1971 as follows:

> "Dependant" means the wife or, where the marriage was a polygamous marriage, each of the wives, husband, father, mother, grandfather, grandmother, stepfather, stepmother, son, daughter, stepson, stepdaughter, brother, sister, half brother, half-sister and includes an infant child whom the deceased had accepted as a member of his family and every other person who is on the death of the deceased entitled to succeed his property (otherwise than under a will) in accordance with the law of succession applicable to the estate of the deceased; and a person shall be deemed to be the father or mother or son or daughter of the deceased notwithstanding that he or she was related to him illegitimately or in consequence of adoption according to the law.

The plaintiff is suing on her behalf as the widow of the deceased and administratrix of his estate and on behalf of eight other dependants of the deceased. These are:

(1) Sophia Kombe (30 yrs) daughter of the deceased, married
(2) Sonia Kombe (28 yrs) daughter of the deceased
(3) Salgha Kombe (24 yrs) a daughter of the deceased
(4) Sharifa Kombe (18 yrs) daughter of the deceased
(5) Sheila Kombe (10 yrs) daughter of the deceased
(6) Saada Hussein (86 yrs) mother of the deceased
(7) Karim Mohamed (3 yrs) grandson of the deceased
(8) Imran Mohamed (1 yr) grandson of the deceased

All the above are covered by the definition of "dependant" quoted above.

The learned Senior State Attorney cited the case of *Chunibhai Patel and another v. PF Hayes and others* (5) as a guidance in the assessment of damages:

> The Court should find the age and expectation of working life of the deceased, and consider the ages and expectations of life of his dependants...

In the book called **The Quantum of Damages** by Kemp and Kemp Volume 2, "**Fatal Injury Claims**" page, it is stated:

> The Fatal Accidents Act 1846, provides that the damages to be awarded to each dependant are such as may be thought to be proportioned to the injury resulting from the deceased's death. The Court is perfectly entitled to consider the case of each dependant separately, and occasionally this is the only satisfactory method. But in most cases the Court first assesses the dependants' loss as a whole and then apportions the damages between

the dependants. The method usually adopted is stated by Lord Wright in *Davies v. Powell Duffryn Associated Collieries Limited* as follows:

> There is no question here of what may be sentimental damage, bereavement or pain and suffering. It is a hard matter of pounds, TZS. and pence, subject to the element of reasonable future probabilities. The starting point is the amount of wages which the deceased was earning, the ascertainment of which to some extent may depend on the regularity of his employment. Then there is an estimate of how much was required or expended for his own personal expenses. The balance will give a datum or basic figure which will generally be turned into a lumpsum by taking a certain number of years' purchase. That sum, however, has to be taxed down by having due regard to the uncertainties, for instance that the widow might have again married and thus ceased to be dependant, and other like matters of speculation and doubt.

The basic figure referred to by Lord Wright in this passage is the value of the dependency.

> Another important factor is the possibility of remarriage in the case of a dependant widow. If she is young and attractive the Court may consider her remarriage to be a strong probability:...on the other hand if the lady is elderly, or is of an unattractive appearance or disposition or suffers from some disability, or is encumbered with a large number of young children the Court may consider her chances of remarriage to be slight and award her rather larger damages accordingly. The future prospects of the deceased, if he had not been killed, will also affect the multiplier. If the deceased had good prospects of attaining a much greater wage or salary or of achieving promotion to a better position the Court will apply a higher multiplier.

Another example of how damages can be assessed, cited in **Kemp and Kemp**, page 330, is the case of *Brandburn v. Great Western Ry* (6):

> The statute had laid down no rule as to the mode of calculating the damages to be given in respect of the right of action which it created. The rule was first laid down in this Court, and that rule was that the damages were to be compensation to the family of the deceased equivalent to the pecuniary benefits which they might have reasonably expected from the continuance of his life ...

Other guidance on the assessment of damages for the death of husband, father etc to be awarded to his heirs and dependants are in the Seychelles case of *Madeleine Delorie and others v. Claude Joseph Pool* (7), where V Alleear, C.J. held:

(i) The widow and children of a person whose death was the result of 'faute' on the part of another person are entitled to claim from the latter damages for (a) moral prejudice (b) pecuniary loss.

(ii) Grief or affliction should be no opportunity for coining profit.

(iii) Moral damage must be assessed by the Judge even though such assessment is bound to be arbitrary.

(iv) The pecuniary loss of the widow should be calculated on the amount the deceased normally expended for her multiplied by a given number of years' purchase, which purchase should have regard to the age of the deceased and his condition. This should then be scaled down to take into account contingencies such as the widow's possibilities of remarrying.

(v) The same approach should be adopted for the children, but that the number of years' purchase should be related to the period of time during which the children might reasonably have expected their father to support or maintain them.

In *Buckley v. John Allen and Ford (Oxford) Limited* (8) where the plaintiff claimed damages in respect of the death of her husband in a road accident it was held:

(1) That the plaintiff was entitled to such a sum as would put her back into the same financial position as she was in at the time of her husband's death, and that no deduction should be made for the rent received from the lodgers.

(2) That in the absence of any evidence as to the likelihood of the plaintiff remarrying or of her attitude to remarriage, or any special factor, no deductions should be made in respect of that possibility.

Per curium. In the absence of any evidence as to the likelihood of the plaintiff remarrying, a judge is not qualified, and should not be called upon, to assess the chances or wishes of a widow in regard to remarriage.

See also *Mohmet v. Perry and another* (9); *Burns v. Edman* (10) *and Hay and another v. Hughes* (11).

The learned Senior State Attorney submits that the deceased at the time of his death was aged 53 years; had been retired in the public interest; had no expectation of working life save those four projects which were at the infancy stage, and the deceased's net earning power is not known. So he submits the plaintiff should not be paid much as she did not even know her late husband's salary.

The evidence of PW1 or any other witness nowhere shows the deceased was retired in the public interest. At the age of 53, the deceased, a retired General, must have been still healthy and strong. The number of projects he started soon after retirement show how ambitious he was. He could have lived up to and above 70 years of age. His wife was 48 years. She too can live for well over twenty years more. It is improper to submit that the deceased was not expected to live a long working life. "Working life" does not necessarily mean working in the government, public or private sector or otherwise as a salary paid person. He could be self-employed and working for the rest of his life on his long list of projects he had started. Senior army officers, this Court takes judicial notice, have generous retirement benefits. But the deceased's wife says her husbands salary was "top secret" and so unknown to her. So too must have been his retirement benefits. It is again not known to this Court if he was paid his retirement benefits or whether any of them is still pending in the Government or if part thereof was to be paid to the deceased's widow and dependants before or even after his death. These are matters which would have been proved by issuing the defendant with a "Notice to Produce". But the learned counsel for the plaintiff found it not necessary to bother about this because the defendant has filed evasive and general denial.

From the authorities I have cited above it is necessary to know as much as possible the deceased's income and how much he was spending on his widow and other dependants in order to be able to assess how much has to be awarded them in damages to make them be in a position like they would have been in if the deceased had not died. The Court has not been helped much by the plaintiff in this respect.

The learned Senior State Attorney submits that there is a high possibility of the widow remarrying. As held in the *Buckley v. John Allen and Ford (Oxford) Limited* (8) case I have cited above, *per curium.*

A judge is not qualified and should not be called upon, to assess the chances of a widow in regard to remarriage.

Marriage is too personal a matter these days. Many a young and attractive lady decide not to marry at all let alone a widow deciding to remarry. So weighing the widow's chances of remarrying in assessing the right damages to award her is no longer good law. As for the economic projects started by the deceased they are valued in paragraph 16 of the plaint as:

		TZS.
a	A rose farm in Usa River Arusha worth	800 million
b	A dairy farm in West Kilimanjaro worth	528 million
c	A dairy farm at Mbezi Beach worth	240 million
d	A house project at Maili Sita worth	280 million
e	A farm at Naberera in Arusha worth	400 million
	TOTAL TZS.	**2 248 000 000**

Falleges these projects estimated value or loss is not real but mere speculation. In business or commercial undertakings there are chances of making profit and also those of making loss. It will be unrealistic to assume the projects would reap maximum profit if deceased had not died. Nor would they have all run at losses only. The plaintiff

apparently is aware of this reality. That is why in her notice to the Attorney General she was ready to settle at the amount of 690 million damages, instead of the estimated 2.24 billion TZS. project value. Though the evaluation of the projects is speculative and exaggerated indeed the projects or at least some of them would have made some profit had the deceased, their engineer, not been killed. The plaintiff's and other dependant's positions in life and benefit from the projects would definitely have been better if the deceased had not been killed. As for the long list of dependants I bear in mind what the learned Senior State Attorney submitted, that is,

(i) The first daughter, Sophia Kombe, aged 30 years and married should depend on herself and her husband, not on the deceased. She deserves only nominal damages for nervous shock, loss of fatherly love, advice and moral support.

(ii) The second daughter, Sonia Kombe (28 years), third daughter, Salgha Kombe (24 Years), and fourth daughter, Sharifa Kombe (18) years, are adults, though not yet married. They are supposed to find ways and means of depending on themselves. They were still dependants all the same and they deserve something more than the married daughter, but less than the younger ones who are not yet adults.

(iii) The fifth daughter, Sheila Kombe (10 years) deserves more than the other children as she needs schooling etc.

(iv) Saada Hussein 86 years, deceased's mother deserves something, but not very much as her chances of dying early within a year or two are quite big. Few people even live up to her age of 86.

(v) The grandchildren, Karim Mohamed (3 years) and Imran Mohamed (1 year) have not been explained for why they were depending on the deceased and not their own parents. They therefore deserve only nominal or token damages for loss of the love of their grandpa.

The Learned Senior State Attorney submitted at one point that:

> Given the facts and circumstances of this case it will be legally unjustified and highly unequitable to make the Government to shoulder the servants' liability. A decision of this nature will expose the Government to floodgate of immeasurable civil suits liability given the nature of the Government being a body politic and its instrumentalities and the functions thereof.

I think the opposite to the learned Senior State Attorney's argument should be the case.

Since ours is a government of good governance transparency and high respect for the human rights of its citizen, instead of fearing the floodgates of civil suits, it should not only teach its organs, particularly those who are trusted to hold fire-arms, to respect the human rights of its citizens, especially the most important right, the right to life; but when any member of those organs abuses that trust and violates the rights of the citizens or otherwise commits any civil wrong, the government should be ready and willing to adequately and promptly compensate the victims of that violation. The learned counsel for the plaintiff, Mr Eric Ng'maryo, puts it in the conclusion of his submission:

> No monetary compensation shall ever adequately cover the killing of a husband, a father, a grandfather and kinsman. No financial redress can bring back the late General.

I agree with him. It is now my unfortunate duty, to estimate and assess, in monetary terms, what the plaintiff and the rest of the deceased General's dependants deserve in order to put them as close as possible to the position they would have been in, now and for the rest of their lives, if their dear one, the late Lieutenant General Imran Kombe, had not met his untimely death from the four deadly shots fired from the reckless guns of number C7874 D/Cpl Juma Muswa and number E3479 Detective Constable Mataba Matiku.

After bearing in mind all the circumstances of this case, the dependence of the dependants of the deceased, the many projects the deceased had started but which collapsed after his death, and comparing this case with the numerous authorities of cases of similar nature worldwide, a few of which I have been able to cite hereinabove, I hereby enter judgment for the plaintiff as follows:

(a) General Damages TZS. 300 million (three hundred million) to cover all the listed dependants to be distributed by their representative, the plaintiff, among them, as they have agreed and as compensation for the loss of profit from the failed projects.

(b) Interest on the above at 7½% per annum from date of judgment till full payment.

(c) Costs of this suit.

JOSEPH MAPUNDA AND HAMISI SELEMANI *v.* REPUBLIC

HIGH COURT OF TANZANIA AT SONGEA

(Manento, J.)

CRIMINAL APPEAL No. 58 OF 1999

(From the decision of the Songea District Court in Criminal Case No. 493 of 1998)

Criminal Law – Attempted rape – Factors constituting the offence.

Criminal Law – Common intention – When common intention is established in the offence of attempted rape.

Evidence – Corroboration – Corroboration in sexual offences – Whether corroboration is necessary in sexual offences – Section 127 of the Evidence Act as amended by section 27 of the Sexual Offences (Special Provisions) Act 1998.

Criminal Practice and Procedure – Charges – Charge preferred under repealed section of the law – Repealed section re-enacted in identical words in the current statute – Defect is a curable.

The two appellants were convicted of attempted rape and robbery with violence, and each sentenced to 21 years imprisonment for attempted rape and to two years imprisonment for robbery with violence, the sentences to run concurrently. On the material day the complainant was walking alone along a valley at about 1:30pm when the two appellants, walking behind her, ordered her to stop. They grabbed her and managed to fell her to the ground, and she fell on her back. They pulled down her underwear and the first appellant knelt between her legs, pulled out his erect penis and was about to insert it into her vagina when she struggled hard and pulled on his testicles so hard that he let her free. The two then walked away. Some time later, the complainant and her sister (PW3) went in search of the appellants. On seeing them the appellants started to run away. The complainant and her sister raised an alarm and people started chasing the appellants who ran to the police station where they were arrested. A police officer later visited the scene and saw disturbed grass at the scene. The appellants denied having been to the scene.

Held: (i) Since the appellants denied having gone to the scene, they could not be heard to complain that the police officer went to the scene in their absence;

(ii) In view of the provisions of section 127 of the Evidence Act as amended by section 27 of the Sexual Offences (Special Provisions) Act 1998, the criterion now in sexual offences is more on the credibility of the victim of the offence and the Court can act on the uncorroborated testimony of a single witness if it is satisfied that the witness is telling nothing but the truth;

(iii) The complainant had enough time to observe her assailants as it was in broad daylight, and the appellants ran away just on hearing the complainant tell her sister that they were the people who had attempted to rape her; in the circumstances, the evidence of identification was satisfactory;

(iv) The law is that where a person, intending to commit an offence, begins to put his intention into execution by means adapted to its fulfillment, and manifests his intention by some overt Act but does not fulfill his intention to such an extent as to commit the full offence, he has attempted to commit the offence; in the instant case, the offence had been proved in that only the act of penetration was left to the commission of the full offence of rape which the first appellant failed to do by reason of circumstances independent of his will.

(v) As the second appellant assisted the first appellant in felling the complainant to the ground by holding her legs, the two appellants had common intention.

(vi) The evidence regarding the charge of robbery with violence was unsatisfactory and so did not prove the offence.

(vii) The appellants were charged with and convicted of attempted rape under section 132 of the Penal Code repealed and replaced by section 8 of the Sexual Offences (Special Provisions) Act 1998, which came into force on first July 1998 while the offence was committed on 26 November 1998; that a charge and conviction under a repealed section of the law is an irregularity;

(viii) If the repealed section under which an accused person is charged is re-enacted in identical words in the current statute the irregularity is curable and the accused has not in any way been prejudiced by the irregularity; in the instant case, the repealed section was re-enacted in identical words, the appellants were not prejudiced in any way, and the irregularity was curable under section 388(1) of the Criminal Procedure Act 1985;

(ix) In view of the provisions of section 132(1) of the Penal Code as amended by the Sexual Offences (Special Provisions) Act 1998, the sentences imposed on the appellants by the Trial Court for the offence of attempted rape were illegal and are accordingly set aside. In lieu thereof, a sentence of thirty years imprisonment without corporal punishment is substituted for each appellant.

Appeal allowed in part

Cases referred to:

(1) *Republic v. Tinga Kelele* [1974] LRT n. 4

(2) *Republic v. Charles Kisongedo* [1967] HCD 204

(3) *Magesa s/o Mjunja v. Republic* [1986] T.L.R. 10

(4) *Matu s/o Gichuma v. Republic* [1951] 18 E.A.C.A 311

Statutory provisions referred to:

(1) Sexual Offences (Special Provisions) Act 1998, Number 4 of 1998 section 8

(2) Evidence Act 1967, section 127

(3) Penal Code Chapter 16, section 132

(4) Criminal Procedure Act 1985, section 388(1)

Mr Juma State Attorney, for the Republic

JUDGMENT

(Dated 8 October 2001)

Manento, J.: The two accused persons had been charged and convicted of two counts of attempted rape and robbery with violence contrary to sections 132, 285 and 265 of the Penal Code respectively. They were sentenced to 21 years imprisonment for the first count of attempted rape and two years imprisonment for the second count of robbery with violence. The sentences were ordered to run concurrently, hence they are to serve a total of 21 years imprisonment.

The two accused persons have felt aggrieved by both conviction and sentence, hence they have filed a joint Memorandum of Appeal containing five grounds of appeal, which by themselves constituted their submissions which are backed by decided cases. At the end, they prayed for this Court to allow the appeal and set them free. On the other hand, the Republic, led by one Juma, a learned State Attorney supported the conviction of both the accused persons, but submitted that the sentences imposed did not tally with the current Sexual Offences Special Provisions Act Number 4 of 1998 and therefore, he demanded that the sentence of the Subordinate Court be quashed and a proper and legal sentence be imposed under the provisions of the Sexual Offices Special Provisions Act 1998 as the offence was committed after the enactment of that law. The appellants who were present during the hearing of this appeal had nothing in reply as to the sentence, but they just insisted that they were not the persons who committed the offence or at all.

The facts of the charge were briefly that the appellant were at or along the Matalawe river valley on 26 November 1998 at about 1.30pm when the complainant one Christina d/o Simike was passing by and that they attempted to rape the said Christina d/o Simike and actually

robbed her of her handbag which had TZS. 1 200 in it, her piece of kitenge, one pair of khanga and a piece of khanga. The complainant identified the accused persons who had escaped from the scene of the crime after a successful struggle by the complainant. However, the complainant, while in the company of her sister searched the appellants and they saw them after about half an hour's time. It was at place called Manzese. On seeing the complainant, the appellants on being pointed out, started running while the complainant and her sister were shouting, thief, thief and people started chasing them. The appellants ran to the police station where were arrested and charged with these two counts.

The prosecution witnesses testified as to how the attempted rape was made and the robbery to the satisfaction of the Trial Court which found the appellants guilty and convicted them all on the two counts they were charged with. They were sentenced each to serve a sentence of 21 years jail for the first count and two (2) years jail for the second count of robbery with violence. The appellants were not satisfied with that finding of guilt and hence appealed to this Court. On admission of the appeal, the learned judge instructed that it should be considered whether the offence proved was not that of attempted rape only.

The prosecution evidence as narrated by the complainant, Christian d/o Simike was that on the material date, Christina was walking along the Matarawe river valley. It was broad day light, at about 1:30pm. Behind her were the appellants. As she was walking, she heard an order from behind that she should stop walking and that she was under arrest. Without wasting time, the first appellant who was the second accused at the lower Court, got hold of the complainant at her chest/shoulder. Then the second appellant who was the first accused at the Trial Court got hold of the complainants legs. They managed to fell down the complainant. Then the first appellant was more active. He lay over the complainant who was lying on her back. They managed to undress the complainant's underwear, the first appellant had his thighs in between the complainant's legs while kneeling. He opened the zipper of his trousers took out his already erected penis, did

aim at the vagina of the complainant. The complainant did struggle hard, preventing any penetration of the first appellant's penis into her vagina. She got hold of the testicles of the first appellant, pressed them hard and due to the pains the first appellant suffered, he surrendered. He left free the complainant and the appellants left. It was alleged that they left with the handbag of the complainant which contained TZS. 1200, and her beads. However, they dropped the said bag when the complainant had seen them and pointed out to the PW3 Benadeta Komba that they were the persons who had attempted to rape her.

The appellants in their Memorandum of Appeal submitted that the Trial Court erred in convicting them on the evidence of one witness only, the complainant without any corroboration from independent evidence. They cited several cases in support of that submission, among them being *Republic v. Tinga Kelele* (1) and *Republic v. Charles Kisongedo* (2) where it was held that the magistrate should direct himself of the danger of convicting an accused person on the evidence of a single witness without corroboration and secondly that in sexual cases independent corroboration of the complainant's story implicating the accused will be required notwithstanding the Trial Courts warning itself of the danger of convicting without it.

On the basis of those authorities one would really say that there was no independent evidence corroborating the evidence of the complainant, but there was evidence to the effect that the greenish stains which appeared in the clothes of the complainant were also seen on the trousers of the first appellant, justifying the evidence that the struggle between the first appellant and the complainant was done at a place where were green grass and plants such as colocasias (magimbi). On a visit by the police who made the sketch plan, he found as a fact how the grass was disturbed. The appellants had complained that the police officer refused to accompany them on visiting the scene, but on reading the proceedings, I found that the appellants had disclaimed having been at that place, so there was no need for them to see or going to a place they did not know anything about.

As to the need for corroboration in sexual offence cases, the learned State Attorney, Mr Juma submitted rightly that those cited cases by the appellants are no long good law with the enactment of the Sexual Offences Special Provision Act Number 4 of 1998 which came into operation on 1 July 1998 and this offence was committed on 26 November 1998, some five months after the coming into operation of that Act.

In fact, section 127 of the Evidence Act 1967 has been amended by section 27 of the Sexual Offences Special Provisions Act 1998 in its subsection (3) and (4) by adding subsection 7 which is actually the answer in reply to the submissions of the appellants, making the cited cases useless in sexual offences. This subsection is hereunder reproduced:

> (7) Notwithstanding the proceeding provisions of this section, where in criminal proceedings involving sexual offence the only independent evidence is that of a child of tender years or of a victim of the sexual offence, the Court shall receive the evidence, and may, after assessing the credibility of the evidence of the child of tender years or as the case may be the victim of sexual offence on its own merits, notwithstanding that such evidence is not corroborated, proceed to convict, if for reasons to be recorded in the proceedings, the Court is satisfied that the child of tender years or the victim of the sexual offence is telling nothing but the truth.

From the amendment of the Evidence Act 1967, the Court can now convict on uncorroborated evidence of a single witness, it being a child of tender years or the victim of the sexual offence, provided that, the witness being a child of tender years or the victim of the offence is telling nothing but the truth. Hence the criterion now on criminal proceedings on matters relating to sexual offence is the credibility of the witness and in particular the victim of the sexual offence. In this case, the Trial Court believed that the complainant Christina, PW1 was telling nothing but the truth and therefore, it was entitled to convict the accused persons as charged. On the same

token I am of the opinion that the PW1 Christina had enough time to observe her assailants, it was broad day light and therefore could not mistake them in fact when they met just after half an hour, the appellants just on hearing the complainant telling PW3 Benadeta that the appellants were the persons who had attempted to rape her, the appellants started running and that is when the complainant raised the alarm of a thief, attracting some people who chased the appellants. With all those incidents, the appellants were properly identified and the offence of attempted rape was committed for the following reasons. The complainant was felled down, the first appellant knelt on the complainant striped the zipper of his trousers, took out his erected penis, aimed it to the vagina of the complainant, and that he was prevented from penetrating into the complainants vagina by the fact that the complainant held firmly or pulled the testicles of the appellant who failed to proceed with his action due to the suffering he was sustaining. Had the complainant not held or pulled the first appellants testicles, then nothing could follow but the over Act that is to say penetration, and hence completion of the act of rape.

All what I have said above tallies with the definition of attempted rape as contained in section 380 of the Penal Code which is hereunder reproduced:

> Execution by means adopted to its fulfilment, and manifests his intention by some over Act but does not fulfil his intention to such extent as to commit the offence, he is deemed to attempt to commit the offence.

In the case before the Trial Court and before this Court, the fulfilment of the intention of the first appellant was prevented by circumstances independent of his will, to wit, the pulling of his testicles by the complainant otherwise, he would have fulfilled his intention. As regard to the second appellant, he took part in the felling down of the complainant, and he was waiting for his turn if at all the first appellant had succeeded. Their intention was one, that is to say, to rape the complainant.

As to the second count of robbery with violence, the learned State Attorney submitted that the offence was committed. He said

that the second appellant had been seen dropping the bag of the complainant when they were chased.

On reading the proceedings, I didn't see it clearly that there was taking of the handbag and the clothes by any of the accused persons. They just walked away after they had failed to rape the complainant. No one witness did really testify to the effect that he or she saw any of the appellants carrying the handbag of the complainant. My belief in that is also supported by the fact that, if at all they took the handbag with them, in which TZS. 1200 were put, but at the police station only one thousand shillings were recovered, meaning that only two hundred shilling had been stolen. I wonder, under the normal circumstances that the appellants, if at all they had taken the handbag of the complainant, they would take only TZS. 200 and leave in the bag the one thousand shillings. All those incidences show that there was no robbery or at all. Thus the appellant's appeal on the second count succeeds.

Lastly, the learned State Attorney Mr Juma submitted that the sentence of 21 years imposed on the appellants is illegal, that the correct sentence should have been 30 years imprisonment in accordance with the Sexual Offences (Special Provisions) Act Number 4 of 1998 which has repealed and replaced section 132 of the Penal Code by its section 8.

Before I deal with this question of sentence, I should first put the record of the Subordinate Court proper. The accused persons were charged with and convicted under a repealed section 132 of the Penal Code. This section was repealed by section 8 of the Sexual Offences Special Provisions Act 1998. The issue is whether the appellants were wrongly convicted and sentenced. As it can be seen, the Sexual Offences Special Provisions Act Number 4 of 1998 came into force on 1 July 1998. The accused persons were charged on 26 November 1998.

Though not submitted so by the learned State Attorney, I am of the opinion that neither the prosecution nor the trial magistrate was aware that section 132 of the Penal Code under which the appellants

were charged had been repealed and replaced. The basis of that opinion is the state of affairs pertaining in the country at that time specifically the liquidity of the Government. As I was in the Judiciary working as a Senior Deputy Registrar of the High Court I am aware that such Acts of Parliament were not in circulation in the department as Judiciary had no money to purchase those Acts and distribute them to its Subordinate Courts. But could the poor financial position of the Government be at the expense of the peoples right? I say no. rule of law should always prevail. On the issue at hand, the most important point to answer is whether the appellants were prejudiced by the repealed law. I say no as it was said in the case of *Magesa s/o Munja v. Republic* (3) quoting the ruling of the Court of Appeal for Eastern Africa in the case of *Matu s/o Gichuma v. Republic* (4). This Court in *Magesa s/o Mjunja v. Republic* (3) held *inter alia* that:

> (1) A charge and conviction under a repealed law is an irregularity which is curable if the repealed section is re-enacted in the identical words in the current statute such that it cannot be said that the accused has in any way been prejudiced by the irregularity.

Section 132 of the Penal Code have been re-enacted under the Sexual Offences (Special Provisions) Act Number 4 of 1998 in its section 8, and therefore the irregularity is curable under section 388(1) of the Criminal Procedure Act 1985 as the irregularity has in fact not occasioned failure of justice.

On the question of sentence, section 132(1) of the Sexual Offences (Special Provisions) Act Number 4 of 1998 imposes a sentence of thirty years imprisonment or life imprisonment, with or without corporal punishment, but this is again subject to subsection (3) of the same where it is provided further that for offences in (c) or (d) under subsection (2), the sentence is life imprisonment. Such offences carrying life imprisonment under this section are:

> (2) A person attempts to commit rape if;
>
> with intent to procure prohibited intercourse with any girl or woman, he manifests his intention by:

(c) making any false representation to her for the purposes of obtaining her consent;

(d) representing himself as a husband of the girl or woman, and the girl or woman is put in a position where, but for the occurrence of anything independent of that person's will, she would be involuntarily carnally known.

The offence in which the appellants are charged does not fall under either (c) or (d) of subsection (2) quoted above, nor does it fall under (a) or (b) of subsection (2) of section 132 whereby the sentence provided under subsection (3) is for imprisonment of not less than ten years. Such offences whose minimum sentence is not less than ten years are:

(2)(a) threatening the girl or woman for sexual purposes, being a person of authority or influence in relation to the girl or woman applying any act of intimidation over her for sexual purposes.

In the case before this Court, the appellants did use actual force, by felling the complainant down, by holding her legs and shoulders. They overpowered her and therefore, such violent acts in the cause of attempting to rape the complainant attracts the sentence of not less than thirty (30) years imprisonment with or without corporal punishment.

From all what I have endeavoured to say above, I come to the conclusion that appeal against robbery is allowed and the sentence of two years jail imposed for that second count is quashed and set aside, that the appeal against the first count of attempted rape is quashed but the offence should read "attempted rape contrary to section132(1) of the Sexual Offences (Special Provisions) Act Number 4 of 1998. On this point, the sentence of 21 years imprisonment for the offence of attempted rape is quashed as being illegal. In fact, I don't even see the legal basis of it. It is not supported by any Act or any law. A legal sentence of thirty (30) years imprisonment is therefore imposed. Thus the appellants shall serve a sentence of thirty (30) years in jail. No order for corporal punishment or compensation. It is so ordered.

WAKF AND TRUST COMMISSIONER (AS ADMINSTRATOR OF THE ESTATE OF THE LATE ZAWADI BINT SAID) v. ABBASS FADHILI ABBASS AND ANOTHER

COURT OF APPEAL OF TANZANIA
AT ZANZIBAR

(Makame, Ramadhani and Mroso, JJ.A.)

CIVIL APPEAL No. 11 OF 2001

(From the judgment of the High Court of Zanzibar at Vuga, Ummar Sadiq, J. dated 13 March 1990 in Civil Appeal No. 30 of 2000)

Civil Practice and Procedure – Jurisdiction – When the issue of jurisdiction may be raised – Whether the issue of jurisdiction may be raised at the stage of appeal .

Civil Practice and Procedure – Originating Summons – Matter preferred in Regional Magistrate's Court by Originating Summons – Whether the Regional Magistrate's Court has jurisdiction to hear matter preferred by Originating Summons.

The appellant, the late Zawadi bint Said, later on substituted by the Wakf and Trust Commissioner, sued Fadhili Abbass and the Registrar of Documents in the Regional Magistrate's Court for ownership of house number 4/33 at Gulioni, claiming that the first respondent, who was her grandchild, had played a trick and successfully registered it in his name. The Regional Magistrate Court decided in favour of the appellant. The first respondent appealed to the High Court which decided in favour of the respondents on the ground that the Regional Magistrate had no jurisdiction to deal with the matter

before him, which was brought by originating summons. The appellant appealed to this Court.

Held: (i) The issue of jurisdiction is fundamental and it can be raised at any time in the proceedings;

(ii) Matters preferred by way of Originating Summons are heard by a Judge and so the Regional Magistrate had no jurisdiction to hear such matter: Order X Rules 6 and 13 of the Civil Procedure Decree Chapter 8.

Appeal allowed in part

Statutory provision referred to:

(1) Civil Procedure Decree Chapter 8, Order X, rules 6, 9 and 13

Mr Patel, for the Appellant

Mr Mbwezeleni Mr Mnkonje, for the Respondents

JUDGMENT

(Dated 24 October 2001)

Ramadhani, J.A.: Zawadi binti Said sued Abbas Fadhil Abbas and the Registrar of Documents in the Regional Court, Civil Case Number 52 of 1997. She claimed that she was the owner of House number 4/33 at Gulioni. She claimed further that Abbas, whom she had brought up as her own grandchild, played a trick on her, went to the Registrar of Documents and caused the house to be registered in his name as having been given to him as a gift from her. The Regional Court decided in favour of Zawadi. Abbas appealed.

Before the learned judge, there was a Memorandum of Appeal containing six grounds which, at the hearing, were consolidated into two. The first ground of appeal was that the learned Regional Magistrate had no jurisdiction to deal with the matter before him according to Order X, rules 6 and 9 of the Civil Procedure Decree (Chapter 8). The second ground was on the burden of proof.

The learned judge disposed the appeal on the first ground and held that the learned Regional Court Magistrate had no jurisdiction according to Order X, rule 6 and declared the proceedings null and void.

Mr *Patel,* learned advocate for the appellant, the late Zawadi substituted by the Wakf and Trust Commissioner, had two grounds: one, the learned first appellate judge erred in finding that the learned regional magistrate had no jurisdiction. Two, the learned judge erred in not considering the issue before him of whether or not the deed of gift produced by the respondent was obtained by fraud.

Resisting the appeal were Mr Mbwezeleni and Mr Mnkonje, learned counsel for the respondent.

We think that we have to deal with the issue of jurisdiction first and it is simply this: could the matter that was before the Regional Magistrate have been dealt with by way of originating summons?

We do not agree with Mr Patel that since jurisdiction was never an issue before the Regional Magistrate, the learned judge should not have entertained it when raised for the first time at the appellate stage. The issue of jurisdiction is fundamental and it can be raised at any time in proceedings.

However, we are at one with Mr Patel that matters by way of Originating Summons are heard by a Judge in chambers and so, cannot be heard by a Regional Magistrate who was not even exercising Extended Jurisdiction.

We are also in agreement with Mr Patel that the dispute before the Regional Magistrate was not one to be disposed of by way of originating summons. We say so because Order X, Rule 13 clearly shows that only matters in which the relief sought could be "disposed of in a summary manner" are dealt with by way of originating summons. The matter before the learned Regional Magistrate was not such as could have been disposed of summarily.

Therefore, we find that the learned regional magistrate had jurisdiction and, therefore, we quash the decision of the learned Judge and restore that of the Regional Court. As the learned Judge did not consider the other grounds of appeal dealing with merits we do not see how we could accept the invitation of Mr Patel and step into the shoes of the High Court. Therefore, we order that the matter be remitted to the High Court for the appeal to proceed on merit.

This appeal is allowed with costs.

GK ISHENGOMA t/a TANZANIA INSURANCE AGENCY v. NATIONAL INSURANCE CORPORATION LTD

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Kisanga, Ramadhani and Lubuva, JJ.A.)

CIVIL APPEAL No. 73 OF 1999

(From the decision of the High Court of Tanzania at Dar es Salaam, Mapigano, J. dated 16 February 1999 in Civil Appeal No. 26 of 1998)

Agency – Suspension of agent – Agent transacts business during suspension – Whether agent entitled to commission.

Agency – Agent suspended – Agent transacts business partly using facilities of the principal – Whether agent entitled to same amount of commission.

Agency – Agent's right to remuneration – General rule and exceptions to the general Rule – Calculation of agent's commission.

The appellant, trading as Tanzania Insurance Agency was an agent of the respondent, up to 30 January 1991, when he was suspended. He complained about the suspension and, as the matter was being investigated the agency was terminated on 3 September

1992. However, during the suspension, the appellant conducted business for the respondent worth TZS. 52 994 161-25. The appellant, without success, claimed a commission of TZS. 9 079 628-45. He filed a suit in the Resident Magistrates' Court of Dar es Salaam at Kisutu and won. The respondent, aggrieved, successfully appealed to the High Court. Aggrieved by the decision of the High Court the appellant fled this second appeal.

Held: (i) There is a general Rule that remuneration is not payable for work done during a period of termination of agency but that is not absolute;

(ii) It is trite law that a principal is liable to third parties who, in good faith, deal with an agent on the assumption that he still has authority; the exception is where the authority has been terminated by the death of the principal;

(iii) The measure of the plaintiff's payment was to be calculated not by the work done by him, but by the fruits of that work to the respondent corporation, which they do not deny;

(iv) Where there is no express contractual provision, then a contract to pay reasonable remuneration is implied by the Court; Courts, in making such decision are guided by previous negotiations between the parties, as well as trade custom.

Appeal allowed

Cases referred to:

(1) *Bilbee v. Hasse and Company* [1889] 5 Times LR 677

(2) *Bower v. Jones* [1831] 8 Bing 65

(3) *Bryant v. Flight* [1839] S.M and W 114

(4) *Christie, Owen and Davies t/a Christie and Co. v. Jones* (1966) 198 Estate Gazette 1093

(5) *Crocker Horlock Limited v. Lang and Company Limited* [1949] 1 All ER 526

(6) *Debebham v. Mellon* [1880] 6 Appeal Case 24

(7) *Drew v. Nunn* (1879) 4 661

(8) *Levy v. Goldhill* [1917] 2 Ch 300

(9) *Marshal v. Glanvill* [1917] 2 KB 93

(10) *Nayler v. Yearsley* [1960] 2F and F 41

(11) *Nordman . Rayner and Sturges* [1916] 33 T.L.R. 87

(12) *Sellers v. London Counties Newspapers* [1951] 1 KB 784

(13) *Tribe v. Taylor* [1876] 1 CPD 505

(14) *Way v. Latilla* [1937] 3 All ER 759

Statutory provisions referred to:

(1) Law of Contract Ordinance, section 160

Mr Kashumbugu for the Appellant

Mrs Tenga for the Respondent

JUDGMENT

(Dated 25 November 2001)

Ramadhani, J.A.: The appellant, GK Ishengoma, trading as Tanzania Insurance Agency, was an agent of the respondent, the National Insurance Corporation, up to 30 January 1991, when he was suspended. He complained about the suspension and, as the matter was being investigated, the agency was terminated on 3 September 1992.

However, during the suspension the appellant conducted business for the respondent worth TZS. 52 994 161-25. He, without success, claimed a commission of TZS. 9 079 628-45. So, he filed a suit to recover that amount in the Court of the Resident Magistrate of Dar es Salaam at Kisutu and won. That aggrieved the respondent corporation and they successfully appealed to the High Court. Hence this second appeal.

After the submissions of both learned advocates, Mr Kashumbugu, for the appellant, and Mrs Tenga, for the respondent Corporation, we are of the considered opinion that the following are established facts: First, the appellant is claiming commission for transactions

made after 14 February 1999, that is, fourteen days after the suspension of the agency, the date documents belonging to the respondent corporation were taken away from him. That is why he is relying on photostat-copies of receipts issued by the respondent.

We are also satisfied that clients of the appellant and also employees of the respondent Corporation at the counter of Branch Unit 1, were ignorant of that suspension. Consequently, some clients continued to pay premiums to the appellant and others went to him to renew their policies. Since the appellant had neither receipt books nor a bank account number, he took the proceeds to Branch Unit 1 where the employees, innocently, accepted the money and issued receipts. The Dar es Salaam Regional Manager of the respondent Corporation admitted, in his memorandum, NIC/DSM I/S 0361/50 of 8 July 1992 (Exhibit P7), that his Branch had issued those receipts.

Thirdly, the respondent corporation does not dispute that during the period of suspension the appellant transacted for them business worth the amount stated. It only contends, in paragraph 3 of its Written Statement of Defence that he had done so "illegally" and so, he is not entitled to any commission. Now, let us see how these facts interact with the submissions of both sides.

Mr Kashumbugu argued that the respondent impliedly revoked the suspension when it accepted the proceeds of the business conducted by the appellant during the period of suspension. He submitted further that that implied revocation formed a new agreement that entitled the appellant to a commission.

Mrs Tenga, in effect, advanced two alternative contentions: First, she was emphatic that no new mode of agency was created. She pointed out Mr *Kashumbugu's* failure to spell out the terms of the so-called new agreement and how much commission was due to the appellant. Second, she argued that even assuming that there was a new agreement, because on the ignorance of some of the respondent Corporation's employees, the respondent Corporation did not willfully profit from the illegal transactions of the appellant. In any case, Mrs Tenga argued,

owing to lack of facilities, the appellant did not conduct the entire operation by himself but that he used the services of the employees of the respondent Corporation and so, he cannot be entitled to the same amount of commission.

There is a general rule that remuneration is not payable for work done during a period of termination of an agency. That was decided in *Nayler v. Yearsley* (1), and *Tribe v. Taylor* (2). According to *Nordman v. Rayner and Sturges* (3) remuneration is also not ordinarily payable in the case of temporary suspension.

However, the rule is subject to some exceptions: One, commission is payable where business conducted during suspension is in fact part of a transaction in which an agent was employed. Thus, in *Christie, Owen and Davies t/a Christie and Company v. Jones* (4), an estate agent place after the termination of the agency. It was held that the ex-agent was entitled to a commission.

The other exception is where there is an express term in the contract authorizing payment of remuneration even after termination of agency. Thus in *Crocker - Horlock Limited v. Lang and Company Limited* (5) at 530 it was said:

> ... that remuneration was the remuneration payable during the contract period and . the parties have not provided by this contract for any payment after that period came to an end.

So, in that case remuneration was denied because it was not provided for in the contract.

However, in *Sellers v. London Counties Newspapers* (6), the majority judgment was that the contract should specifically provide for cessation of payment in case of termination. The dissenting judgment, like the one above, was that the contract should specifically provide for continuation of payment in case of termination.

In that case the plaintiff had an oral contract with the defendants for obtaining orders for advertising space in the defendant's newspapers. He was paid a salary and also a commission for every customer's

advertisement published in the newspapers. His employment was terminated. Some of the orders he had solicited were published after the termination of the employment. He claimed commission for those orders. The county Court dismissed his claim but on appeal, the Court of Appeal, two to one, decided that he was entitled to a commission.

SIR RAYMOND EVERSHED, MR, held:

> ... in the case of a contract of service between a master and a servant, all right on the servant's part to a remuneration by commission or otherwise will cease with the termination of his service unless the terms of his contract provision to the contrary is clearly made.

The majority held:

> ...i n the absence of an express term in the contract of employment that the plaintiff's right to a commission should end with the termination of his employment, he was entitled to a commission on any orders he obtained while he was employed by the defendants, even though the advertisements to which those orders related were not published until after the termination of his employment.

The third exception is where the construction of the agency contract provides a clear intention to continue paying remuneration even after termination. It was said in *Marshall v. Glanvill* (7):

> *Prima facie* the liability to pay commission in cases of this kind cases as to future trade with the cessation of the employment in the absence of a reasonable clear intention to the contrary.

Such intention is readily found where an agent is an independent contractor and not an employee, *Croker Horlock Limited v. Lang and Company Limited* (supra)

Lastly, in the case of repeat orders, the agent is entitled to a commission even after the termination of the agency. Repeat orders, according to *Sellers v. London Counties Newspapers* (6) (at page 546 letter C) are "orders placed by advertisers originally introduced to the defendants by the plaintiff, but placed without any further solicitation in his part". In *Levy v. Goldhill* (8) 2 Ch 300, the plaintiff

contracted with the defendant to procure orders for the defendant and he was to get a commission even for 'repeats on any accounts introduced by you". The defendant later terminated the contract and the plaintiff sued for commission in respect of repeat orders continued after and notwithstanding the termination of the agreement". The issue was decided positively following *Bilbee v. Hasse and Company* (9) which was affirmed by the Court of Appeal (see Times newspaper, 16 January 1890) where Bowen, L.J. said:

> The measure of [plaintiffs] payment was to be calculated not by the work done by him, but by the fruits of that work, and those fruits might very well accrue to the defendant after the determination of the agency.

In this appeal had introduced clients to the respondent Corporation who took insurance policies and continued to pay premiums and to renew them, in effect, without further solicitation of the appellant. This is akin to repeat orders. However, we are of the decided opinion that the rule in *Bilbee v. Hasse and Company* (9) is extremely wide. Would the appellant continue to recover commissions in relation to all the clients he had introduced to the respondent Corporation every time they pay premiums or renew their policies? In other words, would commission cease only when these clients stop dealings with the respondent Corporation? We shudder to subscribe to that proposition. But we are willing to say that the appellant is entitled to a commission from these repeated orders, which without his solicitation, passed through his hands during his suspension.

Of paramount concern to us is that these exceptions prove that the rule that commission is not payable during suspension or termination is not absolute. We ask ourselves: are exceptions restricted to these four categories only? We think not. Definitely new situations give rise to new exceptions. The next question then is: do the facts of this appeal provide a new situation necessitating a new category of exception?

The situation in this appeal, as already explained, was caused by the fact that both clients of the appellant and the employees of the

respondent Corporation at Branch Unit 1 were ignorant of the suspension of the appellant. The pertinent issue to us is what is the effect of this communication breakdown. Who had the duty to inform these people? What are the consequences of the breach of that duty?

Section 160 of the Law of Contract Ordinance 1961, provides as follows:

> The termination of the authority of an agent does not take ... effect ... so far as regards third persons, before it becomes known to them.

So, the clients of the appellant, who were ignorant of the suspension, were perfectly right to continue transacting business with him. Likewise, had the members of staff of the respondent Corporation been aware, they would not have accepted monies from the appellant and to issue him with receipts. However, we shall deal with these later because they are, strictly speaking, not third persons.

It is unfortunate that that section 160 quoted above does not say who has the duty of informing third parties. Mrs Tenga submitted that the duty was on the appellant. Was that so?

It is trite law that a principal is liable to third parties who, in good faith, deal with an agent on the assumption that he still has authority. The exception is where authority has been terminated by the death of the principal. That was settled by *Drew v. Nunn* (10) and *Debenham v. Mellon* (11). It is, therefore, obvious to us that the duty to make this communication is on the principal. Otherwise if the duty were on the agent, we ask: why is notice exempted where termination is due to the death of the principal? The only answer we can come up with is that upon the death of the principal, notice is dispensed with because the duty bearer is no more.

So, the respondent Corporation failed to discharge that duty in this case. However, the non-disclosure of the termination makes the principal liable to claims by third parties who have not been cautioned. Here it is the agent who makes claims against the principal for the work he had done during the period of suspension.

It baffles us that the respondent Corporation did not inform even its own employees about the suspension of the agency. The appellant could not have been expected to inform those employees. As a Rule the actions of the employees are take to be those of the employer. There has been a nagging thought that despite the suspension of the agency, there was a vicarious performance of the agency contract by the employees. However, since the appellant was fully aware of the suspension then that cannot be the case. We may as well add that we reject the submission of Mr Kashumbugu that there was a new contract of agency formed by the so-called implied revocation of the suspension. There was nothing like that. There were only the liability on the part of the respondent Corporation caused by the actions of their employees.

Mrs Tenga said that the respondent Corporation did not willfully profit from the illegal transactions of the appellant. We are satisfied that the breach of the duty of the respondent Corporation to inform even its own employees brought about the situation in this appeal. It is certain that their laxity caused this mess and enriched them and, if we may borrow the words of Lord Bowen in *Bilbee*, "the measure of [plaintiffs] payment was to be calculated not by the work done by him, but by the fruits of that work" to the respondent Corporation, which they do not deny.

So, how much commission is due to the appellant? Where there is no express contract provision, then a contract to pay reasonable remuneration is implied by Court - *Bryant v. Flight* (12) and *Way v. Latilla* (13). Courts in making such decision are guided by previous negotiation between the parties, and trade custom - *Bower v. Jones* (14) (Some of these authorities are quoted in **Halsbury's Laws of England,** (4 ed), Volume 1(2) paragraph 115 on page 79) .

Here we do not have evidence on any of the two. The contract is silent as to the rate of commission payable. Possibly what the appellant claimed reflects the rate they had agreed on. What he claimed is 17.31%. We agree with Mrs Tenga that the appellant should not get full commission because he did not do the whole work himself. What

the appellant did was to collect monies, send them to the respondent Corporation, obtain receipts and hand them to clients. All the paper work was done by the respondent Corporation. But the measure according to Lord Bowen is not the work done but the fruits of that work. So, we grant the appellant what he has claimed.

It may not be out of place to observe that we did not have the benefit of the submissions of the learned advocates on the authorities discussed in this judgment simply because they did not refer us to any authority.

The appeal is allowed with costs.

ANDREA ALBERT MAKOI v. MARIA ALBERT ANTHONY MAKOI

HIGH COURT OF TANZANIA
AT MOSHI

(Munuo, J.)

CIVIL APPEAL No. 42 OF 2000

(From the decision of the District Court of Moshi at Moshi, in Civil Case No. 83 of 1998)

Customary Land Law – Wills – Will witnessed by six witnesses – Whether the will is valid.

Customary Law – Inheritance – Whether clan land may be bequeathed to female heirs – Customary Law of Inheritance, G N 436 of 1960.

The appellant was sued by his three blood sisters seeking to recover their portions of land which their late father, Albert Anthony Makoi, had given them. The will he left had been witnessed by six people including his wife Susana, the mother of the litigating children. After the death of the father the appellant sought to evict his sisters from the

land. He was prosecuted and convicted for threatening violence and was sentenced to twelve months' imprisonment. When the appellant trespassed upon their land, the sisters sued him in the Moshi District Court. On evidence given by the co- plaintiffs, neighbours and the village chairman confirming that the father of the litigants had distributed his land to his children before he died the District Court found that the late father had bequeathed the land to his daughters and that his will, which had been produced at the trial, was valid. The will had been stamped by Manushi Sinde Village Government and registered under Registration Number 63. In his grounds of appeal the appellant contended the land in dispute was clan land and his father was barred by customary law from distributing it to female heirs.

Held: (i) The will of the late Albert Anthony Makoi was valid having complied with the requirements of the Customary Law of Inheritance published as as Government Notice Number 436 of 1963;

(ii) The heirs of the late Albert Anthony Makoi, both male and female, were entitled to be allocated land and, as the appellant was present when his late father allocated the land to his sisters, he should have sued his late father for the repossession of the land while the father was still alive;

(iii) The appellant had no power or mandate to revoke the will left by his father;

(iv) The female heirs of the late Albert Anthony Makoi are protected not only by the Customary Law of Inheritance but also by International Conventions to which Tanzania was a signatory.

Appeal dismissed

Statutory provisions referred to :

(1) Government Notice Number 436 of 1967, rules 3, 4, 5, 6,10 and 20

(2) Constitution, article13(2), 13(1)(2)

(3) Land Act 1999, section 20(1)(2)

(4) Convention on Civil and Political Rights 1976, article 26

Editorial Note: Female heirs are also protected by the anti-discrimination provisions of the Constitution of Tanzania; see *Ephrahim v. Pastory and another* [1990] LRC (const) 757.

JUDGMENT

(Dated 29 October 2001)

Munuo, J.: In Moshi District Court Civil Case Number 63 of 1998, the co- plaintiff: (1) Maria Albert Makoi (2) Bertha Albert Makoi (3) Margaret Albert Makoi jointly sued their brother Andrea Albert Anthony Makoi for:

(a) a declaration that his appointment as the administrator of the estate of their late father was a nullity for it was not published in any gazette or newspaper;

(b) a declaration that the will of their late father is valid,

(c) an order that the co-plaintiffs are the lawful heirs of the land allocated to them by their late father,

(d) general damages for trespass,

(e) costs of the suit, and

(f) Any other relief deemed fit by the Court

The trial Principal District Magistrate entered judgment for the co-plaintiffs with costs. Dissatisfied the defendant preferred the present appeal.

There is no dispute that the parties are the children of the late Albert Anthony Makoi who passed away on the 22 May 1988. He was survived by his late wife Susana, the mother of the litigants in this case. She too is no longer alive for she died on the 28 January 1995.

There is also no dispute that before the late father of the litigants died, he left a will, Exhibit P1 which was witnessed by six witnesses including his late wife Susan a whereupon he allocated land to the respective co-plaintiffs and the defendant clearly demarcating their parcels of land with the traditional "sale". After his expiry, the defendant purported to differ with the will of the father and attempted to evict

the co- plaintiffs from their land. He was prosecuted for threatening violence in Kindi Primary Court Criminal Case Number 98 of 1995 wherein he was imprisoned for 12 months. Upon his release from prison he trespassed on the land of his sisters, the co-plaintiffs giving rise to this case. Leave to commence the customary land suit in the District Court was granted by this Court per the order dated the 31 March 1998 in the record. There is furthermore no dispute that the suit land is located at Manushi village in Moshi Rural District .

The elder brother of the litigants deposed as the attorney for the first plaintiff. The second and third plaintiffs gave corroborative evidence in support of the claim. Their neighbours PW1 Martin Lorouwa, PW2 Nemes Baltzar and their village chairman PW3 Stanslaus Maridadi testified and confirmed that the late father of the parties to this suit distributed his land to the respective co- plaintiffs and defendant before he died making it clear that nobody should interfere with the land he allocated to each of his daughters, the present respondents.

Despite his father's will, the defendant Andrea Albert, claimed his sisters' land after the death of his father saying it was clan land which cannot be inherited by females. He stated in his defence that being the last born son of his father he has the right to succeed and remain in the homestead of his late father.

The trial Principal District Magistrate held that the late Albert Anthony Makoi had bequeathed land to his daughters, that his will was valid for it was made in the presence of six witnesses including his late wife thereby complying with the provisions of the Customary Law of Inheritance, Government Notice Number 436 of 1963.

The issue is whether the late Albert Anthony Makoi, the father of the litigants died testate.

The will of the late Albert Anthony Makoi, Exhibit P1 states:

SLP 1599

MOSHI

Tarehe 8 Julai 1987

WOSIA

Mimi Ndugu Albert Anthony Makoi nikiwa na akili zangu timamu bila kulazimishwa na mtu yeyote nakubali kutoa wosia kwa hawa wototo wangu wa kiume na wa kike kwani wote ni sawa.

Siku hii ya leo ninatoa wosia huu mbele ya wafuatao:

1. Paul Albert
2. Clemence Baltzar ... Paul Maru
3. Susan Albert ... Martin Mangunuo
4. Martin Larouwo

Kwa somo hili hapo juu ninakubali kutoa au kugawa ardhi yangu nikiwa hahi (hai) kwa wafuatao:

1. Bertha Albert
2. Marikareta Albert
3. Maria Albert
4. Andrea Albert

Shamba hili Mipaka yake ni:

Kaskazini ... Kanisa

Kusini ... Paul Maru

Mashariki ... Barabara

Magharibi ... Matata Nderia

Iwapo mabadiliko yakiwepo nitatoa taarifa kwa kikao hiki ambacho kimesimamia Mirathi hii kubadilisha wasia au kutengua.

Sahihi ya mwenye shamba ... (kidole) ...

Mke wake ... (kidole) ... Mtoto Paul.

Kijiji cha Manushi Sinde

Kata ya Kibosho Magharibi

Wilaya ya Moshi vijijini

Regstration number 63

Tarehe 9 Aprili 1991

S M Massawe.

The will of the late father of the parties was stamped by the Manushi Sinde Village Government and registered in the Village Register under Registration Number 63 as stated earlier on two neighbours PW1 and PW2 witnessed the will for they were called by the testator to witness the partition of his land among the litigants. In that context the Trial Court rightly found the will authentic and valid albert Anthony Makoi was barred by customary law from distributing it to the co-plaintiffs, they being female heirs. There is no merit in this contention. The owner of the land, Albert Anthony Makoi decided to allocate land to his children, the litigants, to ensure that his female issues were allocated land for they are his heirs just as his son, the defendant is. That the deceased father did by writing a will and registering it with the village authority. The Trial Court rightly protected the land rights of the plaintiff daughters which is precisely what their late father did by bequeathing and allocating land to each of them. The appellant male heir got his portion of land and he has no right in law to tamper with the will of his late father or revise the land allocation to suit his needs, desires or prejudices in the name of clan land. Because he was present when his late father allocated the land to his sisters he should have sued for repossession of the land then, not after or behind the back of his deceased father.

The next issue is whether the property rights of the plaintiff daughters are sustained and protected by the law. The answer is positive. One, the late Albert Anthony Makoi allocated his land to the litigants, his heirs in the presence of witnesses including his late wife Susana and his neighbours PW1 and PW2. The Trial District Court found that the will of the deceased complied with rules 3, 4, 5, 6, 10 and

20 of Government Notice Number 436 of 1963 the Law of Wills embodied in the 1963 Customary Law Declaration.

In that regard the will is valid and the wishes of the testator must be respected. The appellant son has no mandate to revoke the will of his late father in any event. That means the litigants are each entitled to possess the land their deceased father, Albert Anthony Makoi, allocated to each of them before he died for that is how he distributed his estate. The property rights of the daughters are therefore firmly protected by Government Notice Number 436 of 1963, rules 3, 4, 5, 5, 10 and 20.

The property rights of the respondent are also protected by Article 13(1)(2) of the Constitution of the United Republic of Tanzania, 1977 which guarantees equality and equal protection before the law. Article 13(2) goes further and denounces all forms of discriminatory laws in the United Republic. In that regard any customary law barring a father or parent from bequeathing his lawfully acquired land or other property to his female heirs would be unconstitutional and therefore null and void pursuant to Article 13(2) of the Constitution of this country and also the Village Land Act 1999, section 20(1)(2).

The spirit and letter of Article 13(2) of the 1977 Constitution of the United Republic is reflected in several International Human Rights norms notably:

Article 7 of the Universal Declaration of Human Rights (UDHR) guarantees equality before the law by stating:

> Article 7.
>
> All are equal before the law and are entitled without any discrimination to equal protection of the law. All are entitled to equal protection against any discrimination in violation of this Declaration and against any incitement to such discrimination.

It should be noted here that the 1977 Constitution of the United Republic of Tanzania recognizes the UDHR and all human rights normas under Article 9(f) and (h) which provides:

9(f) Kwamba heshima ya Binadamu inahifadhiwa na kudumishwa kwa kufuata kanuni za Tangazo la Dunia kuhusu Haki za Bindamu.

and

(g) ...

(h) Kwamba aina zote za dhuluma, vitisho, ubaguzi, rushwa, uonevu au upendeleo zinaondolewa nchini.

In the light of the provisions of Article 9(f) and (h) of the 1977 Constitution of the United Republic of Tanzania, Customary laws barring female issues from inheriting land are unconstitutional and illegal and cannot therefore be protected by the law. That is to say, once the deceased father allocated land to his daughters, no customary law could be invoked to revoke the bequest provided, as was the case here, the testator had title over the land he passed to his respective heirs because the Constitution does not provide for discriminatory practices or laws.

Still on the domestic and international law against all forms of discrimination, Article 26 of the Convention on Civil and Political Rights, 1976 reinforces equality before the law and protection against discrimination by stating;

Article 26

All persons are equal before the law and are entitled without any discrimination to the equal protection of the law.

In this respect, the law shall prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground such as race colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status;

Tanzania ratified the Convention on Civil and Political Rights on the 11 June 1976. This human rights international norm is applicable to our domestic jurisprudence under the provisions of article 9(f) of the 1977 Constitution of the United Republic of Tanzania which recognizes human rights.

The late Albert Anthony Makoi's bequest of land to his female issues is further protected by the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), an international human rights law which this country ratified in 17 July 1980 thence making it applicable under Article 9(f) of the 1977 Constitution of the United Republic of Tanzania; the lack of domestication by Parliament notwithstanding. CEDAW notes that "the Charter of the United Nations reaffirms faith in fundamental human rights, in the dignity and worth of the human person and in the equal rights of man and women ..." and is:

Concerned, however, that despite those various instruments extensive discrimination against woman continues to exist ...

and is convinced that the establishment of the new international economic order based on equity and justice will contribute significantly towards the promotion of equality between men and women and calls on states, under Article 2(b), (c), (d), (f), (e) to eradicate discriminatory customs by stating:

2(b) To adopt appropriate legislative and other measures, including sanctions where appropriate, prohibiting all discrimination against women.

(c) To establish legal protection of the rights of women on an equal basis with men and to ensure through competent national tribunals and other public institutions the effective protection of women against any act of discrimination;

(d) To refrain from engaging in any act or practice of discrimination against women and to ensure that public authorities and institutions shall act in conformity with this obligation,

(e) To take all appropriate measures to eliminate discrimination against women by any person, organization or enterprises.

The late Albert Anthony Makoi may not have been aware of CEDAW or even human rights recognized by our domestic law but he recognized equality and the worth of each of his heirs and allocated land to his female and male heirs equally. To eliminate discrimination and pursuant

to Article of CEDAW and the other international human rights norms I referred to earlier on, and in compliance with our constitutional provisions which outlaw all forms of discrimination, the lower Court and this Court reinforces the will of the late Albert Anthony Makoi and upholds the deceased's allocation of land to his three daughters as well as to his appellant son.

Under the circumstances the appeal is totally lacking in merit. The appeal is accordingly dismissed.

There shall be no order for costs because the respondents defaulted in appearance.

SHIJA SWEKE *v.* REPUBLIC

HIGH COURT OF TANZANIA
AT MWANZA
(Mlay, J.)

CRIMINAL APPEAL No. 57 OF 2001

(From the decision of the District Court of Mwanza at Mwanza, Kabengwe, Esq., District Magistrate, in Criminal Case No. 1301 of 2000)

Criminal Practice and Procedure – Charges – Charge of stealing by servant – Sections 265 and 271 of the Penal Code Chapter 16.

Criminal Practice and Procedure – Charges – Charge of stealing of property followed by a charge of being in possession of property unlawfully acquired – Charge of being in possession of property unlawfully acquired relating to property acquired by using proceeds of the theft – Whether the charge is proper.

Criminal Practice and Procedure – Sentencing – Compensation order – A compensation order must be precise and must show the law under which it is made.

The appellant was charged with and convicted of stealing by servant on the first count and of being in possession of goods suspected to have been stolen or unlawfully acquired on the second count. He was sentenced to three years' imprisonment on each count, the sentences to run concurrently. It was alleged, on the first count that the appellant had stolen an assortment of motor vehicle spares valued at TZS. 3 368 000, the property of his employer, and on the second count that he had been found in possession of one dwelling house, two grinding machines and one motor cycle all valued at a total of TZS. 21 950 000. The thefts were said to have taken place between January and August 2000, and the property was said to have been found in his possession between July 1993 and May 2000. At the trial the prosecution led evidence showing that apart from being a driver the appellant had also carried spares to different shops of the complainant within Mwanza. It was alleged that on 8 August 2000 he had been seen trying to hide a piston ring which was variously described by witnesses. As a result between 7 and 9 October 2000 an inspection of the store was made and a list of spare parts shown in the particulars of the first count were found missing. The matter was reported to the police on 8 December 2000 and the appellant was arrested the following day. The appellant denied the charge. He said after having a salary dispute with his employer he had been asked to surrender the motor vehicle to someone else. The employer had, on 12 August 2000, proposed to reduce his salary but the appellant refused and demanded his terminal benefits. He narrated, with documentary Exhibits, how he came to own the property he had, adding that the case against him was framed because the employer was trying to avoid liabilities. The trial magistrate found that the appellant had been employed by the complainant; he convicted the appellant and sentenced him to three years' imprisonment on each count, and ordered all Exhibits tendered in Court to be forfeited immediately so as to compensate the complainant, these included documentary Exhibits tendered by the appellant and some Exhibits tendered by the employer.

Held: (i) There was no evidence adduced to shown that the spare parts said to have been stolen had in fact been in the shop before the alleged theft; even if there had been such evidence the prosecution did not prove that the missing spare parts could

not have been the ones which had been taken to various branches belonging to the employer,

(ii) There was no evidence that the appellant had purchased the property listed in the second count with funds stolen from the complainant or derived from the sale of the alleged stolen spare parts;

(iii) Where a charge of stealing of property has been preferred in one count it is wrong to prefer a second count of being in possession of property suspected to have been stolen or unlawfully acquired if the second count relates to property acquired by using the proceeds of the theft charged in the first count;

(iv) The principle of possessing property whose value is disproportionate to the known source of income of a person is not applicable to a charge of being in possession of property suspected to have been stolen or unlawfully acquired;

(v) A compensation order must be clear and precise and must show under which provision of the law it is being made.

Appeal allowed

Cases referred to:

(1) Jeremia Shemweta v. Republic. [1985] T.L.R 228

(2) Gaidon Nelson Mapunda v. Republic [1982] T.L.R 318

Statutory provisions referred to:

(1) Penal Code Chapter 16 sections 312, 381

(2) Prevention of Corruption Action 1971, section 9(1)

Mr Nasimire and *Mr Muna* for the Appellant

Mr Bulashi for the Respondent

JUDGMENT

(Dated 9 November 2001)

Mlay, J.: The appellant was charged with stealing by servant, contrary to section 271 and 265 of the Penal Code in the first count, and

being in possession of goods suspected to have been stolen or unlawfully acquired, in the second count.

The particulars of the first count were that between January and August, 2000, being an employee of LEMA Enterprises Company, as a shopkeeper, the appellant stole an assortment of motor vehicle spare parts, all valued at TZS. 33 698 000, the property of his employer LEMA Enterprises.

The particulars of the second count were that the appellant between July, 1993 and May 2000 at Mwanza, was found in possession of one dwelling house Plot Number 437 Block J valued at TZS.16 million one grinding machine known as Igogo Milling Machine valued at TZS. 2 3000 000 one grinding machine valued aTZS. 2 250 000 one motorcycle make Honda XLTZ 6497 valued at TZS. 1 million all properties valued at TZS. 21 950 000, the property which is suspected to have been stolen or unlawfully acquired.

The District Court of Mwanza convicted the appellant, of both counts and sentenced him to imprisonment for three years on each count, the sentences to run concurrently. The trial district magistrate also ordered and I quote the order *verbatim*; "All Exhibits which were tendered in Court to be forfeited immediately so as to compensate PW1 lawful and legal procedures to be followed."

The appellant being dissatisfied with the decision of the District Court appealed to this Court. In the Memorandum of Appeal filed on his behalf by Mr Nasimire Advocate, the appellant advanced four grounds of appeal, namely;

1. in the absence of properly analysed judgment the appellant was wrongly convicted.
2. the learned trial magistrate erred in convicting the appellant as there was no evidence on record to show that the appellant did steal the property indicated in the first count;
3. in view of the fact that the second count was concerned with immovable property, the offence of being found in possession of goods suspected to have been stolen or unlawfully acquired was not proved.

4. The learned trial magistrate erred in invoking legal principles which govern corruption cases in the present case which was concerned with totally different offences.

The appellant in effect appealed against the conviction by the trial District Magistrate on both counts.

At the hearing of this appeal the appellant was represented by Mr Nasimire assisted by Mr *Muna,* learned Advocates, and the Republic was represented by Mr Bulashi, learned State Attorney. Mr *Nasimire* on behalf of the appellant, preferred to argue the first two grounds together and the third and fourth grounds.

As regards the first and second grounds Mr Nasimire submitted that the trial Magistrate did not properly analyse the evidence on record and for that reason, the appellant's conviction and sentence on the first count, were not properly grounded. Mr Nasimire argued that going by the evidence on record, there was no proof whatsoever that the items charged in the first count, were ever in the store of PW1, before the store was inspected by PW2 Stivin Ngasa. Equally, there was no proof that those items were ever entrusted to the appellant. Mr Nasimire pointed out in support of this argument that, there were no documents like ledgers, bin-causes or handing over notes put in evidence or any witness who told the Court that he handed over the items to the appellant before the inspection.

Mr Nasimire also questioned the actual inspection by PW2 as to why it was conducted between 7 and 9 October 2000, when the alleged theft of piston rings by the appellant, which prompted the inspection, is alleged to have taken place on 8 August 2000. He also wondered why the alleged theft by the appellant was reported to the Police on 8 December 2000 as stated by PW6 when events had taken place on 8 August 2000 and inspection done by 9 October, 2000.

Mr Nasimire contended that because PW1 did not offer any reason for this inordinate delay his credibility is doubtful on the whole story narrated by him. Mr *Nasimire* also attacked the judgment of trial Magistrate. He submitted that it was not a properly balanced

judgment, and cited *Jeremia Shemweta v. Republic.* (1), which set out that a properly balanced judgment should contain points of determination, the decision thereon and the reason for the decision, but not a mere narration of facts, as it was in the trial Magistrate's judgment. Mr *Nasimire* contended that if the trial Magistrate had considered the matters he has raised above, he would have come to a different conclusion on the first count.

When asked by the Court about the evidence that the appellant was found in possession of piston rings, Mr Nasimire submitted that the District Court was not clear on this matter.

On the second count, Mr Nasimire submitted that the trial Magistrate erred in invoking principles which govern corruption cases. He contended that the appellant was charged with stealing by servant and of being in possession of property suspected to have been stolen or unlawfully acquired, contrary to section 312 of the Penal Code but the trial Magistrate applied the principles enunciated in the case of *Galdon Nelson Mapunda v. Republic* (2) to support a finding that the appellant had property whose value was disproportionate to his known sources of income.

Mr Nasimire submitted that *Mapunda's case* (2), applied where the accused is a public officer charged with an offence under section 9(1) of the Prevention of Corruption Act 1971. He submitted that the appellant was an employee of PW1 Victor Jonathan Lema and therefore not a public officer and that his explanation on how he acquired the property in question as it appears at page 6 to 8 of the proceedings, was reasonable, in that the appellant offered documentary evidence as to how he came to own the property and also that the history of the acquisition of the property, dates back to a period before his employment by PW1.

Mr Nasimire also contended that property which was permanent fixture like a house or a milling machine could not be a subject of a charge of being in possession of property reasonably suspected to have been stolen or unlawfully acquired. Finally Mr Nasimire argued

that the order of forfeiture cannot stand in the absence of any criminal liability of the appellant.

Mr Muna assisting Mr Nasimire submitted that there was no evidence that the appellant was the only person who had access to the shop where the items charged in the First Count are alleged to have been stolen. On the contrary, Mr Muna argued, the evidence suggests that there were other people who used to work in the shop and who could have stolen the items. On the issue of piston rings which the appellant is alleged to have been found hiding in his trousers Mr Muna argued that there was insufficient evidence adduced in support of the allegation or that evidence was unrealiable contending that PW1 took about 4 months to report the incident to the police and also that the witnesses testifying to it were all employees of PW1 and would not testify contrary to the wishes of their employer.

Both Mr Nasimire and Mr Muna prayed that the appeal be allowed. Mr *Bulashi*, learned State Attorney who appeared for the Republic agreed with the Counsel for the appellant and did not support the conviction. During trial, the Prosecution had called six witnesses.

PW1 Victor Jonathan Lema testified that he was a businessman dealing with spare parts and had his headquarters at Sheikh Amini Street and branches at Miti Mirefu and at Pamba Road in Mwanza. PW1 stated that he employed the appellant in 1993 as a driver but the appellant also sent spare parts to the branches from the headquarters and operated as shopkeeper taking spare parts from the store and showing them to customers. According to the testimony of PW1 on 8 August 2000 at 11:00am while working at his headquarters shop at Sheikh Amini Street, he saw the appellant putting something inside his underwear. PW1 asked he appellant "Unafanya nini" (what are you doing?) and the appellant replied *"Bosi ni hii piston ring moja"*.

PW1 went on to say he called three of his employees Richard Mushi PW5, Malegesi Magambo PW3 and Saidi Muccadam, who did not give evidence, to ask the appellant what he had done and the appellant replied: *"Ni hii tu set moja ya ring piston nimechukua.*

(it is only this one set of piston rings which I have taken). Allegedly the appellant showed PW1 and the three employees the said piston rings and the set *included three pieces in* box [emphasis supplied].

PW1 stated that he ordered the employees to hold a short meeting after working hours, meanwhile they continue with their daily work. PW1 sent the appellant to his store at Miti Mirefu to start an engine but the appellant disappeared and was not seen until the day he was arrested on 9 December 2000. PW1 testified that when the appellant disappeared, he ordered PW2 to make "a serious check up" and PW2 discovered several items stolen and PW1 surrendered the "list of stolen things" to the investigator PW6 [emphasis supplied].

The items found stolen are the 22 items which are the subject matter of the first count. PW1 went on to say that he successfully discovered that the appellant owned valuable assets which are the subject matter of the second count. According to the testimony of PW2, he was an Accountant employed by PW1 to deal with accounts and stock taking since May, 2000. PW2 said he knew the appellant who was employed by PW1 and the appellant was assigned several duties such as driving, store duties, taking spareparts from the store to the shop.

On 8 August 2000 PW2 left the appellant at the store but when he returned after 1:00pm PW2 did not find the appellant at the store. PW1 was told by PW1 what had transpired at the store. PW1 told PW2 to be patient may be the appellant would repent but later ordered PW2 to conduct stock taking between 7 and 9 October. PW2 testified that having conducted Stock taking he discovered that several things were stolen from the store and from the headquarters at Sheikh Amini Street. According to the testimony of PW2 the things were stolen between May and August 2000. PW2 submitted his report to PW1. The things found stolen by PW2 are the subject of the first count.

PW3 Malegisi Magambo testified that he was a Salesman employed by PW1 and his job was to sell tyres at the headquarters at Sheikh Amini Street PW3 supported the evidence of PW1 that on 8 August

2000 having been called by PW1 he witnessed the appellant having piston ring set hidden in his underwear. The piston ring box was written NPR or something like that. Later the appellant went missing until he was arrested. PW3 identified the piston ring box in Court.

In cross examination by the accused PW3 said the appellant performed several duties including being a driver, depending on the wishes of PW1.

PW4 also an employee of PW1, testified that the appellant was assigned different jobs on different occasions, including picking up children from school taking spare parts from store and packing items for customers. PW4 testified that on 8 August 2000 at 11:00am he was at Miti Mirefu Store. PW1 phoned PW4 that appellant and PW5 would go to Miti Mirefu to test an engine. According to PW4, the appellant and PW5 came but PW5 left shortly to look for a mechanic and the appellant who was left behind left soon thereafter never to be seen until the day PW4 saw him in Court.

PW5 Richard Mushi gave evidence which supported the evidence of PW1 and PW3 on the appellant being found with a piston ring box which was hidden inside his underwear. The box was written "NPR". According to PW5 the appellant apologised and they decided to hold a meeting later. PW5 said he was sent by PW1 to accompany the appellant to Miti Mirefu to switch on an engine but when PW5 returned from tracing mechanic, the appellant had disappeared.

PW6 the investigating officer gave evidence to the effect that 8 December 2000 he recorded the statement of PW1 and a police case file IR/7414/2000 was opened on the same day. PW6 was told by PW1 of the things stollen, visited the store where the piston ring was stolen and took the piston ring marked NPR and on 9 December 2000 arrested the appellant at his grinding machine at Igogo.

PW6 testified that he asked the appellant about the properties he owned, a house on Plot 437, one motorcyle TRD 6764 one grinding machine at Igogo and a grinding machine at Mkuyuni, but the appellant did not have anything to say.

PW6 said that in his investigations he found out that the appellant worked as a driver, a Salesman and a shopkeeper. PW6 also stated that he saw the appellant's house, the grinding machine at Igogo and motorcyle but did not see the grinding machine alleged to have been at Nyambiti.

In a nutshell this was the evidence adduced by the prosecution in support of the two charges against the appellant. In his defence the appellant denied both charges. The appellant gave a history of his employment dating back to 1983 and having been employed by several employers outside Mwanza. The appellant produced documentary evidence of such employment as Exhibit D1.

As stated that he was employed by PW1 in July 1993 and that he was employed as a Tipper driver. The appellant did not say anything about working as shopkeeper, salesman or storekeeper. He went on to narrate about a salary dispute between himself and PW1 having been asked to hand over the motorvehicle he was driving to someone else while at Chato and instructed to return to Mwanza.

According to his testimony the appellant reported to PW1 at his home on 12 August 2000 and PW1 proposed to reduce the appellant's salary if he was to remain employed. The appellant refused and asked PW1 to pay him his terminal benefits. Between 30 June 2000 and 29 July 2000 PW1 paid the appellant the total of TZS. 60 000 in three instalments of TZS. 30 000, 3 000 and 27 000.

The appellant went on to narrate how he acquired a plot in 1987 and started constructing the house charged in the second count in 1990. The appellant also testified and gave documentary evidence of how he purchased the motorcyle in Arusha in 1991 and the grinding machine at Igogo he purchased in Arusha in 1989 and produced the purchase agreement as Exhibit D4.

The appellant alleged that the case against him that he obtained the property illegally was cooked up to help PW1 avoid liabilities.

The trial District Magistrate having narrated the evidence of both the prosecution and the defence found as proved that the appellant

was employed by PW1. However, apart from that finding the trial Magistrate made no pretext of evaluating the evidence of demonstrating how he reached the decision that the appellant was guilty of stealing the assortments of spare parts enumerated in the First Count.

The only cogent evidence on the First Count is the testimony of PW1 and PW2. According to PW1 the theft was discovered by PW2 after doing a stock taking following the disappearance of the appellant after he had been found trying to hide a box of piston rings in his underwear. However, although PW2 testified that he made stock taking and discovered the theft, there is no scintilla of evidence as to how that theft was established. There was no evidence adduced by the prosecution to prove that the spare parts in question were in fact in the store before the alleged theft believed to have occurred between May and August 2000. There were no store ledgers referred to or produced. It is equally puzzling how PW2 established the time when the alleged theft took place.

Assuming that there was any theft, of which there was no evidence, it was in evidence that spares were being taken from the headquarters to the branches on different occasions. However there was no evidence offered to show that the spare parts alleged to have been stolen, were not amongst the spare parts infact sent to the branches. Again as the Advocates for the appellant argued, there was no evidence adduced to prove that only the appellant had access to the spare parts.

On the contrary, the evidence clearly shows that PW1 was working in the shop with the appellant on the fateful day of 8 August 2000 as well as PW2 and PW3. After stock taking PW2 said he submitted a report to PW1 but PW1 stated that PW2 found several items stolen and the list of stolen things he surrendered to the investigator.

Whether what PW2 prepared was a "report" or a "list" no such "report" or "list" was produced in Court as Exhibit. The only evidence that there were things stolen, is the statement of PW2 in Court and the period of the alleged theft as stated by PW2 differs from that stated in the charge which was between January and August.

Be that as it may, in the absence of any evidence providing that the appellant actually took away the items alleged to have been stolen, if the evidence of PW2 is of any value, it is to prove that after stock-taking, he discovered a loss of those items. I have already stated that even such loss was not proved to have existed. However, even if we assume that the loss was proved, proof of loss of the items, does not amount to proof of theft of those items. For theft to be proved there must be evidence that the appellant took those spare parts and with the intention of depriving PW1 permanently of those spare parts. As I have stated there was no such proof.

The prosecution evidence adduced by PW1, PW3 and PW5 is to the effect that the appellant was found to have hidden either "a piston ring" or "a box of piston rings" or "a set of piston rings," in his underwear, while the appellant was still inside the store of Sheikh Amini Street headquarters.

Even if this evidence was believed, the offence committed was an attempt to steal by servant, contrary to section 381 of the Penal Code. As the appellant had only put the box or piston ring or set of piston rings under his underwear but he was still in the store his conduct at best was a mere attempt.

Even assuming that the conduct of the appellant amounted to stealing, the theft of that "piston ring" or box of piston ring "or" set of piston rings" on 8 August 2000, would not constitute proof of theft of all the other spare parts enumerated in the first count, which were allegedly stolen between May and August 2000, or January and August 2000.

In the circumstances I am satisfied that the appellant was wrongly convicted of the offence of stealing by servant, as charged in the first count. If the trial magistrate had bothered to evaluate the evidence I have no doubt that he would have reached the same conclusion. I have stated that the conduct of the appellant may have amounted to an attempt to steal. However, the evidence is unclear as to what exactly the appellant was found to have hidden under his underpants.

At the Preliminary Hearing in the list of Exhibits, there is a reference to "One piston ring". In the evidence of PW1 the appellant is quoted to have said:

"Bosi ni hii *piston ring tu"* and later "Ni hii tu *set moja ya piston ring* nimechukua" while PW1 himself said the appellant showed them the *said "piston ring"* and later, said, "it includes *three pieces in a box"* on the other hand PW3 said he saw that the appellant had hidden *a piston ring s*et inside his underwear but later on PW2 said there were piston rings in a box written NPR".

PW5 also spoke of a *piston ring* box hidden inside the appellant's underwear. It is noteworthy that in the list of items alleged to have been stolen, items 14, 15, 16, 17, 18, 19 and 20 are different sets of rings of different sizes different from piston rings of "NPR" type or the piston ring found on the appellant, which was not even among the sets of rings listed in the charge. It appears even the police did not believe that set was stolen and did not therefore include it in the charge. Be that as it may, considering that the evidence of prosecution witnesses is unclear as to what exactly was found to be hidden by the appellant, it is unsafe for this Court to find that the appellant was guilty of the offence of attempting to steal a piston ring or any spare part.

On the second count the evidence shows that the appellant was suspected to have stolen or obtained unlawfully, the properties charged because it was believed that he had stolen the spare parts charged in the first count. The only evidence is that of PW1 and PW6. The effect of that testimony is that the appellant had stolen the spare parts, disappeared and found to own property which is suspected to have been stolen or unlawfully obtained.

The charge was brought under section 312(b), which is not an entirely correct citation. The proper provision is section 312(1)(b) which provides:

Any person who:

(a) ...

(b) is found by any police officer in possession or having control over any property which may, having regard to all the circumstances, be reasonably suspected of having been stolen or otherwise unlawfully acquired.

Subsection (2) defines "unlawfully acquired" to mean acquired in circumstances which constitute a criminal offence under any written law:

(a) as consideration of any sale, barter or other disposition of any property so unlawfully acquired; or

(b) by way of purchase with funds, the whole or any part of which was so unlawfully acquired.

In the circumstances of this case, the only basis for reasonable suspicion or the only way the appellant can be said to have "unlawfully acquired the property", is by means of stealing. There was no evidence suggesting any other circumstances of reasonable suspicion or unlawful acquisition.

For the conviction for the offences, to be grounded, the prosecution had to show that the appellant purchased them with funds the whole or part of which was stolen or deriving from the sale of stolen spare parts. We have already found that there was no scintilla of evidence that the appellant had stolen any of the spare parts as alleged in the first count or any other property or funds of PW1 or any other person.

Even assuming that the appellant was found guilty of stealing from PW1 the spare parts listed in the first count, the provision to sub section (3) of section 312 suggest that a person cannot be convicted of both stealing the property and also of being found or having possession of property reasonably suspected to have been stolen or unlawfully acquired in connection with the same stolen property. The trial Magistrate did a somersault by applying the principle of "possession of property whose value is disproportionate to one's known sources of income" as was stated in the case of *Gaidon Nelson Mapunda v. Republic* (2). As Mr Nasimire correctly argued, this principle applies only

where a public officer has been charged with an offence under section 9(1) of the Prevention of Corruption Act 1971.

The test of the unlawfulness of the possession of property under section 312 of the Penal Code is as stated in the definition of "Unlawfully acquired" in subsection 2(a) and (b) of that section, as I have demonstrated earlier in this judgment. Whereas possession of property disproportionate to known sources of income may raise a presumption of corruption against a public officer under section 9(1) of Act 16 of 1971, possession of such property by a private person, does not *ipso facto* constitute reasonable suspicion that the property was stolen or unlawfully acquired.

The trial magistrate therefore misdirected himself in applying the case of *Gaidon Mapunda* to the facts of the charge against the appellant under section 312 of the Penal Code. It is my considered opinion the appeal against conviction of the appellant on the second count must succeed.

In addition to sentencing the appellant to imprisonment for 3 years on each count, the trial magistrate ordered that *"all Exhibits which were tendered in Court to be forfeited immediately so as to compensate PW1 lawful and legal procedure to be followed"* The trial magistrate did not indicate the provision of the law under which the order of forfeiture was made.

Secondly, apart from the list of Exhibits as it appears in the proceedings of the preliminary Hearing, there is nothing in the proceedings to show that apart from item (I) on the list of Exhibits, any of the other Exhibits, namely one motorcyle XL TZD 6467 House on Plot Number 437 Block J, grinding machine situate at Igogo and grinding machine situate at Kwimba, were ever produced in Court and the grinding machine at Kwimba was not even proved to exist.

Thirdly the order of forfeiture was so recklessly given that it covered "all Exhibits produced in Court" including the piston rings belonging to PW1 and the documentary Exhibits D1 – D5 produced by the appellant. Be that as it may, as there was no proof of commission of any of the two offences for which the appellant was charged, it follows that the order of forfeiture must fall on the side. I allow the appeal, quash the conviction of the appellant on both counts and set aside the sentence and order of forfeiture and compensation. The appellant should be released from custody with immediate effect, unless he is otherwise lawfully held.

CRDB (1996) LTD *v.* BONIFACE CHIMYA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM
(Makame, Ramadhani and Lubuva, JJ.A.)

CIVIL APPEAL No. 57 OF 1999

(From the Ruling of the High Court of Tanzania at Dodoma, Msoffe, J. dated 26 November 1997, in Civil Case No. 11 of 1997)

Civil Practice and Procedure – Limitation of Actions – Action for declaratory orders – Limitation period for an action for declaratory orders – Law of Limitation Act 1971, first Schedule, Part I, item 24.

Limitation of Actions – Torts – Action for the tort of trespass to goods – Point in time when the tort becomes actionable.

Torts – Tort of Conversion – Factors constituting the tort of conversion.

Limitation of Actions – Torts – Tort of conversion – Running of time against an action for conversion – Point when time starts to run.

On 31 May 1993 the respondent obtained a loan from the appellant for a vineyard farm and animal husbandry project. He then failed to repay the loan as agreed and on 24 March 1994 the appellant seized the respondent's motor vehicle. The respondent tried to have it returned to him in vain. On 4 October 1996 the appellant wrote to the respondent telling him that he would not return the motor vehicle to the respondent. On 21 July 1997 the respondent filed a suit against the appellant for (a) a declaratory

order that the appellant had no legal justification under the loan agreement to seize the respondent's property, and (b) damages for trespass and conversion. The appellant raised a preliminary objection to the effect that the whole suit was barred by the Law of Limitation Act 1971. The High Court dismissed the preliminary objection and held that the torts of trespass and conversion arose from 1996, when the appellant communicated its refusal to return the motor vehicle, and so the suit was not time-barred when it was filed on 21 July 1997.

Held: (i) It is common knowledge that the period of limitation to any Court action runs from the date on which the right of such action accrues and the period is prescribed under the Law of Limitation Act 1971;

(ii) What was sought in this case was, among others, a declaratory order, the period of limitation prescribed for which is six years; therefore the suit was filed well within time in respect of the declaratory order sought, whether the relief sought was ancillary or incidental to the substantive relief, the period of limitation remains the same;

(iii) Trespass to goods is actionable *per se* and there was no reason for the respondent, whose motor vehicle was unlawfully seized on 24 March 1994, to wait until 21 July 1997 to institute the suit for trespass; therefore, as the period of limitation prescribed for trespass is three years, by 21 July 1997 when the suit was filed for the tort of trespass, that suit was time-barred;

(iv) The the tort of conversion is constituted by an act or a series of acts of wilful interference, without lawful justification, with any property in a manner inconsistent with the right of another person, whereby that other person is deprived of use and possession of the property, and to establish that the act of interference with the property was unlawful, it must be shown that demand was made for the release of the property and the demand was not complied with; otherwise, without such indication of refusal to hand over the property to the plaintiff upon demand to do so, adverse detention of the property may not be proved;

(v) Since refusal to release the property was indicated on 4 October 1996, the suit for conversion was, as held by the High Court, instituted in time.

Appeal only partly allowed; case remitted to the High Court for hearing

Statutory provisions referred to:

(1) Law Limitation Act 1971, section 3(1) items 20, 24

(2) Civil Procedure Code Order VII, rule 6

Mr Rweyongeza and *Mr Mwakipesile* for the Appellant

Mr Njulumi and *Mr Lugua* for the Respondent

JUDGMENT

(Dated 14 November 2001)

Lubuva, J.A.: This appeal arises from the decision of the High Court (Msoffe, J.) dismissing a preliminary objection that the suit was time-barred. The background giving rise to the matter is brief and straightforward. The respondent, Boniface Chimya instituted in the High Court a suit against the appellant, respondent, Co-operative and Rural Development Bank (1996) Limited. Among others, the respondent sought a declaratory order that the appellant had no legal justification under the Loan Agreement to seize the respondent's motor vehicle, and damages for trespass to property and conversion. On the basis of a loan agreement dated 31 May, the respondent obtained from the appellant bank a loan of TZS. 5 738 000 which was to be repaid by instalments. The loan money was for the development of a vineyard farm and animal husbandry project. It is apparent that the respondent also purchased a KIA type of motor vehicle registration number TZB 7706 for the project. As the respondent had failed to effect the instalments according to the loan agreement, on 24 March 1994, the appellant seized the respondent's motor vehicle registration number TZB 7706. Prior to institution of the suit, the respondent had unsuccessfully demanded the appellant to hand over the motor vehicle to him. In response to the respondent's demand, on 4 October 1996, the appellant wrote the respondent a letter refusing to hand over the motor vehicle. As just indicated, the respondent instituted the suit.

When the case was called on for hearing the appellant took a preliminary objection that the suit was filed out of time. The thrust of the appellant's contention was that as the suit was found on the tort of trespass, it should have been instituted within the period of three years from the date the vehicle was taken as provided under section 3(1) of the Law of Limitation Act number 10 of 1971 (hereinafter referred to as the Act). The learned judge held that the torts of trespass and conversion arose from 10 April 1996 when the appellant communicated his refusal to hand over the motor vehicle. Consequently, he dismissed the preliminary objection on the ground that the period between 10 April 1966 and 21 July 1997, when the suit was filed was within the three years prescribed under the Law of Limitation Act 1971. The appellant has appealed against this decision.

Before us in this appeal the appellant was represented by Mr Rweyongeza assisted by Mr Mwakipesile, learned counsel. The respondent was advocated for by Mr Njulumi and Mr Lugua, learned advocates. In the Memorandum of Appeal three grounds of appeal were raised. First, that as the Declaratory Order sought was an ancillary relief the learned judge misdirected himself in law in holding that the period of limitation was six years. We need not be delayed by this submission which, in our view, has no merit. As correctly submitted by Mr Njulumi, it is common knowledge that in this country the period of limitation in relation to any proceeding in Court from the date on which the right of action accrues for such proceeding is prescribed under the Law of Limitation Act 1971.

In this case, there is no gainsaying that item 20(1) of the plaint among others, seeks a declaratory order that the appellant had no legal justification under the loan agreement to seize the motor vehicle. Under the Act we are clear in our minds that a Declaratory Decree falls under item 24 in Part I of the First Schedule to the Act. The prescribed period of limitation is six years. From 24 March 1994, when the motor vehicle was seized to 21 July 1996, the time when the suit was instituted, it is a period well within the six years prescribed by law. As the basis of the claim was a declaratory order, we think it

does not matter whether the relief sought was ancillary or incidental to the substantial relief as claimed by Mr Rweyongeza. We think the period of limitation prescribed under the law is the same, *viz* six years. We are satisfied that the learned judge was correct in holding that the limitation period was six years. Mr Rweyongeza's criticism of the judge on this point is, with respect, baseless, we dismiss it.

Grounds two and three concern the torts of trespass and conversion. The gravamen of Mr Rweyongeza's complaint was that the learned judge misdirected himself in law in holding that for the torts of trespass and conversion, the cause of action arose on 10 April 1996, when the appellant refused to hand over the motor vehicle. In support of this ground, the following reasons were advanced. First, contrary to what the learned judge held, the cause of action arose on 23 March 1994, when the motor vehicle was unlawfully seized. The respondent's right of action in the suit accrued on this date, in which case, he further contended, the period of limitation relating to the proceeding in this suit commenced to run from this date. In the instant case, he said, if the period of limitation is computed from this date, the three years period of limitation prescribed under the Act for suits founded on tort had long elapsed by 21 July 1997, when the suit was instituted. Second, in circumstances where, as in this case, the taking of the property was unlawful *ab initio*, the time of limitation starts to run from the date when the property was seized. He said there was no reason at all for the aggrieved party to wait for the refusal to release the property upon demand before filing the suit. Third, the suit having been instituted after the expiration of the period of limitation prescribed under the Act the learned judge should have dismissed it under the provisions of Order VII, rule 6 of the Civil Procedure Code. The reason he said was that in the pleadings no ground had been shown upon which the suit was to be exempted from the clear requirement of the law on limitation. Fourth, no distinction was made by the learned judge between lawful and unlawful seizure of the motor vehicle. In this case, Mr Rweyongeza went on in his submission, where, the seizure of the motor vehicle was unlawful *ab initio*, had the learned

judge addressed this fact, he would have come to the finding that the suit was time-barred.

Dealing with the torts of trespass and conversion the learned judge was of the view that the torts of trespass and conversion are closely interlinked. We agree with this view. Regarding the narrow distinction between the torts of trespass and conversion, the learned authors Heuston and Buckley in **Salmond and Heuston on the Law of Torts,** (21 ed) at page 94 have stated:

> The tort of trespass consists in committing without lawful justification an act of direct physical interference with goods in the possession of another person. It is trespass to take away goods. The tort of trespass is wider than conversion in that a mere act of interference is sufficient ...but it is narrower than conversion in that the act of interference must be direct

And at page 95, the learned authors further observe:

> A trespass to goods is actionable *per se* without any proof of actual damage. Any unauthorised touching or removing is actionable.

In this case, it is not in dispute that the motor vehicle was unlawfully seized on 24 March 1994. According to Mr Rweyongeza for the appellant, the cause of action with regard to the torts of trespass and conversion arose on this date. In that situation, he further contended, if the time of limitation is computed from this date, the there years period of limitation prescribed under the Act had long expired by 21 July 1997, when the suit was filed. On the other hand, Mr Luguwa, for the respondent, vehemently countered this submission. He submitted that the cause of action with regard to the torts of trespass and conversion arose on 4 October 1996, when the appellant indicated in its letter refusal to hand over the motor vehicle to the respondent. As indicated earlier, the learned judge was in agreement with Mr *Luguwa's* submission. Consequently, he held that the cause of action with regard to the torts of trespass and conversion arose on 4 October 1996 when return of the motor vehicle was refused. With respect, we think in the circumstances of this case, the learned judge was in error as regards the tort of trespass. We agree with the learned authors in *Salmond and Houston* (*supra*)that a trespass to goods is actionable *per se*. For that reason, we see no reason at all why the respondent in a situation where, as in this case, his property *viz* the motor vehicle was, as conceded by the appellant's counsel unlawfully seized on 24 March 1994, should wait until 4 October 1996, before instituting the suit for redress. It is our view that in circumstances such as here, where, the tort of trespass was committed unlawfully from the outside, the cause of action arose on the date of the commission of the tort of trespass.

In this case, we are satisfied that the respondent's right of action for the proceedings in this case accrued on 24 March 1994 as submitted by Mr Rweyongeza. In that situation, the period of limitation of there years prescribed under the Act for the tort of trespass commenced on this date i.e. 24 march 1994. It follows therefore that by 21 July 1996, when the suit was filed, the period of limitation in regard to the tort of trespass had elapsed. In the event, we agree with Mr Rweyongeza, for the appellant that the learned judge erred in holding that the suit was not time-barred in respect of the tort of trespass. The ground pertaining to the tort of trespass thus succeeds.

We will next deal with the tort of conversion. Broadly stated, conversion is an act or series of acts of wilful interference without lawful justification with any property in a manner which is inconsistent with the right of another person whereby that other person is deprived of the use and possession of the property – see **Salmond and Heston** at page 897. In order to establish that the act of interference with the property on the part of the defendant that general principle is that it should be shown that demand was made for the release of the property but the defendant refused to comply. Without such indication of refusal to hand over the property to the plaintiff upon demand to do so, adverse detention of the property may not be proved. In this case, it was on 4 October 1996, when the appellant indicated its refusal to hand over the motor vehicle to the respondent. Applying this general principle to the instant case, we are satisfied that the learned judge cannot be faulted in his finding that the cause of action

in regard to the tort of conversion arose on 4 October 1996. In that case, we agree with the learned judge that the suit was timeously instituted. We find no merit in this ground, it is dismissed.

In the upshot, and to the extent indicated, the appeal is otherwise dismissed. The case is remitted to the High Court for hearing on merits. Costs in the cause.

CARITAS KIGOMA *v.* KG DEWSI LTD

COURT OF APPEAL OF TANZANIA AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 69 OF 1999

(From the ruling and order of the High Court of Tanzania at Tabora, Masanche, J. dated 17 September 1998 in High Court Civil Case No. 24 of 1997)

Civil Practice and Procedure – Ex-parte judgement – Application for extension of time to apply to set aside ex-parte judgment and (b) setting aside – What the Court must consider in the application.

The appellant was the defendant in the High Court and did not appear when the suit was called for hearing; and an *ex-parte* judgment was consequently given against it. The appellant then filed an application for two orders: first, for extension of time in which to apply to set aside the *ex-parte* judgment; second, to set aside the *exparte* judgment. Purporting to deal with the application as it related to extension of time, the judge proceeded to consider whether the applicant had given good reason for its failure to appear on the date of hearing the case. The judge dismissed the application for extension of time, having found that the applicant had no good excuse for his non-appearance. The judge did not deal with the application to set aside the *ex parte* judgment. The applicant appealed to the Court of Appeal.

Held: (i) While reason for failure to appear on the date of hearing the case is relevant to an application to set aside an *ex-parte* judgment, it is irrelevant to an application for extension of time;

(ii) In an application for extension of time, the question to be considered is whether sufficient cause has been shown by applicant for the delay in applying to set aside the ex-parte judgment.

Appeal allowed

Statutory provision referred to:

(1) Civil Procedure Code Order IX, rule13

Mr Mtaki, for the Appellant

Mr Boaz, for the Respondent

JUDGMENT

(Dated 19 November 2001)

Lubuva, J.A.: In High Court Civil Case Number 290 of 1997, the respondent, KG Dewsi Ltd., a general merchant, import and export undertaking, filed a suit against the appellant, a Christian charity organization based in Kigoma. On 20 March1998, the case came on for mention when it was fixed for hearing on 1 April 1998 and parties were ordered to be served. On 1 April 1998, hearing commenced in the absence of the appellant. Judgment was reserved. On 14 April 1998, in an *ex-parte* judgment, the respondent was awarded payment for TZS. 15 million plus costs and interest at Court rate. Dissatisfied, the appellant sought to have the *ex-parte* judgment set aside. The appellant filed an application for two orders: First, for extension of time in which to apply to set aside the *ex parte* judgment. Second to set aside the *ex parte* judgment. The High Court (Masanche, J.) having dismissed the application for extension of time did not deal with the application to set aside the *ex parte* judgment. This appeal is against that decision.

In this appeal, the appellant was represented by Mr Mtaki, learned counsel, while on the other hand, Mr Boaz, learned counsel, appeared for the respondent. From the grounds of appeal, the essence of Mr Mtaki's criticism against the decision of the learned judge is as follows: That in refusing to extend the time in which to apply to set aside the *ex parte* judgment the learned judge grossly misdirected himself in considering the issue pertaining to the application for setting aside the *ex-parte* judgment when purporting to consider the application for extension of time. That under such a misdirection, the learned judge held that no sufficient cause had been shown for the appellant's failure to appear in Court on 1 April 1998, when the case was called on for hearing. That the learned judge, came to this conclusion because, he was of the view that the appellant was aware of the case. On this premise, Mr Mtaki said the application for extension of time was refused.

With respect, we think there is merit in this submission. A cursory glance through the ruling, reflects the general trend of the learned judge's appreciation of the matter before him. He seems to deal with the application to set aside the *ex parte* judgment instead of the application for extension of time in which to apply to set aside the *ex-parte* judgment a stage which, we think, had not yet been reached. That the learned judge had strayed into dealing with the setting aside of the *ex-parte* judgment is evident from his ruling when among others, he says:

> The applicant's main reason as he puts it, for not coming to Court is that he was not aware of the fact that he had a case in Court. That cannot possibly be true. It cannot possibly be true because the conduct of the applicant after judgment was delivered shows clearly that he knew that he has a case.

This, in our considered opinion, was a misdirection on the part of the learned judge. In considering the application for extension of time, what was relevant and important for consideration was whether *sufficient cause* had been shown by the applicant, the appellant in this matter, for the delay in applying to set aside the *ex parte* judgment. The reason for failure to appear in Court on the date of hearing the case was pertinent and relevant in considering the application for setting aside the *ex-parte* judgment. Based on such a misdirection we cannot with respect, accept Mr Boaz 's submission that the learned judge's decision was justified on this point. It was, with respect, misconceived.

With regard to the application for extension of time, the only crucial issue is whether sufficient cause for the delay in filing the application for extension of time had been shown. Mr Mtaki strongly contended that had the learned judge properly directed himself in the matter before him, sufficient reason had been shown to warrant granting the application. First, he said when the case was heard *ex parte* on 1 April 1998, the appellant was not aware, he was not served. Second, the appellant became aware of the case on 27 May 1998, when he was informed by telephone that an *ex-parte* judgment had been obtained. The following day, on 28 May 1998, an officer of the appellant boarded a train from Kigoma to Tabora where, he instructed Mr Mtaki on 29 April 1998 to handle the case. On 1 June 1998, the application for extension of time in which to apply to set aside the *ex parte* judgment was filed. While conceding that in the circumstances, the application was filed about 3 days out of time, he ardently urged that, that constituted sufficient cause for the delay.

Responding to this submission, Mr Boaz vehemently argued that no sufficient case had been shown to justify the delay. In his view, from the time the appellant became aware of the case there was sufficient time within which the application to set aside the *ex parte* judgment could be lodged. Referring to the provisions of Order IX, rule 13 of the Civil Procedure Code the time expired on 28 May 1998, while the appellant was made aware of the case on 27 May 1998.

With all respect to Mr Boaz, his submission is not supported by any evidence on record. As deponed by Mr Misigalo, the Executive

Director of CARITAS, and Mr *Boaz* does not challenge this fact, the appellant was made aware of the case on 27 May 1998. In that situation, as urged by Mr Mtaki, we accept that the appellant took the earliest opportunity to take the necessary steps in filing the application. On this, the affidavit of Mr Misigalo loudly speaks for itself. For instance, soon after becoming aware of the case, Mr Misigigalo left Kigoma on 28 May 1998 for Tabora where, on 29 May 1998, Mr Mtaki was instructed to handle the case. It is also not disputed that Mr Mtaki after applying for and obtaining copy of proceedings and judgment, duly filed the application for Extension of Time on 1 June 1998. This, as correctly conceded by Mr Boaz, was a delay of about 3 days after the expiry of the six weeks limitation period provided under Order IX, rule 13 of the Civil Procedure Code 1966 for setting aside an *ex-parte* judgment. In the circumstance, having regard first, to the fact that the appellant was not aware of the case, and secondly, the diligent effort made by the appellant soon after he became aware of the case to file the application, we are satisfied that sufficient cause for the delay had been shown. We think, with respect, that had the learned judge properly directed himself to this aspect, he would more likely than not have held that sufficient cause for the delay had been shown.

In the event, and for the foregoing reasons, we allow the appeal and set aside the order of the High Court of 17 September 1998. In consequence thereof, the appellant's application for extension of time in which to apply to set aside the *ex-parte* judgment is granted. The matter is remitted to the High Court with direction to hear the application for setting aside the *ex-parte* judgment by another judge.

The appellant is granted costs in this appeal.

CHARLES s/o MANOO KASARE AND ANOTHER *v.* APOLINA w/o MANOO KASARE

COURT OF APPEAL OF TANZANIA AT MWANZA

(Kisanga, Lubuva, and Lugakingira, JJ.A.)

CIVIL APPEAL No. 84 OF 1998

(From the Judgment and Decree of the High Court of Tanzania at Mwanza, Chipeta, J. dated 29 October 1998, in Civil Case No. 15 of 1993)

Family Law – Matrimonial Property – Contribution to the acquisition of matrimonial property – Whether contribution by the wife must be direct and monetary.

Family Law – Matrimonial Property – Division of matrimonial properties – Property acquired through proceeds from the businesses of both spouses – Whether the wife has a right to such property.

Family Law – Matrimonial property – Division of matrimonial properties – Proportion of the property that the wife may be entitled to.

The appellants were the sons of the late Manoo Kasare who was married to the respondent under customary rites in 1967. In 1992 the husband died. During the life time of the deceased husband, the respondent had her own business in Musoma while the deceased husband had a pombe shop. From the proceeds of the businesses of both, they acquired more properties. After the death of the deceased husband the appellants sought to take over those properties and the respondent sued them for trespass and for a declaration that she was the owner of the properties and, in the alternative, that she be awarded half of the value of the properties. The High Court awarded her TZS. 6 000 000, being a quarter of the value of the properties and TZS. 2 500 000 being her share in the profit of the business. Dissatisfied, the appellants appealed against the decision.

Held: (i) That there was ample evidence to prove the monetary contribution by the respondent towards the acquisition of the properties;

(ii) That a wife cannot be discounted from the business of her husband even if she makes no direct monetary contribution to it; her wifely services during the life time of her late husband from 1967 to 1992 would in itself entitle her to a share in the properties acquired.

Appeal dismissed

Mr *Kahangwa* for the Appellants

Mr Kweka for the Respondent

JUDGMENT

(Dated 19 November 2001)

Lubuva, J.A.: The appellants' father, the late Manoo Kasera was apparently a polygamist. Among other wives the respondent was married to the deceased in 1967 in Mombasa according to customary rites. She lived with her late husband first in Mombasa and later at Musoma until 1992, when Manoo died. During the life time of her husband, the respondent had her own business in Musoma while the deceased husband owned and managed a *pombe* shop. From the proceeds of the businesses of both the respondent and the late Manoo Kasare other properties including Banana Bar and Lodging, Rombo Timber in Musoma and two motor vehicles were acquired, all in the name of the late Manoo Kasare. These properties were the subject of a suit in Mwanza High Court Civil Case Number 15 of 1993, instituted by the respondent against the appellants. The appellants were the sons of the deceased Manoo Kasare born of the other wives.

In the suit, the respondent claimed that after the death of her husband Manoo Kasare, the appellants trespassed to these properties. She sought to be declared the true owner of the properties or alternatively that she is entitled to half the value of the properties which were estimated at a value of TZS. 40 Million. The High Court (Chipeta, J.) decided in her favour holding that the respondent had contributed to the acquisition of the properties in dispute. She was awarded TZS.

6 million being a quarter of the value of the properties and TZS. 2 500 000 as her share in the profits of the business. The appellants were dissatisfied, they have appealed.

Mr Kahangwa, learned counsel for the appellants has filed a ten-point Memorandum of Appeal. In essence however, it is our view that only one central issue is raised. That is whether the respondent contributed towards the acquisition of the properties, the subject of the suit. Mr Kahangwa strenuously contended that the respondent did not contribute towards the acquisition of the properties in the businesses in Banana Bar and Lodge and Rombo Timber. These properties, he urged, were acquired through the earnings of the late Manoo Kasare alone. He went on submitting that as the respondent and her late husband ran their businesses separately, there was no evidence to prove that their earnings were put in one common account. Mr Kahangwa also strongly maintained that the respondent was not credible in her evidence because at some stage she said she and her late husband did business separately in order to avoid misunderstanding. In the same breath Mr Kahangwa went on, she contradicted herself when she said they had one bank account in the name of the deceased husband.

At the outset we wish to observe that the respondent as a wife cannot be discounted from the business even if she did not make direct monetary contribution to the business. As Mr Kweka, learned counsel for the respondent submitted, her wifely services during the life time of her late husband from 1967 to 1992, a period of about 25 years, would in itself entitle her to a share in the properties acquired. In this case, apart from her wifely services, there is, in our view, ample evidence to prove her monetary contribution towards the acquisition of the properties in the Banana Bar and Rombo Timber businesses. The respondent's claim that these businesses and the motor vehicles were acquired by use of the money realised from the businesses of both the respondent and the deceased husband is supported by Ayura s/o Kasare (PW2), the elder brother of the late Manoo Kasare. In his evidence he said:

> From their income they bought an old hut; then they demolished it and built a house. It was in Mkendo area. They also bought a house which is now a Bar – Konyagi Bar. They also bought two small motor vehicles. They got all these from their joint business. They also bought another plot in Lumumba area where they built another house where they live now. That house also has a timber sewing machine. Even that was from their joint earnings.

This evidence quite clearly supports the respondent to the effect that the bar and timber business were acquired from the joint proceeds from the respondent and the deceased husband's business. Furthermore, the evidence of Matola s/o Hassan (PW3) also supports the respondent. In 1967, he was the landlord of the respondent and her deceased husband. According to him, he assisted the respondent and her deceased husband in obtaining a plot where, apparently the Banana Bar building was built. He said the plot was paid for with money from the respondent and the late Manoo Kasare. He also supports the respondent's story regarding the timber business and the two motor vehicles. As these witnesses (PW1, PW2 and PW3) were found by the trial judge to be credible, we agree with Mr Kweka that the learned judge's finding that the respondent contributed towards the acquisition of the properties in dispute was justified.

We may even go further. On record, there is paucity of evidence that the respondent actively took part in the running of these businesses at Musoma. On the contrary, PW2 and PW3 categorically state in their evidence that they did not see the appellants in Musoma assisting in any way in the running of the businesses. This, it seems to us lends support to the respondent's version that the appellants surfaced as it were, in Musoma after the death of the late Manoo Kasare to lay claim on the business in which they had no hand before. So, in these circumstances, we think it is logical that in Musoma, in the absence of the other wives and the appellants who were in Moshi, the respondent was the likely close person available to assist the deceased husband in the running of the business. This, in our opinion, would be another factor in her favour showing that she assisted in running the business.

Finally, Mr Kahangwa had criticised the learned judge in awarding the respondent the amount of TZS. 8 500 000. He contended that no basis had been laid upon which this amount was arrived. With respect to Mr Kahangwa, we find no merit in this submission. In the plaint paragraph 11, the respondent had indicated TZS. 40 million as the worth of the properties involved in the suit. Neither in the Written Statement of Defence nor anywhere else in the trial was this amount controverted. In this light, Mr Kahangwa's submission that this amount was arrived at without any basis is, likewise unfounded. As a matter of fact, the respondent had prayed for half the value of the properties but was awarded only a quarter of the value. Consequently, for the foregoing reasons the appeal is dismissed with costs.

JUMA GARAGE v. CO-OPERATIVE AND RURAL DEVELOPMENT BANK

COURT OF APPEAL OF TANZANIA
AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 58 OF 1996

(From the Judgment and Decree of the High Court of Tanzania at Tabora, Koroso, J. dated 8 September 1994, in Civil Case No. 5 of 1985)

Contract – Privity of Contract – Respondent instructed to act for an insurance corporation – Whether such instruction makes the respondent an agent of the corporation.

Contract – Privity of Contract – Privity of contract and agency – Whether by acting for the principal the agent becomes party to contract.

Agency – Agent acting for Principal – Whether the agent may sue in his own name.

Civil Practice and Procedure – Party to be sued – Whether a party may be sued in a trade name – Order XXIX, rule 10 of the Civil Procedure Code 1966.

The respondent owned a motor vehicle with Registration Number SU 770 which was insured with the National Insurance Corporation (NIC). The vehicle was involved in an accident, which made NIC liable for its repair. NIC took the motor vehicle to the appellant for repairs and later on, when the appellant delayed to complete the work, NIC instructed the respondent to follow up the matter with the appellant. After completion the respondent sued the appellant for general and exemplary damages amounting to TZS. 5 640 000 for loss of use of the motor vehicle, and a further sum of TZS. 78 200 being the cost of replacing some parts missing from the vehicle at the time the respondent took delivery of the motor vehicle. The High Court allowed the claim of exemplary damages, hence this appeal.

Held: (i) The fact that NIC instructed the respondent to follow up the matter with the appellant and that it, NIC, would be responsible for expenses did not mean termination of the contract between NIC and the appellant; the respondent was not party to the contract with the appellant but merely an agent of NIC;

(ii) The appellant was properly sued in his trade name under Order XXIX, rule 10 of Civil Procedure Code 1966.

Appeal allowed

Case referred to:

(1) *Tarlock Singh Nayar and Another v. Sterling General Insurance Company Ltd.* [1966] EA. 44

Statutory provisions referred to:

(1) Civil Procedure Code 1966, Order 29, rule 10

Mr Boaz, for the Appellant

Mr Kwikima, for the Respondent

JUDGMENT

(Dated 19 November 2001)

Kisanga, J.A.: The respondent, the Co-operative and Rural Development Bank (hereafter called the Bank), owned a motor vehicle with registration number SU 770 which was insured with the National Insurance Corporation (NIC). In 1981 that vehicle got involved in an accident and was damaged. NIC, with which the vehicle was insured, contracted with the appellant Garage for the repair of the vehicle at the cost of TZS. 51 722-90. Because of the appellant's long delay to effect the repairs, NIC in July 1983 decided to exchange the mode of settlement. Instead of paying the agreed sum of TZS. 51 722-90 direct to the appellant Garage, it paid that sum to the respondent Bank which should then make a follow up on the repairs and ultimately effect payment for the same. The Bank made a follow up accordingly, the repairs were completed and paid for, and the vehicle was delivered to the Bank in November, 1983 fitted, however, with a different injector pump. The Bank also had to pay for the repairs a sum higher than the originally agreed amount of TZS. 51 722-90. Subsequently, however, the respondent Bank brought this suit against the appellant Garage to recover general and exemplary damages to the tune of TZS. 5 640 000-00 for loss of use of the motor vehicle from March 1983, and a further sum of TZS. 78 200-00 being the costs of replacing some parts missing from the vehicle at the time of taking delivery of it by the respondent Bank. The High Court (Korosso, J.) allowed the claim for exemplary damages in the sum of TZS. 5 640 000-00. It is from that decision that this appeal now arises.

In this Court the appellant was represented by Mr J T Boaz, learned advocate while the respondent had the services of Mr MHA Kwikima, learned advocate. Mr *Boaz* filed and argued a total of five grounds. In the first ground he criticised the trial judge for failing to hold that there was no privity of contract which enabled the respondent Bank to sue the appellant Garage. Learned counsel submitted that the contract to repair the motor vehicle in question was between

NIC and the Garage and that the Bank was only a beneficiary under the agreement. As a mere beneficiary, therefore, the Bank could not sue because it had no right or obligation under the contract, only the parties to it could sue. For this submission counsel referred us to the case of *Tarlok Singh Nayar and another v. Sterling General Insurance Company Limited* (1).

Mr Kwikima did not disagree with this statement of the law. He contended, however, that the respondent Bank was a party to the contract. He took the view that to start with the contract was between NIC and the appellant Garage but that subsequently NIC terminated that contract following which the Bank and the Garage concluded a fresh contract on the same subject matter. Indeed this was the finding of the trial judge, and the question now is whether such view or finding is tenable on the evidence. As noted earlier, there was a long delay between 1981 and 1983 during which the appellant Garage could not repair the motor vehicle. At the same time the beneficiary Bank was persistently demanding from NIC the restoration of its motor vehicle after the repairs were done. It was in these circumstances that NIC decided to change the mode of settlement. NIC effected that change by its letter (Exhibit P4) addressed to the respondent Bank. The relevant part of that letter reads:

Dated 22 July 1983

The Manager,

Tanzania Rural Development Bank,

P O Box 330

Tabora

Dear Sir,

RE: Claim number Vc/11/1836/81

Under Policy number VC 71596 – H

Accident to SU 770 on 18 July 1981

Insured: Tanzania Rural Development Bank

As far as m/s Juma Garage has failed to complete repairs in the agreed period, our Corporation has decided to change mode of settlement of the above claim and pay you cash in lieu of repairs TZS. 51 722-90 instead of paying this amount direct to m/s Juma Garage as costs of repairs.

This change of mode of settlement will give your office a good chance to complete repairs to the remaining parts of the subject vehicle since the whole affairs has been left on your hands.

Enclosed find the discharge voucher for TZS. 51 722-90. Return the same to us soonest duly signed and affixed with stamp duty of TZS. 200 so that we forward it to our H/Office Dar es Salaam for issue of cheque.

Yours faithfully

Branch Manager

It is in reliance of that letter that the trial judge upheld the respondent's averment and found that NIC had terminated its contract with the appellant Garage. Mr *Kwikima* is asking us to re-affirm that finding. With due respect, however, we cannot do so. We can find nothing in the letter which could be construed as amounting to a termination of the contract of repairs between NIC and the appellant Garage. In our view that letter only constitutes the Bank the agent for NIC to make a follow up on and supervise the repair of the motor vehicle by the appellant Garage. In other words the Bank was constituted an agent for NIC to supervise the execution of the contract more effectively while the contracting parties continued to be NIC and the Garage.

There was a Delivery Note (Exhibit P2) by which the Bank, on the instructions of NIC, handed over the damaged vehicle to the Garage for repair. That note bears an endorsement to the effect that the motor vehicle should be ready for collection after 3 to 4 months. For the respondent it was contended that this was a term agreed to between the Bank and the Garage and that it formed part of the contract of repairs which, therefore, entitled the Bank to sue on the contract. We are unable to agree. The delivery note (Exhibit P2) is dated 12

March 1982. But according to the respondent's own contention the Bank became a party to the contract only after NIC had allegedly terminated the contract by its letter of 22 July 1983. That is to say, on the date of the delivery note, the Bank had not come into the picture; the parties to the contract then were NIC and the Garage only. Then how could the Bank negotiate to endorse the term, stipulating time limit, in the contract to which only NIC and the Garage were parties? It was obviously impossible for the Bank to do so, and the said endorsement was of no legal consequence whatsoever.

Again it is undisputed that after the repairs to the motor vehicle were done, the cost thereof was in excess of the agreed sum of TZS. 51 722-90 and the Bank had to settle the excess. Thus the view was taken that the excess amount paid by the Bank constituted consideration under the contract of repairs which entitled the Bank to sue on the contract. In our view the payment of the excess did not make the Bank a party. What the Bank did here was consistent with the role it had assumed under the changed mode by NIC of settling the claim. Under the new mode the Bank was constituted an agent for NIC to supervise more effectively the execution of the contract. Thus the Bank was to make a follow up on and supervise the repairs, and in the end pay for them out of the money given to it by NIC for the purpose while the parties to the contract itself continued to be NIC and the Garage. If, as it turned out, the money so given to the Bank was not enough and the Bank had to pay the excess that was a matter between the Bank and NIC which had given to it the assignment of paying for the repairs. It was open to the Bank to claim re-imbursement of that excess from NIC, but it had nothing whatsoever to do with any agreement of repairs between the Bank and the garage because no such agreement existed.

It is pertinent to observe that Exhibit P4, the letter by which the respondent alleges that NIC terminated the contract with the appellant Garage, was not copied to the appellant Garage. If NIC had intended to terminate its contract with the Garage, one would certainly expect it to copy that letter to the Garage, but it did not.

Furthermore, the reading of paragraph 4 of the Plaint does not support the respondent's contention that the Bank was party to the contract of repairs. That paragraph reads:

> On the 11 March 1982 the plaintiff delivered to the defendants vehicle Number SU 770 (Isuzu Lorry) for purposes of repairing the same on the instructions of the National Insurance Corporation. A copy of the Letter of Instruction is annexed hereto and marked with the letter "A" to which the plaintiff will crave leave to refer to as part of the plaint.

The relevant part of annexture "A" referred to reads:

> Tarehe 10 Machi 1982
>
> Juma Garage,
>
> SLP 402
>
> Tabora
>
> Salaam,
>
> Kuh: Ajali Ya Gari SU 770 Tarehe 18/7/81
>
> Bima Nambari Vc 71596 – H
>
> Mbima: Benki Ya Maendeleo Vijijini Tanzania
>
> Tunakujulisha kwamba Shirika limetoa idhini ya matengenezo kwako ya gari lenye nambari zilizotajwa hapo juu kwa kiasi kisichozidi TZS. 51 772-90.
>
> Baada ya matengenezo kumalizika tutatoa barua nyingine kukuruhusu uwakabidhi wenye gari.
>
> Tunaimani kwamba matengenezo hayo yataanza mara moja
>
> Wasalaam
>
> KNY Meneja Wa Tawi

The reading of the said paragraph 4 of the plaint and annexture "A" thereof makes it plain that the contract forming the basis of the claim in this suit was between NIC and the appellant Garage. Paragraph 5 of the Plaint alleges further that:

5. It was agreed that the repairs to the said vehicle would be completed within 4 months from the date of delivery.

This term is not reflected in the agreement between NIC and the Garage as contained in annexture "A" to paragraph 4 of the Plaint above quoted, and for the reasons already set out above we have rejected the respondent's contention that it formed part of the contract of repairs, it having been agreed to between the respondent Bank and the Garage. Perusing through the rest of the Plaint, there is nowhere it is alleged that the respondent Bank was a party to the contract of repairs. So the respondent is bound by its pleadings and it cannot properly be heard at this stage to plead that it was a party to the said contract of repairs.

In ground 5 of the Memorandum of Appeal Mr Boaz complains that the appellant Garage was wrongly sued as it was not a legal entity capable of being sued. The suit was filed against two defendants, Juma and m/s Juma Garage. The trial judge however, entered judgment against m/s Juma Garage only and Mr Boaz submitted that the said Juma having been left out, it was wrong to enter judgment against Juma Garage only. The pleadings show that Juma and m/s Juma Garage are, in fact, one and the same person, i.e Juma trading as Juma Garage. For, there is a joint Written Statement of Defence signed and verified by one person for the first and the second defendant respectively, and at the trial only one defendant, Juma Ali gave evidence. We think that the case came within the provisions of Order XXIX, rule 10 of the Civil Procedure Code which says:

10. Any person carrying on business in a name or style other than his own name, may be sued in such name style as if it were a firm name; and, so far as the nature of the case will permit, all rules under this Order shall apply.

On the strength of this provision we think that Juma was properly sued in his trade name, Juma garage, and the judgement was rightly entered against him in the said trade name.

The remaining grounds 2 to 4 were filed as alternative to the first ground. Having upheld the first ground that there was no privity of contract which entitled the respondent Bank to sue on the contract of repairs of the motor vehicle, it is futile now to deal with those grounds.

In the event the appeal is allowed. The judgment and decree of the High Court are set aside and the appellant Garage shall recover its costs.

KANTIBHAI M. PATEL *v.* DAHYABHAI F MISTRY

COURT OF APPEAL OF TANZANIA
AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 58 OF 1997

Civil Practice and Procedure – Appeals – Record of appeal – Certificate of delay that must be contained in the record of appeal – Certificate issued before preparation and delivery of a copy of proceedings to the appellant – Whether proper – Rule 83(1) of the Court of Appeal Rules.

Civil Practice and Procedure – Appeals – Preliminary Objection to an appeal – Application to amend record of appeal made after a preliminary objection has been made against the competence of the appeal – Whether such application may be entertained.

Civil Practice and Procedure – Appeals – Notice of Appeal – Parties that are to be served with the Notice of Appeal – Section 77(1) of the Court of Appeal Rules 1979.

Natural Justice – Principles of natural justice – Right to be heard - A party to be directly affected by an appeal but was not a party to proceedings at the

trial – That party has a right to be heard and must be served Notice of Appeal.

The parties were running a partnership business in a grain milling firm known as Mini Millers, operating from Plot Numbers 8 and 9 Block 'A', Mwanza South. At some stage, the appellant retired from the partnership and the respondent, now sole proprietor, transformed the firm into a limited liability company known as Mini Millers Limited. The property comprised in CT Number 033047/109 passed to the company by operation of law. The appellant then filed a suit against the respondent claiming his share of profits, nullification of transfers of the landed properties, costs and other relief. The appellant did not make Mini Millers Ltd a party to the suit. Unsuccessful in the High Court, he appealed to the Court of Appeal. A copy of the Notice of Appeal was not served on Mini Millers Ltd; and the Certificate of Delay under rule 83(1) of the Court of Appeal Rules 1979 was dated 30 September 1997 while the Record of Appeal was delivered to the appellant on 10 October 1997. The respondent in a preliminary objection raised two grounds: that the Record of Appeal did not include a proper certificate under rule 83(1) as it was issued earlier than the delivery of the record to the appellant, and that since one of the prayers in the appeal sought to nullify the transfers of the landed properties, the appellant ought to have served a copy of the Notice of Appeal on Mini Millers Ltd. The appellant submitted that with regard to the certificate there was a typographical error which would have been corrected but the District Registrar who signed it had passed away. On the question of service on Mini Millers Limited, he submitted that it had not seemed to the appellant that Mini Millers Limited would be affected by the appeal, although there had been many references to Mini Millers Limited in the case. In the alternative, counsel for the appellant prayed the Court to permit him to rectify the errors.

Held: (i) A proper certificate under rule 83(1) of the Rules of the Court is one issued after the preparation and delivery of a copy of the proceedings to the appellant and the certificate contained in the Record of Appeal was improper; it might have been an inadvertent error and no mischief was involved but the error rendered the certificate invalid. An error in a certificate is not a technicality which can be glossed over; it goes to the root of the document;

(ii) The prayer to allow the appellant to present a proper certificate cannot be acceded to by the Court because once an objection is taken to the competence of an

appeal, it would be contrary to law to entertain a prayer the effect of which would be to defeat the objection; if such prayers were entertained, rule 100 which permits objections would be negated;

(iii) Since there was no valid certificate under rule 83(1) accompanying the Record of Appeal, the result is that the appellant cannot take the advantage of the exclusion of time in which the appeal ought to have been filed but the time has to be computed from the date the Notice of Appeal was lodged, that is, 8 July 1997 and the appeal was instituted on 13 October 1997 – more than sixty days thereafter; the appeal, therefore, was instituted out of time.

(iv) What rule 77(1) means is that persons who should be served are those persons who took part in the proceedings in the High Court, and those who did not take part in the proceedings but who stand to be directly affected by the appeal; besides, there may be persons who took part in the proceedings but who need not be served if they do not seem to be directly affected by the appeal.

(v) Since one of the prayers in the appeal was to nullify the transfers of landed properties, Mini Millers Limited was directly affected by the appeal;

(vi) On the wording of rule 77(1), on the face of it, the matter seems to lie in the discretion of the appellant to decide which persons "seemed to him" to be directly affected by the appeal, but it is established in judicial interpretation that words and expressions which, *prima facie,* appear permissive may in certain circumstances assume an imperative character; the test is whether there is anything that makes it a duty of the person on whom power is conferred to exercise that power, and when power is coupled with a duty it ceases to be discretionary and becomes imperative;

(vii) Failure to serve the Notice of Appeal on Mini Millers Limited amounted to an attempt to condemn it unheard, which is contrary to the rules of natural justice, and Article 13 (6)(a) of the Constitution.

(viii) Where a person is shown to be directly affected by an appeal, there is no discretion but to serve that person with the Notice of Appeal and where, as in this case, that person took no part in the proceedings in the High Court, it is the Court of Appeal, rather than the appellant, which is vested with power to direct that service need not be effected on that person; rule 77(1) does not constitute the appellant to be a judge in his own cause;

(ix) Omission to serve a copy of the Notice of Appeal on a respondent is fatal to an appeal; it is similarly fatal to omit to serve a person who appears to be directly affected by the appeal although he took no part in the proceedings in the High Court.

Preliminary objection upheld; appeal struck out

Case referred to:

(1) *Minister for Labour and another v. Gaspar Swai and others* [2003] T.L.R. 50

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rules 77(1); 83(1)

Mr Rweyemamu, for the Appellant

Mr Magongo, for the Respondent

RULING

(Dated 19 November 2001)

Lugakingra, J.A.: This is a ruling on a preliminary objection raised on the respondent's behalf when this appeal came on for hearing. The background to the litigation is, as the trial judge observed, rather complex and we will do not more than highlight those areas relevant to the ruling.

The appellant, Kantibhai M Patel, and the respondent, Dahyabhai F Mistry, were partners in a grain milling firm known as Mini Millers. The firm operated from Plot Numbers 8 and 9, Block 'A', Mwanza South comprised in Certificate of Title Number 03347/109. The business was not happy going therefore the appellant instituted a suit in the High Court at Mwanza praying for his share of profits, nullification of transfers of landed properties, costs and any other reliefs. It transpired in the course of evidence that at some stage the appellant retired from the partnership leaving the respondent sole proprietor and the respondent soon transformed the firm into

a limited liability company known as Mini Millers Limited. It also transpired that the property comprised in CT Number 033047/109 passed to the company by operation of law. The suit was dismissed in its entirety and the appellant brought this appeal seeking the same reliefs.

When the appeal was called for hearing, learned counsel for the respondent, Mr Magongo raised a preliminary objection comprising two grounds. First, he contended that the Record of Appeal did not include a proper certificate under rules 83(1) of the Court Rules and, therefore, that the appeal was out of time. Second, he contended that the appellant had omitted to serve a copy of the Notice of Appeal on all persons directly affected by the appeal as required by rule 77(1) and, therefore, that the appeal was incompetent. With regard to the first ground, Mr Magongo pointed out that although the certificate stated that the period 8 July 1997 to 10 October 1997 was to be excluded in computing the time within which the appeal was to be instituted, it was itself issued on 30 September 1997. He submitted that the certificate was invalid as it appeared to have been prepared and issued before the appeal documents were supplied to the appellant a certificate *in futuro*, as it were. Turning to the second ground, Mr Magongo submitted that since one of the prayers in the appeal was nullification of transfers of land properties, the appellant ought to have served a copy of the Notice of Appeal on Mini Millers Limited. in whom the right of occupancy under CT Number 033047/109 had vested as evidenced by Exhibit D3.

Learned counsel for the appellant, Mr Rweyemamu, replied to the argument on the first ground that the date of issuance of the certificate was a typographical error. He maintained that the appeal documents were in fact supplied on 10 October 1997 and fortified the contention with reference to the exchequer receipt issued on that date for the purchase of the documents. He further stated that the error in the date of issuance had been noticed subsequently but it could not be remedied as the District Registrar who issued the

certificate had passed away. He argued that in any case the body of the certificate was correct and invited the Court to overlook the error in the date of its issuance. Alternatively, he prayed that the appellant be allowed to obtain a proper certificate.

On the second ground, Mr Rweyemamu submitted that rule 77(1) requires an appellant to serve copies of the Notice of Appeal on "persons who seem to him" to be affected by the appeal. He submitted that Mini Millers Limited.did not so seem to the appellant because they were a third party. He said, moreover, the proceedings did not make significant reference to the company. Exhibit D3 evidenced a transaction with a third party and had nothing to do with the appellant. But in what seemed to be a change of track, Mr Rweyemamu argued that in any case the Notice of Appeal was served on Mr Magongo who appeared to be counsel for Mini Millers Limited. as well. The company's address was otherwise not on record. He concluded that if the Court itself found that the company seemed to be directly affected by the appeal, it should, instead of striking out the appeal, direct the appellant to effect service of the Notice of Appeal on them. It seems to us that the issues in the preliminary objection are straightforward. Beginning with the first ground, it is at least common ground that the certificate contained in the Record of Appeal is improper. Rule 83(1) provides in part:

> ... there shall, in computing the time within which the appeal is to be instituted be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of a copy of the proceedings to the appellant.

A proper certificate under the rule is, therefore, one issued after the preparation and delivery of a copy of the proceedings to the appellant. The word "as having been required" clearly refer to a past event. The certificate on record purports to operate futuristically and our security of all the copies in the original record consistently met with the normally. We are prepared to agree with Mr Rweyemamu that the date of issuance was an inadvertent error, and no mischief was involved, particularly as the exchequer receipt records that the documents were delivered on 10 October 1997. But what are the

consequences of the error? The simple answer is that it renders the certificate invalid. The very nature of anything termed a certificate requires that it be free from error and should an error crop into it, the certificate is vitiated. It cannot be used for any purpose because it is no better than a forged document. An error in a certificate is not a technicality which can be conveniently glossed over but it goes to the very root of the document. You cannot sever the erroneous part from it and expect the remaining part to be a perfect certificate; you can only amend it or replace it altogether as by law provided.

Mr Rweyemamu's claim that the appellant's side discovered the error but could do nothing because the issuing District Registrar was already dead was, with respect, face saving. rule 83(1) does not stipulate that the certificate must be issued by a particular person. That power is exercisable by any person who is for the time being the Registrar of the High Court, which expression includes a district registrar, a deputy registrar and an acting district registrar. The rule does not, either, provide for the certificate to be issued at a particular time, save only that it may be issued after the preparation and delivery of the record of proceedings. The appellant, therefore, had all the past four years to apply to the High Court for a proper certificate but did not do so. The unfortunate truth appears to be what slipped from Mr Rweyemamu, namely, that once the Record of Appeal is lodged, it is forgotten until the appeal is called for hearing.

Mr Rweyemamu prayed the Court to allow the appellant to present a proper certificate but the prayer cannot be acceded to. The Court had held on a Number of occasions that once an objection is taken to the competence of an appeal, it would be contrary to law to entertain a prayer the effect of which is to defeat the objection. If such prayers were entertained rule 100 which permits preliminary objections would be negated. This position is clearly stated in *Minister for Labour and another v. Gapser Swai and others* (1), and the decision cited therein.

It follows from the foregoing that there is no certificate under rule 83(1) accompanying the Record of Appeal, in the absence of a

valid certificate. The consequence is that the appellant cannot take advantage of the exclusion of time in computing the time within which the appeal ought to have been instituted but the time has to be reckoned from the date the Notice of Appeal was filed. Notice of Appeal was indisputably lodged in time on 8 July 1997 and the appeal was instituted on 13 October 1997. That was more than 60 days from 8 July 1997 and therefore out of time. This alone is sufficient to dispose of the matter but we will also consider the second ground of objection as it raises important questions.

The second ground turns on the construction of rule 77(1). It reads thus:

> An intended appellant shall, before, or within seven days after lodging a Notice of Appeal, serve copies of it on all persons who seem to him to be directly affected by the appeal; but the Court may, on an *ex parte* application, direct that service need not be effected on any person who took no part in the proceedings in the High Court.

Analysing the rule, Mr Magongo stated that there are two categories of persons who should be served: first, those who took part in the proceedings in the High Court; second, those who did not but who stand to be directly affected by the appeal. We agree with the analysis but we wish to observe that there may be persons who took part in the proceedings in the High Court but who need not be appealed against and, therefore, need not be served if they do not seem to be directly affected by the appeal. For those persons who took no part in the proceedings in the High Court, an appellant has to serve them with copies of the Notice of Appeal if they seem to him to be directly affected by the appeal, except where the Court, on *ex parte* application, directs that service need not be effected on them. The argument advanced by Mr Rweyemamu is that it is in the discretion of the appellant to decide which persons seem to him to be directly affected by the appeal. He contended that Mini Millers Ltd., not being a person who took part in the proceedings in the High Court, did not seem to the appellant to be a person directly affected by the appeal.

We think, with respect, Mr Rweyemamu's appreciation of the rule is not entirely correct. To demonstrate this, we propose to approach the subject in two stages: first to determine whether there was sufficient material in the proceedings to bring it to the attention of the appellant that Mini Millers Ltd. was directly affected by the appeal, and, if so, to determine whether the appellant had a discretion to decide whether the company was a person who seemed to him to be so affected.

Mr Magongo referred to four areas in the proceedings in connection with the first stage. These were, first, paragraph 2 of the plaint which gives the address for service of the respondent as "his business premises of *(sic)* Plot Number 8 and 9 Mwanza South Industrial Area under the name and style of Mini Millers Limited." Mr Rweyemamu argued that a mere address does not make the owner a party to the suit. We think, however, there was more than an address to this. Mini Millers Limited. is shown by the appellant himself to be in occupation of the property the transfer of which he is seeking to be nullified. It is an acknowledgement that the company had an interest of sorts in the property. Next, Mr Magongo referred to the evidence of PW4, and accountant, who sated in cross-examination: " I saw the Memorandum of Association in respect of the Mini Millers Ltd." Mr Rweyemamu made no reference to this. At first sight the statement appears to convey nothing but when considered in its context a different picture tends to emerge. The witness said:

> Yes, I supplied the plaintiff with an audit report, he asked for it, I did not know when he ceased to be a partner. We were not told he had ceased. I saw the Memorandum of Association in respect of the Mini Millers Limited.

It seems to us that this line of cross-examination was intended to link up the fact of the appellant's retirement from the partnership and its transformation into a limited liability company. That again would have impacted on the partnership property which would pass to the company by operation of law. Third, Mr Magongo referred to the evidence of DW3 in cross-examination where he said: "I was employed by Mini Millers Limited. on 11 July 1988, it was not Mini

Millers Limited. I don't know when it became a limited liability company. "Mr Rweyemamu referred to this but could not read anything into it, but we think the intention of the examining counsel was to show that what was Mini Millers was reborn as Mini Millers Ltd.with all the consequences.

Finally, Mr Magongo referred to Exhibit D3. This is an application to the Registrar of Titles for registration of a transmission by operation of law in respect of the property comprised in CT Number 033047/ 109 from "Dahyabhai Fakirbhai Mistry trading under the name and style of Mini Millers ... to Mini Millers Limited."The document carries this significant declaration by the respondent:

> That by virtue of the Memorandum and Articles of Association of Mini Millers Ltd. incorporated on the 19 June 1992 under Certificate of Incorporation Number 21138, the business rights liabilities and properties carried under the name and style of Mini Millers was taken over by the said Mini Millers Limited.

The document was admitted in evidence without resistance and it is duly contained in Volume II of the appellant's Record of Appeal. As told before, Mr Rweyemamu stated that the appellant had nothing to do with Exhibit D3. This document, in our view, puts it beyond peradventure that Plot Numbers 8 and 9 had passed to Mini Millers Limited. It carries the stamp of the Registrar of Titles showing that the transmission was registered on 14 October 1993 as Filed Document Number 3969. Since one of the prayers in the appeal is to nullify transfers of landed properties, we are bound to hold in the light of all this material that Mini Millers Limited. is directly affected by the appeal and the appellant cannot be seen to deny seeing that position.

Did the appellant have discretion to decide whether, in view of the foregoing, Mini Millers Ltd. did or did not seem to him to be directly affected by the appeal? It has been shown that Mr Rweyemamu thought that the appellant had that discretion. The language of rule 77(1) is that an intended appellant shall serve copies of the Notice of Appeal "on all persons who seem to him to be directly affected

by the appeal." On the face of it, seems to lie in the discretion of an intended appellant to decide which persons "seem to him" to be directly affected by the appeal. However, it is long established in judicial interpretation that words and expressions which *prima facie* appear permissive may in certain circumstances assume an imperative character. The test is whether there is anything that makes it the duty of the person on whom the power is conferred to do this or that to exercise the power. When the power is coupled with a duty it ceases to be discretionary and becomes imperative. **Maxwell on Interpretation of Statutory** (9 ed), pages 252/3, sets out the considerations which may transform a discretionary power into a duty in these words:

> ... there may be something in the nature of the thing empowered to be done, something in the object for which it is to be done, something in the conditions under which it is to be done, something in the title of the persons for whose benefit the power is to be exercised, which may couple the power with a duty, and make it the duty of the person in whom the power is reposed to exercise it when called upon to do so. It lies on those who contend that an obligation exists to exercise the power to show in the circumstances of the case something which, according to the above principles, created that obligation ...

Mr Magongo argues that rule 77(1) was aimed against the mischief of condemning a person without the opportunity of being heard. In other words, it is a rule which translates into practical terms the principles of natural justice. As the title of Mini Millers Limited. over Plot Numbers 8 and 9 is at stake, it is also to their benefit that they just "seem" to the appellant to be directly affected by the appeal. Mr *Magongo* further said that it would be contrary to the Constitution of the United Republic if, the company were not served with the Notice of Appeal. That is certainly so in the light of Article 13(6)(a) of the Constitution. It states in part:

> *Wakati haki na wajibu wa mtu yeyote vinahitaji kufanyiwa uamuzi wa mahakama au chombo kinginecho kinachohusika, basi mtu huyo atakuwa na haki ya kupewa fursa ya kusikilizwa kwa ukamilifu ...*

In this case what the appellant seeks is, *inter alia*, the nullification of transfers of landed properties. Mr *Rweyemamu* reluctantly conceded that that would include the transfer of Plot Numbers 8 and 9 to Mini Millers Limited. In fact there was no evidence of any other transfer apart from this. In these circumstances we are of the firm view that the power granted to the appellant to decide which persons seem to him to be directly affected by the appeal ceases to be discretionary but a duty arises to exercise it. In other words, where a person would in fact be directly affected by an appeal, that person must seem to the appellant to being so affected. Once that is the position, there is no discretion but to serve that person with the Notice of Appeal. Where, as in this case, that person took no part in the proceedings in the High Court, it is the Court of Appeal, rather than the appellant, which is vested with power to direct that service need not be effected on that person. Rule 77(1) does not constitute the appellant a judge in his own cause. The argument that there was no address for service on Mini Millers Limited. cannot avail the appellant in this case for that is an argument that could have been raised in an application to the Court to exempt service.

In accordance with the authorities cited to us by Mr Magongo, omission to serve a copy of the Notice of Appeal on a respondent is fatal to the appeal. We are of the view that it is similarly fatal to omit to serve a person who seems directly affected by the appeal though he took no part in the proceedings in the High Court. Mr Rweyemamu prayed that if the Court came to this view it should allow the appellant to serve Mini Millers Limited, rather than strike out the appeal. For reasons already stated in connection with the certificate under rule 83(1), the Court is precluded from granting the prayer.

The preliminary objection thus succeeds on both grounds and it is accordingly upheld. The appeal pending before the Court is therefore incompetent; it is struck out with costs.

MORRIS AGUNDA AND TWO OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CRIMINAL APPEAL No. 100 OF 1995

(From the conviction of the High Court of Tanzania at Tabora, Korosso, J. dated 15 November 1995, in Criminal Sessions Case No. 83 of 1990)

Evidence – Confession – Retracted confession – Trial Court relied on retracted confession – Whether conviction is sustainable.

Evidence – Confession – Voluntariness of confession – Confession made at gun point and after considerable and unexplained lapse of time – Whether confession voluntary and admissible.

Evidence – Confession – Retracted confession – Admissibility of retracted confession – Trial within trial not held – Whether confession admissible.

The appellants were jointly convicted of murdering the deceased in furtherance of the offence of robbery with violence, and were each sentenced to death. The appeal in this Court proceeded to hearing in respect of two appellants only after the other appellant, Nyombi Mahona, had died in prison. The evidence implicating the appellants was wholly circumstantial consisting of confessions allegedly made to witnesses. The confessions were retracted during the trial but the Trial Court found them to have been voluntarily made. On appeal:

Held: (i) In all the circumstances of the case the voluntariness of the appellant's alleged confession is a matter for grave doubts, and the learned judge ought to have found so;

(ii) The consequence thereof is to discount or disregard completely the appellant's alleged confession, in which case the question of requiring evidence to corroborate a retracted or repudiated confession does not arise;

(iii) Evidence which itself required corroboration could not corroborate the retracted or repudiated confession of the co-appellant.

(iv) There can be no doubt that the trial judge grossly misdirected himself. For, upon the objection (of admissibility of the extra-judicial statement) the proper procedure was for him to hold a trial - within - trial and then rule on the matter.

Appeal allowed

Case referred to:

(1) *Tuwamoi v. Uganda* [1967] E A 84

Statutory provisions referred to:

(1) Court of Appeal Rules 1979, rule 71(1)

Mr Nasimire, for the Appellants

Mr Mwampoma, for the Republic

JUDGMENT

(Dated 19 November 2001)

Kisanga, J.A.: The appellants were jointly convicted of murdering the deceased in furtherance of the offence of robbery with violence, and were each sentenced to death. They now appeal against both conviction and sentence. When the appeal was called on for hearing the Court was informed that the appellant Nyombi Mahona had died in prison, copies of death and burial certificates in respect of him having been received by the Registry from the prisons Tabora. On the basis of that information, and acting under rule 71(1) of the Court of Appeal Rules, it was accordingly ordered that the appeal in respect of him shall abate. The appeal proceeded to hearing in respect of the remaining two appellants who were represented by Mr Nasimire, learned advocate, while the respondent Republic was represented by Mr Mwampoma, learned Senior State Attorney.

The gist of the prosecution case was that a gang of armed robbers, including the appellants, gained access into the house of the deceased at night by climbing over the fence, and having done so they shot the deceased, killing him on the spot, terrorized the other inmates and eventually made away with a big sum of money. In their defences at the trial the appellants denied the charge but the trial judge found the charge against them proved and, rejecting the defences, convicted them accordingly.

The evidence implicating the appellants was wholly circumstantial consisting of confessions allegedly made to witnesses. We shall consider the case of each appellant separately, starting with the appellant Morris Agunga. The evidence adduced against him consisted of a confession contained in a cautioned statement (Exhibit P3) he made to the police, and an admission made orally to PW1, a Rural Medical Aid, to whom he was taken for treatment of a bullet wound inflicted by the police. The cautioned statement was admitted in evidence without any objection. The appellant in his defence at the trial retracted or repudiated the confession, alleging that it was not voluntary. As already stated however, the trial judge rejected the appellant's claim. Mr Nasimire submitted that the learned judge wrongly relied on the retracted confession to convict the appellant.

The trial judge found the cautioned statement to be voluntary because of the detailed nature of it. This is what he said on the matter:

> I am also finally convinced that the first Accused's (Morris Agunda) confessional cautioned statement Exhibit P3 was voluntarily made and that the detailed information or narrative contained in the document Exhibit P3 can best be described as a revelation of something so personal and confidential that no stranger would have known it.

That was the view which the trial judge formed of the appellant's confessional statement. But the crucial point in this appeal is that the learned judge did not examine the aspect of voluntariness of the confession as against the reasons given by the appellant in his defence

at the trial for retracting or repudiating that confession. The appellant testified that the confessional statement Exhibit P3 was prepared by the police who forced him to sign it. First the police required him to confess to the offence on the basis of the information they supplied to him; in order to achieve that the police tortured him by denying him food and water for three days and by assaulting him physically including in his private parts. When he eventually succumbed the police then required him to record an extra-judicial statement to that effect before a justice of the peace which he pretended to oblige in order to avoid further torture. But when later on the police discovered that he did not, in fact, confess before the justice of the peace, they produced a prepared statement (Exhibit P3) and required him to sign it under gunpoint which he did. In the process the police also shot him in the leg causing him severe pain and bleeding profusely. When the police took him to the Rural Medical Aid (PW1) for treatment of the bullet would they required him from the outset to explain to the Rural Medical Aid how he came to sustain the gun wound, and in compliance therewith the appellant made the confession to him on the basis of the information previously fed to him by the police. The appellant reiterated that neither the alleged confessional statement (Exhibit P3) nor his oral admission to the Rural Medical Aid (PW1) was made voluntarily.

The trial judge did not consider the appellant's defence to decide if in the light of it the appellant's confession was really voluntary. He had a duty to do so, and if he found that the alleged confession was not voluntary he should discard it altogether notwithstanding that its admissibility in evidence had not been objected to. We now have to make good the omission by the trial judge. We have to decide whether in light of the appellant's defence at the trial, the alleged confession as contained in his cautioned statement (Exhibit P3) and in his oral statement to the Rural Medical Aid (PW1) was voluntary.

First, the cautioned statement (Exhibit P3) is dated 28 February 1989, the very day the appellant was shot in the leg. That tends to

support the appellant's claim that he was forced by the police to sign the statement at gun point, following a series of other incidents of torture.

Secondly, it is common ground that after the appellant had allegedly confessed to the police, he was taken to a justice of the peace to record his confession in an extra-judicial statement. The appellant testified that he did record a statement before the justice of the peace in which, however, he did not confess to the offence, and the prosecution did not produce the said statement made to the justice of the peace to contradict the appellant. The fact that the appellant did not repeat the confession before the justice of the peace when he was free to do or not to do so increasingly suggests that the confession made to the police was not voluntary, as the appellant maintains. Thirdly, the alleged confession was made on 28 February 1989 but the appellant was arrested on 21 January 1989, that is more than one month previously, and there is no explanation or apparent reason for the delay. In our view an alleged confession made after such considerable and unexplained lapse of time is not consistent with the view that the confession was made voluntarily. And lastly the appellant's oral admission to the Rural Medical Aid was made on the very day the appellant was shot in the leg, marking the culmination of a series of acts of torture on him by the police. At the material time the appellant was under severe pain and bleeding profusely. He was in custody of the police officer who was armed with a pistol and who expressly required him to explain to the Rural Medical Aid how he came to sustain the bullet wound, and in compliance therewith he made the confession in the very presence of the police basing himself, as he claims, on the information previously fed to him by the police. In our opinion it is impossible to see how an admission made in such circumstances could be said to be voluntary.

It is thus apparent, in the light of the foregoing, that the appellant's defence at the trial at least casts grave doubts on the voluntariness of his alleged confession. The trial judge found the confessional

statement (Exhibit P3) to contain details which in his opinion could be ascribed to no one else but the appellant, its maker. The body of that statement is about one typed page. The appellant's thesis seems to be that the police who had investigated the case for more than a month, had gathered information enabling them to compose the statement which they then acquainted him with and later required him to sign. The trial judge should have considered that scenario but he did not. In all the circumstances of the case we are satisfied, and so hold, that the voluntariness of the appellant's alleged confession is a matter for grave doubts, and the learned judge ought to have found so.

The consequence of our so finding is to discount or disregard completely the appellant's alleged confession, in which case the question of requiring evidence to corroborate a retracted or repudiated confession does not arise. For, once the appellant's confession is thus disregarded there is nothing to be corroborated. Indeed we venture to add that even if that question arose, no corroborative evidence could be found.

There was an alleged confession by the co-appellant, Nyombi Mahona, who had implicated this appellant. But Nyombi's confessional statement, at least, required corroboration because it was equally retracted or repudiated. Such evidence which itself required corroboration could not corroborate the retracted or repudiated confession of the co-appellant. Again once the appellant's alleged confession is disregarded, the issue of whether or not that confession could not but be true in terms of the rule in the case of *Tuwamoi v. Uganda* (1) does not arise for the obvious reason that the said confession is just not there. In the circumstances, therefore, the appellant's conviction was clearly untenable.

This brings us to the case of the appellant Paul Lubende. His conviction was based solely on an alleged confession contained in the extra-judicial statements (Exhibit P4) made by him before the justice of the peace (PW5). The admissibility of that document in evidence was objected to on the ground that the alleged confession

in it was not voluntarily made. However, for reasons which are totally unintelligible the objection was overruled. The ruling reads:

> I do not see the accused objecting (to) the production of the extra-judicial statement with the allegation that the fifth accused (present appellant) was tortured and forced to sign it when the extra-judicial statement was made by the fifth accused before the Justice of the Peace in his chambers in absence of not only the police but also any member of the police.

There can be no doubt that the trial judge grossly misdirected himself. For, upon the objection being raised the proper procedure was for him to hold a trial-within-trial and then rule on the matter. As it is now, however, his ruling was simply premature, there was no material on which it could be said to be based. Mr Mwampoma readily conceded and rightly so. We, therefore, have to disregard the said confession of the appellant Paul Luhende and when that is done, there is no evidence on which the conviction could be pegged.

As in the case of the appellant Morris, there was the confession of the co-appellant Nyombi Mahona which had also implicated this appellant. But as already pointed out even if that confession was admissible, itself required corroboration because it was retracted. As such therefore it could not be used as corroborating or as lending assurance to other evidence against the appellant because there was no such other evidence. The conviction of the appellant Paulo Luhende, therefore, was equally unsupportable.

In the result and for the reasons set out hereinabove the appeal is allowed. The convictions of both appellants are quashed and the sentences set aside. The appellants are to be released from prison forthwith unless they are otherwise lawfully held.

PETER NG'HOMANGO *v.* ATTORNEY GENERAL

COURT OF APPEAL OF TANZANIA AT MWANZA

(Kisanga, Lubuva and Lugakingira, JJ.A.)

CIVIL APPEAL No. 36 OF 1997

(From the Order and Decree of the High Court of Tanzania at Mwanza, Masanche, J. dated 25 April 1997 in Civil Case No. 57 of 1996)

Civil Practice and Procedure – Plaint – Striking out an incompetent plaint – Power to strike out an incompetent plaint – Whether striking out such plaint amounts to rejection in terms of Order VII, rule 11(c) of the Civil Procedure Code 1966.

Civil Practice and Procedure – Rejection of incompetent plaint – Power to reject an incompetent plaint – Whether rejection of plaint may give rise to decree as defined under section 3 of the Civil Procedure Code 1966.

Civil Practice and Procedure – Appeal – Right to appeal – Decision made under Order VII, rule 11(c) of the Civil Procedure Code 1966 – Whether appellable as of right or by leave.

The appellant filed a Civil Case in the Dar es Salaam Registry of the High Court in 1994, against the Principal Secretary Ministry of Education and Culture. When the case was due for hearing in 1996, he prayed for substitution of the Attorney General for the Principal Secretary Ministry of Education and Culture, and for transfer of the case to the Mwanza Registry of the High Court, and for amendment of the Plaint. The Court granted the prayers. In Mwanza the case come before Masanche, J. to perfect, the order by Kaji, J. The respondent raised the issue that the case had been instituted contrary to section 2(2) of the Government Proceedings Act 1967 hence the judge struck it out. The appellant appealed against that order. At the hearing of the appeal, a preliminary point was raised as to whether the appeal could be lodged as of right or with leave as the decision appealed against was struck out, which does not fall under section 3 and Order VII, rule 11(c) of the Civil Procedure Code 1966 as the decree thereof does not meet conditions under section 5(1)(a) of the Appellate Jurisdiction Act 1979.

Held: (i) The order of the High Court striking out the suit finally and conclusively disposed of the suit, which amounted to rejection of the plaint under Order VII, rule II(c) of the Civil Procedure Code 1966;

(ii) The appellant is entitled to appeal to this Court against that order without leave as the Order to strike out the suit was a decree within the meaning of section 5(1)(a) of the Appellate Jurisdiction Act 1979.

Order accordingly

Case referred to:

(1) *Tanganyika Motors Limited v. Transcontinental Forwarder Limited*, CAT - Civil Appeal Number 44 of 1993 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Code 1966, section 3; Order VII, rule 11(c)

(2) Government Proceedings Act 1967, section 2(2)

(3) Appellate Jurisdiction Act 1979, section 5(1)(a)

Mr Shio, for the Attorney General

JUDGMENT

(Dated 19 November 2001)

Lubuva, J.A.: This appeal is against the decision of the High Court (Masanche, J.) of 5 April 1997 in High Court Civil Case Number 57 of 1996 striking out the suit filed by the appellant against the Attorney General.

Initially, the appellant had filed Civil Case Number 161 of 1994 against the Principal Secretary Ministry of Education and Culture. The plaint was duly filed on 25 July 1994 in the High Court Dar es Salaam Registry. When proceedings commenced on 7 December

1994, the defendant represented by State Attorney from the Office of the Attorney General had not filed Written Statement of Defence.

The State Attorney was granted extension of time to file Written Statement of Defence. On 12 July 1996, the appellant applied for three orders: First, to substitute the Attorney General for the Principal Secretary, Ministry of Education and Culture, second, transferring the case to the High Court, Mwanza Registry and thirdly, the plaintiff, the appellant in this appeal, to be at liberty to amend the plaint. On 12 July 1996, Kaji, J. granted the application allowing the substitution of the Attorney General for the Principal Secretary and the transfer of the case to Mwanza High Court Registry on the same fees paid in Dar es Salaam.

In Mwanza, the case number was changed from number 161 of 1994 to number 57 of 1996. After the appellant/plaintiff had filed the amended plaint, the case came on for hearing before Masanche, J. on 24 April 1997, when the appellant's application for what he called "to perfect" the order by Kaji, J. was to be heard. Mr Mbago, learned State Attorney for the Attorney General, raised the issue that it had been instituted contrary to the provisions of section 2(2) of the Government Proceedings Act 1967, as amended by Act Number 30 of 1994, herein after referred to as the Act which requires notice to be given before instituting a suit against the Government. As a result and as already stated, the learned trial judge held that the suit was incompetent in law, he struck it out.

In the Memorandum of Appeal, the appellant raised two points of complaint. First, that the learned trial judge erred in not determining the chamber application before him in terms of sections 96 and 97 of the Civil Procedure Code. Second, that it was not proper for the judge to strike out the suit on the ground that it did not comply with section 2(2) of the Act.

When the case was called on for hearing, at the prompting of the Court a preliminary point was raised whether the appeal could be lodged as of right or with leave. The appellant who was unrepresented

vigorously and enthusiastically contended that the matter was appealable as of right. He advanced the following reasons: First, by striking out the suit the matter was put to an end which amounted to a rejection of the plaint in terms of Order VII, rule 11(c) of the Civil Procedure Code 1966. Secondly, the plaint having been rejected, that finally and conclusively determined the case before Masanche, J. This is evident from the fact that a decree was drawn based on the order rejecting the suit. The rejection of the plaint in this matter, Mr Ng'homango, the appellant submitted, amounted to a decree as defined under section 3 of the Civil Procedure Code. As defined under section 3 of the Civil Procedure Code a decree shall be deemed to include the rejection of a plaint as happened in this case. The decree in this case, he urged, meets the requisite conditions laid down under section 5(1)(a) of the Appellate Jurisdiction Act 1979. In elaboration, he said the decree was made by the High Court in a suit under the Civil Procedure Code in exercise of its original Jurisdiction. With these conditions fulfilled, he concluded, no leave was required in filing the appeal. He referred the Court to its decision in the case of *Tanganyika Motors Limited v. Transcontinental Forwarder Limited* (1).

Mr Shio, learned Principal State Attorney appeared for the respondent, the Attorney General. With respect, he did not have much to say in response to the appellant's submission on this point. Even then, he seemed to prevaricate in his submission. At some stage, he maintained that the matter was not appealable without leave. According to him, the main issue in the matter before the trial judge was one of procedure which the State Attorney had raised, namely, that the procedure for suing the Government provided under the Act had not been followed. He said, as the procedure was not followed, the trial judge was justified in striking out the suit with direction to reinstitute the suit in accordance with the law if the appellant so wished. At a later stage however, Mr Shio apparently changed his position. He conceded that the suit having been struck out, it was finally and conclusively determined. He left the matter at that while praying the Court to proceed with the hearing of the appeal on its merits.

Having heard submissions by the appellant and Mr Shio on the preliminary issue pertaining to leave, we reserved our ruling on the issue until submissions on the merits of the appeal were concluded. It was ordered that the ruling on the preliminary issue would be incorporated into the main body of our decision in the appeal. We now set out to deal first with the preliminary point, whether the appeal in this matter requires leave. We think the determination of this issue turns on the question whether the order of the High Court of 25 April 1997 finally and conclusively disposed of the suit. From the record, it seems clear to us that from the outset the learned trial judge was minded to strike out the suit. The opening part of the order starts with the words "this matter must be struck out." Similarly, in its concluding part, it states that the suit is struck out as incompetent in law. In our view, the very wording of the order indicates the intention of the learned judge to dispose of the matter finally while leaving it open for the appellant if he was so minded, to reinstitute the case according to the law. That is why we think the judge ordered the plaintiff, the appellant to comply with the provisions of section 2(2) of the Act. Otherwise, so far as the suit before the learned trial judge was concerned, we agree with the appellant that that was the end of the matter. On the other hand, if the learned judge had intended otherwise, we can see no reason why he did not invoke the proviso to rule 11 Order VII of the Civil Procedure Code as amended by Government Notice Number 228 of 22 October 1971 under this amendment, if the judge was satisfied that if the appellant (plaintiff) was permitted to amend the plaint, the suit will cease to appear from the plaint to be barred by law, he would have allowed the appellant to amend the plaint and not to strike it out. This was not the case, instead, the suit was struck out and a decree was duly drawn to the effect that the suit was struck out.

The next question which falls for consideration is whether the striking out of the suit amounted to a rejection of the plaint. Rule 11 of Order, VII provides for circumstances under which a plaint shall be rejected. Sub-rule (c) provides to the effect that where the

suit appears from the statement in the plaint to be barred by law, the plaint shall also be rejected. In this case, and as the appellant contended, the learned judge in unambiguous words stated that the suit was struck out because it did not comply with section 2(2) of the Act. We therefore agree that the suit was, in the view of the learned judge, barred by law and therefore its being struck out amounted to a rejection of the plaint. As a decree is defined under section 3 of the Civil Procedures Code 1966 to include the rejection of a plaint, it is our view that this was a decree. Section 5(1)(a) of the Appellate Jurisdiction Act,1979, sets out the conditions for an appeal to lie to the Court. Subsection (a) provides that an appeal shall lie:

> (a) against every decree, including ex parte or preliminary decree made by the High Court in a suit under the Civil Procedure Code 1966 in the exercise of its original jurisdiction.

In *Tanganyika Motors Limited v. Transcontinental Forwarder Limited* (1) the Court set out these conditions. In that case in more or less similar circumstances a preliminary objection was raised that the appeal did not lie to the Court because it did not satisfy the three conditions. As one of these conditions was lacking, we found that the decree did not fall under section 5(1)(a) of the Appellate jurisdiction Act 1979. In the instant case, we are satisfied that the order of 25 April 1997, the subject of the appeal, was a decree made by the High Court in exercise of its original jurisdiction under the Civil Procedure Code. As the decree satisfies the three conditions, it falls within the provisions of paragraph (a) of subsection (1) of section 5 of the Appellate Jurisdiction Act 1979. It follows that the appellant was entitled to appeal to the Court without leave.

We will now deal with the merits of the appeal. In a gallant and high spirited manner, the appellant made long and extensively researched submissions to the effect that the suit was wrongly struck out. In response to these submissions, Mr Shio, learned Principal State Attorney for the Attorney General at first resisted the appeal. However, upon reflection, he conceded that the suit was wrongly struck out. He said that the learned trial judge should have heard the applicant's

application before the Court which sought to "perfect" Kaji, J.'s order. The learned Principal State Attorney having conceded to the appellant's submissions and we think correctly so, we do not find it necessary to deal any further with the appellant's submissions on the merits of the appeal.

Accordingly, by consent the High Court order of 25 April 1997 striking out the suit is set aside. In order to expedite the finalisation of the case which has had a chequered history since it was filed on 25 July 1994, the appellant had asked the Court to step into the shoes of the High Court in allowing the application to "perfect" Kaji, J.'s order. Mr Shio, did not have any objection to this application. As the amended plaint was already filed with the High Court, we agree to step into the shoes of the High Court and grant the application to perfect to Kaji, J.'s order. In fine, and for purposes of clarity, the High Court order of 25 April 1997 is set aside. The appellant's application to "perfect" Kaji, J.'s order of 12 July 1996 is granted. It is further ordered that the case be remitted to the High Court with direction to continue the proceedings according to the law.